

Chapter 873 SANITARY CODE¹

ARTICLE I. SHORT TITLE; GENERAL DEFINITIONS, GENERAL PROVISIONS

Sec. 873.100. Short title.

The rules and regulations herein contained together with any and all amendments thereto shall constitute and comprise the Sanitary Code of the County of Westchester and shall be known and may be cited as the Westchester County Sanitary Code.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.101. General definitions.

1. Whenever used in this code, unless otherwise expressly stated or unless the context or subject matter requires a different meaning, the following terms shall have the respective meanings hereinafter set forth or indicated:
 - a. *Automated external defibrillator*. The term “automated external defibrillator” means a medical device, approved by the United States food and drug administration, that: (i) is capable of recognizing the presence or absence in a patient of ventricular fibrillation and rapid ventricular tachycardia;

¹Editor's note(s)—The last complete revision of the Sanitary Code was promulgated in 1959 to be effective September 1, 1959. At that time the Sanitary Code consisted of Articles I through XII. The following is the disposition of those Articles: Article I was repealed effective 9-1-1971 and replaced by Article I of this chapter; Article II is included as Article IV of this chapter; Article III was repealed effective 1-1-1976 and replaced by Article V of this chapter; Article IV is included as Article VI of this chapter, Article V is included as Article VII of this chapter; Article VI was repealed effective 6-1-1976; Article VII is included as Article VIII of this chapter; Article VIII is included as Article IX of this chapter; Article IX was repealed effective 9-1-1971 and replaced by Article X of this chapter; Article X was repealed effective 6-1-1976; Article XI is included as Article XI of this chapter; Article XII is included as Article XII of this chapter. Inasmuch as Ch. 873 contains duplicative section numbers (for example, there is a § 873.411 in both Articles IV and V), when reference is made to a particular section number in Ch. 873 the corresponding article number should also be utilized. This issue is currently under review by the county.

Cross reference(s)—Department of Health, Ch. 149; Public health, Ch. 261.

State law reference(s)—Authority, Public Health Law, §§ 309, 348 and 349.

- (ii) is capable of determining, without intervention by an operator, whether defibrillation should be performed on a patient;
 - (iii) upon determining that defibrillation should be performed, automatically charges and requests delivery of an electrical impulse to a patient's heart; and
 - (iv) then, upon action by the operator, delivers an appropriate electrical impulse to a patient's heart to perform defibrillation.
- b. *Bathing beach.* Bathing beach shall mean a bathing place, together with any buildings and appurtenances including the water and land areas used in connection therewith, at a pond, lake, stream or other body of fresh or salt water which is used for bathing or swimming or as defined in Chapter 1, Subpart 6-2 of the State Sanitary Code. A bathing beach shall be a place used with the express or implied permission or consent of the owner or lessee of the premises, or a place operated for a fee or any other consideration, or a place openly advertised as a place of bathing or swimming.
 - c. *Board.* The term "board" means the Board of Health of the County of Westchester.
 - d. *The Code.* The term "the code" means the Sanitary Code of the County of Westchester.
 - e. *Charter.* The term "Charter" means the Charter of the County of Westchester.
 - f. *Communicable disease.* The term "communicable disease" means infectious, contagious or communicable disease.
 - g. *County.* The term "county" means the County of Westchester.
 - h. *Commissioner.* The term "commissioner" means the Commissioner of Health of the County of Westchester.
 - i. *Department.* The term "department" means the Department of Health of Westchester County.
 - j. *Health district.* The term "health district" means the geographical area comprising the County of Westchester.
 - k. *Certificate.* When used in the code, the words "certificate," "permit" or "license" are interchangeable.
 - l. *Permit.* The term "permit" means a written license and authorization to carry on a specified activity or activities as regulated by this code, the New York State Sanitary Code, the Public Health Law, or the Environmental Conservation Law, and includes any written approval issued by the commissioner or his duly designated representative.
 - m. *Permittee.* The term "permittee" means a person who holds a valid permit issued by the commissioner, the department, the State Department of Health, or the State Department of Environmental Conservation.
 - n. *Person.* The term "person" means any individual, firm, profit or not-for-profit corporation, cooperative, association, partnership, institution, political subdivision, government agency, public body, joint-stock association, trust, estate, or other group of individuals or combination of the foregoing, or any

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- other legal entity whatsoever, except the State of New York and its agencies.
- o. *Public access defibrillation provider.* The term “public access defibrillation provider” or PAD provider, means a person, firm, organization or other entity possessing or operating an automated external defibrillator pursuant to a collaborative agreement under this section.
 - p. *Public Health Council.* The term "Public Health Council" means the Public Health Council of the State of New York.
 - q. *Municipality.* The term "municipality" means a city, town or village located within the County of Westchester.
 - r. *Nationally-recognized organization.* The term “nationally-recognized organization” means a national organization approved by the department for the purpose of training people in the use of an automate external defibrillator.
 - s. *State.* The term "state" means the State of New York.
 - t. *State Sanitary Code.* The term "State Sanitary Code" means the rules and regulations promulgated by the Public Health Council of the State of New York and designated as the State Sanitary Code.
 - u. *Swimming pool.* The term “swimming pool” shall mean a structure, together with buildings and appurtenances used in connection therewith, intended for bathing, swimming or diving purposes, made of concrete, masonry, metal, or other impervious material, located either indoors or outdoors or as defined in Chapter 1, Subpart 6-1 of the State Sanitary Code. This definition does not apply to homeowner swimming pools as defined in Section 6-1.2(o) of the State Sanitary Code.
 - v. *Training course.* The term “training course” means a course approved by a nationally-recognized organization or state emergency medical services council in the operation of automated external defibrillators.

(Added 8-15-2025, eff. 11-15-2025)

Sec. 873.102. Applicability; legal effect.

1. The provisions of the code shall be in force throughout the County of Westchester.
2. The provisions of this code shall have the force and effect of law.
3. It shall be the duty of the Board of Health and the commissioner to enforce each and every provision of this code.
4. Nothing herein contained in this code shall be construed to restrict the power of any city, town or any village to adopt and enforce additional ordinances or enforce existing ordinances relating to health and sanitation, provided that such ordinances are not

inconsistent with the provisions of the Public Health Law, the Environmental Conservation Law or the State Sanitary Code.

5. Whenever the sense of the code may require:
 - a. Any singular word or term used herein shall also be read as in the plural; and
 - b. Any masculine word or term used herein shall also be read as in the feminine.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.103. Legal presumptions; evidence; reports as evidence.

1. As provided by the Public Health Law, certified copies of the code shall be received in evidence in all courts and proceedings in the county.
2. As provided by the Public Health Law, every rule, regulation, order and direction adopted by the board shall state the date on which it takes effect; and a copy thereof signed by the commissioner or his deputy shall be filed as a public record in the department, in the State Department of Health and in the office of the Westchester County Clerk; and shall be published in such manner as the board may from time to time determine.
3. As provided by the Public Health Law, the written reports of state and local health officers, inspectors, investigators, nurses and other representatives of state and local health officers on questions of fact pertaining to, concerning or arising under and in connection with complaints, alleged violations, investigations, proceedings, actions, authority and orders, related to the enforcement of this code, the Public Health Law, the Environmental Conservation Law, the State Sanitary Code or any local health regulation shall be presumptive evidence of the facts so stated therein, and shall be received as such in all courts, administrative hearings and places.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.104. Construction.

1. This code is intended to be consistent with the applicable federal and state law and shall be construed, whenever necessary, to achieve such consistency.
2. This code shall be liberally construed for the protection of health and safety in the health district.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.105. Separability of provisions.

1. In the event that any provision of this code is declared unconstitutional or invalid, the constitutionality or validity of every other provision of the code shall not be affected thereby.
2. In the event that the applicability of any provision of this code to any person or circumstance is held to be invalid, the applicability of such provision to other persons and circumstances shall not be affected thereby.

Sec. 873.106. Saving clause.

1. Nothing contained in this code shall affect or impair any act done or right accruing, accrued or acquired or any penalty, forfeiture or punishment incurred prior to the time when this act shall take effect, under or by virtue of the provision or provisions of law or the Sanitary Code, as in force immediately prior to the time this code shall take effect, but the same may be asserted, enforced, prosecuted or inflicted, as fully and to the same extent as if this code shall not have taken effect.
2. When enacted pursuant to the Public Health Law of the State of New York, an act of the board which adds or purports to add a new article, section, subdivision or other provision to the code shall take effect, shall be deemed and construed as having been added to such code, as amended by this code, and shall be given full effect according to its context as if the same had been added expressly and in terms of such code, and shall be deemed and construed to have been inserted in such code, in the appropriate respective position in regard to and as modifying the effect of the corresponding provision or provisions of such code, as herein adopted and promulgated.
3. Reference in any law to an existing article, section, subdivision or other provision of the Westchester County Sanitary Code, as in force immediately prior to the time this code shall take effect, shall be deemed and construed to refer to the corresponding article, section, subdivision or other provision of such law, as renumbered, modified or amended by this code.
4. Reference in any general, special or local law, rule, regulation or public document to any provision or provisions of the Westchester County Sanitary Code, as in force immediately prior to the time this code shall take effect, shall be deemed to be and construed as a reference to the corresponding provision or provisions of such code, irrespective of whether such provision or provisions is or are contained in one or more than one article, section, subdivision or other part thereof.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.107. Sanitary code; certified copies.

The commissioner or his deputy shall furnish certified copies of the code and its amendments for a fee of \$1.00 per page of the code.

(Added 11-20-1986, eff. 11-20-1986)

ARTICLE II. THE DEPARTMENT OF HEALTH; ADMINISTRATION AND ENFORCEMENT

Sec. 873.200. The Board of Health; officers; meetings.

1. The board shall be organized and constituted as required by the provisions of the Public Health Law and the Charter of the County of Westchester.
2. The board shall meet regularly, as fixed by the board.
3. The President or other presiding officer of the board may call special meetings thereof when, in his judgment, the protection, preservation or improvement of the public health of the county or any part thereof requires it, and as otherwise provided in the Public Health Law of the State of New York; in the event that a special meeting, in the judgment of the President or the president's designee, is required and there is insufficient time for the calling of an in-person meeting; the President or other presiding officer shall personally telephone the membership of the board and record the subject matter thereof, the member with whom discussion took place and the vote or response of such member of the board.
4. A majority of the 13 members of the board shall constitute a quorum at any regular or special meeting of the board.
5. The board shall elect a President from among its members, who shall serve as presiding officer of the board.
6. The board shall elect a Vice President from among its members, who shall serve as presiding officer of the board in the absence of the president.
7. The board may adopt by a majority vote bylaws for the proper conduct of its affairs, election of officers and appointment of committees, not inconsistent with law.

(Added 11-20-1986, eff. 11-20-1986; amended 12-17-2009, eff. 1-5-2010)

Sec. 873.201. The Board of Health; general powers.

1. General powers.
 - a. As provided by the Charter and the Administrative Code of the County of Westchester, and subject to the provisions of the Public Health Law, the Environmental Conservation Law, and the State Sanitary Code, the board shall adopt,

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- promulgate, amend or repeal rules and regulations affecting public health in the county.
- b. From time to time, the board shall make and publish such rules and regulations not inconsistent with the Public Health Law, the Environmental Conservation Law, and the State Sanitary Code as it may deem necessary and proper for the execution and enforcement thereof.
- 2. At the request of the commissioner, the board shall consider any matter relating to the preservation, protection and improvement of the public health and may advise the commissioner thereon.
 - 3. From time to time, the board may submit to the commissioner any recommendations relating to the preservation, protection and improvement of the public health.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.202. The Board of Health; quasi-judicial powers.

- 1. As provided by the Public Health Law, the board may:
 - a. Issue subpoenas;
 - b. Compel the attendance of witnesses;
 - c. Administer oaths to witnesses and compel them to testify;
 - d. By resolution, designate one of its members to sign and issue subpoenas;
 - e. Issue warrants to any peace officer of any municipality in the health district or to the Sheriff of the county to apprehend and/or remove such person or persons as cannot otherwise be subjected to its orders or regulations;
 - f. Prescribe and impose penalties for the violation of, or failure to comply with any of its orders or provisions of the code, or of the State Sanitary Code not exceeding \$1,000.00 for each single violation or failure;
 - g. Make, without publication thereof, such orders and regulations for the suppression of nuisances and concerning all other matters in its judgment detrimental to the public health in special or individual cases, not of general application, and serve copies thereof upon the owner or occupant of any premises whereon such nuisances or other matters may exist, or upon which may exist the cause of other nuisances to other premises, or cause the same to be conspicuously posted thereon;
 - h. Maintain actions in any court of competent jurisdiction to restrain by injunction violators of its orders and the orders, rules, and regulations of the board, or otherwise to enforce such orders and regulations, and
 - i. By resolution, designate the commissioner or any person or persons as a hearing officer to conduct a formal hearing or hearings for the purpose of holding and

conducting hearings for and on behalf of the board, taking testimony and reporting findings of fact, conclusions of law and recommendations concerning any investigation, complaint, charge, inquiry, study or violations within the jurisdiction of the department and having the powers of the board in this article.

(Added 11-20-1986, eff. 11-20-1986; amended 10-18-2001, eff. 10-18-2001)

Sec. 873.203. The commissioner; general powers.

1. As provided by the Public Health Law, the commissioner shall:
 - a. Make an annual sanitary survey and maintain sanitary supervision over the territory within the county;
 - b. Make a sanitary inspection periodically of all places of public assemblage, and report thereon to those responsible for the maintenance of such places of public assemblage;
 - c. Promote the spread of information as to the cause, nature and prevention of prevalent diseases, and the preservation and improvement of health;
 - d. Take such steps as may be necessary to secure prompt and full reports by physicians of reportable diseases;
 - e. Take such steps as may be necessary to secure prompt and complete registration of births and deaths;
 - f. Attend conferences called by the State Commissioner of Health or his authorized representatives;
 - g. Enforce within the county the provisions of the Public Health Law, the Environmental Conservation Law within the jurisdiction of the department, State Sanitary Code and the code.
2. Notwithstanding any other law, the commissioner may promulgate, adopt and administer Administrative rules, regulations and standards which the commissioner deems necessary or desirable to carry out or enforce the provisions of the code. Such rules and regulations and standards shall become effective upon promulgation by the commissioner.
3. Whenever the commissioner is empowered to or charged with the responsibility to do or perform an act, he may designate any officer or employee of the department to do or perform the act in his place and stead.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.204. The commissioner; emergency powers.

1. As provided by the Public Health Law (§ 352), the commissioner may authorize action necessary to alleviate emergencies where an imminent imperilment to the public health and safety exists.
2. Upon the occurrence of an emergency where an imminent imperilment to the public health and safety exists, the commissioner, or his or her designee, shall notify the County Executive, the Office of Public Affairs, county legislators(s) and local elected officials from the areas affected by the emergency.

(Added 11-20-1986, eff. 11-20-1986; amended by L.L. No. 18-1998)

Sec. 873.205. Inspections; in general.

1. As provided by law, the commissioner or any authorized representative of the department may inspect any premises, matter or thing within its jurisdiction, including but not limited to, any premises where an activity regulated by the Public Health Law, State Sanitary Code, the Environmental Conservation Law, or any and all regulations promulgated pursuant thereto, or the code is carried on.
2. As provided by law, the representatives of the department may inspect any record required to be kept pursuant to law or regulation within the jurisdiction of this department.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.206. Inspections; interference.

1. As provided by law, no person shall interfere with, obstruct or refuse to allow any employee or authorized representative of the department to enter upon and inspect any premises, place or thing within the jurisdiction of the department, in the discharge of his official duties or of department business.
2. As provided by law, no person shall interfere with, obstruct or refuse to allow the examination of any occupant of any premises, place or thing by an authorized employee or representative of the department, in the discharge of his official duties.
3. As provided by law, no person shall molest or resist any representative of the department in the discharge of his official duties.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.207. Inspections; taking samples.

As provided by law, the commissioner or any authorized representative of the department may take and remove any substance or thing or any necessary part or portion thereof from any premises or place as a sample for investigation or evidence when in the opinion of such representative, such substance or thing may be dangerous or detrimental to the public health, or is required for sampling, testing or analysis for the protection of public health and the environment.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.208. Notices; posting; destroying.

1. Notices shall be in the English language; provided, however, if the department is of the opinion that the person or persons to whom a required warning, notice or instructional sign is addressed may not understand the English language, the department may require that such warning, notice or sign shall appear legibly both in English and such other designated foreign language as may be necessary.
2. No person shall remove, mutilate, conceal, obstruct or tear down any notice or placard of the department posted in or on any premises or public place except by written permission of an authorized representative of the commissioner.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.209. Investigations; formal hearings.

1. The board may cause to be held a hearing on any application, complaint, circumstances, or alleged violation of the laws and regulations within the jurisdiction of the department.
2. Notice of hearing.
 - a. A formal hearing shall be on due and adequate notice to the person or persons concerned and shall be set down for a day certain.
 - b. A notice of hearing shall set forth:
 - i. The time and place of the hearing;
 - ii. Charges and violations complained of, if any, with specific reference to the provisions and sections of the law, rule and regulation involved;
 - iii. The right to present evidence;
 - iv. The right to examine and crossexamine witnesses;
 - v. The right to be represented by counsel; and,

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- vi. That failure to appear shall constitute a default by the respondent, that the hearing may proceed in his absence and a determination made based upon evidence submitted by the department or a warrant may be issued compelling his attendance.
3. Witnesses.
 - a. On the return day of a hearing, the hearing officer shall note the appearances of the persons attending the hearing.
 - b. Witnesses shall be sworn and testimony shall be recorded either by a certified stenographer or by use of an electronic recording device.
 - c. Transcripts.
 - i. The testimony shall be transcribed upon the request of any interested party.
 - ii. The party so requesting the transcript shall pay the costs and expenses in connection therewith.
 4. After each hearing, the hearing officer shall prepare findings of fact, conclusions, and recommendations upon which the board shall make a formal order, setting forth the determination, conditions, if any, to be complied with, and civil penalties, if any.
 5. The order of the board following a hearing shall be filed in the department, and a copy thereof shall be served on all respondents as provided for in section 873.210 of this article.
 6. Nothing herein contained shall preclude the department from taking any action in addition to or apart from the formal hearing herein provided for, as may be provided by law; nor shall the department be precluded from taking such other action by virtue of the order of the board made pursuant to this section.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.210. Investigations; hearings; service of notice.

Unless otherwise expressly provided for by law, or by any other provision of the code, or the State Sanitary Code, service of notice of hearings shall be made as follows:

1. By delivering the notice within the health district to the person to be served, or if the person is not an individual, with a partner of a partnership, or a member of the group concerned, or with an officer of the corporation; or
2. By delivering the notice within the health district to a person of suitable age and discretion who is in charge of the office or premises concerned at the actual office or premises and by mailing the notice to the last known residence, place of business, dwelling place, or usual place of abode of the person to be served; or

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3. By affixing the notice to the door of the premises concerned within the health district and by mailing the notice to the last known residence, place of business, dwelling place or usual place of abode of the person to be served; or
 4. By enclosing the notice in a postpaid envelope addressed to the person to be served at his place of business, dwelling place, usual place of abode or last known address, and depositing such envelope at a United States Post Office or official depository under the exclusive care and custody of the United States Postal Service, within the health district, for delivery by either first class or certified mail, return receipt requested; or
 5. By any combination of the provisions contained in this section.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.211. Investigations; hearings; appearances.

1. At any hearing conducted pursuant to the code, any party to the proceedings may appear personally or with counsel and shall be given the opportunity to produce evidence and witnesses and, at a hearing, to cross-examine witnesses.
2. At any hearing conducted pursuant to the code, if a party shall appear without counsel, the hearing officer shall advise such party of his right to counsel; and that if he desires to proceed without counsel, that he may call witnesses, cross examine witnesses and produce evidence in his behalf.
3. At any hearing, a party appearing on behalf of, as agent for, or in the absence of any person who is an owner, permittee or other party responsible, under the code or by law for any of the violations alleged in the petition, shall produce at the hearing written authorization signed by that person, owner, permittee or responsible party:
 - a. Authorizing the party or agent to act on behalf of that person, owner, permittee or responsible party at the hearing; and
 - b. Stating that the person, owner or responsible party, shall be bound by any of the findings, recommendations or conclusions adopted by the board.
4. Appearances shall be noted on the official record of hearings.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.212. Investigations; hearings, adjournments.

1. The hearing officer may grant adjournments upon request of any party to the proceedings, provided that an adjournment shall not be for an indefinite period of time, but shall be set down for a day certain.

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2. If an adjournment is requested in advance of the hearing date, such request shall be presented to the hearing officer in writing, and shall specify the reason for such request.
 3. In considering an application for adjournment of a hearing, the hearing officer shall consider whether the purpose of the hearing will be affected or defeated by the granting of such adjournment.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.213. Investigations; hearings; subpoenas; addition of parties.

1. The board, or any member of the board designated by resolution of the board for such purpose, or the hearing officer, shall issue subpoenas upon request of any party to the proceedings of any hearing set down by the board.
2. It shall be the responsibility of the party requesting the issuance of a subpoena to effect service thereof.
3. The hearing officer may add a party to the proceedings upon due and adequate notice to both the party to be added and the parties named in the proceedings.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.214. Investigations; hearings; procedure.

1. The hearing officer shall not be bound by the strict rules of evidence in the conduct of a hearing, but the determination shall be founded upon sufficient legal evidence to sustain it.
2. Upon the conclusion of a hearing, the board shall take such action upon such findings, determinations and recommendations as it deems proper, and shall execute an order carrying such findings and determinations into effect.
3. The actions of the board may include the assessment of civil penalties, as provided by law and by the code.
4. An order of suspension or revocation of any permit or license may contain such provisions, as to renewal or reinstatement, as the board may direct.
5. The board may direct a rehearing or require the taking of additional evidence, and may rescind or affirm, in whole or in part, a prior determination after such rehearing.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.215. Investigations; post-hearing procedures.

1. The board shall cause to be served upon the respondents, copies of findings of fact, conclusions and recommendations and orders made as a result of a formal hearing.

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2. Service of findings of fact, conclusions and recommendations and order shall be made in the manner prescribed for the service of notice of hearings.
 3. A copy of any order made by the board shall be filed as a public record in the department and shall be published in such manner as the board may from time to time determine.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.216. Enforcement; seizure; embargo; condemnation; disposition.

1. Seizure and embargo.
 - a. When, in the opinion of the commissioner or the commissioner's representative, an article, substance or thing is deemed unfit for human consumption, or does not meet the requirements of the State Sanitary Code or the code, or otherwise constitutes a danger or is prejudicial to the public health, the commissioner or the commissioner's representative may seize, embargo or condemn such material.
 - b. The commissioner or the commissioner's representative may destroy, render harmless, or otherwise dispose of all seized, embargoed or condemned material or may direct the owner or person in control thereof to do so.
 - c. When the commissioner or the commissioner's representative determines that embargoed material consists in part of materials which are not in violation of the State Sanitary Code or the code, and which may be salvaged, or that embargoed materials or any part thereof can be brought into compliance with the law, the commissioner or the commissioner's representative shall permit the owner or person in control, unless, in the opinion of the commissioner or the commissioner's representative, the protection of the public health otherwise requires, to separate salvageable portions, or to bring such materials into compliance with the State Sanitary Code or the code at the place of embargo or other place acceptable to the commissioner or the commissioner's representative.
 - d. When seized, embargoed or condemned material is disposed of by the commissioner or the commissioner's representative otherwise than by destruction, it shall be returned to the owner or person in control after it has been rendered harmless.
2. All activities carried on pursuant to this section shall be done in a manner consistent with the maintenance of the public health, giving due regard to the property rights of the owner or person in control of the affected material.
3. Except where the protection of the public health requires immediate action, the commissioner or the commissioner's representative shall not seize, embargo, condemn, destroy, render harmless or otherwise dispose of any material pursuant to subsection 1. of this section, until the owner or person in control is notified by an effective means of communication and is given opportunity to be heard.

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4. Any article, substance or thing embargoed pursuant to the provisions of this section shall be identified by the placing and physical attachment thereon of an identification tag or label which shall state the alleged nature and description of the article, substance or thing, the reason for embargo, the date of embargo and the signature of the commissioner or the commissioner's representative effecting or causing such embargo.
 5. No article, substance or thing embargoed pursuant to the provisions of this section shall be used, removed, destroyed or otherwise disposed of while under such embargo except by and under the direction of the commissioner or the commissioner's representative.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.217. Enforcement; violations; notice.

1. Upon the finding of a noncompliance, violation or violations of the Public Health Law, the Environmental Conservation Law, within the jurisdiction of the department, the State Sanitary Code, the provisions of the code or the rules and regulations promulgated thereunder, or any other code and the rules and regulations promulgated thereunder within the jurisdiction of the department, the commissioner or his representative may serve a notice of noncompliance or violation in writing, setting forth therein the nature of the noncompliance or violation.
2. A notice of noncompliance or of violation served pursuant to the provisions of this section may be served in person, by mail, by telegraph, or by posting such notice conspicuously on the premises.
3. Such notice shall provide that the noncompliance or violation shall be abated and shall set forth the date or dates of violation and section of code claimed violated.
4. In the event that the objectionable conditions are not removed pursuant to and in accordance with the notice of noncompliance or violation notice, and if the nature of the noncompliance or violation requires immediate control for the protection of life and health, to give public notice, the commissioner or his representative may cause to be conspicuously posted on the premises or equipment, an appropriate notice or sign, which notice or sign shall not be removed except as authorized in writing by the commissioner or his representative.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.218. Enforcement; violations; criminal penalties.

1. As provided by the Public Health Law, the provisions of the State Sanitary Code shall have the force and effect of law and the noncompliance or nonconformance with any provision thereof shall constitute a violation, punishable, on conviction for a first offense, by a fine not exceeding \$250.00 or by imprisonment not exceeding 15 days, or both; and for a

second or subsequent offense, by a fine not exceeding \$500.00 or by imprisonment not exceeding 15 days, or both.

2. As provided by the Public Health Law, any noncompliance or nonconformance with any provision of the code or of a rule or regulation duly made thereunder shall constitute a violation punishable on convictions for a first offense by a fine of not more than \$250.00 or by imprisonment for not more than 15 days, or by both such fine and imprisonment; and for a second or subsequent offense by a fine not exceeding \$500.00 or by imprisonment for not exceeding 15 days, or both.
3. As provided by the Public Health Law, a person who willfully violates or refuses or omits to comply with any lawful order or regulation prescribed by the board, or the commissioner, is guilty of a misdemeanor; except, however, that where such order or regulation applies to a tenant with respect to his own dwelling unit, or to an owner-occupied one-or two-family dwelling, such person is guilty of an offense for the first violation punishable by a fine not to exceed \$50.00 and, for a second or subsequent violation, is guilty of a misdemeanor punishable by a fine not to exceed \$500.00 or by imprisonment not to exceed six months, or by both such fine and imprisonment.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.219. Enforcement; violations; civil penalties.

1. Any person who violates, disobeys or disregards the terms of any lawful order or regulation of the State Sanitary Code, the code, or the board shall be subject to the imposition of a civil penalty by the board, not to exceed the maximum civil penalty set forth by NYS Public Health Law § 309(1)(f) for each single violation or failure or omission to act.
2. The penalty provided for by this section may be sued for and recovered by the board in any court of competent jurisdiction.
3. An action or cause of action for the recovery of a penalty under this section may be settled or compromised by the board after proceedings are brought to recover such penalties prior to the entry of judgment therefor.
4. Nothing in this section contained shall be construed to alter or repeal any existing provision of law declaring such violations or any of them to be violations, misdemeanors or felonies or prescribing the penalty therefor.

(Added 11-20-1986, eff. 11-20-1986; amended 10-18-2001, eff. 10-18-2001; Amd. of 3-15-2012)

Sec. 873.220. Enforcement; violations; other than by prosecution.

1. Notwithstanding enforcement of the code by way of prosecution, recovery of civil penalties, revocation of permits, seizure, embargo and condemnation, or other means, the

department, by its duly authorized representative, may seek to obtain voluntary compliance with the code by way of notice, permit, warning or educational means.

2. Nothing in this section shall be construed to require that such noncompulsory methods must be employed or attempted before proceeding by way of compulsory or other legally prescribed procedures.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.221. Enforcement; compliance; bonds and undertakings.

The commissioner may require any person subject to the provisions of the code to file with the commissioner a bond or undertaking in such form, including but not limited to bank or certified check, as shall be deemed by the commissioner to be adequate, to ensure compliance with any order, permit, license or approval issued by the commissioner, pursuant to the provision of the code, the Public Health Law or the State Sanitary Code.

(Added 11-20-1986, eff. 11-20-1986)

ARTICLE III. PERMITS AND LICENSES: GENERAL PROVISIONS

Sec. 873.300. Permits and licenses; applications.

1. Application for a permit or for the renewal of a permit shall be made on forms furnished by the department and shall contain all information called for by said forms and shall be accompanied by the applicable fee, if any.
2. Initial permits and renewals.
 - a. Application for an initial permit shall be accompanied, if required by the department, by a written official document or statement issued by the appropriate municipal authority having jurisdiction and concern with the zoning laws, ordinances or regulations of the municipality in which the operation, facility, activity, premises, or use for which the permit is sought, stating that the operation, facility, activity, premises or use, if permitted, will not violate any existing zoning laws, ordinance or regulation of such municipality.
 - b. Application for a permit or for the renewal of a permit shall be accompanied by such other information, evidence or documentation as the department may require, or as may be otherwise provided by the code.
3. In addition to the information specifically required to be submitted to the department, or if no specific information is required for certain permits, the department may require the following information:

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- a. The name, age, residence and business address of the applicant and, if the applicant is a partnership or other group, of each member of such partnership or group; and, if the applicant is a public corporation, of each officer of the corporation; and, if the applicant is a nonpublic corporation, including a not-for-profit corporation, the name of each of the shareholders.
 - b. To the extent that such information is relevant to the conduct of the business, trade, occupation or activity for which the permit is to be issued, information concerning the applicant, its individual members or officers, relating to education, training or experience, physical health, addiction to alcohol or habit-forming drugs, history of prior criminal conviction, including violations and offenses, other than motor vehicle offenses, history of mental illness, and record of insolvency or bankruptcy.
 4. Application for a permit or for the renewal of a permit shall be made and signed by:
 - a. In the case of an individual who is to be the permittee, by the individual, or by his representative, who is duly authorized in writing to make such application;
 - b. In the case of a partnership which is to be the permittee, by a general partner or a representative of the partnership, who is duly authorized in writing to make such application;
 - c. In the case of an unincorporated association or group which is to be the permittee, by a director, duly authorized officer or duly authorized representative of the association or group, who shall submit a certified copy of a resolution of the governing Board or executive committee of such association or group, authorizing the making of such application; or
 - d. In the case of a corporation which is to be the permittee, by a director, duly authorized officer or duly authorized representative of the corporation, who shall submit a copy of a resolution bearing the corporate seal of corporation, authorizing the making of such application; or
 - e. In the case of a municipality which is to be the permittee, other than the county, by the executive officer or his representative, who is duly authorized in writing to make such application.
 5. Age requirement.
 - a. Every individual applicant for a permit or for renewal of a permit shall be 18 years of age or over; and, in the case of a partnership applicant, the partner signing the application shall be 18 years of age or over.
 - b. The department may waive this requirement for an individual applicant, if such applicant appears to be sufficiently competent and responsible as to assure that the public health will not be jeopardized if a permit is granted to such applicant and provided that such applicant appears to be in a position to be liable for any violation

that may occur during the operation, conduct or maintenance of the activity authorized by the permit.

6. What application constitutes.
 - a. Application for a permit or for renewal of a permit shall constitute an agreement that the permittee assumes responsibility for the operation, conduct and maintenance of the activity authorized by the permit, in accordance with the provisions of the code and the conditions required by the permit, and to inspections pertaining thereto.
 - b. Application for a permit or for renewal of a permit shall constitute a consent to inspection of the premises and collection of samples.
7. Pending approval, disapproval or other consideration of an application for renewal of a permit required by the code and received by the department, the existing permit shall be deemed to be in full force and effect until such renewal application is acted upon; provided, however, that this provision shall not apply to a renewal application that was not submitted to and filed with the department prior to the expiration date of the existing permit.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.301. Permits and licenses; posting; expiration.

1. Every permit shall expire on the date stated in the permit, but may be extended by the department in writing for a specified limited time for cause.
2. An application for renewal of a permit shall be submitted not later than 60 days prior to the expiration date of such permit, unless otherwise required by the code or by law.
3. A permittee shall comply with the conditions contained in the permit and the provisions of the code under which such permit was issued.
4. Every permit shall be kept on the premises designated or covered by the permit and shall be posted in a conspicuous place on such premises, in such manner as to be clearly visible to the public, and shall be available for inspection at all times by the department.
5. Permits shall remain the property of the department and shall be surrendered to a duly authorized representative of the department on demand upon the expiration thereof or when suspended or revoked as herein provided.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.302. Permits and licenses; by municipalities.

No provision of the code shall be construed to restrict or abrogate the authority of any municipality in the county to issue permits or licenses pursuant to any ordinance of such municipality; provided, however, that the issuance of such municipal permit or license shall not

relieve the permittee from the obligation to comply with the applicable requirements of the code.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.303. Permits and licenses; not transferable.

1. A permit issued to a particular permittee or for a designated purpose, place, or vehicle shall not be valid for use by any other person or for any other purpose, place or vehicle.
2. Any attempted or purported transfer of a permit to a person not designated as the permittee therein, or for a purpose or place not authorized by such permit automatically revokes such permit.
3. In the event of a change in ownership of an individually owned or partnership business or a corporation other than a publicly held corporation, the permit shall not be transferable.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.304. Permits and licenses; suspension and revocation.

1. The commissioner may suspend or revoke a permit which was issued by the department for violation or nonconformance with the conditions or requirements or provisions of the code under which such permit was issued.
2. The board may suspend or revoke a permit for cause after due notice and hearing.
3. Nothing herein contained shall interfere with the authority of the commissioner or his representative duly authorized in writing to summarily suspend and revoke a permit issued by the department, pending a hearing on the merits, if in the opinion of the commissioner, or his representative duly authorized in writing, the immediate protection of the public health demands such summary action; provided, however, that the permittee shall be entitled to a hearing by the board as soon after such summary action as is practicable and within 15 days after such summary action.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.305. Permits and licenses; refusal to issue.

1. The department may refuse to issue a permit or a renewal thereof when the application therefor is incomplete or not accompanied by the required fee, if any.
2. The department may refuse to issue a permit or renewal thereof when the applicant fails to provide any information required by the department in addition to the information furnished on the application.

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3. The department may refuse to issue a permit or renewal thereof if the application or investigation thereof indicates to the department that the activity or premises to be covered by the permit applied for does not meet the requirements of the code or other provision of law; or that the maintenance, conduct or operation of such activity or premises does not meet the requirements of the code or provisions of law or may result in a public health hazard.
 4. The department may refuse to issue a permit or renewal thereof or a certificate of approval for any activity, operation or premises that, in the opinion of the department, may result in a condition which may be dangerous or harmful to health and life, or that fails to meet the requirements of the Public Health Law, the Environmental Conservation Law within the jurisdiction of the department, the State Sanitary Code or the requirements of the code.
 5. Approval of an application for a permit shall be denied for any sufficient or competent reason including, but not limited to, any of the following:
 - a. The proposed construction, location, purpose, business or other act pertaining thereto is in violation of the provisions of the Public Health Law, the Environmental Conservation Law within the jurisdiction of the department, the State Sanitary Code, the code, or any local municipal law, ordinance or regulation pertaining thereto;
 - b. Inaccurate, incomplete, false or misleading information stated in the application, including any plans or other data submitted in support thereof or competency to perform not shown to the satisfaction of the commissioner;
 - c. Failure to correct existing violations of regulations pertaining to any particular place, vehicle or business after service of written notice thereof, whether or not related to the pending application; except, however, that the department may approve the application if existing violations have been substantially corrected in the opinion of the department; or
 - d. Failure to comply with any previous or outstanding order issued by the board or the commissioner after service of written notice thereof, whether or not related to the pending application; except, however, that the department may approve the application if, in the opinion of the department, there has been full or substantial compliance with the previous or outstanding order.
 - e. Failure to attend and complete a required training course.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.306. Permits and licenses; denial; suspension; revocation; forfeiture; effective date.

1. Except as may otherwise be ordered by the board or by the commissioner, the denial of a permit or certificate of approval or the suspension or revocation of a permit or certificate

of approval shall become final five days after service of a notice thereof, exclusive of the day of service, on the applicant or permittee concerned.

2. Service of a notice of denial or refusal to issue a permit or certificate of renewal shall be made in the manner provided in the code for the service of a notice of hearing.
3. If no action has been taken under a permit or written approval within the period specified in the permit or written approval or if no period is specified, within a period of one year following the date of issuance thereof, or within a period beyond which the purpose, need or usefulness of the permit or written approval no longer exists, the permit or written approval shall become null and void.

(Added 11-20-1986, eff, 11-20-1986)

Sec. 873.307. Permits and licenses; denial; appeal.

1. When the department refuses to issue a permit or a renewal thereof or a certificate of approval, the applicant may appeal such action to the board by serving a notice of appeal in writing on the department addressed to the commissioner or to the board within ten days following the service of notice of denial or refusal to issue the permit.
2. The notice of appeal shall contain:
 - a. The full name of the applicant, permittee or party affected;
 - b. The type of permit or certificate of approval for which the application was made or the nature of the action complained of;
 - c. The place of business listed in the application to which the appeal relates;
 - d. A statement that the applicant or permittee or other party affected appeals to the board to review the action of the department; and,
 - e. The signature of the applicant, permittee or party affected, or, if the permittee or party affected is not an individual, the signature and title of a partner or other individual of the partnership or group, or of an officer of a corporate applicant, permittee or party affected.
3. Within three days following service of the notice of appeal, or simultaneous with such service, the applicant, permittee or party affected shall submit a memorandum addressed to the commissioner or to the board containing his objection to the action of the department.
4. The board may affirm or overrule the action of the department, either in whole or in part, or it may set the matter down for a hearing upon notice as provided in Article II of the code.
5. In the event that the circumstances require action that in the opinion of the commissioner cannot await the convening of the board, the commissioner shall cause

to be issued and served in the name of the board a notice of hearing to take testimony and evidence relative to the appeal; provided, however, that the hearing officer designated to hold such hearing shall be a person other than the commissioner and one who prior to the hearing has been designated by the board to hold hearings on behalf of the board.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.308. Permits and licenses; operation without permit.

1. The commissioner or his representative duly authorized in writing shall have the authority and power to order the cessation of operations or construction of any business, establishment or facility required by the code to have obtained a permit for the operation or construction of any business, establishment or facility but which is being operated or constructed without such permit.
2. The commissioner may employ the assistance of law enforcement officers and other officials as provided by the provisions of the Public Health Law and other applicable statutes and rules and regulations to enforce the order herein provided for.
3. The owner or operator of any business, establishment or facility closed or directed to cease operations or construction pursuant to this section shall be entitled to a hearing to be held within a reasonable time; provided, however, that the owner or operator of such business, establishment or facility requests a hearing in writing within ten days of the order of the commissioner or his representative duly authorized in writing.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.309. Permits and licenses; failure to comply; cessation of construction and operation.

1. The board or the commissioner or his representative duly authorized in writing may issue a written notice to be served upon the person or permittee involved, or upon any person connected with or working in or about a construction or operation to cease the construction or operation, whereupon the construction or operation shall immediately cease, under the following circumstances:
 - a. That the process of construction or the operation involved reveals conditions otherwise than as indicated in the approved plans and application, and permits as issued; or,
 - b. That the construction or operation involved is in violation of any ordinance or regulation of any duly constituted government authority or any political subdivision; or,
 - c. That the construction or operation involved is otherwise than in accordance with standards, rules and regulations pertaining to such construction or the conditions of a

permit or written approval issued pursuant to the provisions of the Public Health Law, the Environmental Conservation Law within the jurisdiction of the department, the State Sanitary Code or the code.

2. Service of the written notice shall be made in the manner prescribed for the service of notice of hearings.
3. The permittee shall be entitled to a hearing by the board within a reasonable time; provided, however, that the permittee requests a hearing, in writing, within ten days of the service of the written notice.
4. The commissioner may employ the assistance of law enforcement officers and other officials as provided by provisions of the Public Health Law and other applicable statutes and rules and regulations to enforce the written notice herein provided for.

(Added 11-20-1986, eff. 11-20-1986)

ARTICLE IV. COMMUNICABLE DISEASE CONTROL

Sec. 873.400. Communicable diseases; definitions.

Whenever used in this article, unless otherwise expressly stated, or unless the context or subject matter requires a different meaning, the following terms shall have the respective meanings hereafter set forth or indicated:

1. *Adult*. The term "adult" means a person fifteen (15) years of age or over.
2. *Carrier*. The term "carrier" means a person who harbors the pathogenic organism of a communicable disease, but who does not show evidence of the disease; or, a person to whom epidemiologic evidence points as the source of one (1) or more cases, but who refuses to submit specimens of his bodily discharges to the department for examination; or, a person who is reported to the department to be a carrier by the health authorities of the State of New York, or of any other municipality, state, national or international organization of which the United States of America is a member.
3. *Case*. The term "case" means an instance of a communicable disease or condition occurring in a person; or, a person who shows evidence of a reportable disease or condition.
4. *Communicable disease*. The term "communicable disease" means an infectious, contagious disease transmissible by direct or indirect contact as designated in the State Sanitary Code.
5. *Date of last exposure of household contacts*. The term "date of last exposure of household contacts" means the date of the removal of such household contacts to

premises other than those where the case or carrier exists, or the date of the removal of the patient to other premises, or the date of release of the patient from isolation.

6. *Hospital associated infections.* The term "hospital associated infections" means (a) an increased incidence or outbreak of disease due to microbiological agents or their toxic products occurring in patients or persons working in the hospital; (b) existence or suspicion of staphylococcal disease, diarrhea of the newborn or other infection in the newborn, including gonorrheal conjunctivitis; (c) the occurrence in an infant of two (2) or more explosive stools from any cause in any twenty-four (24) hour period; (d) the admission to the hospital of any infant born in said hospital with diarrhea, staphylococcal infection or any other infection, the onset of which occurred when the infant was twenty-eight (28) days of age or less; and (e) the occurrence in any maternity patient of diarrhea, staphylococcal infection or any other infection, the onset of which occurred either prior to admission or while in the hospital.
7. *Household contacts.* The term "household contacts" means every person who lives in a premises occupied by a case or carrier.
8. *Incidental contacts.* The term "incidental contacts" means persons other than those having household contact with a case or carrier.
9. *Isolate.* The term "isolate" means to confine to premises or in an institution, to a room or ward, under such conditions as will prevent the transmission of the pathogenic organism from a case or carrier to a susceptible person.
10. *Isolation.* The term "isolation" means the care of the case in a hospital approved by the commissioner or his representative; or, the continuous separation of the case in a room used exclusively for care of the case and from which all persons are excluded except the physician, nurse or other person in attendance, and such other persons as may be authorized by the commissioner.
11. *Quarantine of premises.* The term "quarantine of premises" means the (1) prohibition of ingress or egress of any person other than medical attendants and such other persons as may be authorized by the commissioner or his representative, from the premises where a case, as designated by the commissioner or his representative, exists, or, (2) prohibition of the removal from such premises of any article which may be contaminated with infective material through contact with the case or carrier or with the secretions or excretions, unless such article has been disinfected, and unless permission for such removal, pursuant to instructions from the commissioner or his representative, has been given, and, (3) posting and maintaining at the entrance of the premises where a case or carrier exists, a placard stating the existence therein of a case of communicable disease.
12. *Personal quarantine.* The term "personal quarantine" means restricting household or incidental contacts to premises designated by the commissioner or his representative.

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13. *Premises.* The term "premises" means any structure occupied or intended to be occupied, in whole or part, by one (1) or more human beings.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.401. Communicable diseases; general powers and duties of commissioner.

1. The commissioner or his representative shall:
 - a. Guard against the introduction of communicable diseases as designated in the Code; and
 - b. Report promptly to the State Department of Health all known cases and carriers of communicable disease as required by the State Department of Health.
2. The commissioner or his representative may:
 - a. Provide for care and isolation of any person affected with a communicable disease whenever in his opinion such care or isolation is necessary for the protection of the public health;
 - b. Prohibit and take steps necessary to prevent any contact with the use of premises, places or things known to have been in contact with a case or carrier of communicable disease or suspected of having been in contact with such a case or carrier;
 - c. Require, and if necessary provide, the means for the thorough purification and cleansing of premises, places or things before any contact or use thereof shall be allowed;
 - d. Investigate all physician reports recording patients afflicted with a communicable disease or carrier and whose behavior is such as to expose household or incidental contacts to danger of infection;
 - e. Investigate cases of communicable disease, ascertain sources of infection, seek out contacts and take other action to reduce morbidity and mortality, and take any other action and procedures required by the Code;
 - f. Inspect and control persons, places and things infected with or exposed to such disease or suspected of having been infected or exposed to such disease.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.402. Communicable diseases; reportable cases.

The diseases designated as communicable diseases shall be deemed reportable and are those infectious, contagious diseases transmissible by direct or indirect contact as designated in the State Sanitary Code.

(Added 4-23-1987, eff. 4-23-1987; amended 10-15-1998, eff. 10-15-1998; 1-27-2000; 11-18-2004; 5-19-2005)

Sec. 873.403. Communicable diseases; duty to report; physicians.

1. Time limit: contents of report.
 - a. Every physician shall report within 24 hours of the time the case is first seen the full name, age and address of every patient having or suspected of having a reportable communicable disease together with the name of the disease, date of onset, symptoms and any other related information that may be required by the commissioner.
 - b. If a communicable disease is reported verbally, such report shall be thereafter made in writing on forms acceptable to the department.
2. When a case of reportable communicable disease occurs in any institution or hospital, the person in charge of such hospital or institution shall report the case as required in subsection 1. of this section; provided, however, that the physician who initially saw the case shall first report such case to the department and then to the person in charge of the hospital or institution or his representative.
 - a. When a case of reportable communicable disease occurs in a state or county institution, the person in charge of such institution shall report the case to the State Department of Health and to the department as provided by 10 NYCRR 2.10(a).
3. Notwithstanding the provisions contained in this section, an outbreak of any disease or condition, of known or unknown etiology which may be a danger to public health or any unusual manifestation of disease in an individual, shall be reported to the department in writing within 24 hours on forms designated by the department.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.404. Communicable diseases; duty to report; diagnosis after death.

If a pathologist, medical examiner or other person determines from examination of remains of a deceased person, or from the history of the events leading to death, that at the time of death the said deceased patient apparently was affected with a reportable communicable disease, he shall report the case promptly to the department.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.405. Communicable diseases; duty to report; laboratories.

It shall be the duty of every laboratory director or his representative having knowledge of a positive test for a reportable communicable disease to report the name and address of the

person having or suspected of having such reportable communicable disease to the department within 24 hours.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.406. Communicable diseases; duty to report; schools.

It shall be the duty of every school medical officer, principal, teacher or other school official having knowledge of a case or suspected case of reportable communicable disease in a pupil, student, member of the faculty or staff to report the name and address of the person having or suspected of having such reportable communicable disease to the department within 24 hours of the time such school official shall have knowledge of the existence or a suspicion of such disease.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.407. Communicable diseases; duty to report; nonphysicians.

When no physician is in attendance it shall be the duty of the head of the household or the person in charge of any institution, school, hotel, boarding-house, camp or vessel, or any public health nurse, or any other person having knowledge of a case of any disease presumably communicable to report within 24 hours of having knowledge thereof.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.408. Communicable diseases; duty to report; dairy farm cases.

1. When a case of salmonella infection (including typhoid and paratyphoid fevers), diphtheria, streptococcal sore throat, scarlet fever, shigellosis (bacillary dysentery), cholera, infectious hepatitis or poliomyelitis occurs on any farm or dairy producing milk, cream, butter or other dairy products for sale or to be consumed in the raw state, it shall be the duty of the physician in attendance to report to the department immediately the existence of such case on such farm or dairy.
2. If no physician is in attendance, it shall be the duty of the owner, lessee or person in charge of such farm or dairy to immediately report to the department the name and address of any person who is affected with a disease presumably communicable who is employed or resides on or in such farm or dairy, or who comes in contact in any way with its products.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.409. Communicable diseases; duty to report; food poisoning.

1. Every physician, nurse or person in charge of any school, hospital, institution, dispensary, laboratory, labor camp or other camp, who shall have knowledge of the occurrence of a number or group of cases of illness believed to have been due to the consumption of spoiled or poisonous food, shall report the same immediately.
2. The person in charge of a state or county institution in which such cases may occur shall report such cases to the State Health Department and to the department as provided in 10 NYCRR 2.15(b).

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.410. Communicable diseases; reports and records; duty to maintain.

It shall be the duty of every physician, hospital and institution to keep a record of all cases or suspected cases of communicable disease reported to the department on forms designated by the department.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.411. Communicable diseases; reports and records confidential.

1. Reports and records of cases of sexually transmitted disease and records of clinical or laboratory examinations for any of such disease shall be deemed confidential and not be subject to inspection by persons other than authorized personnel or representatives of the department and the State Department of Health.
2. Inspection of records.
 - a. Reports and records of cases or carriers of communicable diseases shall not be subject to inspection by persons other than authorized personnel and representatives of the department and the State Department of Health.
 - b. The person to whom any records included within this subsection relates, or his legal representative may authorize the commissioner in writing, subscribed and sworn to before a notary public or other person authorized by law, to open such record to inspection; provided, however, that nothing herein contained shall be construed to interfere with the confidential nature of such records as prescribed by Article 45 of the Civil Practice Law and Rules of the State of New York.
3. Disclosure of information for treatment.
 - a. Subsections 1. and 2. of this section shall not be construed to prevent authorized personnel of the department from furnishing appropriate information to a physician or institution providing examination or treatment to a patient suspected or affected with a disease or condition, or to any agency approved by the department for

prevention, treatment or social care, or to any person when necessary for the protection of health.

- b. A person, institution or agency to whom such information may be furnished, or to whom access to records has been given is hereby prohibited from divulging any part thereof so as to disclose the identity of the person to whom such information or record relates, except insofar as such disclosure may be necessary for the treatment of a case or carrier or for the protection of the health of others.

4. Tuberculosis records.

- a. The commissioner or his representative may disclose information contained in laboratory or other reports relating to cases of tuberculosis only when in his judgment it will serve the best interests of the patient or his family, or contribute to the protection of the public health; for such purposes the commissioner may permit access to such reports by representatives of official or nonofficial agencies concerned with the control of tuberculosis.
- b. In an action or prosecution for violation of any of the provisions of the Public Health Law, the State Sanitary Code or this code, tuberculosis records made pursuant to the Public Health Law shall be produced pursuant to a duly issued and served subpoena and shall be allowed to be placed in evidence insofar as the same shall be deemed relevant by the court or presiding officer.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.412. Communicable diseases; specimens; duty of physician to furnish.

1. A physician in attendance of a person affected with or suspected of being affected with any of the diseases set forth in this section shall submit to a laboratory approved by the State Department of Health for examination such specimens as may be designated by the commissioner or State Commissioner of Health, together with data concerning the history and clinical manifestations pertinent to the examination.
2. The diseases for which specimens are required to be submitted pursuant to the provisions of this section are those as designated in the State Sanitary Code.

(Added 4-23-1987, eff. 4-23-1987; amended 12-20-2007)

Sec. 873.413. Communicable diseases; investigation by commissioner after report.

1. Upon receiving a report of a case of communicable disease, the commissioner or his representative shall:
 - a. Make such investigation as the circumstances may require for the purpose of verifying the diagnosis, ascertaining the source of infection and discovering contacts and unreported cases; and

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- b. Collect and submit, or cause to be collected and submitted for laboratory examination such specimens as may furnish necessary or desirable information in determining the source of infection or in assisting diagnosis, and furnish and cause to be furnished with the specimens pertinent data on forms prescribed by the commissioner in regard to the history of the case, the physical findings and the epidemiological investigations which indicate the need for the examination requested.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.414. Communicable diseases; precautions by commissioner.

- 1. Upon receiving a report of a case of communicable disease, the commissioner or his representative shall:
 - a. Give to a head of every household living in the building in which such case exists or in which a person became affected with a communicable disease, such appropriate circular as may be issued or approved by the commissioner and such advice as may be indicated; and,
 - b. Institute recognized measures which tend to reduce morbidity and mortality.²

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.415. Communicable diseases; public notice; placards.

- 1. No person shall interfere with or obstruct the commissioner or his representative in the posting of any notice or placard announcing or stating the existence of a case of communicable disease in or on any place or premises, nor shall any person conceal, mutilate or remove such placard or notice, except by permission of the commissioner or his representative.
- 2. It shall be the duty of the owner, lessee or the person in charge of any place or premises whereon such notice or placard of a case of communicable disease was posted to notify the department immediately in the event such notice or placard has been concealed, mutilated or removed from such place or premises.

(Added 4-23-1987, eff. 4-23-1987)

²**5. Editor's Note:** Rules and Regulations of the Commissioner Policy No. CD 1-87, eff. 4-23-1987, provides that the term "recognized measures" means the procedures outlined in the latest edition of Control of Communicable Diseases in May by Abram S. Benenson.

Sec. 873.416. Communicable diseases; cleansing; renovation; disinfection; embalming.

1. Adequate cleansing, renovation or disinfection of rooms, furniture and belongings, when deemed necessary by the commissioner or required by the Public Health Law, the State Sanitary Code or the code, shall immediately follow the release, removal or death of a person affected with a communicable disease.
2. Every funeral director, undertaker, embalmer or other person in charge of the preparation for burial of the body of a deceased person shall:
 - a. Ascertain whether such person died of a communicable disease;
 - b. Clean, disinfect or sterilize immediately after handling, embalming or preparing for burial the body of a person dead of a communicable disease, such parts of the person's garments or utensils or other articles of the funeral director, undertaker, embalmer or other assistants as may have been subject to contamination with infected material;
 - c. Cause the body to be placed in a casket or receptacle promptly if a person died of cholera, glanders, plague or typhus fever, which casket shall be immediately and permanently closed.
3. Subsection 2. of this section shall not be construed to prohibit the embalming of any such body, but if the body is to be embalmed, the funeral director, undertaker or embalmer shall cause such embalming or other preparation to be done immediately upon taking charge of the said body; provided that when a state permit for embalming is required, such embalming shall not be performed, unless such state permit has first been received; and, provided further, that immediately after the embalming procedures have been completed, the body shall be placed in a casket or receptacle as hereinbefore provided.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.417. Communicable diseases; isolation; duties of physician.

1. Upon discovering a carrier or case of a reportable communicable disease, the attending physician shall cause the patient to be isolated, if in his judgment the carrier or case constitutes a danger to the public health except as provided by section 873.418.
2. The attending physician shall:
 - a. Advise the other members of the household regarding precautions and appropriate specific preventive measures;
 - b. Furnish the patient and any person attending such patient with such detailed instructions regarding the disinfection and disposal of infective secretions and excretions as may be prescribed by the commissioner.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.418. Communicable diseases; isolation; duties of commissioner.

1. The commissioner shall establish and maintain appropriate isolation whenever the following cases come to the attention of the department:
 - a. Chicken pox in persons 15 or more years of age.
 - b. Conjunctivitis, purulent, of the newborn.
 - c. Rubella (German measles).
 - d. Hepatitis, infectious.
 - e. Measles.
 - f. Meningitis (all forms) or meningococemia (septicemia).
 - g. Poliomyelitis.
 - h. Streptococcal sore throat (including scarlet fever).
 - i. Typhoid fever.
 - j. Salmonella infection (including paratyphoid fever).
 - k. Shigellosis (bacillary dysentery).
 - l. Mumps.
 - m. Ophthalmia neonatorum.
 - n. Pneumonia.
 - o. Viral hemorrhagic fever.
2. The commissioner shall establish and maintain appropriate isolation of the following cases as well as quarantine of the contacts whenever such cases come to the attention of the department:
 - a. Cholera.
 - b. Plague.
 - c. Typhus fever.
 - d. Diphtheria.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.419. Communicable diseases; food handling and sales.

No person who suffers from cholera, amebiasis or shigellosis (bacillary dysentery), streptococcal sore throat, scarlet fever, salmonella infection (including paratyphoid fever), poliomyelitis, diphtheria, tuberculosis, infectious hepatitis, superficial staphylococcal infection or

typhoid fever, or is a carrier of the organisms causing the above conditions, shall serve or handle in any manner whatsoever food intended for sale.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.420. Communicable diseases; control of dangerous and careless patients; commitment.

Whenever a complaint is made by a physician to the department that any person who is a case or carrier of typhoid fever, tuberculosis, diphtheria or other communicable disease and whose behavior is such as to expose members of his family or household or other persons with whom he may be associated to danger of infection, the commissioner or his representative shall forthwith investigate the circumstances alleged, and shall proceed pursuant to and as required by the provisions of the Public Health Law in a court of competent jurisdiction for the purpose of commitment of such person, as the circumstances may require.

(Added 4-23-1987, eff. 4-23-1987)

ARTICLE V. FOODS

Sec. 873.420.1. Food service establishments; definitions.

1. Whenever used in this code, unless otherwise expressly stated or unless the context or subject matter requires a different meaning, the following terms shall have the respective meanings hereinafter set forth or indicated:
 - a. *Catering.* The term "catering" means any service, business, enterprise, activity, facility, establishment or place that is engaged in the preparation of, or the provision of, prepared food or drink, or both, to any person or group of persons, for human consumption, including transportation of such prepared food or drink to any place other than the place of preparation, for a consideration.
 - b. *Eating place.* The term "eating place" means any establishment or operation where food is served or provided for the public with or without charge; provided, however, that it will not include: the business of catering, food vending machine operation, frozen dessert manufacturer, mobile food unit operation and the operation of a retail bakery.
 - c. *Food service establishment.* The term "food service establishment", "service food establishment" or "food establishment" means any fixed or mobile restaurant; drive-in; coffee shop; cafeteria; short-order cafe; delicatessen; luncheonette; grill; tearoom; sandwich shop; soda fountain; bar; tavern; cocktail lounge; night club; roadside stand; take-out prepared food place; retail bakery; industrial feeding establishment; private, public or nonprofit organization or institution, including: schools; nursing homes; day care centers and hospitals; religious and fraternal organizations routinely serving

food; catering kitchens; commissary or similar places in which food is prepared for sale or for service on the premises or elsewhere; and any other establishment or operation where food is served or provided for the public, with or without charge.

- d. *Food vending machine operation.* The term "food vending machine operation" means the distribution, sale or offering to sell, food or drink, or both, from a vending machine or the furnishing, installation, servicing or maintenance of one (1) or more food or drink vending machines by contract, agreement or ownership.
- e. *Food vending machine operator.* The term "food vending machine operator" means anyone who owns or engages in the business of food vending machine operation.
- f. *Food vendor.* The term "food vendor" means any person who sells, offers for sale or dispenses any food or drink to the consumer for human consumption from a mobile food unit.
- g. *Frozen dessert manufacturer.* The term "frozen dessert manufacturer" shall have the meaning ascribed to it in Parts 39 and 240 of the Rules and Regulations of the Department of Agriculture and Markets of the State of New York.
- h. *Retail bakery.* The term "retail bakery" means an establishment which, as its primary business, sells baked goods directly to the consumer and does not engage in the business of selling baked goods wholesale to commercial establishments except on a limited basis.
- i. *Contamination.* The term "contamination" means exposing food to: filth, toxic substances, excessive manual contact during preparation or service, rodent or insect contact or infestation, or any condition which permits introduction of pathogenic microorganisms or foreign matter. Potentially hazardous foods held at temperatures between forty-five (45) degrees Fahrenheit (seven and two-tenths (7 2/10) degrees Celsius) and one hundred forty (140) degrees Fahrenheit (sixty (60) degrees Celsius) during display or for a period of time exceeding that reasonably required for preparation are considered to be contaminated.
- j. *Potentially hazardous food.* The term "potentially hazardous food" means any food that consists in whole or part of milk or milk products, eggs, meat, poultry, fish, shellfish, edible crustacea or other ingredients, including synthetic ingredients, in a form capable of supporting rapid and progressive growth of infectious or toxigenic microorganisms except that it does not include clean, whole, uncracked, odor-free shell eggs.
- k. *Trans fat.* A cooking oil shall be deemed to contain artificial trans fat if the food is labeled as, lists as an ingredient, or has vegetable shortening, margarine or any kind of partially hydrogenated vegetable oil. However, an oil whose nutrition facts label or other documentation from the manufacturer lists the trans fat content of the food as less than 0.5 grams per serving, shall not be deemed to contain artificial trans fat.

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2. Terms not defined in this section, but defined or used in Part 14 of the State Sanitary Code, shall have the meanings ascribed to them therein.

(§ 1, Art. III, eff. 1-1-1976; amended 4-30-1981, eff. 6-1-1981; 12-20-2007)

Sec. 873.421. Food service establishments; plans.

1. No person shall undertake to construct a food service establishment or make modifications to an existing food service establishment without first submitting to the commissioner plans and specifications and any other information as may be required by the department and without obtaining prior written approval therefor.
2. In addition a fee of \$10.00 shall accompany each subsequent review of plans for the same establishment until such plans are approved.
3. The provisions of this section shall not apply where the submission of plans is for:
 - a. The county;
 - b. A municipality;
 - c. A church;
 - d. A synagogue; or
 - e. A public or parochial school.

(§ 2, Art. III, eff. 1-1-1976; amended 11-20-1980, eff. 1-1-1981; 12-20-1990, eff. 1-1-1991)

Sec. 873.431. Food service establishments; construction. (Repealed eff. 5-15-25)

Sec. 873.441. Food service establishments; permits.

No person shall operate or maintain a food service establishment in the county without first having made application for, and obtaining, a permit from the department.

(§ 4, Art. III, eff. 1-1-1976)

Sec. 873.451. Food service establishments; maintenance.

1. Every food service establishment shall employ or engage the services of a custom applicator or exterminator certified by the Department of Environmental Conservation of the State of New York, when required by the department, to provide extermination and preventive measures necessary to maintain the premises free from rodents and insects.
2. Operators of food service establishments shall keep and maintain on the premises records containing the name, address, certification number and reports of the custom applicator or exterminator servicing the establishment.

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3. Records required to be kept and maintained by the provisions of this section shall be available at the premises to representatives of the department.
 4. No substance shall be kept or used as an insecticide or exterminating agency in any place where food or drink is exposed during sale, preparation, holding or dispensing, or in such manner as to contaminate such food or drink.

(§ 5, Art. III, eff. 1-1-1976)

Sec. 873.452. Food service establishments; food; food contamination.

No person shall manufacture, produce, pack, possess, use, sell, offer for sale, serve, deliver or give away any potentially hazardous food which contains:

1. More than 100 hemolytic staphylococcus aureus organisms per gram of food sample; or
2. More than 100 coliform organisms per gram of food sample; or
3. More than 100,000 total bacteria per gram of food sample; or
4. Any fecal coliform, salmonella, shigella or other pathogenic microorganisms.

(Added 4-30-1981, eff. 6-1-1981)

Sec. 873.461. Food service establishments; sanitation; equipment.

1. Any food or meat grinder which is not thoroughly and completely cleansed and sanitized after each usage shall be kept under refrigeration of 45 degrees Fahrenheit or less, and shall be cleansed and disinfected at least once every day of use.
2. Any food or meat grinder used for pork or pork products may not be used to grind any other food or meat unless the grinder is dismantled and thoroughly and completely cleansed and sanitized between such usages.

(§ 6, Art. III, eff. 1-1-1976)

Sec. 873.471. Food service establishments; utensils and containers; single-service articles.

1. All soda straws, tubes or similar devices for drinking from containers served at a food service establishment shall be individually wrapped.
2. All toothpicks or similar devices served at a food service establishment shall be individually wrapped.
3. All single-service utensils and articles shall be wrapped or dispensed from a single-service dispenser acceptable to the department in such manner as to prevent contamination of surfaces which may come into contact with food or drink or the mouth of the user.

(§ 7, Art. III, eff. 1-1-1976)

Sec. 873.481. Food service establishments; food vending machine operation; permits; maintenance and operation.

1. No person shall engage in the business of food vending machine operation without having first obtained a permit therefor from the department. Excluded from such requirement are those machines dispensing products that are not subject to spoilage or temperature sensitivity.
2. The premise or premises used by a vending machine operator for the purpose of readying for use or servicing food or drink vending machines, or for the packaging or preparation of food or drink for transportation to food or drink vending machine locations, shall be specified in the permit, and no other premises shall be used for such purpose.
3. Each food and drink vending machine shall be kept securely locked or fastened when operative, except during servicing or inspection.
4. The interior of every food vending machine shall be readily available to the department at the premises at which the machine is located, for the purposes of inspection.
5. The operation of a food or drink vending machine in such manner as to constitute an unsanitary condition or a public health hazard, failure to provide a key or opening device or failure to open the interior of the machine for inspection at any reasonable time, shall be sufficient cause for the department to render the machine inoperative or to forthwith embargo the machine and its contents, or to do both; provided, however, that due notice of such action shall be given the permit holder of record or to the person responsible for the care and servicing of such machine.
6. The name, address and telephone number of the permittee shall be legibly, prominently and permanently displayed on the exterior of each food or drink vending machine.

(§ 8, Art. III, eff. 1-1-1976; amended 8-23-1984, eff. 1-1-1985)

Sec. 873.491. Food service establishments; mobile food unit.

1. No person shall engage in the business of operating a mobile food unit without first having obtained a permit therefor from the department.
2. Every mobile food unit shall have posted clearly, at all times, on both sides of the outside of the mobile food unit in letters not less than four inches in height and 1 1/2 inches in width, the name and address of the person or persons who owns, leases or operates the business of the mobile food unit, and the department permit number.
3. A permit shall not be required under this section for a food vendor who operates as part of a food service establishment under a valid permit issued pursuant to the provisions of this article.

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4. Every food vendor shall file a copy of his route with the department at the time of filing an application for a permit as required by this article and shall file significant changes with the department within ten days thereof.
 5. Every food vendor shall maintain the premises or location upon which his mobile food unit is operated in a clean and sanitary condition and free from litter and refuse and shall provide proper receptacles for refuse.

(§ 9, Art. III, eff. 1-1-1976)

Sec. 873.501. Food service establishments; frozen desserts.

1. No person shall engage in the business of manufacturing frozen desserts in the county without first having obtained a permit therefor from the department.
2. The plant for the manufacture or processing of frozen desserts, together with the equipment, sanitary facilities, manufacturing processes and the ingredients used therein, shall conform to the provisions of this code and the State Sanitary Code.
3. No person other than the manufacturer or processor of frozen desserts shall sell, offer for sale or deliver any frozen dessert in the county without first having obtained a permit therefor from the department, provided that such frozen dessert shall have been manufactured or processed in a plant or place that shall hold a permit as provided by subdivision 1. of this section.

(§ 10, Art. III, eff. 1-1-1976)

Sec. 873.511. Food service establishments; catering.

1. No person shall engage in the business of catering without first having obtained a permit therefor from the department.
2. The business of catering shall be conducted from a fixed and designated place of business or location as shown in the permit.
3. Food product temperatures are to be measured and recorded for potentially hazardous food at the time of delivery or service to the customer. No food is to be delivered or served which is not in compliance with Section 14-1.40 of Chapter 1 of the New York State Sanitary Code.
4. A written statement is to be given to the customer. This statement must include the recorded temperatures of the potentially hazardous food at delivery or service and simple instructions regarding refrigeration, hot-holding, cooking or reheating, as applicable. A copy of this statement is to be retained by the caterer for 90 days.

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5. The requirements of subsections 3. and 4. of this section shall also apply to all food service establishments that deliver large quantities (amounts of food greater than for single-family consumption) of potentially hazardous food.

(§ 11, Art. III, eff. 1-1-1976; amended 3-17-1994, eff. 3-17-1994)

Sec. 873.521. Food service establishments; day-care centers.

No person shall own, operate or maintain a day-care center as defined in the Social Services Law and rules and regulations pertaining thereto if such day care center provides food for the children, staff, personnel or any other persons, without first having obtained a permit as required by the provisions of this article for a food service establishment.

(§ 12, Art. III, eff. 1-1-1976)

Sec. 873.531. Food service establishments; retail bakeries.

No person shall maintain or operate a retail bakery without first having obtained a permit therefor from the department.

(§ 13, Art. III, eff. 1-1-1976)

Sec. 873.541. Food service establishments; food handlers.

1. No person shall expectorate in any room in which food is prepared, processed, handled, stored or served or in which utensils are washed or stored.
2. The owner and person in charge of a food service establishment and all food handlers employed therein shall be responsible for compliance with the requirements of this article.
3. Upon request by the department, the owner or operator of any food service establishment shall furnish to the department a complete list of all persons engaged in the management, maintenance or operation of such establishment, including the names of the owner or operator and his relatives engaged in the management, maintenance or operation of such establishment.

(§ 14, Art. III, eff. 1-1-1976)

Sec. 873.551. Food service establishments; food protection; meat or meat products.

The use of any matter which imparts or retains color to meat or to casings, is prohibited, unless such use complies with the provisions of federal, state and local laws and the rules and regulations promulgated pursuant thereto.

(§ 15, Art. III, eff. 1-1-1976)

Sec. 873.561. Food service establishments; bakery products; custard-filled.

1. Custard-filled bakery products shall not be displayed, offered for sale, or sold except on the day of manufacture, which day shall be the day on which manufactured, but may include a period of time of not more than two hours preceding midnight of the previous day.
2. Every particle of the entire custard-mix to be used in the manufacture of custard-filled bakery products shall be brought to and held at a temperature of not less than 200 degrees Fahrenheit continuously for not less than ten minutes and within one hour thereafter shall be placed in a refrigerating temperature of not over 45 degrees Fahrenheit and kept at or below such temperature until applied to the bakery product.
3. Custard-filled bakery products shall not be kept, displayed, offered for sale or transported for sale unless such products shall have been cooled to a temperature of 45 degrees Fahrenheit, or lower, in clean containers filled to a depth of not more than three inches.
4. Custard-filled bakery products shall not be sold or transported for sale or offered for sale unless such products are wrapped or packaged so as to protect the contents from contamination and such wrapper or package shall bear prominently displayed on the outside thereof in legible letters, the name of the manufacturing baker and the day of manufacture.
5. Custard-filled bakery products manufactured, kept, displayed or served in violation of the provisions of this section or of the State Sanitary Code are hereby declared to be dangerous to the public health and as such, subject to condemnation by any authorized representative of the department.

(§ 16, Art. III, eff. 1-1-1976)

Sec. 873.571. Food service establishments; food protection; applicability of State Sanitary Code.

1. All food service establishments shall meet the requirements of the State Sanitary Code, in addition to meeting the requirements of this code.
2. In the case of a conflict between the State Sanitary Code and this code, the more stringent requirement shall prevail.

(§ 17, Art. III, eff. 1-1-1976)

Sec. 873.581. Food service establishments; food protection; prohibition of using cooking oils containing trans fat.

1. No cooking oils, shortenings or fats that are used for frying that contain trans fat, as defined in this Article, shall be stored, distributed, held for service or used at any food service establishment.
2. Food service establishments shall maintain on site the original labels for all cooking oils, shortenings or fats that are, when purchased by such food service establishments, required by applicable federal and state law to have labels, and that the products are currently stored, distributed, held for service, used in preparation of any menu item, or served by the food service establishment. If original labels were not required by law then documentation from the manufacturer or distributor indicating the trans fat content in these food items must be maintained at the food service establishment.

(Added 12-20-2007)

Sec. 873.582. Food service establishments; Food Allergy Notification.

1. Scope and applicability. This section shall apply to all food service establishments as defined in Section 873.411(c) of the Westchester County Sanitary Code.
2. Food service establishments shall post on the printed menu (or, if no printed menus are used, on the menu board or sign setting forth the bill of fare) a food allergy notification. Subject to prior approval by the Department, food service establishments may use alternative means for such notification of patrons, provided such information is made available prior to the point of ordering and is at least as prominent as required in subsection 3 below.
3. The printed menu (or, if no printed menus are used, on the menu board or sign setting forth the bill of fare) shall post the food allergy notification, which shall be legible and shall be printed in a size and typeface at least as large as the name of the menu items.
4. All printed menus (or, if no printed menus are used, the menu boards or signs setting forth the bill of fare) shall contain the food allergy notification to patrons that states, "If you have a food allergy, please speak to the owner, manager, chef or your server."

(Added 11-20-2008)

Article VI. Milk and Cream

Sec. 873.581. Designation of grade.

No milk or cream shall be sold or offered for sale or delivered to consumers unless it shall bear prominently one and only one of the following designations: Certified Pasteurized; Grade A Pasteurized; Certified; Special A Raw.

(§ 1, Art. IV, eff. 9-1-1959)

Sec. 873.591. Milk labels.

1. No raw milk shall be sold or offered for sale or delivered to consumers unless the day of the week when and the place where bottling and capping were performed are set forth clearly and legibly on the outer cap, hood or tag or single service container if caps or hoods are not used.
2. No pasteurized cream shall be kept or transported in cans unless the day of the month, the month and year when and the place where pasteurization was performed are set forth clearly and legibly on a tag affixed to every such can.
3. A proof print sketch or proof print of all caps, hoods, tags, single service containers not requiring caps or hoods and labels for milk, cream or milk products shall be submitted to the Department of Health and approval thereof secured before use.

(§ 2, Art. IV, eff. 9-1-1959)

Sec. 873.601. Inspection of dairies required.

No milk, cream or milk products shall be sold or offered for sale or delivered to consumers as pasteurized milk, cream or milk products unless an inspection has been made during the previous 12 months of each dairy from which such milk, cream, or milk products are obtained and unless each dairy shall be found by such inspection to comply with the requirements of the State Sanitary Code. Such inspections shall be made only by persons approved for such work by the commissioner. A report of the result of each such inspection shall be made upon an official dairy score sheet approved by the Department of Health. Such report shall be filed at the pasteurizing plant, creamery or shipping station to which such milk is delivered and kept on file for one year. Each new or additional dairy from which such milk, cream or milk products shall be obtained shall first be inspected by a representative of an official agency and shall be found to be producing milk in conformance to the State Sanitary Code before the milk is received.

(§ 3, Art. IV, eff. 9-1-1959)

Sec. 873.611. Bacteria counts required.

1. No milk, cream or milk products shall be sold or offered for sale or delivered to consumers unless a bacteria count shall have been made within the previous month of a sample of the

raw milk from each dairy producing such milk for milk, cream or milk products and such samples shall be taken at the pasteurizing plant, creamery, shipping station or bottling plant receiving such milk, from the weigh vat or dump tank containing the entire shipment of the dairy or by compositing from each of the cans, properly agitated, comprising the entire shipment of the dairy.

2. The method used in making such bacteria counts shall be the standard agar plate method or standard direct microscopic method. Reports of all bacteria counts in excess of the requirements of the State Sanitary Code shall be immediately transmitted to the producer of such milk and further bacteria counts on such milk shall be made at intervals of five days after the original count was taken. If three such successive bacteria counts shall be found to be in excess of the requirements of the State Sanitary Code, such milk shall be excluded by the pasteurizing plant, creamery, shipping station or bottling plant and shall not again be received until the condition or conditions causing such excessive counts shall have been corrected as shown by a satisfactory bacteria count made on a composite sample of milk collected at the dairy farm of such producer. The results of all such bacteria counts identified with the names of producers shall be sent to the Department of Health once each month unless other arrangements are authorized by the commissioner.

(§ 4, Art. IV, eff. 9-1-1959)

Sec. 873.621. Examination of cattle dealers' herds.

No milk, cream or milk products shall be sold or offered for sale which shall be produced on a dairy farm where the business of buying and selling cattle is carried on unless every dairy animal which shall be brought onto such dairy farm shall first have been physically examined by a licensed veterinarian and found to be sound and healthy. Every dairy animal on each such dairy farm shall be ear-tagged, each such tag shall bear a separate number and an identifying physical description of each animal shall appear on an individual certificate form which shall be attached to the certificate on file covering the veterinarian's examination of the herd on such dairy farm.

(§ 5, Art. IV, eff. 9-1-1959)

Sec. 873.631. No caps permitted at distributing stations.

No milk, cream or milk products, bottle caps or hood covers shall be kept, stored or used at any distributing station, store or place where milk or cream is received in bottles for distribution or in any vehicle while in use for the delivery of milk, cream or milk products.

(§ 6, Art. IV, eff. 9-1-1959)

Sec. 873.641. Vehicles to bear dealer's name.

Every wagon, truck or vehicle used in the transportation and distribution of milk, cream or milk products shall have the name and address of the dealer operating such vehicle clearly and legibly set forth on each of the two sides. The name and address shall be in letters which shall be not less than three inches in height and which shall average not less than one and one-half inches in width. Every such wagon, truck or vehicle shall be kept in a clean and sanitary condition.

(§ 7, Art. IV, eff. 9-1-1959)

Sec. 873.651. Milk bottle closures.

No milk, cream or milk products shall be sold or offered for sale in bottles unless the pouring lips of such bottles are completely covered, unless special permission has been given by the commissioner for another type of cover. This regulation shall not apply to fermented milk products.

(§ 7, Art. IV, eff. 9-1-1959)

Article VII. Water Supplies**Sec. 873.700. Water supplies; definitions.**

When used in this article, unless otherwise expressly stated or unless the context or subject matter requires a different meaning, the following terms shall have the respective meanings hereinafter set forth or indicated:

1. *Auxiliary source of water.* The term "auxiliary source of water" means a source of water which is not normally used, but which has been approved by the department and the State Department of Health and other state agencies having jurisdiction as a source of water and developed for use when for any reason the normal source or sources fail to meet normal demand therefor.
2. *Domestic use.* The term "domestic use" means water used or intended for use for drinking purposes, food preparation, washing, laundering of clothes, sanitary facilities and purposes, household cleaning or medical purposes.
3. *Emergency source of water.* The term "emergency source of water" means a source of water which has not been developed or approved as a regular or auxiliary source of water and which is developed during an emergency for temporary use as a source of water in case of failure or inadequacy of the regular or auxiliary source of water.
4. *Individual water supply system.* The term "individual water supply system" means a single system of piping, tanks or other facilities together with a source of water

intended to supply a single parcel of land unless the system is a public water supply as defined herein.

5. *Person*. The term "person" means, except for any federal or state agencies, any individual, firm, public or private corporation, association, partnership, institution, political subdivision, government agency, public body, joint-stock association, trust, estate or other group of individuals or combination of the foregoing or any other legal entity whatsoever, and includes the plural as well as the singular.
6. *Potable water*. The term "potable water" means water which meets the drinking water quality requirements established in Part 5 of the State Sanitary Code.
7. *Private water supply or private water system*. The term "private water supply or private water system" means a single system of piping, tanks or other facilities together with a source of water installed to supply buildings located on not less than two (2) and not more than four (4) parcels of land not occupied by the owner of the source of water or employees thereof unless the system is a public water supply as defined herein.
8. *Public water supply or public water system*. The term "public water supply or public water system" means a water system which provides piped water to the public for human consumption, if such system has at least five service connections or regularly serves an average of at least twenty-five (25) individuals daily at least sixty (60) days out of the year, which term shall include:
 - a. Source, collection, treatment, storage and distribution facilities under control of the supplier of water to such system and used in connection with such system; and
 - b. Source, collection or pretreatment storage facilities not under control which are used in connection with such system.
9. *Sanitary*. The term "sanitary" means a condition or state that is free from filth or infective matter.
10. *Source of public water supply*. The term "source of public water supply" means any groundwater aquifer, surface water body or watercourse from which water is taken, either periodically or continuously, for drinking, culinary or food-processing purposes or which has been designated for present or future use as a source of water supply for domestic or municipal purposes.
11. *Water treatment plant*. The term "water treatment plant" means any facility, equipment or device which, through the addition of chemicals or through any other means or combinations of treatment, shall change the physical, chemical, radiological or microbiological quality of the water.

(Added 6-22-1989, eff. 6-22-1989)

Sec. 873.701. Water supplies; potable water; standards of quality; safety.

1. No person shall provide or make available or accessible a supply of water for domestic use, unless such water supply is potable and unless the source, treatment and distribution of such water shall be so protected from actual or potential pollution and so maintained as to deliver at all times a potable water.
2. Water delivered for domestic use shall not contain microbacterial, chemical, radiological or other contamination in such quantity as may be injurious to health or as may indicate such water to be unsatisfactory for human consumption as determined by a test or tests in a laboratory approved for such purpose by the State Department of Health.
3. No person shall permit any connection between a potable water supply and an unapproved auxiliary water supply or any structure containing sewage, nonpotable water or other substance injurious to health, except in such manner as to prevent the entrance of such liquid or substance into the potable water supply system and otherwise in conformity with the provisions of the Code.
4. No spring basin, collection basin, well or infiltration gallery used as a source of water supply, nor any main, standpipe, reservoir, tank or other pipe or structure through which water is delivered to consumers for potable purposes shall be placed in use after it has been constructed, cleaned or repaired until such structure or main has been disinfected in a manner approved by the State Department of Health.³
5. Use other than domestic.
 - a. No person shall provide or maintain a water supply in or for the use of the occupants of any habitable building or at any public place for use other than for domestic use which does not comply with this Code and the requirements of the department unless each outlet is provided with a permanent, prominent and legible label or sign reading "UNSAFE WATER, DO NOT DRINK."
 - b. No drinking fountains, outlets or taps shall be connected to a source of nonpotable water.
6. Any person who shall provide or make accessible a supply of water for domestic use shall submit to the department a report of bacteriological examination of such delivered water made by a laboratory approved for the purpose by the State Commissioner of Health, as often as the department may deem necessary, provided that the frequency of such examinations shall not be less than that set forth in the State Sanitary Code.

³**7. Editor's Note:** For standards for disinfecting a main or structure, see Rules and Regulations of the Commissioner Policy No. WS 1-89, effective 7-5-1989, which is on file in the office of the Commissioner of Health.

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7. Potable water delivered to consumers shall comply with the drinking water standards established by the State Department of Health.

(Added 6-22-1989, eff. 6-22-1989)

Sec. 873.702. Water supplies; bottled drinking water; permit.

1. The sale, offering for sale or delivery of bottled natural or distilled water intended for domestic use is prohibited unless the person bottling such water shall have been approved by the State Commissioner of Health.⁴
2. Bottled drinking water sold, offered for sale or delivered for human consumption or domestic use shall comply with the drinking water standards established by the State Department of Health.

(Added 6-22-1989, eff. 6-22-1989)

Sec. 873.703. Water supplies; potable water; factories; institutions; similar establishments.

1. Whenever a public water supply is available, no water from any other water supply system shall be furnished for human consumption or domestic use unless such other water supply system has been approved by the department in accordance with the Code.
2. If no satisfactory public water supply is available, the water for domestic use shall comply with the drinking water standards provided for by the Department of Health of the State of New York.
3. Water not approved for domestic use.
 - a. If the water supply for industrial or fire protection purposes is obtained entirely or in part from a source not approved for domestic use, this supply shall be distributed through an independent piping system having no connection with the system for domestic use.
 - b. Each faucet or other outlet furnishing water not safe for domestic use shall be provided with a permanent, prominent and legible label or sign "UNSAFE WATER, DO NOT DRINK."
 - c. No drinking fountain, outlets or taps shall be connected to a nonpotable source of water.

(Added 6-22-1989, eff. 6-22-1989)

⁴**8. Editor's Note:** For standards used to determine compliance with this section, see Rules and Regulations of the Commissioner Policy No. WS 2-1989, effective 7-5-1989, which is on file in the office of the Commissioner of Health.

Sec. 873.704. Water supplies; ice.

1. No person shall give, sell, offer for sale or deliver any artificial ice unless such ice shall have been produced from a potable water supply and manufactured, prepared and delivered under clean and sanitary conditions.
2. No person shall give, sell, offer for sale or deliver any natural ice for domestic refrigeration or for use in foods or beverages.

(Added 6-22-1989, eff. 6-22-1989)

Sec. 873.705. Water supplies; treatment and abandonment.

1. Whenever the department shall determine that water delivered to consumers for domestic use does not meet the requirements of the State Sanitary Code or the Code, the supplier of such water supply shall be notified of such condition, in writing.
2. The notice herein provided for may order the treatment or posting of such water supply or any portion of the distribution system or connections that do not meet the requirements of the State Sanitary Code or of the Code.
3. The commissioner may order the abandonment, sealing or posting of such water supply or any portion of the distribution system or connections that do not meet the requirements of the State Sanitary Code or the Code.

(Added 6-22-1989, eff. 6-22-1989)

Sec. 873.706. Water supplies; continuation of water service.

1. Any person who shall have contracted, undertaken or who is bound by any document or other legal obligation to furnish a supply of water for use in any habitable building shall maintain an adequate supply of water complying with the standards of the Code and the State Sanitary Code.
2. No person who shall have contracted, undertaken or who is bound by the terms of any agreement, whether verbal or written, or other legal obligation to supply water for use in any habitable building, while so obligated, shall shut off or discontinue service except as permitted by the Public Health Law or the State Sanitary Code.

(Added 6-22-1989, eff. 6-22-1989)

Sec. 873.707. Water supplies; public and private water systems; approval of plans and completed works; and certificate for use.

1. No person shall make, install or construct or allow to be made, installed or constructed a private or public water system or any addition to or modification thereof which may affect

the quality of the water or which may affect the adequacy of the supply thereof until the plans and specifications shall have been submitted to and received the prior approval of the commissioner.⁵

2. The application for approval of plans to construct a private or public water system shall be made on forms provided by the department and shall be accompanied by such engineering reports, plans, specifications, reports of bacterial, chemical, physical and microscopic analyses of the water source and such other information as may be required by the department, and in accordance with the requirements of the department.
3. An application for approval of plans for a private water supply shall be accompanied by evidence, satisfactory to the department, that there is no public water supply available to the premises to be served by such private water supply or that it is not practicable or economically feasible to connect to a public water supply.
4. Form of plans.
 - a. The department may prescribe the number of copies and the format in which the information required by this section shall be submitted.
 - b. Plans, specifications, soil and groundwater information shall contain the signature, seal and address of the professional engineer or registered and licensed architect pursuant to the Education Law of the State of New York under whose supervision such plans, specifications, soil and groundwater information was prepared.
5. No person shall place public or private water supply into service or to be used or allow such water supply to be placed into service or to be used until he has applied for and received prior approval of the completed works and certificate for use from the commissioner.⁶
6. All public and private water supplies must operate and maintain their equipment, facilities and appurtenances to ensure continued compliance with this Code.

(Added 6-22-1989, eff. 6-22-1989)

Sec. 873.708. Water supplies; individual water supply systems; approval of plans and completed works; and certificate for use.

1. No person shall undertake to construct any new building or structure requiring an individual water supply system or make, install or construct or allow to be made, installed

⁵**9. Editor's Note:** For standards used to evaluate the construction of a public or private water system, see Rules and Regulations of the Commissioner Policy No. WS 3-89, which is on file in the office of the Commissioner of Health.

⁶**10. Editor's Note:** As to expiration dates of such certificates, see Rules and Regulations of the Commissioner Policy No. WS 4-89, effective 7-5-1989, which is on file in the office of the Commissioner of Health.

and constructed an individual water supply system until the plans and specifications first shall have been submitted to and received the approval of the department.

2. Application for approval of plans to construct an individual water supply system shall be made on forms provided by the department and shall be accompanied by such engineering reports, plans, specifications and such other information as may be required by the department and in accordance with the requirements of the department.
3. An individual water supply system shall be constructed and maintained in conformity with the plans and specifications approved by the department and in compliance with the terms of any approvals issued in respect thereto and with the provisions of the Code.
4. No person shall use any new individual water supply system to furnish water for domestic use or any new building be occupied without first obtaining a valid certificate issued by the department to use such system.⁷
5. Certification.
 - a. Application for a certificate for use of a new individual water supply system shall be made, in writing, to the department and shall be accompanied by a written statement from a professional engineer or architect licensed and registered to practice in the State of New York, certifying that the new individual water supply system has been constructed in accordance with the approved permit to construct, plans and specifications.
 - b. The issuance of a certificate for use shall not be construed as a guaranty by the department that the system has been properly constructed or will function satisfactorily.

(Added 6-22-1989, eff. 6-22-1989)

Sec. 873.709. Water supplies; water supply systems; construction; inspections.

1. No water supply system shall be constructed otherwise than in accordance with the plans and specifications filed with and approved by the department.
2. The department may inspect any water supply system at any time during or after construction and may prohibit the operation and use of such system until the department is satisfied that the water supply system is constructed in accordance with the approved plans and specifications and approved amendments thereto and is capable of producing water of satisfactory quality for intended purposes.

⁷**11. Editor's Note:** For expiration dates of such certificates, see Rules and Regulations of the Commissioner Policy No. WS 6-89, effective 7-5-1989, which is on file in the office of the Commissioner of Health.

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3. No person shall construct or abandon any water well unless a permit has first been secured from the permit issuing official.

(Added 6-22-1989, eff. 6-22-1989)

Sec. 873.710. Water supplies; water supply systems; operation records; permits.

1. Supervision.
 - a. Every public and private water supply system shall be under the supervision of at least one water supply system operator.
 - b. All water supply system operators and assistant operators shall meet the qualification requirements of the department, provided that such persons shall be deemed qualified if they hold a certificate from the Department of Health of the State of New York in the proper grade pursuant to the provisions of the State Sanitary Code.
2. Daily records.
 - a. Any person who owns or operates a public or private water supply system shall keep complete daily records of the operation of any water treatment or disinfection of water required pursuant to the provisions of all applicable codes and the conditions of any written approval issued pursuant thereto.
 - b. Complete daily records of operation herein required shall be kept on forms furnished or approved by the department or the State Commissioner of Health.
 - c. A copy of daily records of operation shall be forwarded to the department at the end of each month of operation within ten days thereafter.
 - d. Daily operating records and reports of laboratory tests shall be readily available and produced for inspection by representatives of the department.
3. Permits. No person shall operate a public or private water system without a valid permit issued by the commissioner.

(Added 6-22-1989, eff. 6-22-1989; amended 11-19-1992, eff. 1-1-1993)

Sec. 873.711. Water supplies; water supply systems; emergency changes.

1. No owner or operator of any public or private water supply system shall:
 - a. Take, use or cause to be taken for use for water supply purposes water from an emergency source other than the regular or auxiliary sources of water supply;
 - b. Discontinue the disinfection or treatment of any public or private water supply; or
 - c. Make any change whatsoever which may affect the quality of such water supply without first having notified the commissioner and the State Commissioner of Health

or representative therefor by telephone and without having obtained the prior approval of the commissioner or the State Commissioner of Health for such change.

2. A printed copy of this section and of the appropriate section of the State Sanitary Code relating to emergency changes affecting water supply shall be permanently posted in the office of the owner and operator of each public or private water supply.
3. All owners or operators of any public or private water supply shall notify the department as soon as practicable but within 24 hours of any emergency condition, including but not limited to the interruption in the water supply.

(Added 6-22-1989, eff. 6-22-1989)

Sec. 873.712. Water supplies; water supply systems; connections.

1. Where a public water main is available, no new connection or arrangement for a water supply shall be made other than an individual service to the public water main for each building to be served.
2. Connection with public water supply.
 - a. When a public water supply is or shall become available and accessible to any occupied building or structure served by an individual water supply system, the owner may be required at his expense to install a connection thereto, in accordance with any regulations of the owner of such public water supply system, within 90 days after the date of an order, in writing, issued by the commissioner or the commissioner's representative to do so, provided that the water main is readily accessible to any property line of such premises and is otherwise capable of providing adequate service.
 - b. The commissioner may, upon prior written application, waive the strict compliance with the provisions of subsection 2.a. above in a particular case, subject to appropriate conditions, where such waiver is in harmony with the general purpose and intent of this Code.
3. Where a public water supply is available, no person shall maintain an individual water supply system for domestic use without first having obtained a special permit therefor from the department, and no direct physical connection shall be maintained or permitted between such individual system and the public water supply system without the prior written approval of the owner of the public water supply and the department.

(Added 6-22-1989, eff. 6-22-1989)

Sec. 873.713. Water supplies; unsafe well or spring.

1. Whenever the commissioner or the commissioner's representative shall determine, upon the basis of laboratory examinations of samples of water from a well or spring or from a

sanitary survey of a well spring, that the consumption of water from such well or spring may be injurious or hazardous to health, the use of such well or spring shall be discontinued forthwith upon notice of such determination.

2. The commissioner or the commissioner's representative may take such action as he may deem necessary to effect the discontinuance of a well or spring the consumption of water from which may be injurious or hazardous to health or which may be a potential danger to health, unless written permission is obtained from the commissioner or the commissioner's representative for the use of such water in such manner and for such purpose as will not endanger health.

(Added 6-22-1989, eff. 6-22-1989)

Sec. 873.714. Water supplies; new houses and buildings, disinfection.

1. Before occupancy of a house or building constructed after the effective date of this Code, the public water system thereof shall be effectively flushed with water from the water source provided to service the premises, after which a sample of water shall be collected from the water distribution system of such house or building, shall be submitted to a laboratory acceptable to the State Department of Health for bacterial analysis and the results of such tests shall be on file and available on the premises.
2. In the event that the laboratory analysis indicates that the microbiological quality does not meet the standards for microbiological quality for water for domestic use as set forth in the State Sanitary Code, the public water system shall be effectively disinfected and microbiological sampling and analysis repeated until the microbiological quality meets the standards.

(Added 6-22-1989, eff. 6-22-1989)

Sec. 873.715. Water supplies; separability.

If any provision of this article is held invalid, such invalidity shall not affect other provisions which shall be given effect without the invalid provision.

(Added 6-22-1989, eff. 6-22-1989)

ARTICLE VIII. SEWERAGE, SEWAGE AND REFUSE⁸

⁸A resolution adopted December 17, 2015, amended article VIII in its entirety to read as herein set out. Former article VIII, §§ 873.720—873.739, pertained to similar subject matter and derived from 7-19-2001; L.L. No. 13-2007, §§ 6—11; 6-19-2008.

Sec. 873.720. Purpose.

The purpose of this article is to ensure that the health and safety of the drinking water and other natural resources of the County of Westchester is preserved and that potential threats to such natural resources are monitored and mitigated through:

- A. Implementation of a system whereby providers of onsite wastewater treatment system services are licensed by the commissioner of health and subject to workmanship and reporting requirements which enables the department of health to ensure proper onsite wastewater treatment system construction, to record and monitor all available data relating to onsite wastewater treatment systems located within Westchester County, and to maintain a database and public education systems pursuant thereto; and
- B. Ensuring that the sewage and other wastewater generated from habitable buildings and properties in Westchester County is processed in the most environmentally appropriate manner possible by requiring all onsite wastewater treatment systems constructed or installed in Westchester County conform to the standards established in the New York State Public Health Law, by the board of health and/or the commissioner of health, and/or to require, where possible, the connection of such buildings or properties to public sewer systems.

(Res. of 12-17-2015)

Sec. 873.721. Definitions.

Whenever used in this article, the following terms shall have the meaning set forth below:

- A. *Construction* shall mean installation, replacement, expansion, remediation, repair, emergency repair, alteration, and/or modification of onsite wastewater treatment system (OWTS) components, including enhanced treatment units, aerobic treatment units, soil, gravel, pipes, tankage, pits, junction boxes, and all associated appurtenances and/or distribution systems.
- B. *Repair* shall mean: The repair or replacement in kind and in situ of broken, damaged, or worn OWTS components; replacement, expansion, alteration, or modification of OWTS components within an OWTS area previously approved by the department; or work to an existing OWTS to correct an OWTS failure, or impending failure, resulting in, or that may result in, the discharge of domestic sewage or other waterborne offensive material onto the surface of the ground, into a storm sewer, or into a watercourse or water body. Repair shall not apply to maintenance or servicing of OWTS components such as evacuation of a septic tank or servicing of an enhanced treatment unit or aerobic treatment unit.

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- C. *Septic system contractor* shall mean an individual who engages in the performance of any one or more of the following services, or who offers to provide any one or more of the following services for a fee, in Westchester County, with respect to onsite wastewater treatment systems: construction; installation; replacement; expansion; repair; remediation; alteration; modification and/or rehabilitation; and servicing, except for evacuation, removal, collection or transportation of septage.
- D. *Licensed septic system contractor* means a septic system contractor who possesses a valid license issued by the Westchester County Commissioner of Health pursuant to the provisions outlined in section 873.722 herein.
- E. *Individual* means any person, firm, company, association, corporation, partnership, co-partnership, joint-stock company, trust, governmental entity, or any other legal business entity and/or the employees thereof.
- F. *Industrial waste* shall mean any liquid, gaseous, solid or waste substance or combination thereof resulting from any direct or indirect process of industry, manufacturing, trade, business or from the development or recovery of any natural resources.
- G. *Offensive material* shall mean any domestic sewage, fecal matter, manure, offal, garbage, dead animals, meat wastes, blood, tankage, brine, urine or any putrescible organic matter or the contents of privies, cesspools, septic tanks or chemical toilets, either in liquid or solid state, or industrial waste or any other substance or liquid that is dangerous or prejudicial to health.
- H. *Privy* shall mean any non-portable facility or structure provided for the temporary storage or disposal of human excreta without water carriage. This definition shall not apply to other non-waterborne systems regulated by 10 NYCRR Part 75, Appendix 75-A.
- I. *Sanitary landfill* shall mean the controlled process of disposing of refuse or offensive material by depositing, compacting in layers and completely covering all such refuse and material.
- J. *Onsite wastewater treatment system (OWTS)*, also known as a septic system, separate sewage disposal system (SSDS) or subsurface sewage treatment system (SSTS) shall mean the whole or any part of a system or facilities or means for the treatment and subsurface dispersal of domestic sewage or other waterborne offensive material, regardless of location with respect to any building or structure or premises thereby served.
- K. *Septage* shall mean the contents of a septic tank, cesspool, or other separate sewage disposal system facility which receives domestic sewage waste.

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- L. *Domestic sewage* shall mean water-carried human and animal wastes from residences, buildings, industrial establishments, or other places, together with such groundwater infiltration and surface waste as may be present.
 - M. *Septage collector* shall mean an individual who engages in the performance of any one or more of the following services, or who offers to provide any one or more of the following services for a fee, in Westchester County, with respect to separate sewage disposal systems: evacuation, removal, collection or transportation of septage.
 - N. *Licensed septage collector* means a septage collector who possesses a valid license issued by the Westchester County Commissioner of Health pursuant to the provisions outlined in section 873.722 herein.
 - O. *Major expansion of an existing residential building or structure* shall be defined as any renovation or expansion of an existing residential building or structure resulting in a gross floor area increase of 100 percent or more, within any five year period; or resulting in an increase in the total number of bedrooms in such building or structure.
 - P. *Change of use at a commercial or institutional building or structure* shall mean, but not be limited to, any change in nature of wastewater generated, any change in quantity of the wastewater generated, any change in utilization or intensity of use of the building or structure, and any change in the type of facility or facilities that occupy the building or structure. Types of facilities shall include but not be limited to housing, retail, food service, office, warehouse, dental, medical, salons, and industrial.
 - Q. *Remediation* shall mean installation or replacement of an OWTS within an area not previously approved by the department to correct an OWTS failure, or impending failure, resulting in, or that may result in, the discharge of domestic sewage or other waterborne offensive material onto the surface of the ground, into a storm sewer, or into a watercourse or water body; or alteration or modification of an OWTS to correct a continuing OWTS failure or where OWTS repairs have not been satisfactory.
 - R. *Enhanced treatment* shall mean the biological and physical treatment of wastewater to reduce the amount of biochemical oxygen demand (BOD) and total suspended solids (TSS) of wastewater effluent prior to distribution to an absorption area. Enhanced treatment may also reduce the amount of other wastewater pollutants, such as total nitrogen or phosphorous, prior to distribution to an absorption area, and may also include other methods of wastewater treatment.
 - S. *Enhanced treatment unit (ETU)* shall mean a pre-manufactured structure that provides enhanced treatment of wastewater prior to discharge to a subsurface soil absorption area.
 - T. *Emergency repair* shall mean the repair or replacement in kind and in situ of broken or damaged tankage or other components of an onsite wastewater treatment system

whose failure, at the discretion of the department, poses an immediate threat to public health or safety.

- U. *Aerobic treatment unit (ATU)* shall mean a system that provides for the biological decomposition of the organic portion of the wastewater by mechanical aeration of the wastewater.
- V. *Residential addition* shall be defined as any renovation or expansion to an existing residential building or structure resulting in a gross floor area increase of 1,000 square feet or more, within any five-year period.

(Res. of 12-17-2015)

Sec. 873.722. Licensing and instruction requirements for septic system contractors and septage collectors.

Notwithstanding any other provision of this chapter to the contrary:

- A. (1) Beginning on April 1, 2002, each and every person who provides or offers to provide services as a septic system contractor in Westchester County shall have obtained a license from the commissioner in accordance with the requirements of this section. No person may provide or offer to provide services as a septic system contractor after April 1, 2002, without first having obtained such a license, except as may be authorized by the commissioner pursuant to section 873.722 C.(12), below.
- (2) Beginning on the effective date of the Local Law entitled, "A Local Law amending the Laws of Westchester County with respect to the licensing of persons engaged in evacuating, removing, collecting or transporting septage as septage collectors," each and every person who provides or offers to provide services as a septage collector in Westchester County shall have obtained a license from the commissioner in accordance with the requirements of this section. No person may provide or offer to provide services as a septage collector after such effective date without first having obtained such a license, except as may be authorized by the commissioner pursuant to section 873.722 C.(12), below.
- B. Application and instruction requirements.
 - (1) Any individual who seeks to operate as either a septic system contractor or septage collector in Westchester County shall submit an application to the commissioner on a form to be provided by the commissioner, along with the initial nonrefundable application fee in the amount set forth below.
 - (2) (a) Any individual who seeks to operate as a septic system contractor in Westchester County engaged in the construction, installation, repair and/or rehabilitation or servicing of separate sewage disposal systems shall be required to participate in a licensing instruction program developed and implemented by the department, or its duly authorized designee, which program shall include

both course work in the areas of septic system construction, installation and operation and standard examinations relating to the matters covered by such course work.

- (b) Any individual who seeks to operate as a septage collector in Westchester County engaged in services involving the evacuation, removal, collection or transportation of septage shall be required to participate in a licensing instruction program developed and implemented by the department, or its duly authorized designee, which program shall include course work in the safe, sanitary and efficient delivery of such services and standard examinations relating to the matters covered by such course work.
- (3) As part of the licensing instruction programs set forth in subsection B.(2), above, the department shall hold courses and examinations periodically, at such time and in such locations as the commissioner shall specify. Any person who has completed the application form and submitted the required application fee and licensing instruction program fee for either or both of the licensing instruction programs set forth in subsection B.(2), above, shall be eligible to participate in the next regularly scheduled license instruction program. Pursuant to the licensing instruction programs set forth in subsection B.(2), above, the department shall conduct such examinations, which may take the form of written, oral and/or practical examinations, as it deems necessary to test the applicants' knowledge of SSDS construction, installation, repair, and rehabilitation and/or evacuation, removal, collection or transportation of septage.

C. Licensing.

- (1) Upon the successful completion of the applicable licensing instruction program, including successful completion of the applicable examination to the satisfaction of the commissioner, and the payment of the biennial licensing fee, the commissioner shall issue a license certificate to the individual, which license shall indicate that the holder thereof is entitled to engage in the work or occupation of a licensed septic system contractor or licensed septage collector. All licenses shall expire two years from the date of issuance.
- (2) The licensee shall carry the license certificate on his person at all times while engaging in or performing the work for which the license has been issued in Westchester County. Such license shall be shown to any properly interested person, including customers, upon request. The licensee shall also conspicuously post a sign, at the primary public street entrance to the work site, which sign shall contain the licensee's department of health license number in a form to be specified by the commissioner.
- (3) Licenses issued by the department pursuant to this section shall be utilized only by the person named on such license and shall be non-transferable. The license

of one individual shall not be deemed to satisfy the separate licensing requirements applicable to employees, contractors and/or subcontractors of such individual where such employees, contractors and/or subcontractors are performing services which require a license pursuant to this section.

- (4) All such construction; installation; repair and/or rehabilitation; and servicing of OWTS in Westchester County shall be subject to the direct supervision of the licensed septic system contractor, and all such evacuation, removal, collection or transportation of septage shall be subject to the direct supervision of the licensed septage collector. For purposes of this subsection, "direct supervision" shall mean that the licensed individual shall be responsible for all activities on site, and shall, during the course of providing such services, be physically present at the work site.
- (5) Exceptions to licensing requirements. The provisions of this section shall not apply to individuals who are employees of any federal or state agencies, when such individuals are acting within the scope of that employment.
- (6) Fees. The non-refundable fees which shall be paid to the department in connection with the application and licensing procedures outlined herein shall be:
 - a. Original application fee: \$240.00 per septic system contractor applicant; \$100.00 per septage collector applicant.
 - b. Septic system contractor license instruction program fee (including the cost of examination): \$120.00 per applicant for initial septic system contractor exam; \$25.00 for reissuance of septic system contractor examinations and/or for septic system contractor renewal examinations.
 - c. Biennial license/renewal fee: \$240.00 per licensed septic system contractor; \$120.00 per licensed septage collector.
- (7) The commissioner may require the participation of licensed septic system contractors and/or licensed septage collectors at department-sponsored informational seminars at any time during any licensing term in order to ensure that all licensed septic system contractors and/or licensed septage collectors are informed of developing issues, technologies, and laws which may impact the performance of services by the licensed septic system contractor and/or licensed septage collector in Westchester County.
- (8) All licensed septic system contractors and licensed septage collectors shall comply, at their own expense, with the provisions of all applicable federal, state and municipal laws, rules, regulations or requirements including, but not limited to, all federal, state and municipal laws, rules, regulations or requirements applicable to the licensee as an employer of labor or otherwise. All licensees shall be required to comply with all rules, regulations and licensing requirements

pertaining to its professional status and that of its employees, partners, associates, subcontractors and others employed to render the services hereunder.

- (9) **Renewal.** No person shall perform the services of a licensed septic system contractor or licensed septage collector after the expiration of the license issued by the department. The licensed septic system contractor or licensed septage collector may seek renewal of their licenses by submitting a renewal application, on the form provided by the department, to the department not less than 30 days in advance of the expiration date of the licensed septic system contractor's or licensed septage collector's existing license. Prior to the approval of the renewal license, the licensed septic system contractor or licensed septage collector shall be required to submit a completed application and pay the appropriate biennial renewal fee, as referenced above, prior to the department's issuance of the renewal license, and may be required to successfully complete a renewal examination. The commissioner may, in his discretion, require any licensee who fails to submit the renewal application within the time frames specified above to submit an application and fees, in accordance with this section, as though the licensee had not previously been licensed by the commissioner.
- (10) The commissioner may refuse to issue or renew a license in the event that an individual fails to satisfactorily complete the licensing instruction program, examination, or renewal examination, or fails to comply with the licensing standards outlined herein.
- (11) Upon the issuance of a license by the commissioner, the names and contact information for each licensed septic system contractor and licensed septage collector shall be placed on a public registry to be maintained by the commissioner and made available for consumer review and reference.
- (12) The commissioner, in his discretion, may issue a temporary license to a prospective licensed septic system contractor or prospective licensed septage collector in the case of an emergency where, in the opinion of the commissioner, the condition of a OWTS poses a threat to public health and safety, provided however, that the duration of such temporary license shall not exceed six months. The commissioner may, in his discretion, refuse to issue a temporary license or suspend any existing temporary license where the commissioner deems the qualifications or work practices of the holder of the temporary license to be unsatisfactory, or where the threat to public health and safety has been eliminated to the satisfaction of the commissioner. The issuance of such a temporary license may be utilized by its holder only with respect to the emergency identified and which formed the basis for issuance of the temporary license, and shall not entitle the holder thereof to provide services as a licensed

septic system contractor or licensed septage collector in Westchester County generally. The holder of such a temporary license shall be required to pay pro rata fees, in accordance with the fees established in subsection C.(6), above, on a month-to-month basis for the term of such temporary license.

(Res. of 12-17-2015, amended 6-20-2019, eff. 8-1-2019)

Sec. 873.723. Standards applicable to licensed septic system contractors, licensed septage collectors, and owners of septage removal vehicles.

- A. All licensed septic system contractors and licensed septage collectors shall comply with all provisions set forth in this article VIII to the extent that such provisions relate to licensed septic system contractors, licensed septage collectors or OWTS, and to any other provision of this chapter which relates to such license holders.
- B. All licensed septic system contractors and licensed septage collectors shall comply with all standards of workmanship as may be established in the training programs to be provided by the department, or its designee, pursuant to such licensing programs, or generally in the industry.

All licensed septic system contractors shall comply with the terms or conditions of any approval issued, or plans approved by the department to construct, install, replace, expand, remediate, alter or modify an onsite wastewater treatment system, or to repair or perform an emergency repair to an onsite wastewater treatment system.

- C. No person shall knowingly engage in any fraud or material deception of the commissioner, the department, or any Westchester County consumer with respect to the qualifications or licensing status of the individual, its employees, or independent contractors, or the services which are offered or provided to any such consumer, in connection with the services regulated hereunder.

No septic system contractor or septage collector shall knowingly engage in any fraud or material deception of the commissioner, the department, or any Westchester County consumer with respect to required data or information reported to the department.

- D. No person shall knowingly cooperate with any individual engaged in any fraud or material deception of the commissioner, the department, or any Westchester County consumer with respect to required data or information reported to the department, or the qualifications or licensing status of the individual, its employees, or independent contractors, or the professional services which are offered or provided by such individual to any such consumer, in connection with the services regulated hereunder.
- E. Septage removal vehicles.
 - (1) Prior to the use of a motor vehicle for purposes of evacuation, removal, collection or transportation of septage, the owner or lessee of such motor vehicle intending use for such purposes in Westchester County, shall obtain a permit from the department

approving use for such purposes. No person shall use a motor vehicle or cause a motor vehicle to be used for such purposes without a permit issued by the department. The provisions of this subsection shall not apply to motor vehicles owned and/or operated for such purposes by a municipality.

- (2) All permits required by this subsection shall expire two years from the date of issuance.
- (3) The non-refundable fees which shall be paid to the department in connection with the permitting required by this subsection shall be:
 - a. Original application fee: \$200.00 per motor vehicle.
 - b. Biennial license/renewal fee: \$200.00 per motor vehicle.
- F. No licensed septic system contractor shall undertake to construct, install, replace, expand, remediate, alter, and/or modify an onsite wastewater treatment system, or repair or perform an emergency repair to an onsite wastewater treatment system, without the written approval from the commissioner. At the discretion of the department, an emergency repair of an onsite wastewater treatment system component may not require prior written approval from the commissioner.
- G. No licensed septic system contractor shall perform repair or emergency repair work without first notifying the department in accordance with policies, rules or regulations adopted by the commissioner.

(Res. of 12-17-2015)

Sec. 873.724. Reporting requirements for licensed septic system contractors and licensed septage collectors.

Notwithstanding any other provision of this chapter to the contrary:

- A. Each and every licensed septic system contractor and licensed septage collector shall be required to complete a septic system data form provided by or otherwise approved by the commissioner upon the completion of any on-site services performed with respect to any OWTS or evacuation, removal, collection or transportation of septage in Westchester County, which form shall specify the service provided to the property owner and any other information which the commissioner, in his discretion, may deem appropriate. Each and every licensed septic system contractor and licensed septage collector shall be required to issue a copy of the septic system data form to both the commissioner and to the owner of the facility which is served by such OWTS within 30 business days of the service date. Submission of the septic system data form to the department of environmental facilities at the time of discharge into the county trunk sewer system shall constitute submission to the commissioner under this section. Such septic system data forms shall include language which informs the property owner that all licensed septic system

contractors and licensed septage collectors shall be required to maintain their Westchester County license; shall be required to display such license and license number to the property owner upon request; and shall specify the contact information for the department.

- B. In the event that any service provided by the licensed septic system contractor or licensed septage collector indicates that the OWTS presents a significant threat to public health, safety and/or the environment, the licensed septic system contractor or licensed septage collector shall state the existence and nature of such emergency clearly on the face of such septic system data form, and shall issue a copy of the septic system data form to both the commissioner and to the owner of the facility which is served by the OWTS within three business days of the service date.
- C. To the extent that the condition of any given OWTS is such that the licensed septic system contractor cannot bring the OWTS into compliance with all applicable federal, state and municipal laws, rules, regulations or requirements, the licensed septic system contractor shall advise the consumer of such condition in advance of providing any services to the consumer with respect to such OWTS, and shall note on the face of any septic system data form prepared with respect to such OWTS both the existence of such condition and the subsequent efforts, if any, made by the licensed septic system contractor to bring the OWTS into conformance with such laws, rules and regulations, and the consumer's assent to same.
- D. Licensed septic system contractors and licensed septage collectors shall be required to maintain a copy of each and every septic system data form for a period of not less than six years from the date of service.
- E. (i) The commissioner shall maintain a database of the records for each OWTS, which records are to be provided by all licensed septic system contractors, and shall include, but not be limited to, the following information, where applicable:
 - (1) Residence address;
 - (2) Number of bedrooms;
 - (3) Number of bathrooms;
 - (4) Square footage of residence/commercial structure;
 - (5) Type of sewage disposal system;
 - (6) Grade/slope of disposal area;
 - (7) Percolation rate at disposal area;
 - (8) Distance from well, if applicable;
 - (9) Well yield (gallons per minute), if applicable;
 - (10) Depth of well (feet), and physical characteristics of well, if applicable;

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- (11) Date of system installation;
 - (12) Name of licensed septic system contractor;
 - (13) A listing of current and previous owners; and
 - (14) Maintenance history.
- (ii) The commissioner shall maintain a database of the records for each OWTS, which records are to be provided by all licensed septage collectors, and shall include, but not be limited to, the following information, where applicable:
 - (1) Residence address;
 - (2) Date of evacuation, removal or collection of septage for transport;
 - (3) Name of licensed septage collector;
 - (4) Total volume of septage evacuated, collected or removed for transport;
 - (5) Name of septage receiving facility following transport;
 - (6) Number of septic tanks evacuated;
 - (7) Approximate volume of each septic tank evacuated;
 - (8) Number of cesspools, seepage pits, and/or other system components evacuated; and
 - (9) Approximate volume of each cesspool, seepage pit, and/or other system component evacuated.
 - F. The information contained in such database shall be made available for inspection by members of the public at reasonable times during the regular business hours of the department.
 - G. The department shall prepare and provide a report semi-annually to the Board of Legislators on the data collected pursuant to this section with appropriate comment.
- (Res. of 12-17-2015)

Sec. 873.725. Penalties and enforcement.

Except as expressly stated in this article VIII, any person who is deemed to have violated section 873.723 hereof, shall be subject to enforcement proceedings in accordance with the provisions of sections 209-215, 217-221, and 304-309 of this chapter. Each day of a continuing violation shall constitute a separate and distinct violation hereunder. This provision is not, however, intended to impose any liability or affirmative obligation upon the owner of any real property which is served by an OWTS regarding any such services which may be provided on such property by any unlicensed individual where that individual represented to such owner that he or she was a licensed septic system contractor or licensed septage collector.

(Res. of 12-17-2015)

Sec. 873.726. Approval required for onsite wastewater treatment systems, for major expansion of an existing residential building or structure, for residential addition, and for change of use at commercial or institutional building or structure.

- A. No person shall undertake to construct any new building or structure requiring an onsite wastewater treatment system or to construct such system to serve any existing building or structure without first having obtained the written approval for such system issued pursuant to the Public Health Law or by the commissioner.
- B. No person shall undertake to construct any major expansion of an existing residential building or structure requiring an onsite wastewater treatment system or to construct, install, replace, expand, remediate, alter, and/or modify such system, or to repair or perform an emergency repair to such system, without first having obtained the written approval for such system issued pursuant to the Public Health Law or by the commissioner.
- C. Such onsite wastewater treatment system to serve any major expansion of an existing residential building or structure together with the existing building and structure shall comply with current standards, rules or regulations duly promulgated by the commissioner and with the terms or conditions of approval issued therefor or approved amendments thereto.
- D. No person shall undertake to construct, install, replace, expand, remediate, alter, and/or modify an onsite wastewater treatment system, or to repair or perform an emergency repair to an onsite wastewater treatment system, without first having obtained the written approval from the commissioner. At the discretion of the department, an emergency repair of an onsite wastewater treatment system component may not require prior written approval from the commissioner.
- E. Any change of use at a commercial or institutional building or structure, or expanded use at a commercial or institutional building or structure served by an onsite wastewater treatment system, shall require the prior written approval of the commissioner regarding wastewater flow and following an inspection of the onsite wastewater treatment system for any needed repair or remediation.
- F. Such onsite wastewater treatment system serving any change of use at a commercial or institutional building or structure resulting in an increase in wastewater flows exceeding the capacity of the onsite wastewater treatment system as determined by the Department of Health, or to serve an expanded use at a commercial or institutional building or structure resulting in an increase in wastewater flows exceeding the capacity of the onsite wastewater treatment system as determined by the department of health, shall comply with current standards, rules or regulations duly promulgated by the commissioner and with the terms or conditions of approval issued therefor or approved amendments thereto.

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- G. No onsite wastewater treatment system shall hereafter be approved on any building site not having in existence on the date of approval the required usable area. Such area thereafter shall be so isolated and protected as to effectively prevent removal, displacement, compaction or other adverse physical change in the characteristics of the soil or in the drainage of the area designated for such usage.
 - H. Such onsite wastewater treatment system shall be constructed, installed, replaced, expanded, remediated, repaired, altered, and/or modified in accordance with the standards, rules or regulations duly promulgated by the commissioner and with the terms or conditions of the approval issued therefor or approved amendments thereto.
 - I. Whenever inspection indicates the construction to be otherwise than in accordance with the Public Health Law or this Code or the conditions of any permit or written approval issued pursuant thereto or the standards applicable to said construction, all work shall cease upon written notice served upon any person connected with or working in or about the said system or any part thereof, or by registered mail to the last recorded address of the person named in such permit or approval. Thereafter no further work shall be done other than to remedy such violation and to proceed with work in compliance with the aforementioned requirements, provided the inspector determines that the work may properly proceed. Otherwise, the written approval shall terminate and no further work shall be undertaken until a new written approval shall have been obtained.

Whenever considered necessary by the inspector, any covered work shall be promptly uncovered for inspection at any time before issuance of the certificate of construction compliance. Any approval shall be subject to modification or change as may be directed in writing by a representative of the commissioner due to conditions found during construction, and such inspector may at his discretion require all or part of the construction to cease until approval of the necessary modification or change has been obtained in the same manner as the original approval.

- J. No person shall place any new OWTS construction in operation or use nor shall any new building requiring such system be occupied by any person without first having obtained a certificate of construction compliance issued from the commissioner.
- K. In the event of the failure of any onsite wastewater treatment system installed under the approval of the commissioner or otherwise, the owner of the building or structure served thereby shall forthwith cause an investigation to be made of the reason for such failure and shall place the system in a proper and sanitary operating condition by any legal means within such period of time as may be determined by the commissioner to be reasonable to perform such work. During such investigation any portion of the system may be left open for inspection provided it is protected so as to effectively prevent direct contact with the sewage contents. The findings of the commissioner shall be presumptive evidence of the cause of failure. In the event the owner is not subject to legal process, the occupant of the premises shall be responsible for the maintenance of the onsite wastewater treatment system in a satisfactory and sanitary condition during such occupancy.

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- L. The issuance of any approval or certification pursuant to the provisions of this code shall not be construed as a guaranty by the commissioner or the Westchester County Department of Health or any employee or agent that the system has been properly constructed or will function satisfactorily, nor shall it in any way restrict the actions or powers of the commissioner in the enforcement of any law or regulation.
 - M. No repair or emergency repair work shall be performed without first notifying the department in accordance with policies, rules or regulations adopted by the commissioner.
 - N. No person shall undertake to construct a residential addition to an existing residential building or structure, served by an onsite wastewater treatment system, without first having obtained prior written approval from the commissioner; verifying that the total number of bedrooms in the residential addition together with the existing building or structure is consistent with department records, verifying compliance with section 873.730.C. of this article, and following an inspection of the onsite wastewater treatment system for any needed repair or remediation.

(Res. of 12-17-2015)

Sec. 873.727. Sewer connection required.

The owner of any habitable building or property used for human occupancy, employment, recreation or other purpose abutting upon any street, alley or right-of-way in which there is located a public sanitary sewer may be required to install at the expense of such owner suitable toilet facilities therein and to connect such facilities directly with the public sanitary sewer, in accordance with any local regulations of the municipality owning such sewer, within 90 days after date of an order in writing issued by the commissioner to do so, provided that such sewer is within 100 feet of any property line of such premises and is otherwise accessible. Where a public sanitary sewer is available no new arrangement shall be made other than an individual connection to serve each building site.

(Res. of 12-17-2015)

Sec. 873.728. Sewer connections in sewered areas.

Within the corporate limits of any city or village or within a town sewer district, no new habitable building shall be occupied unless served by an individual connection to the public sanitary sewer system. A temporary onsite wastewater treatment system may be installed to serve an individual and isolated premises in accordance with the requirements of this code when the prior written consent of the municipal council or board or its duly authorized representative having jurisdiction over such sewer district is filed with the application. Such temporary facilities shall be approved only when a method of ultimately providing for a connection to a public sanitary sewer is indicated by the municipal governing council or board.

This regulation shall not apply to a building site of 40,000 square feet or more in area which contains the usable area otherwise required.

(Res. of 12-17-2015)

Sec. 873.729. Building served by onsite wastewater treatment system.

Where a public sanitary sewer is not available and accessible, every habitable building hereafter constructed shall be properly plumbed and the building sewer shall be connected to an onsite wastewater treatment system complying with the provisions of this code, and no other means for the disposal of domestic sewage shall be employed. When a public sanitary sewer shall become available to the property so served, a direct connection shall be made to such public sanitary sewer and any onsite wastewater treatment system shall be abandoned and every tank or pit in such system shall be opened, emptied of any sewage and completely filled in with inert material.

(Res. of 12-17-2015)

Sec. 873.730. Protection of public sewers and onsite wastewater treatment systems.

- A. No person shall discharge or cause the discharge of any industrial wastes or other substance to any sanitary sewer or onsite wastewater treatment system so as to endanger the use of or the materials of construction of such sewer or system or so as to result in the stoppage or other failure of the sewerage system or subsequent sewage treatment unless a permit for such discharge has been secured from the official agency having by law responsible charge of such sewerage system or sewage treatment works and such discharge conforms to the terms of such permit, or so as to endanger public health or safety.
- B. No unauthorized person shall break, damage, destroy, uncover, interfere with or commit any act which shall harm any structure, device, equipment or treatment process which is a part of a public sanitary sewerage system or sewage treatment works.
- C. Onsite wastewater treatment system areas, including expansion or replacement areas approved by the department shall be so isolated and protected so as to effectively prevent removal, displacement, compaction or other adverse physical change in the characteristics of the soil or in the drainage of the area designated for such usage.
- D. No person shall construct any building, pool, structure or other facility within the minimum separation distances established in rules or regulations duly promulgated by the commissioner. Any deviation from such minimum separation distances requires prior written approval from the commissioner.

(Res. of 12-17-2015)

Sec. 873.731. Exposure of sewage.

No person shall construct, or maintain any privy, cesspool, sewage disposal system, onsite wastewater treatment system, pipe or drain so as to expose or discharge the sewage contents or other deleterious liquid or matter therefrom to the atmosphere or on the surface of the ground or into any storm sewer or drain nor so as to endanger any source of supply of drinking water nor so as to discharge into any water course or body of water unless approval for such discharge shall have been issued therefor in accordance with the provisions of this code or the Public Health Law.

Complete daily records shall be kept of the operation of any sewage or waste treatment or chlorination as required under the provisions of any written approval for discharge issued therefor in accordance with the provisions of this code or the Public Health Law.

(Res. of 12-17-2015)

Sec. 873.732. Portable facilities on construction sites.

Any builder, contractor or other person employing men on the construction of any highway, building or structure shall provide or cause to be provided a portable toilet facilities at a convenient place upon the premises, or readily accessible thereto and the same shall be properly enclosed with the contents completely contained and removed after the holding tank has become full or as necessary so as not to create a public health nuisance.

(Res. of 12-17-2015)

Sec. 873.733. Disposal of offensive material.

- A. *Storage.* No person shall permit, deposit, store or hold any offensive material on any premises or place or in any building or structure unless such material is so treated, screened, covered or placed as not to create a nuisance detrimental to health. All containers for the storage of such material shall completely confine the material, shall be rodent and insect proof and shall be kept in an inoffensive and sanitary condition at all times.
- B. *Privies.* No person shall hereafter construct any privy. The commissioner may require the use of any existing privy to be discontinued, the contents removed, and the pit filled with inert material, whenever the use of such privy is no longer necessary or whenever such privy is located, constructed or maintained otherwise than in conformity to the provisions of the State or County Sanitary Code, or creates a nuisance. All privies shall be properly enclosed and screened, ventilated, lighted, kept in repair and shall be maintained at all times in a clean and sanitary condition. No privy shall be located or maintained within ten feet of any property line, within 25 feet of any public street or way or within 25 feet of any door or window of any building used for human occupancy. No such facilities shall be

constructed under or within any building or structure intended or used for human occupancy.

- C. *Protection of facilities.* No person shall dispose of any substance into any plumbing line, sewer, privy or onsite wastewater treatment system other than that which said facility is designed or is intended to receive.
- D. *Burial or discharge.* No person shall dispose of any offensive material by burial unless it shall be buried at least 300 feet from any source of water supply or so disposed of at such other place that no water supply will be polluted and where nuisance will not be created, subject to regulations for the protection of public water supplies adopted pursuant to the provisions of the Public Health Law.

(Res. of 12-17-2015)

Sec. 873.734. Removal and transportation of offensive material.

No person shall remove or transport or permit the removal or transportation of any offensive material except in such manner and in or by such conveyance as will prevent the creation of a nuisance or the loss or discharge of such material in any public place. All such material shall be so handled, covered or treated that it cannot escape or be accessible to rodents, flies or other insects or create a nuisance. All vehicles and implements used in connection therewith shall be kept in an inoffensive and sanitary condition and when not in use shall be so stored or kept as not to create a nuisance.

(Res. of 12-17-2015)

Sec. 873.735. Permit required for collection.

No person, except a municipality and those required to obtain a permit under section 873.723E., shall engage in the business of removing, collecting or transporting offensive material without first having obtained a permit therefor from the commissioner.

(Res. of 12-17-2015)

Sec. 873.736. Approval of disposal area.

- A. The operation or maintenance of a dump for the disposal of offensive material is hereby declared to constitute a public health nuisance. No offensive material or combustible refuse shall be disposed of other than through the use of a sanitary landfill established, operated and maintained in accordance with standards established by the commissioner of health, or by use of an incinerator constructed, operated and maintained so as to comply with other requirements of the Sanitary Code or of the Public Health Law.

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- B. Any person, including a municipal corporation, who uses or permits the use of any land or water as a public place of disposal of offensive material or combustible refuse by means of a sanitary landfill shall obtain a permit therefor from the commissioner.
 - C. At any disposal area all material of any type whatsoever shall be deposited, controlled, treated, covered or handled in such a manner as not to create offensive odors, a breeding place for insects, vermin or rodents, the dissemination of dust or fires or the exposure of any person to toxic, poisonous or hazardous substances.

(Res. of 12-17-2015)

Sec 873.737. Onsite wastewater treatment system capacity.

- A. No person shall allow or cause sewage flows to an onsite wastewater treatment system to exceed the design capacity of such system approved by the department.
- B. At the discretion of the commissioner, a property owner or lessee may be required either to measure sewage flows to an onsite wastewater treatment system or to document water usage at a frequency and method determined by the department, and shall submit reports of the measurements and any other information deemed necessary according to a prescribed schedule.

(Res. of 12-17-2015)

Sec. 873.738. Onsite wastewater treatment system capacity; fees

Every submittal for written approval to undertake onsite wastewater treatment system construction, or for a change of use at a commercial or institutional building or structure, or for a major expansion of an existing residential building or structure, pursuant to the provisions of article VIII, section 873.726 of the Westchester County Sanitary Code shall be accompanied by a nonrefundable fee in accordance with a schedule established by the commissioner.

(Res. of 12-17-2015)

Sec. 873.739. Approval required for installation of sewage storage facilities.

No person shall undertake to construct any facility intended for the storage of water-borne sewage with respect to any building or structure or premises thereby served, without first having obtained the written approval from the commissioner. Such facilities shall be constructed in accordance with the standards, rules or regulations duly promulgated by the commissioner and with the terms or conditions of approval issued therefor or approved amendments thereto. This paragraph applies to constructed stationary sewage containment and shall not apply to sewage holding tanks on recreational vehicles or boats and commercial portable toilet facilities with holding tanks.

(Res. of 12-17-2015)

Sec. 873.740. Enhanced treatment units (ETUs), aerobic treatment units (ATUs) and other equipment.

- A. No person shall discontinue use or proper operation of an ETU, ATU or other equipment approved by the department without the written approval from the commissioner.
- B. ETUs, ATUs, and other equipment specified by the department, shall be maintained and serviced in accordance with the manufacturer's recommendations or requirements, and plans approved by the department. Following the useful life of an ETU, ATU, or other equipment specified by the department, or if such ETU, ATU, or other equipment becomes inoperable and cannot be serviced or repaired, such ETU, ATU or other equipment shall be replaced with the same or equivalent equipment.
- C. ETUs, ATUs, and other equipment specified by the department, shall be maintained and serviced by a service professional or contractor acceptable to the department in accordance with policies, rules or regulations adopted by the commissioner.
- D. Property owners shall provide maintenance and service reports satisfactory to the department for ETUs, ATUs, and other equipment specified by the department, according to a maintenance and service schedule specified on plans approved by the department, and policies, rules or regulations adopted by the commissioner.
- E. A declaration prescribed by the department shall be recorded by the property owner in the office of the Westchester County Clerk, Division of Land Records before any new onsite wastewater treatment system construction with an ETU, ATU, or other equipment specified by the department, may be placed in operation. This declaration, which shall run with the land and be a burden upon said premises forever, shall ensure: that such ETU, ATU, or other equipment is properly operated, maintained and serviced throughout the useful life of such ETU, ATU or other equipment; that following the useful life of such ETU, ATU, or other equipment, or if such ETU, ATU or other equipment becomes inoperable and cannot be serviced or repaired, that it shall be replaced with the same or equivalent equipment; and that maintenance and service reports shall be provided to the department according to a maintenance and service schedule specified on the plans approved by the department, and policies, rules or regulations adopted by the commissioner. This declaration shall not be released except by a duly recorded instrument bearing the authorization of the Westchester County Department of Health.

(Res. of 12-17-2015)

Article IX. Sanitation of Habitable Buildings

Sec. 873.821. Definitions.

1. "Dwelling unit" shall mean a room or group of rooms with facilities for regular preparation of meals and occupied or intended to be occupied by one household consisting of one (1) family as a home where its members live and sleep.
2. "Habitable building" shall mean any structure intended to be occupied in whole or in part by one (1) or more human beings.
3. Exception. Except where specifically defined elsewhere in this code, the definitions and standards contained in the Recommended Standard Plumbing Code promulgated by the State Department of Health and in the State Building Construction Code Applicable to One- and Two-Family Dwellings and the State Building Construction Code Applicable to Multiple Dwellings and any subsequent amendments thereto or revisions thereof shall apply.

(§ 1, Art. VIII, eff. 9-1-1959)

Sec. 873.831. General provisions.

1. *Scope.* Every existing habitable public or private building which is in whole or in part leased by the owner or his agent or which is permitted to be used by patrons or by the general public and every habitable building hereafter constructed shall comply with the following minimum requirements.
2. *Structure.* Every habitable building shall be constructed of durable material capable of providing adequate protection from the elements and excessive moisture. All parts thereof shall be kept in good repair and structurally sound and fit for human habitation. Such materials shall be used as may be necessary to maintain all living rooms in a clean and sanitary condition.
3. *Lighting and ventilation.* Every room and passageway in any habitable building shall be provided with lighting and ventilation obtained by suitable and safe natural or artificial means or a combination thereof and adequate for the health and safety of every occupant. Every opening or equipment provided for ventilating purposes shall be maintained in repair and free of obstruction and shall be of such construction as to be readily opened, securely closed or operated.
4. *Plumbing.* Each and every plumbing fixture, pipe, drain, sewer and sewer connection shall be properly plumbed, of sanitary design and construction and maintained in repair and in sanitary condition.
5. *Minimum plumbing fixtures.* Every habitable building shall be provided with at least the minimum number and type of plumbing fixtures specified by the Recommended Standard Plumbing Code or such number and type which in the opinion of the commissioner shall be necessary for the particular type of occupancy; provided that any privy now in use in lieu

of any water closet as may be otherwise required may be continued in use until such time as its abandonment is ordered by the commissioner.

6. *Overcrowding.* Every dwelling unit shall contain not less than 400 cubic feet of air space nor less than 65 square feet of floor space per occupant; provided that in stores, offices and multiple dwellings the space requirements contained in the State Building Construction Code Applicable to Multiple Dwellings shall apply; and provided further that this regulation shall not apply to occupancies otherwise subject to the supervision of appropriate state agencies. No dwelling unit shall be occupied by more than 2.0 persons per habitable space.
7. *Insects and pests.* All approved means necessary or required shall be taken to eliminate flies, insects, rodents or other vermin from any habitable building and to prevent the breeding or harboring of such vermin on the premises.
8. *Equipment requirements.* Except as otherwise provided in this Code or other Public Health Law, equipment in one- and two-family dwellings and in multiple dwellings shall meet the requirements of the State Building Construction Code Applicable to One- and Two-Family Dwellings or the State Building Construction Code Applicable to Multiple Dwellings or more restrictive local laws or ordinances, as the case may be, and shall be maintained at all times in repair and in a safe and sanitary condition. In all buildings where heating, mechanical, electrical equipment, incinerators, elevators and dumbwaiters, or equipment capable of emitting radioactivity are provided such equipment shall be maintained at all times in repair and in a safe and sanitary condition so as not to create a health hazard and shall be designed, installed, maintained and operated in conformity with generally accepted standards under conditions of normal usage.

(§ 2, Art. VIII, eff. 9-1-1959)

Sec. 873.841. Heating of occupied buildings.

1. A person who has contracted or undertaken to furnish heat, or who is required by any contract, agreement, lease or other arrangement or by law, to heat or furnish heat to any building or part thereof, occupied as a place of habitation shall furnish heat to every occupied room in such building or part thereof so as to maintain temperatures as follows:
 - a. Not less than 68 degrees Fahrenheit between the hours of 6:00 a.m. and 10:00 p.m. whenever the temperature outside of the building or part thereof shall fall below 55 degrees Fahrenheit; and
 - b. Not less than 60 degrees Fahrenheit.
2. A person who has contracted or undertaken or who is required by any contract, agreement, lease or other arrangement or by law to heat or furnish heat to any building or portion thereof, occupied as a business establishment or for public or governmental purposes where one or more persons are employed, shall furnish heat for every occupied

room in such building, or portion thereof, so that a minimum air temperature of 68 degrees Fahrenheit may be maintained therein during the usual working hours established and maintained in a building, or portion thereof, occupied as a business establishment or for public or governmental purposes, unless other hours are provided by a contract or agreement.

3. For the purposes of this section the temperature within a place of habitation or any building or portion thereof occupied as a business establishment or for public or governmental purposes where one (1) or more persons are employed shall be that obtained at a distance of eighteen (18) inches above the average floor level and three (3) feet from an outside wall of the room in which such temperature is obtained.
4. An owner, agent or responsible person in charge of a building for which heat is required to be furnished pursuant to this section shall be liable for failure to comply with this section.
5. Any person who is required to furnish heat pursuant to this section shall maintain the device, system or both, which provides such heat, in a safe and operable condition.
6. Inspections.
 - a. Any person who is required to furnish heat pursuant to this section shall cause the device, system or both, which provides such heat, to be inspected annually by a person qualified to make such inspection.
 - b. A record of such inspection shall be maintained on the premises and a copy shall be furnished to the department upon request.
7. In the event of failure or malfunction of the device, system or both, which provides heat to a building or part thereof as required by this section, the department may require that the owner, agent or responsible person in charge shall provide an acceptable and safe method of providing heat until the failure or malfunction is repaired.
8. The provisions of this section shall not apply to a building or portion thereof used and occupied as a trade, business or occupation where low air temperatures are essential and unavoidable nor where failure to maintain the required temperature is the direct result of a negligent or malicious act of the occupant, necessary repairs or alterations or any cause beyond the control of the owner, agent or responsible person in charge; except as may otherwise be required by the department pursuant to section 873.861.⁹

(§ 3, Art. VIII, eff. 9-1-1959; amended 11-21-1974, eff. 12-15-1974; 12-4-1975, eff. 1-1-1976)

⁹**14. Editor's Note:** The original subsection referred to a nonexistent subdivision five so the reference to section 873.861 was inserted since that is apparently the correct reference.

Sec. 873.851. Prohibited occupancies.

1. No person shall occupy any building, place or vehicle as a place of habitation unless adequate and sanitary facilities for the disposal of sewage have been provided therefor.
2. No person shall occupy any habitable building unless a safe and adequate supply of potable water is available. Drinking cups for common use shall not be used or permitted at any public place nor provided for use by employees.
3. No cellar, hallway, closet, bathroom or any room where there is a water-closet or any place dangerous or prejudicial to life or health shall be used for a place of sleeping or residence.

(§ 4, Art. VIII, eff. 9-1-1959)

Sec. 873.861. Maintenance of premises.

- A. Every habitable building and every part thereof shall be kept clean and free from any accumulation of offensive material, rubbish or similar matter and shall be kept free of insect, vermin or rodent infestation. It shall be the responsibility of each occupant or tenant to keep in a clean condition that portion of the property which he occupies or over which he has control. No person shall deposit any material into any plumbing fixture which may result in the failure of such fixture, but this shall not relieve the owner of the responsibility of placing such fixture in repair. It shall be the responsibility of the person having possession of or being in charge of any property as owner, executor, administrator, trustee, guardian or agent to maintain any property under such control in compliance with the provisions of the Sanitary Code.
- B. The owner or agent of a multiple dwelling, as defined in the Multiple Residence Law, shall post in a conspicuous place at the main entrance to such dwelling the name and address of the owner who shall reside in the County of Westchester or the name and address of a responsible person residing in the County of Westchester who shall be the duly authorized agent designated by written instrument on file with the person or department charged with the enforcement of the Multiple Residence Law or the Commissioner of Health, which person shall be in responsible charge of such premises and responsible for compliance with any and all provisions of this code.

(§ 5, Art. VIII, eff. 9-1-1959)

Sec. 873.871. Storage and removal of refuse.

1. The person in charge of a habitable building shall provide and maintain therein for the use of the occupants proper receptacles for the storage of garbage and refuse and shall cause such offensive material to be removed from the premises at least once each week, except

that combustible material may be destroyed in an incinerator operated in such manner as to produce no nuisance.

2. In buildings having two or more dwelling units or rooming units and in the absence of written agreement to the contrary the owner or his agent shall be held responsible for the provision of such receptacles conveniently located in sanitary enclosures on the premises and readily accessible to tenants at all times and shall be responsible for the removal of such material at least once a week or more often as may be necessary to prevent the creation of a nuisance.

(§ 6, Art. VIII, eff. 9-1-1959)

Sec. 873.881. Drainage.

Every court, yard or other area on the premises of any habitable building shall be so graded or drained as to prevent the accumulation of water within or without the building.

(§ 7, Art. VIII, eff. 9-1-1959)

Sec. 873.891. Unsanitary buildings.

Whenever any building, or a part thereof, shall become unsanitary, or any dwelling shall become so unsanitary as to be unfit for human habitation or whenever occupancy of a building or dwelling shall cause an unsanitary condition on or adjacent to the premises thereof and such condition shall be determined by the commissioner, after due notice to the owner and hearing thereon, to constitute a nuisance or condition detrimental to life and health, the commissioner may issue an order requiring the owner thereof to abate said nuisance or condition by placing said building or dwelling in a sanitary or habitable condition within a time specified in said order. Upon the failure of such owner to comply with said order, the commissioner may issue a further order, to be affixed conspicuously upon such building or dwelling and served upon the occupant or lessee thereof and upon the owner thereof or his agent, requiring all persons to vacate such building or dwelling and to discontinue its use at such time as shall be stated in said order and until such time as the building or dwelling shall be placed in a sanitary, or habitable condition and the nuisance abated. Upon the failure of such building or dwelling to be vacated within the time specified, the board of Health may issue a warrant to the Sheriff directing that such building or dwelling shall be vacated, and the Sheriff shall forthwith execute such warrant pursuant to law.

(§ 8, Art. VIII, eff. 9-1-1959)

Sec. 873.901. Standards.

In determining compliance with the provisions of this article, the commissioner may be guided by the provisions of the Recommended Standard Plumbing Code promulgated by the

New York State Department of Health, or the American Standard Plumbing Code, known as ASA A40.7-1949, or the State Building Construction Code Applicable to One- and Two-Family Dwellings, or the State Building Construction Code Applicable to Multiple Dwellings and any subsequent amendments thereto or revisions thereof; or the provisions of any building, plumbing or other code enacted by the local municipality in which the building is located, provided that the provisions of such Code do not permit lower or less exacting requirements than required by the Sanitary Code.

(§ 9, Art. VIII, eff. 9-1-1959)

Sec. 873.911. Housing hygiene and occupancy.¹⁰

(Added as § 10, Art. VIII, 11-21-1974, eff. 1-1-1975 and 12-15-1974; repealed 12-4-1975, eff. 1-1-1976)

Sec. 873.921. Heating of business establishments.

(Added as § 11, Art. VIII, 1-23-1975, eff. 1-1-1976; repealed 12-4-1975, eff. 1-1-1976)

Sec. 873.931. Termination of fuel supply for nonpayment.

(Added 11-29-1979, eff. 11-29-1979, expired 5-1-1980)

Article X. Realty Subdivisions

Sec. 873.931. Realty subdivisions; declaration of policy.

1. The purposes of the provisions of this article are to promote healthful and safe environmental conditions within and adjacent to all types of realty subdivisions and to assist local municipal agencies to achieve healthful communities. To this end, public water supply and public sewerage facilities should be provided, whenever possible, and be constructed and maintained in accordance with accepted state and national standards.
2. Separate water supply systems shall be considered temporary systems. Such systems are inadequate in many areas of the health district to meet domestic needs in new realty subdivisions.
3. In considering applications for approval of realty subdivisions, community needs and potential hazards, both natural and man-made, may be considered for the purpose of assuring residents clean air, clean water, clean recreational areas and clean land.

¹⁰**15. Editor's Note:** By resolution of 8-19-1982, the Board of Health adopted Part 21, the State Hygiene and Occupancy Code, of the New York State Sanitary Code, in its entirety, to be effective 9-1-1982.

(§ 1100, Art. 11, eff. 9-1-1971)

Cross reference(s)—Department of Environmental Facilities, Chs. 128 and 237; Department of Planning, Ch. 191; Planning Board, Ch. 277, Art. IV; environmental facilities sewer ordinance, Ch. 824; sanitary sewer districts, Ch. 964.

Sec. 873.941. Realty subdivisions; definitions.

1. *Realty subdivisions.* The term "realty subdivision" means any tract of land which is divided into more than two (2) habitable building sites or parcels on any site along an existing or proposed street, highway, easement or right-of-way or other means or proposed means of access, road or street, for sale, lease or rent, regardless of whether the sites are to be sold or offered for sale or leased for any period of time, are described by metes and bounds or by reference to a map or survey of the property or by any other method of description.
2. *Usable area.* The term "usable area" means the general area required and suitable for the normal and reasonable development of each building site in a realty subdivision to permit the provision of water supply and sewage facilities to serve the area for the proposed occupancy in accordance with provisions of local ordinances, watershed rules and regulations and the requirements of the department or other provisions of law.
3. *Separate water supply system.* The term "separate water supply system" shall mean a single system of piping, tanks or other facilities together with a source of water intended to supply a single building site.
4. *Separate sewerage system.* The term "separate sewerage system" shall mean a single system of piping, tanks or other facilities serving only a single building and disposing of sewage or other liquid wastes into the soil of the lot.
5. *Public water system.* The term "public water system" shall mean a water supply and necessary appurtenances together with a distribution system serving more than one (1) lot, whether owned by a municipal corporation or private utility.
6. *Public sewerage system.* The term "public sewerage system" shall mean a system utilized for the collection and disposal of sewage or other wastes of a liquid nature, including the various devices for the treatment of such wastes serving more than one (1) lot, whether owned by a municipal corporation or private utility.
7. *Dry sewer.* The term "dry sewer" shall mean a pipe intended to carry domestic waste at such time as sewerage and treatment facilities are constructed and available.

(§ 1101, Art. 11, eff. 9-1-1971)

Sec. 873.951. Realty subdivisions; approval of plans.

1. No person shall engage in the development of a realty subdivision or sell, offer for sale or contract for sale of land therein or erect any permanent building thereon without first

obtaining the approval of the department for the proposed methods of providing water and sewerage facilities and land drainage, and until such plan shall have been filed in the office of the Clerk of the County of Westchester.

2. A plan submitted to the department pursuant to this section shall show methods of providing adequate water supply and adequate disposition of sewage and land drainage to serve each building site according to the standards and requirements of the department.
3. The installation of any water supply and any sewerage disposal facilities, public or separate, shall be in accordance with the plans approved by the department, the state Department of Health, the state Department of Environmental Conservation or approved revision or revisions thereof.
4. The approval of any realty subdivision plan under and pursuant to the provisions of the Public Health Law and this code shall become effective only upon filing of the approved plan in the office of the Clerk of the County of Westchester within one year of the date of approval.
5. Approval.
 - a. The approval by the department of the proposed methods of providing water and sewerage facilities and land drainage shall be indicated by a stamp or endorsement on the face of the original tracing of the subdivision plan.
 - b. Such approval by the department shall be obtained prior to the filing of any map or plan showing such subdivision of land in the office of the Clerk of the County of Westchester or in any other required public office.
6. The original tracing of the subdivision plan shall show on the face thereof the written consent of the owner of record approving the filing of said map.
7. If a plan is disapproved by the department, such plan shall be returned to the person who submitted the plan with a summary of the reasons for disapproval.
8. (Reserved)
9. As a condition of such approval, the department may require the installation within a specified period, in accordance with the plans presented or approved revisions thereof, of the whole or any part of the water, sewerage or land drainage facilities for said realty subdivision; or the department may require that the land shall have been suitably improved and shall have adequate land drainage and usable areas for such installations before approval of the plan.
10. In addition to any other cause as otherwise provided in this code, the department shall deny approval of any realty subdivision if it appears that a condition or hazard detrimental to health or safety may be created thereby or, if it appears that excessive demands may be imposed upon any public or community facility or service proposed to serve such subdivision.

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11. Plans and specifications for the construction of any proposed public water supply or public sewerage systems shall be submitted to and shall receive approval of the department, the state Department of Health, or the state Department of Environmental Conservation, prior to the approval of the plans for the realty subdivision to be served.

(§ 1102, Art. 11, eff. 9-1-1971; amended 2-26-1987, eff. 4-1-1987)

Sec. 873.961. Realty subdivisions; application for approval; required data.

1. The original tracing shall show methods for furnishing adequate water supply, sewerage and drainage to serve each building site.
2. Applications for approval shall be accompanied by such maps, plans, reports, specifications and data as the department may require or direct.
3. The department may require that a report and such plans as may be needed, covering the following environmental factors may be submitted:
 - a. The method of solid waste collection and disposal;
 - b. The extent to which proposed land uses and structures may cause air pollution;
 - c. The methods for grading to prevent changes in soil percolation capacity and to provide for adequate collection and disposal of surface and ground water;
 - d. The methods to prevent contravention of surface and ground water quality standards;
 - e. The effect on the subdivision of environmental pollutants or hazards either on the property or from surrounding areas resulting from such facilities, activities or conditions as industrial or commercial structures or operations, highways, solid waste disposal sites, swamps, quarries, sink holes, limestone deposits, gravel pits, airports, watercourses, agricultural uses, floodplains and unstable soil condition;
 - f. The potential effect of the subdivision on environmental factors in surrounding areas.
4. The department may require that a test well be constructed on the site of a realty subdivision.

(§ 1103, Art. II, eff. 9-1-1971)

Sec. 873.971. Realty subdivisions; filing map.

Any realty subdivision plan approved by the department shall be filed in the office of the Clerk of the County of Westchester within one year of such approval.

(§ 1104, Art. 11, eff. 9-1-1971)

Sec. 873.981. Realty subdivisions; usable areas.

1. A usable area shall not be deemed to include any area occupied by a building, structure, lake, stream, pond or swamp, areas of exposed or underlying rock or ground water within five feet of the ground surface or marginal areas subject to flooding or along streams or other bodies of water.
2. The area intended for separate sewerage systems shall be well drained by natural or approved artificial means.
3. The minimum usable areas specified herein are intended to apply to single-family occupancies.
4. The department may require such usable area as it may deem necessary or adequate for any other type of land usage indicated on the plan or permitted under existing zoning laws, if any.
5. The usable area shall include a protective area not less than ten feet in width laterally on all sides of the separate sewerage system but shall not include such other protective area between any separate sewerage system and any water supply, line of drainage, watercourse or other hazardous condition as the department shall deem necessary and adequate.
6. As applied to separate sewerage systems, the usable area shall contain suitable absorptive natural soils for a depth of not less than seven feet above ground water or ledge rock. No site shall be deemed suitable for development as a soil absorption area which would require the placement or removal of natural soils for a depth greater than one-half the required depth of soil.

(§ 1105, Art. 11, eff. 9-1-1971; amended 5-27-1976, eff. 6-1-1976)

Sec. 873.991. Realty subdivisions; public systems required.

1. If in the opinion of the department, a proposed realty subdivision is located in an area in which conditions preclude the installation of separate water supply systems or separate sewerage systems, or both, the department may require installation of a public or community water or sewerage system, or both.
2. If a realty subdivision consists of 50 or more building sites or housing for 200 or more persons, the department may require installation of a public or community water or sewerage system, or both.

(§ 1106, Art. 11, eff. 9-1-1971)

Sec. 873.1001. Realty subdivisions; separate water and separate sewerage systems.

1. Where it is proposed to provide separate water supply and separate sewerage systems, each building site shall contain the required usable area for such facilities based upon the particular conditions as determined by appropriate soil investigations and design report acceptable to the department. In any case, the usable area for separate water supply and separate sewerage systems shall not be less than 14,000 square feet.
2. A plan may be required which shall indicate the required usable area for each building site and such other information as the department may require.
3. A separate water supply system shall consist of a drilled well which has a capacity of providing an average yield of not less than five gallons per minute of potable water.
4. The use of individually dug wells or springs shall not be approved.
5. A separate sewerage system shall consist of septic tanks followed by subsurface leaching systems designed for the appropriate land usage.
6. The use of cesspools shall not be approved.
7. Whenever duly approved public water supply or public sewerage systems are made available and accessible for any sites or properties within such subdivision, any prior general approval for construction with separate water supply or separate sewerage systems shall be deemed null and void, and further construction shall be served by individual connections to the public systems so provided.

(§ 1107, Art. 11, eff. 9-1-1971)

Sec. 873.1011. Realty subdivisions; public water and separate sewerage systems.

1. Where water is to be provided by provision of or the extension of a public water supply system and sewerage is to be provided by a separate sewerage system on each building site, the usable area for sewerage facilities on each building site shall be based upon the particular conditions on each building site as determined by appropriate soil investigations and design report acceptable to the department. In any case, the usable area for separate sewerage systems shall not be less than 5,000 square feet.
2. Such usable area may be reduced not more than 50 percent where public sanitary sewer mains are installed in accordance with a duly approved plan for sewerage of the community and service connections from the sewer main to the property lines are installed so as to readily serve each site when such public sewerage system is available for use.
3. A plan may be required which shall indicate the required usable area for each building site and such other information as the department may require.

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4. A separate sewerage system shall consist of septic tanks followed by subsurface leaching systems designed for the appropriate land usage.
 5. The use of cesspools shall not be approved.
 6. Whenever duly approved public sewerage facilities are made available and accessible for any sites or properties within such realty subdivision, any prior general approval for separate sewerage systems shall be deemed null and void, and further construction shall be served by individual connections to the public sewerage systems so provided.

(§ 1108, Art. 11, eff. 9-1-1971)

Sec. 873.1021. Realty subdivisions; public water and public sewerage systems.

1. Where water and sewerage services are to be provided by public water mains and public sanitary sewers, the required approval may be indicated by stamp or endorsement on the face of the original tracing of the proposed realty subdivision plan indicating that such approval is issued subject to the provision of such systems to serve every habitable building constructed therein.
2. Such systems shall thereafter be installed to serve every habitable structure in such realty subdivision.
3. Where it is proposed to provide water supply to sewerage systems by connection to an existing public water supply or sewerage system, the applicant shall supply the department with a certification, in writing, by the owner of the utility that such systems are adequate and will be furnished and maintained to serve the proposed subdivision.

(§ 1109, Art. 11, eff. 9-1-1971)

Sec. 873.1031. Realty subdivisions; public water supply; in general.

Public water supply systems shall be capable of delivering water meeting the provisions of the State Sanitary Code relating to drinking water supplies. Such systems shall provide for continuity of service, and if from a ground water source shall provide at least two separate sources, each of which shall have the required capacity, and the system shall have at least one day's available storage at design capacity.

(§ 1110, Art. 11, eff. 9-1-1971)

Sec. 873.1041. Realty subdivisions; water and sewerage; joint systems.

1. No arrangement intended to furnish water from a single well or other source of water to more than one building site, except individual connections from a public water supply shall be approved.

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2. No arrangement intended to dispose of sewage by a separate sewerage system to serve more than one building site, except individual connections to a public sanitary sewer, shall be approved.

(§ 1111, Art. 11, eff. 9-1-1971)

Sec. 873.1051. Realty subdivisions; water and sewerage; existing improvement districts.

1. Within the corporate limits of any city or village or within any town water or sewer district, no plan for development of a realty subdivision shall be approved except where the plan provides for the extension or extensions of such water or public sanitary sewer systems to serve every habitable structure in such development; provided, however, that where each building site has an area of 40,000 square feet or greater, separate sewerage systems may be approved when, in the opinion of the department, the extension of public sanitary sewer systems is not necessary and each such site contains the required usable area.
2. Within the corporate limits of any city or village or within any town water or sewer district wherein public sewerage is contemplated within five years or less as determined by a resolution of the municipal governing board, interim separate sewerage systems may be permitted by the department provided that:
 - a. Dry sanitary sewers are designed, duly approved and properly installed in accordance with the municipal sewerage plan;
 - b. Capped or plugged plumbing is installed to serve each building and individual sewer connections are installed to the dry sewer; and
 - c. The soil is otherwise suitable for separate sewerage systems.

(§ 1112, Art. 11, eff. 9-1-1971)

Sec. 873.1061. Realty subdivisions; sale before construction of systems.

1. Whenever building sites are sold or offered for sale without the actual provision or construction of water supply or sewerage or land drainage systems having been installed, the seller shall furnish to each purchaser of such site at the time of the sale a legible reproduction of the realty subdivision plan bearing the approval of the department and indicating the arrangements for water supply and sewerage approved by the department.
2. The contract of sale or deed to the property shall contain a provision to the effect that the arrangements for water supply and sewage disposal and land drainage shall be installed in accordance with the plans approved by the department prior to the start of construction of any building on the property so acquired.

(§ 1113, Art. 11, eff. 9-1-1971)

Sec. 873.1071. Realty subdivisions; violations.

1. No person shall engage in the development of a realty subdivision otherwise than in accordance with the conditions or terms of the approval as given by the department, or approved amendments thereto.
2. Vacation of violations.
 - a. In addition to and independently of any other penalty, whenever the department shall have knowledge of the development of a realty subdivision otherwise than in accordance with the approval as given by the department, or approved amendments thereto, the commissioner shall issue a written notice of violation and such notice shall be served personally or by registered mail to the last-known address of the person filing such map and to the owner or owners of record of lands within such realty subdivision, if known, and to the developer, if known, otherwise by posting conspicuously on the property. A duplicate of such notice may be filed in any public office having jurisdiction.
 - b. After delivery of such notice as herein provided, the further development, sale, offer for sale, or contract for sale or rent of building sites therein and the extension or construction of water or sewerage systems to serve any habitable building therein shall be prohibited; provided, however, that upon submission of evidence satisfactory to the commissioner that the further development of the realty subdivision and the extension or construction of water or sewerage systems to serve any habitable building therein will be continued in accordance with approved plans or approved amendments thereto, the commissioner may authorize in writing the resumption of the development, extension or construction involved on such conditions, including the correction of the violation, as the commissioner shall prescribe. The violation shall not be vacated until such time as the commissioner shall be satisfied that the development, extension or construction involved is proceeding in accordance with the approved plans or amendments thereto.
 - c. The sale, offer for sale, or contract for sale or rent of building sites of the realty subdivision shall not be permitted until the violation has been vacated in writing.

(§ 1114, Art. 11, eff. 9-1-1971)

Sec. 873.1081. Realty subdivisions; applicability of local laws.

1. Nothing contained in this article shall be construed to abrogate the authority of any municipal or other duly constituted agency having by law authority to regulate or control such subdivisions or any public facilities therein provided or proposed.

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2. Nothing contained herein shall be construed to impair or abrogate the powers and functions of the Water Resources Commission or of any state or county agency having jurisdiction as now or hereafter provided by law.

(§ 1115, Art. 11, eff. 9-1-1971)

Sec. 873.1091. Realty subdivisions; variances.

1. The commissioner may on written application grant a variance from a specific provision of this article in a particular case, subject to appropriate conditions, where such variance is in harmony with the general purpose and intent of this code.
2. The commissioner may impose more stringent requirements in a specific case when necessary to assure an adequate and satisfactory water supply and sewerage system for the realty subdivision.

(§ 1116, Art. 11, eff. 9-1-1971)

Article XI. Miscellaneous Provisions

Sec. 873.1101. Definitions.

1. *Fumigant* shall mean and include any substance which by itself or in combination with any other substance is capable of emitting or emits or liberates a gas, fumes, or vapors and which gas, fumes or vapors, when so emitted or liberated, may be lethal, poisonous or dangerous to human life.
2. *Poisonous insecticide or exterminator* shall mean and include any substance, not a fumigant, used for the destruction or control of insects, fungi, vermin, rodents or other pests and which may be destructive to human life in quantities of sixty (60) grains or less.

(§ 1, Art. XI, eff. 9-1-1959; renumbered as § 1, Art. XIII, eff. 9-1-1971)

Sec. 873.1111. Pollution of atmosphere.

(§ 2, Art. XI, eff. 9-1-1959; repealed 2-25-1971 and 6-3-1971, eff. 9-1-1971)

Sec. 873.1120. Public function; permit.

No person shall operate a public function, as defined in Part 18 of Chapter I of the New York State Sanitary Code, without first obtaining a valid permit issued by the department to operate such facility.

(Added 12-20-1990, eff. 1-1-1991)

Sec. 873.1121. Cleanliness of public toilets.

Every person who shall provide a toilet for the use of employees, patrons or members or available to the public shall maintain such toilet at all times in a clean, well lighted, ventilated and sanitary condition. An adequate supply of clean toilet paper shall be provided at all times. The floor of any such toilet under and adjacent to a urinal fixture shall be impervious to moisture and properly drained. No drinking cup, towel, hair brush or comb shall be provided for common use in any such toilet or in a washroom, rest room or locker room adjacent thereto. The owner of a building or dwelling, or his agent in charge thereof, wherein two or more tenants shall have common use of a toilet or privy, shall be responsible for the maintenance of such toilet or privy in repair and in a clean and sanitary condition.

(§ 3, Art. XI, eff. 9-1-1959; renumbered as § 3, Art. XIII, eff. 9-1-1971)

Sec. 873.1131. Fumigants and insecticides.

1. *Poisonous insecticides and exterminators.* The handling, storage or use of any poisonous insecticide or exterminator in any place where food or drink is served, sold, processed, kept or offered for sale is prohibited unless the container is labeled as required by the State Sanitary Code and is kept readily available upon the premises until the insecticide or exterminator has been completely removed, or unless a clearly legible sign bearing information identical to the information required on the label of the container is posted conspicuously in every room where such insecticide or exterminator is in use.
2. *Sodium fluoroacetate (1080).* No person shall possess, distribute, sell or offer for sale or deliver or transport other than in interstate traffic, sodium fluoroacetate, also known as Compound 1080, or any solution or preparation made therefrom, unless he shall have first obtained a special permit therefor from the commissioner.
3. *Cyanogen gas.* No person shall use any fumigant emitting or capable of emitting cyanogen gas within any building or structure, other than in an unoccupied commercial or business establishment which is completely isolated and separated from any occupied structure, unless he shall have first obtained a special permit therefor from the commissioner and provided that the use of the fumigant is otherwise undertaken in accordance with rules and regulations adopted pursuant to this code.
4. *Special permits.* A separate application shall be made and a separate permit shall be required for each use of sodium fluoroacetate or cyanogen gas. Such permit shall be issued only to a particular individual, for a specified use or purpose, and for such use or purpose only on a specified date and under such conditions as may be stated thereon. Such permit shall be valid only for the specified individual, use or purpose and date. The issuance of such permits shall be at the discretion of the commissioner, who shall give due consideration to the qualifications and fitness of the applicant, the need for the use of the specified material and the conditions under which such material is proposed to be used,

possessed, delivered or transported. The commissioner may make and promulgate such rules and regulations relating to the use of sodium fluoroacetate or cyanogen gas as he may consider necessary to protect public health and to enforce the provisions of this code.

(§ 4, Art. XI, eff. 9-1-1959; renumbered as § 4, Art. XIII, eff. 9-1-1971)

Sec. 873.1141. Wading pools.

No wading pool shall be constructed or made available for public use unless it shall be provided with suitable facilities for replacement of water and for cleaning. Every such wading pool shall be maintained in a clean and sanitary condition and the water used therein shall be from a public water supply or from a source approved by the Department of Health.

(§ 5, Art. XI, eff. 9-1-1959; renumbered as § 5, Art. XIII, eff. 9-1-1971)

Sec. 873.1151. Public exhibitions prohibited except under permit.

No person shall set up or operate any transient circus or carnival or public exhibition unless a special permit therefor shall first have been obtained from the commissioner and unless such circus, carnival or exhibition shall, in the provision and maintenance of sanitary facilities and in the preparation, handling and sale of food and drink, conform fully to the provisions of the Sanitary Code.

(§ 6, Art XI, eff. 9-1-1959; renumbered as § 6, Art XIII, eff. 9-1-1971)

Sec. 873.1161. Unconstitutionality clause.

In the event any section, paragraph, sentence, clause or phrase of this Sanitary Code shall be declared unconstitutional or invalid for any reason, the remainder of said code shall not be affected thereby.

(§ 7, Art XI, eff. 9-1-1959; renumbered as § 7, Art XIII, eff. 9-1-1971)

Sec. 873.1171. Migrant labor camp; permits.

No person shall operate a migrant labor camp, as defined in Part 15 of Chapter I of the New York State Sanitary Code, without first obtaining a valid permit issued by the department to operate such facility.

(Added 12-20-1990, eff. 1-1-1991)

Sec. 873.1181. Temporary resident; permit.

No person shall operate a temporary residence, as defined in Part 7 of Chapter I of the New York State Sanitary Code, without first obtaining a valid permit issued by the department to operate such facility.

(Added 12-20-1990, eff. 1-1-1991)

Sec. 873.1191. Mobile home park; permit.

No person shall operate a mobile home park, as defined in Part 17 of the New York State Sanitary Code, without first obtaining a valid permit issued by the department to operate such facility.

(Added 12-20-1990, eff. 1-1-1991)

ARTICLE XII. BATHING FACILITIES

Sec. 873.1200. Swimming pools; permit.

No person shall operate a swimming pool, as defined in Part 6-1 of Chapter I of the New York State Sanitary Code, without first obtaining a valid permit issued by the department to operate such facility.

(Added 6-22-1989, eff. 6-22-1989; amended 3-19-1992, eff. 3-30-1992 17)

Sec. 873.1201. Bathing beaches; permit.

No person shall operate a bathing beach, as defined in Part 6-2 of Chapter I of the New York State Sanitary Code, without first obtaining a valid permit issued by the department to operate such facility.

(Added 6-22-1989, eff. 6-22-1989; amended 3-19-1992, eff. 3-30-1992)

Sec. 873.1202. Swimming pools; qualified swimming pool treatment operator.

All pools larger than 1,000 square feet in surface area or pools disinfected using gas chlorine shall be maintained by a qualified swimming pool treatment operator within one year of the effective date of this section. A "qualified swimming pool treatment operator" shall mean an individual possessing evidence of the successful completion of either of the following courses:

1. A New York State Department of Health Water Treatment Plant Operator Certification Course Type A or B; or
2. An adequate course of instruction regarding the safe and effective operation

and maintenance of pool treatment equipment.
(Added 6-22-1989, eff. 6-22-1989; amended 3-19-1992, eff. 3-30-1992)

Section 1. Section 873.1203 of the Westchester County Sanitary Code is hereby repealed.

Section 2. The Westchester County Board of Health hereby amends Westchester County's Sanitary Code to include a new Section 873.1203, which shall read as follows:

873.1203. Aquatic Supervision and Safety of Swimming Pools, Spa Pools, and Wading Pools

1. Life-saving equipment, pool supervision levels: all pools as defined in chapter 1, Subpart 6-1 of the New York State Sanitary Code, shall comply with the following regulations:

a. For all pools with a water depth less than five (5) feet and a surface area of 2,000 square feet or less, pool operators shall possess the following life-saving equipment and ensure it is readily accessible near the swimming pool deck and kept in good repair:

i. Two (2) U.S. Coast Guard-approved ring buoys, at least 18 inches in diameter, fitted with a quarter-inch diameter line of a length 1.5 times the maximum width of the pool or 50 feet, whichever is less;

ii. A reaching pole at least 15 feet long;

iii. A first aid kit, which may be a commercially prepared 24-unit kit or a supply of band-aids, bandage compresses, and self-adhering gauze bandages; and

iv. A pocket face mask or face shield with a one-way valve to assist with CPR.

b. For all pools with a water depth of five (5) feet or greater, a surface area greater than 2,000 square feet, or when any of the following are present; white water slides; wave pools or aquatic amusements; diving boards; flotation devices (other than those bearing a U.S. Coast Guard Type I – III Label); pool deck slides, except homeowners pools described in Section 6-1.2 of Subpart 6, pool operators shall possess the following life-saving equipment and ensure it is readily accessible near the swimming pool deck and kept in good repair:

i. One rescue tube with an attached line for each required lifeguard;

ii. A reaching pole at least 15 feet long;

iii. Full size commercially available spine board or a spine board six feet long and a minimum sixteen inches wide provided with straps to aid in immobilization of a victim and hand holds;

iv. A first aid kit, which may be a commercially prepared 24-unit kit or a supply of band-aids, bandage compresses, and self-adhering gauze bandages; and

v. A pocket face mask or face shield with a one-way valve to assist with CPR.

c. For all pools of any water depth, with a surface area greater than 2,000 square feet, that utilize supervision Level IIa or IIb aquatic supervisory staff, elevated lifeguard chairs shall be required. One elevated lifeguard chair is required for each 3,400 square feet of pool surface area or fraction thereof. The chairs shall be located so as to provide a clear, unobstructed view of the pool bottom in the pool area under surveillance and be in compliance with section 6-1.29, item 6.2, of this Subpart.

d. For all pools with a water depth less than five (5) feet and a surface area of 2,000 square feet or less, except homeowner pools described in Section 6-1.2 of Subpart 6 of the State Sanitary Code, pool operators shall provide pool-side supervision as follows:

i. A person 18 years of age or older who:

A. Possesses a current American Red Cross CPR/AED for the Professional Rescuer certification (or equivalent) with a certification period not exceeding one (1) year; and

B. Has been trained and is capable of using all required life-saving equipment specified in paragraph (a) of this section.

e. Pool operators must provide Supervision Level IIa or IIb as defined in Chapter 1, Part 6 of the State Sanitary Code, except homeowner pools described in Section 6-1.2 of Subpart 6, when any of the following conditions are present: water depth of five (5) feet or greater; pool surface area exceeding 2,000 square feet; white water slides; wave pools; aquatic amusements; use of diving boards; flotation devices (other than those bearing a U.S. Coast Guard Type I-III Label); pool deck slides; or pool use by children under 18 years of age for organized congregate activities such as, but not limited to, pool parties.

f. Pool operators shall ensure that all code-required aquatic supervisory staff are assigned to work directly at poolside, providing direct supervision of pool patrons.

2. Additional Aquatic Supervisory Staff: Additional aquatic supervisory staff, as defined in Chapter 1, Part 6 of the State Sanitary Code, may be required by the permit-issuing official when necessary for the protection of pool patrons. Factors include, but are not limit to:

a. Use by children under 18 years of age;

b. Congregate activities such as pool parties;

c. Pool shape;

d. Diving board use;

e. Patron decorum;

f. Patron alcohol consumption;

g. Bathing facilities primarily used by individuals with developmental disabilities;

h. Glare; and/or

i. Any other factors deemed important for patron safety by the Department.

3. Safety Protocols: All pools as defined in Chapter 1, Subpart 6-1 of the New York Sanitary Code, except homeowner pools described in Section 6-1.2, shall comply with the following safety protocols:

a. Pool operators shall ensure the following safety message is posted on a separate sign at all entrances to pool areas and within the pool area. Such signage shall be in red letters, not less than 4 inches high, not less than 1.5 inches wide with the following message:

ATTENTION ALL!
CHILDREN DROWN SILENTLY AND SWIFTLY.
PLEASE WATCH THEM IN AND AROUND THE WATER AT ALL TIMES.

b. Pool operators shall ensure that all children under 14 years of age are accompanied by a parent, legal guardian, or similar responsible adult while in the pool area.

c. Pool operators shall ensure a free, readily accessible telephone is provided within the pool area for calls to 911 in emergencies. Posted instructions shall be in letters and numbers no smaller than three (3) inches, in a color contrasting with the background.

4. Requirements for Pools at Temporary Residences and Campgrounds: Pools at regulated or unregulated Temporary Residences or Campgrounds, as defined in Chapter 1, Part 7 of the New York State Sanitary Code, shall comply with the following additional requirements:

a. Staff Training

i. All staff, including anyone associated with the pool's operation, for example, aquatic supervisory staff, front desk personnel, security, maintenance, hospitality staff, etc., must be trained to understand the facility's approved Swimming Pool Safety Plan;

ii. All new staff must be trained before assuming active roles in implementing the approved Swimming Pool Safety Plan;

iii. The Swimming Pool Safety Plan must be reviewed by all staff every two months during the pool's operational period;

iv. The training sessions must be documented with dates and signed by trainees. Records shall be retained for three (3) years;

v. Training documentation must be provided to the Department upon request.

b. Patron Safety Notice

i. Operators of all pools, covered in this subdivision (4), must provide a written safety notice to all patrons regarding pool use. This notice must include the following statements:

A. Constant visual supervision of children in a pool is essential for their safety and well-being;

B. Children under 14 years of age must be accompanied at all times by a parent, legal guardian or adult responsible for their safety and behavior;

C. In an emergency, call 911 immediately using the provided pool area phone;

D. Engage pool or facility staff for assistance;

E. At minimum, a CPR-certified employee will be on the pool deck during operating hours;

F. Pools are to be used only during operating hours for safety.

ii. The safety notice may be provided electronically. Pool operators must document delivery of the safety notice, including date, patron names, and room numbers, and retain these records for at least three (3) years. Notice must be made available to be reviewed by the Department upon request. Only patrons who have received the safety notice may use the pool(s).

Section 3. This amendment shall become effective immediately after its final adoption.

Sec. 873.1204. Swimming Pools and Bathing Beaches: Automatic External Defibrillators (AED) Required.

All operators of swimming pools, as defined in Chapter 1, Subpart 6-1 of the State Sanitary Code, and all operators of bathing beaches, as defined in Chapter 1, Subpart 6-2 of the State Sanitary Code, except homeowner swimming pools as defined in Section 6-1.2(o) of the State Sanitary Code, shall comply with the following:

1. Purchase, acquire, possess and operate an AED after entering into a collaborative agreement with an emergency health care provider.
2. Ensure the collaborative agreement is in writing and contains the following:
 - a. An implementation plan for establishing the location and maintenance of the AED for its emergency use;
 - b. Written assurance that the swimming pool/beach operator and/or PAD operator will file a copy of the collaborative agreement with the New York State Department of Health and notify the appropriate regional council of the AED's existence, location and type prior to operating the AED;
 - c. Develop protocols to maintain and test the AED according to the manufacturers' standards.
 - d. Ensure the emergency health care provider shall participate in the regional quality improvement program.

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3. Post a sign or notice at the main entrance to the facility and other pertinent locations in the environment indicating the location of the AED, and keep this sign or notice updated.
 4. Develop an implementation plan that describes the following:
 - a. How the AED is properly placed and secured within their facilities and within reasonable proximity of the pool and/or pools on premises, or the beach lifeguard's location where lifesaving equipment is safely kept;
 - b. How the operator of PAD provider is ensuring that there is at least one employee, volunteer, lifeguard or other qualified adult present at the facility or premises, who has successfully completed a training course within the preceding twenty-four months of the current pool/beach season.
 - c. How the swimming pool/beach operator will maintain the AED, maintain records and about the AED use, utilize an equipment checklist and execute a cardiac emergency protocol for when cardiac emergency incidents occur.

Section 873.1205. Swimming Pools and Bathing Beaches: Automatic External Defibrillators (AED): Medical Emergency Treatment.

1. This section shall not prohibit operation of an automated external defibrillator:
 - a. By a health care practitioner licensed or certified under title VIII of the New York State education law or a person certified under this article acting within his or her lawful scope of practice;
 - b. By a person acting pursuant to a lawful prescription; or
 - c. By a person who operates the automated external defibrillator other than as part of or incidental to his or her employment or regular duties. Any person who is acting voluntarily, in good faith and with reasonable care, and without expectation of monetary compensation, and renders aid or emergency treatment that includes operation of an automated external defibrillator under this section, shall not be liable for damages for injuries alleged to have been sustained by such person, as per the requirements of NY Public Health §3000-a, nor shall this section limit any Good Samaritan protections provided by section §3000-a of New York Public Health Law.
2. Any person or entity that purchases, operates or facilitates implementation or makes available resuscitation equipment that facilitates first aid by use of an AED pursuant to law or local law, or conducts training under NY Public Health Law §3000-c shall not be liable for damages arising either from the use of that equipment as per NY Public Health Law §3000-a.

Sec. 873.1220. Spray features.

1.0 Definitions. When used in the Code unless otherwise expressly stated, or unless the context or subject matter requires a different meaning, the following terms shall have the respective meanings hereinafter set forth or indicated.

- a) *Swimming pool* shall mean a structure, together with buildings and appurtenances used in connection therewith, intended for bathing, swimming or diving purposes, made of concrete, masonry, metal, or other impervious material, located either indoors or outdoors.
- b) *Wading pool* shall mean a swimming pool that contains water a maximum of two feet deep.
- c) *Spa pool* shall mean a swimming pool, primarily designed for therapeutic use or relaxation, which is normally not drained, cleaned or refilled for each individual. It may include, but is not limited to, hydrojet circulation, hot water, cold water, mineral bath, air induction, bubbles or any combination thereof. Spa pools are shallow in depth and are not designed for swimming or diving.
- d) *White-water slide* shall mean a swimming pool consisting of a starting platform, one or more flumes, and a plunge pool.
- e) *Wave pool* shall mean a swimming pool of special shape and design with water-wave-making machinery.
- f) *Special-purpose pool* shall mean a swimming pool of special design primarily for use by persons with physical disabilities.
- g) *Moveable-bottom pool* shall mean a swimming pool with a hydraulic lift arrangement for floor movement and a jet water self-cleaning system.
- h) *Pool feature* shall mean any apparatus, amusement, recreational or interactive equipment, device, etc. where pool water is sprayed, streamed, poured, falls or otherwise flows back into the pool. This definition shall not apply to spa pools, white-water slides, or run-out slides, and shall not apply to the pool's recirculation/filtration system.
- i) *Bathing* shall mean to become partially or totally immersed in water.
- j) *Adequate* shall mean sufficient to accomplish the purposes for which something is intended, and to such a degree that no unreasonable risk to health or safety is presented. An item installed, maintained, designed and assembled, an activity conducted or act performed, in accordance with generally accepted standards, principles or practices applicable to a particular trade, business, occupation or profession, is adequate within the meaning of this Subpart.

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- k) *Uniform Code* shall mean the New York State Uniform Fire Prevention and Building Code, 9 NYCRR Subtitle S, Chapter I.
 - l) *Recreational aquatic spray grounds*, also known as "spray grounds", are the buildings and appurtenances used in conjunction with a spray pad in which sprayed water is continually drained and collected in a treatment and recirculation system.
 - m) *Spray pad* shall mean the specific area consisting of the play surface, spray features, and drains, upon which the patrons stand and are sprayed with water.
 - n) *Run-Out Slide* shall mean a slide or flume used by patrons, together with equipment used in connection therewith, where there is no plunge pool and where water travels down the slide or flume and empties into a pump reservoir.
 - o) *Spray features* shall mean the devices and plumbing used to convey the treated water to the spray pad to spray the patrons.
 - p) *Spray pad treatment tank* shall mean the vessel used to collect the water that has been sprayed on the spray pad and returned through the spray pad drains.
 - q) *Foot shower* shall mean a shower head or similar water fixture for use in rinsing debris from patrons' feet.
 - r) *Spray pad treatment system* shall mean the equipment and processes used to filter, disinfect and circulate the water used for the spray pad and spray features.

2.0 Application.

- (a) The requirements of this Article shall apply to all swimming pools except:
 - (1) a swimming pool, or other bathing facility, owned and/or maintained by an individual for the use of his family and friends;
 - (2) spa pools used under medical supervision or associated with hospitals; and
 - (3) float tank or relaxation tank used for solitary body immersion in skin-temperature salt water.
- (b) The requirements of this Article shall apply to all spray grounds except:
 - (1) A facility owned and/or maintained by an individual for the use of his family and friends;
 - (2) A facility that uses water that complies with Part 5, Subpart 5-1 of the New York State Sanitary Code or equivalent standards that discharges to waste without impoundment or recirculation of the water.
- (c) The requirements of this Article shall apply to all Run-Out Slides except:
 - (1) A facility owned and/or maintained by an individual for the use of his family and friends;

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- (2) A facility that uses water that complies with Part 5, Subpart 5-1 of the New York State Sanitary Code or equivalent standards that discharges to waste without impoundment or recirculation of the water.

3.0 Approval of Plans.

- (a) No municipality, school district, person, group of persons, firm, corporation, association, organization or institution shall install or construct a swimming pool, spray ground or runout slide or make any addition or modification to any existing swimming pool, spray ground or run-out slide until plans and specifications shall have been submitted to and received the prior approval of the Commissioner or his representative. All plans shall be prepared by a person licensed and registered by the State of New York to practice engineering or architecture. The Commissioner or his representative may require, when granting this approval, such modifications or conditions as the public health or safety may require.
- (b) Chapter 1, Subpart 6-1 of the New York State Sanitary Code, shall be the basis upon which all plans and specifications for swimming pools shall be reviewed, approved and constructed unless otherwise expressed in this Article.
- (c) Chapter 1, Subpart 6-3 of the New York State Sanitary Code, shall be the basis upon which all plans and specifications for spray grounds shall be reviewed, approved and constructed unless otherwise expressed in this Article.

4.0 Construction Compliance Certification. The operator shall submit, prior to public use of new facilities or equipment certification of construction compliance and "As-Built" plans to the Commissioner or his representative. This certification and "As-Built" plans shall be prepared and signed by a professional engineer or architect licensed and registered to practice in New York State. The certification shall include a statement that the pool and the appurtenances have been constructed in accordance with approved plans and specifications.

5.0 Pool Feature Treatment. This section only applies to new pools approved for construction after the effective date of this Article, and only to preexisting pools where modifications to the recirculation/filtration system are approved for construction after the effective date of this Article.

1. Operation

- (a) Pools with pool features are required to have ultraviolet light disinfection in addition to an approved chemical disinfectant and shall be used as follows:
- i) Ultraviolet light shall be used to disinfect all filtered water returned to the pool.
- ii) Ultraviolet light disinfection systems shall have a properly calibrated light intensity meter, automatic system to divert water from or shut off water to the pool features, in the event the ultraviolet light intensity falls below the

validated setpoint, and an alarm to advise the attendant of a system malfunction;

- iii) The ultraviolet light units shall be cleaned in accordance with the manufacturer's recommendations;
 - iv) The ultraviolet light unit's lamp output shall be monitored and recorded at least two times daily. The ultraviolet light lamp(s) shall be replaced when the output intensity decreases below the setpoint intensity due to lamp failure. Other conditions causing decreased ultraviolet light intensity at the sensor shall be diagnosed and remedied.
 - v) An operation log shall be maintained at the facility and entries shall be made for dates and type of maintenance and repair, including cleaning, lamp replacement, etc;
 - vi) Ultraviolet light lamp(s) shall be replaced in accordance with manufacturer's recommendations.
- (b) Turbidity. The turbidity measured in the water supplied to the ultraviolet light reactor shall not exceed 3 nephelometric turbidity units (NTU) at any time during use. If this turbidity level is exceeded;
- the water shall be diverted from or shutoff to the pool features until the value of the turbidity is reduced to less than 3 NTU,
 - and a record of the turbidity level exceedance, duration thereof, and corrective actions taken as a result shall be maintained by the pool operator and owner.

2. Design.

- (a) Pools with pool features shall include ultraviolet light disinfection systems. All filtered water returned to the pool shall be treated with ultraviolet light. The ultraviolet light validated setpoint dosage shall be equivalent to 40mJ/cm² or greater at the end of lamp life.
- i) All ultraviolet light units must meet testing laboratory standards established for spray ground disinfection in Chapter 1, Subpart 6-3 of the New York State Sanitary Code.
 - ii) For systems utilizing quartz sleeves to separate the water passing through the chamber from the ultraviolet light source, the system shall be designed to permit cleaning of the lamp jackets and the sensor window or lens without mechanical disassembly. For systems utilizing polytetrafluoroethylene (PTFE) surface materials to separate the water that flows through the ultraviolet light chamber from the lamps, the unit shall be designed to be readily accessible to the interior and exterior of the PTFE.

The unit shall be designed to permit use of either physical or chemical cleaning methods.

- iii) An accurately calibrated ultraviolet light intensity meter, properly filtered to restrict its sensitivity to the disinfection spectrum shall be installed in the wall of the disinfection chamber at the point of greatest water depth from the tube or tubes.
- iv) An automatic system shall be installed to prevent flow to the pool features in the event the ultraviolet light intensity falls below the validated setpoint or in the event the turbidity measured in the water line to the ultraviolet light unit exceeds 3 NTU.
- v) An automatic, audible alarm shall be installed to warn of malfunction or impending shutdown.
- vi) The unit shall be designed to protect the operator against electrical shock or excessive radiation.
- vii) Installation of the unit shall be in a protected enclosure not subject to extremes of temperature.
- viii) A spare ultraviolet lamp and other necessary equipment to effect prompt repair by qualified personnel properly instructed in the operation and maintenance of the equipment shall be provided on site.
- ix) The ultraviolet light unit shall be located on the filtered water return line of the pool recirculation system.
- x) A turbidity meter shall be installed in the water line to the ultraviolet light unit.

6.0 Pool Feature Posting. Where a pool with pool features is not equipped with ultraviolet light disinfection in addition to an approved chemical disinfectant, a sign shall be conspicuously posted at the enclosure/entrance to the pool stating:

Please do not drink water from the spray or other pool features, as they use re-circulated water not subject to additional disinfection.

7.0 Other Design Requirements. Pools and run-out slides approved for construction prior to the effective date of this Article are exempt from this Section.

- a) Pools with pool features shall provide for a minimum recirculation rate in gallons per minute for filtration/ultraviolet light treatment of the entire volume of pool water in accordance with one of the following formulas, whichever is greater:

$$Q = \frac{14.8 - \ln(V)V}{12 \times 60}$$

or

$$Q = \frac{V}{T \times 60}$$

where:

Q is the minimum recirculation rate in gallons per minute through the filtration/ultraviolet light treatment system.

V is the pool volume in gallons.

The term $\ln(V)$ is the natural log of the volume.

T is the minimum required turnover time in hours of the entire volume of pool water in accordance with Subpart 6-1, Section 6-1.29(9.0) of the New York State Sanitary Code.

- b) Water supplied to pool features and whitewater slides shall be from the pool's main drain system, or from another pool floor or lower wall drain, before combining with water from pool gutters or skimmers.
- c) Every pool, spray ground, and run-out slide shall be provided with its own individual recirculation/filtration system. Blending or combining water from any pool, spray ground or run-out slide with another pool, spray ground or run-out slide shall not be permitted.
- d) Recirculation system piping design shall not include pipe downsizing to ensure that design flow rates are not exceeded in any piping under all conditions of flow.
- e) Run-Out Slide design shall be consistent with applicable swimming pool design requirements of Subpart 6-1, Section 6-1.29 of the New York State Sanitary Code, and shall conform with the following:
 - i) A pump reservoir shall be provided for run-out slide pump intakes. The minimum reservoir volume shall be equal to twice the combined flow rate in gallons per minute of all filters and slide pumps.
 - ii) Run-Out Slides shall be provided with a recirculation/filtration system and chemical treatment facilities.
 - iii) The recirculation/filtration system of runout slides shall recirculate and filter the entire volume of water in a period of one hour or less.
 - iv) Recirculation system piping for run-out slides shall be arranged to ensure that all filtered water is returned to the slide pump intakes.

(Added 5-17-2007)

Article XIII. Air Quality

Sec. 873.1301. Air quality; definitions.

Whenever used in this article, unless otherwise expressly stated or unless the context or subject matter requires a different meaning, the following terms shall have the respective meanings hereinafter set forth or indicated:

1. *Aerosol*. The term "aerosol" means a gaseous system containing disperse particulates.
2. *Air contaminant*. The term "air contaminant" means a dust, fume, gas, mist, odor, smoke, vapor, pollen or any combination thereof.
3. *Air contamination*. The term "air contamination" means the presence in the outdoor atmosphere of one (1) or more air contaminants which contribute or which are likely to contribute to a condition of air pollution.
4. *Air contamination source*. The term "air contamination source" means any apparatus, equipment, contrivance or machine capable of causing emission of any contaminant to the outdoor atmosphere either directly or indirectly or through an exhaust system, control equipment or stack; provided, however, that when more than one (1) apparatus, piece of equipment, contrivance or machine is connected to a single exhaust system, control equipment, stack or emission point, each such apparatus, piece of equipment, contrivance or machine shall be considered to be a separate air contamination source.
5. *Air pollution*. The term "air pollution" means the presence in the outdoor atmosphere of one or more air contaminants in quantities, of characteristics and of a duration which are or may be injurious to human, plant or animal life or to property or which unreasonable interferes with the comfortable enjoyment of life and property throughout the county or throughout such areas of the county as shall be affected thereby.
6. *Air pollution episode*. The term "air pollution episode" means an accident, occurrence, condition, weather conditions and/or concentration of an air contaminant or contaminants so that the immediate action is necessary to prevent further increases in air contamination or damage to life, property or environmental quality.
7. *Air quality area classifications*. The term "air quality area classifications" means air quality area classifications as set forth in Part 256 of Subchapter A of Chapter III of Title 6 of the Official Compilation of Codes, Rules and Regulations of the State of New York (NYCRR).
8. *Ambient air quality standards*. The term "ambient air quality standards" means the ambient air quality standards required to be met under and pursuant to the provisions of Part 257, Subchapter A of Chapter III of Title 6 of the Official Compilation of Codes, Rules and Regulations of the State of New York (NYCRR).

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9. *Combustion installation.* The term "combustion installation" means a plant, equipment or device in which fuel is burned for the primary purpose of generating heat, steam or hot water.
 10. *Combustion products.* The term "combustion products" means particulate and gaseous contaminants created by the burning of any kind of fuel.
 11. *Control equipment.* The term "control equipment" means a device which is used to reduce the quantity or change the physical or chemical characteristics of the emission of air contaminants from any air sources.
 12. *Designated zone.* The term "designated zone" means a zone after the furnace outlet of an incinerator in which the emissions from the furnace outlet are subjected to a temperature of not less than one thousand four hundred (1,400) F. for a period of time designated by the commissioner.
 13. *Dry-cleaning facility.* The term "dry-cleaning facility" means any facility engaged in the cleaning of fabrics in an essentially nonaqueous solvent by means of one (1) or more washes in a solvent, extraction of excess solvent by spinning and drying by tumbling in an airstream. The facility includes but is not limited to any washer, dryer, filter and purification systems, waste disposal systems, holding tanks, pumps and attendant piping and valves.
 14. *Emission point.* The term "emission point" means any point at which air contaminants enter the outer atmosphere from an air contamination source.
 15. *Exhaust and ventilation system.* The term "exhaust and ventilation system" means any process which removes and transports any air contaminant products from their point of generation to the outer atmosphere.
 16. *Fly ash.* The term "fly ash" means visible solid particulate matter emitted from an air contamination source to the outer atmosphere.
 17. *Fuel.* The term "fuel" means solid, liquid or gaseous combustible materials.
 18. *Fuel-burning equipment.* The term "fuel-burning equipment" means any furnace, steam, hot-air or hot-water generating equipment or any other device, exclusive of process equipment in which the fuel is burned.
 19. *Fuel oil.* The term "fuel oil" means any virgin distillate oil, virgin residual oil, re-refined oil or any blend of the aforementioned meeting the latest specifications of the American Society of Testing Materials (ASTM) D396.
 20. *Furnace outlet.* The term "furnace outlet" means the end point at which the air contaminants exit from the primary chamber in a single chamber incinerator and the secondary chamber in a multiple-chamber incinerator.
 21. *Garbage.* The term "garbage" means animal and vegetable waste resulting from the handling, preparation, cooking and serving food.

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22. *Incinerator*. The term "incinerator" means any structure or furnace in which combustion takes place, the primary purpose of which is the reduction in volume and weight of unwanted materials, classified only as Type 0, 1, 2, 3 or 4 refuse, is used as a fuel alone or in conjunction with other fuel.
 23. *Opacity*. The term "opacity" means the degree to which emissions other than condensed water reduce the transmission of light and obscure the view of an object in the background.
 24. *Open fire*. The term "open fire" means any outdoor fire or outdoor smoke producing process from which air contaminants are emitted directly into the outer atmosphere.
 25. *Outer atmosphere*. The term "outer atmosphere" means all space outside of buildings, structures, stacks or exterior ducts.
 26. *Particulates*. The term "particulates" means any air-or gas-borne material, except water, which exists as a liquid or solid. The determination of the quantity of particulates present in a stack shall be determined in accordance with emission testing methods acceptable to the commissioner.
 27. *Person*. Except for any federal or state agencies, the term "person" means any individual, firm, public or private corporation, association, partnership, institution, political subdivision, government agency, public body, joint-stock association, trust, estate or other group of individuals or combination of the foregoing or any other legal entity whatsoever, and includes the plural as well as the singular.
 28. *Process*. The term "process" means any industrial, commercial, agricultural or other activity, operation, manufacturer or treatment (except incineration of Type 0, 1, 2, 3 and 4 waste, open burning and operation of combustion installations) in which chemical, biological and/or physical properties of the material or materials are changed and which emits air contaminants to the outer atmosphere.
 29. *Process weight*. The term "process weight" means the total weight of all materials introduced into any specific process which may cause any discharge into the outer atmosphere and shall include solid fuels used in the process, but shall not include liquid and gaseous fuels, uncombined water and combustion air.
 30. *Process weight per hour*. The term "process weight per hour" means the total process weight divided by the number of hours in one complete operation of the process from the beginning of a cycle to the completion thereof and, for any continuing processes, shall be determined on a daily basis.
 31. *Re-refined oil*. The term "re-refined oil" means any waste oil from which physical and chemical contaminants have been removed so that it is equivalent to virgin distillate or virgin residual oil.

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32. *Refuse*. The term "refuse" means all waste material, including but not be limited to offensive material, garbage, rubbish, incinerator residue, street cleaning, dead animals, offal and Types 0, 1, 2, 3, 4, 5 and 6 wastes.
 33. *Refuse disposal area*. The term "refuse disposal area" means land used for depositing of refuse except that it shall not include land used from depositing of refuse from a single family, a member of which is the owner, occupant or lessee of said land, or any part of a farm on which only animal wastes resulting from the operation of such farm are deposited, and includes, but is not limited to, those areas commonly referred to as landfills, sanitary landfills and dumps.
 34. *Residence time*. The term "residence time" means the length of time in which the product of combustion reaches the desired temperature and is maintained at that temperature.
 35. *Rubbish*. The term "rubbish" means solid or liquid waste material, including but not limited to paper and paper products, rags, trees, or leaves, needles and branches therefrom, vines, lawn and garden debris, furniture, cans, crockery, plastics, cartons, chemicals, paint, greases, sludges, oils and other petroleum product, wood, sawdust, demolition materials, tires, and automobiles and other vehicles and parts, for junk, salvage or disposal.
 36. *Smoke*. The term "smoke" means an air contaminant consisting of small gas-borne particles emitted by source of air contamination.
 37. *Source sample*. The term "source sample" means a sample of the emission from an air contamination source, collected for analysis from within a stack.
 38. *Stack*. The term "stack" means any conduit, chimney, duct, vent, flue or opening of any kind arranged to conduct any air contaminant to the outer atmosphere.
 39. *Type 0 waste*. The term "Type 0 waste" means rubbish consisting of highly combustible materials such as paper, wood and cardboard, including up to ten percent treated papers, rags, plastic or rubber from commercial and industrial sources of the following characteristics approximately one hundred (100) percent rubbish by weight; ten (10) percent moisture by weight; five (5) percent incombustible solids by weight and a heat value of eight thousand five hundred (8,500) BTU per pound of refuse.
 40. *Type 1 waste*. The term "Type 1 waste" means some garbage but primarily rubbish consisting of combustible material such as paper, cardboard, wood, combustible floor sweepings from residential, commercial and industrial sources of the following characteristics: approximately eighty (80) percent rubbish, twenty (20) percent garbage; twenty-five (25) percent moisture by weight; ten (10) percent incombustible solids by weight; six thousand five hundred (6,500) BTU per pound of refuse.

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41. *Type 2 waste.* The term "Type 2 waste" means rubbish and garbage from residential sources of the following characteristics: approximately fifty (50) percent rubbish, fifty (50) percent garbage; fifty (50) percent moisture by weight; seven (7) percent incombustible solids by weight and four thousand three hundred (4,300) BTU per pound of refuse.
42. *Type 3 waste.* The term "Type 3 waste" means some rubbish, but primarily garbage consisting of animal and vegetable matter from restaurants, hotels, markets, institutional and commercial sources of the following characteristics: approximately sixty-five (65) percent garbage, thirty-five (35) percent rubbish; seventy (70) percent moisture by weight; five (5) percent incombustible solids by weight and two thousand five hundred (2,500) BTU per pound of refuse.
43. *Type 4 waste.* The term "Type 4 waste" means human and animal solid refuse consisting of carcasses and organs from hospitals, laboratories, abattoirs, animal pounds and similar sources of the following characteristics: approximately one hundred (100) percent animal and human tissue by weight; eighty-five (85) percent moisture by weight; five (5) percent incombustible solids by weight and one thousand (1,000) BTU per pound of refuse.
44. *Type 5 waste.* The term "Type 5 waste" means gaseous, liquid or semiliquid refuse from processes such as tar, paint, solvents and chemical sludge of the following characteristics: approximately variable by weight; dependent on predominant components moisture by weight; variable incombustible solids by weight and variable BTU per pound of refuse.
45. *Type 6 waste.* The term "Type 6 waste" means solid or semi-refuse from processes such as rubber, plastics, wood and sewage sludge of the following characteristics: approximately variable by weight; dependent on predominant components by weight; variable moisture by weight; variable incombustible solids by weight; and variable BTU per pound of refuse.
46. *Trained observer.* The term "trained observer" means any person who holds certification in training to observe opacity from the Department of Environmental Conservation of the State of New York or any similar course acceptable to the commissioner.
47. *USEPA Method Nine.* The term "USEPA Method Nine" means the method for visual determination of the opacity of emissions as approved and promulgated by the United States Environmental Protection Agency as published in the Federal Register, Volume 39, Number 219, November 12, 1974, and any revisions thereto.
48. *Waste oil.* The term "waste oil" means any oil or mixture of oil that does not constitute fuel oil as defined in this section.

(Added 5-28-1987, eff. 5-28-1987;; amended 3-18-1993, eff. 3-18-1993)

Sec. 873.1302. Air quality; general provisions.

1. No person shall permit or cause any air contamination source to produce air pollution.
2. Any person responsible for a new, existing or modified source of air pollution shall provide pertinent data concerning emissions, equipment and operations.
3. Any person who shall refuse to comply with any provision of this article or who hinders, obstructs, delays, resists, prevents or in any way interferes or attempts to interfere with the commissioner or his representative in the performance of his duties or assists any other person in such conduct or who refuses to permit such personnel, after identification, to perform his duties by refusing him entrance to any premises in which the provisions of the code are being, have been or are suspected of being violated or refuses to permit the inspection or examination of such premises for compliance with and enforcement of the code shall be liable for such penalty as prescribed by law and the provisions of the code.
4. All persons owning, operating, in charge of or in control of any equipment who shall cause, permit or participate in any violation of the code shall be liable for such penalty as prescribed by law and the provisions of the code.
5. Any person violating any of the provisions of this article or who knowingly makes any false statement or false report in connection therewith shall be liable for such penalty as prescribed by law and the provisions of the code.
6. Any information relating to secret processes, methods of manufacture or production submitted in connection with reports, plans and specifications or testing shall be considered as privileged communications and shall not be released or made public without the express permission of the applicant except as prescribed by law.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1303. Air quality; new sources; plans; approval.

1. No person shall undertake to construct a new air contamination source, exhaust and ventilation system, stack or control equipment or make modifications to an existing air contamination source, exhaust and ventilation system, stack or control equipment without first submitting to the commissioner an application, plans and specifications and any other information as may be required by the department and without obtaining prior written approval therefor, except as hereinafter provided.
2. Reports, plans and specifications for construction of an air contamination source, exhaust and ventilation system, stack or control equipment or modifications to an existing air contamination source, exhaust and ventilation system, stack or control equipment shall be submitted in accordance with the standards, guides, rules and regulations duly promulgated by the commissioner.

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3. The department may require a physical and chemical analysis or test of any emission before any approval, the expense of which analysis or test shall be borne by the applicant.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1304. Air quality; action on applications.

1. The department shall acknowledge receipt of each application, reports, plans and specifications to construct an air contamination source, exhaust and ventilation system, stack or control equipment or to make modifications to an existing air contamination source, exhaust and ventilation system, stack or control equipment.
2. An approval of an application to construct an air contamination source, exhaust and ventilation system, stack or control equipment or to make modifications to an existing air contamination source, exhaust and ventilation system, stack or control equipment shall be granted only when in conformance with the requirements of the code, rules, regulations and standards of the commissioner, the department, the Department of Environmental Conservation of the State of New York and the Environmental Protection Agency of the United States.
3. If an application to construct an air contamination source, exhaust and ventilation system, stack or control equipment or to make modifications to an existing air contamination source, exhaust and ventilation system, stack or control equipment be denied, the applicant shall be notified in writing to that effect and the reasons therefor.
4. Denial of an application shall be without prejudice to the applicant's filing an amended application or to request a hearing therefor.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1305. Air quality; new sources; modifications; approval to construct; nontransferable.

Approval to construct an air contamination source, exhaust and ventilation system, stack or control equipment or to make modifications to any existing air contamination source, exhaust and ventilation system, stack or control equipment shall not be transferable from one approved location to another or from one piece of equipment to another or from one person to another.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1306. Air quality; new and existing sources; modifications; certificate to operate; nontransferable; filing.

1. No person shall operate an air contamination source without first obtaining a valid certificate issued by the department to operate such source.
2. Application.
 - a. Application for a certificate to operate an air contamination source or modification to an existing air contamination source shall be made in writing to the department and shall be accompanied by a written statement from a professional engineer, licensed and registered to practice in the State of New York, certifying that the new air contamination source or modification to an existing air contamination source has been constructed in accordance with the approved permit to construct, plans and specifications.
 - b. Such application shall be made within 30 days of the date of completion of the air contamination source on forms provided by the department and in accordance with the permit to construct.
3. Issuance of certificate; renewal.
 - a. A certificate to operate an air contamination source shall be issued for a period of time in accordance with the Commissioner's Rules and Regulations¹¹.
 - b. Application for a renewal certificate to operate an air contamination source shall be filed with the department within 60 days prior to the expiration of the existing certificate and shall be made on forms provided by the department.
4. A certificate to operate an air contamination source shall not be transferable from one approved location to another or from one air contamination source to another or from one person to another.
5. A certificate to operate an air contamination source, or a copy thereof, shall be permanently retained on the certified premises.
6. No person shall maintain, cause or allow to be operated a stationary combustion installation with a rated capacity of 1,000,000 Btu's per hour or more, using number two oil as fuel without a certificate to operate issued by the department.

(Added 5-28-1987, eff. 5-28-1987; L.L. No. 5-2016, § 1)

¹¹**Editor's Note:** See Rules and Regulations of the Commissioner Policy No. AQ 1-87, effective 5-28-1987, which is on file in the office of the Commissioner of Health.

Sec. 873.1307. Air quality; new sources; modifications; safeguarding information.

1. Information pertaining to manufacture, production or secret processes submitted in connection with an application, report, plans and specifications to construct an air contamination source, control equipment, exhaust and ventilation system or stack, or to make modification to an existing air contamination source, control equipment, exhaust and ventilation system or stack, and designated as secret or proprietary information shall be kept confidential by the department, except that it may be produced at an administrative hearing, a court of competent jurisdiction or pursuant to any applicable provisions of law; provided, however, that the quantity, physical and chemical characteristics of actual and allowable air contaminant emissions shall be considered to be public information.
2. The provisions of this section shall also apply to alteration, reconstruction and extension of systems.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1308. Air quality; exemptions; relocations; minor alterations.

1. Whenever it is considered by the department that a new installation or modification to an existing installation is not likely to increase the amount or change the effects or characteristics of air contaminants discharged, such installation or modification may be exempted from the provisions of section 873.1303 of this code.
2. Reports, plans and specifications for relocations of a previously approved air contamination source within the same premises or minor alterations of such air contamination source need not be submitted for approval; provided, however, that the department shall be in advance thereof notified in writing by the owner or his duly authorized representative of each relocation or minor alteration.
3. A relocation or minor alteration of an air contamination source shall be one which does not change significantly the amount, character or effect of emissions.
4. Determination as to whether a relocation or minor alteration of an air contamination source is exempt from the filing of reports, plans and specifications shall be made by the department.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1309. Air quality; testing of installations.

1. Notification.
 - a. The owner of an installation for which a permit to construct an air contamination source has been issued by the department shall notify the department in writing of its

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- completion, and such notification must occur prior to the expiration of the permit to construct.
- b. The owner of an installation shall notify the department at least 30 days prior to the test date of the time and place of any tests to be performed on the installation as required by the department and in accordance with the approved report, plans and specifications for the installation, which date shall be scheduled and acceptable to the department.
 - c. If tests, including stack tests, are required in accordance with the permit to construct, the owner shall specify in writing by whom they are to be conducted.
2. Conduct of tests; costs.
- a. A representative of the department shall be present and witness the test or tests to be conducted on the installation.
 - b. Tests shall be made and conducted in a manner acceptable to the department, and the results of such tests shall be submitted to the department.
 - c. The costs of tests shall be borne by the owner of the installation.
3. Samples.
- a. When additional tests are found necessary by the department in order for it to make a determination of contaminant emissions, sampling holes and pertinent allied facilities, as needed, shall be requested in writing to the owner by the department and shall then be provided by the owner, at his expense and at such location as the department may require.
 - b. In such instances, the owner shall provide a suitable power source to the point of testing so that sampling instruments can be operated as required.
 - c. Analytical results of samples collected by the department shall be furnished to the owner of the installation.
4. Nothing herein concerning tests conducted by and paid for by the owner shall be deemed as a waiver of the department's right to conduct separate or additional tests of an installation which shall be conducted at a mutually agreeable time and at the expense of the department.
5. Sampling and analytical determinations to ascertain compliance with this section shall be made in accordance with methods and procedures acceptable to the department.
6. A person who owns, operates or controls an air contamination source shall submit a test report to the department within 60 days after completion of the test.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1310. Air quality; control equipment.

1. Control equipment shall be selected so as to afford the highest efficiency or the lowest discharge rate that is reasonable and practicable.
2. Reasonableness and practicability shall take into account cost, the air contaminant concentration in the emission gas stream, particle characteristics and other properties of the contaminant and of the emission gas stream.
3. All devices used to effect compliance shall be installed, easily accessible, readable and maintained and operated in a satisfactory manner and in accordance with the provisions of this code and existing laws.
4. Collection of air contaminants.
 - a. Collected air contaminants shall be removed and disposed of in conformity with this code and existing laws and at such intervals as may be necessary to maintain the equipment at the required operating efficiency.
 - b. Collection and disposal of air contaminants shall be performed in a manner so as not to reintroduce contaminants to the outer atmosphere or otherwise create a public health hazard or nuisance.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1311. Air quality; emissions from processes and exhaust and ventilation systems.

1. No person shall cause, permit or allow the emission of air contaminants from an emission source resulting from an operation which exceeds the permissible emission rates or standards certified for that emission source by the Department of Environmental Conservation of the State of New York¹² or other applicable provisions of law.
2. No person shall cause or permit the emissions from a process and exhaust and ventilation systems to be equal to or greater than 20 percent opacity as determined by a trained certified observer using USEPA Method Nine.
3. An air contamination source shall not be operated other than in accordance with its design.

(Added 5-28-1987, eff. 5-28-1987)

¹²**20. Editor's Note:** See Rules and Regulations of the Commissioner Policy No. AQ 3-87, effective 5-28-1987, which is on file in the office of the Commissioner of Health.

Sec. 873.1312. Air quality; general prohibitions.

1. No person shall operate or maintain any air contamination source so as to cause, suffer or allow air contaminants to escape or be discharged into the atmosphere in quantities that may possibly endanger the public health, safety or welfare.
2. No person shall cause or allow any air contamination source to emit any air contaminant having an opacity equal to or greater than 20 percent opacity, except where otherwise provided by the code, at open fires for which a restricted burning permit has been issued by the department.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1313. Air quality; open fires; prohibitions.

1. Except as permitted by section 873.1314, no person shall burn, cause, suffer, allow or permit the burning of an open fire.
2. No person shall burn, cause, suffer, allow or permit the burning in an open fire of refuse during an air pollution episode in an area for which such air pollution has been designated.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1314. Air quality; open fires; restricted burning.

1. Except where prohibited by law, burning in an open fire may be permitted as follows:
 - a. Burning of land clearing or demolition material, or both, consisting of wood, trees, tree trimmings with attached leaves or brush, generated by land clearing or demolition for the erection of any structure; for the construction or modification of any highway, railroad, pipeline or power or communication line; or for the development or modification of a recreational area or park, provided that substantial proof is submitted to the department showing that no alternative means of disposal of such materials acceptable to the department is available and that all available means to minimize open burning will be employed and that such burning will be done on-site and in accordance with a permit issued by the department after written application therefor;
 - b. Burning of solid or liquid fuels or structures at any designated fire training site when under the direct control and supervision of qualified instructors for the instruction and training of firemen, provided that such burning is done in accordance with a permit issued by the department after written application therefor;
 - c. Any burning otherwise permitted by law; provided, however, that burning in open fires may not be permitted in any area wherein buildings are so located or arranged that the open fire will constitute a health, fire or safety hazard or public nuisance.

2. Permits.

- a. An application for a permit required by this section shall include the reasons why such burning should be permitted and such other information as may be required by the department to ensure that such burning will be unlikely to result in contravention of air quality standards.
- b. Any permit which may be issued shall be for a specified period of time and shall contain such conditions as are deemed necessary to minimize air pollution and prevent contravention of air quality standards.
- c. Any permit issued for restricted burning may be revoked by the department if there is a failure to comply with its conditions, a violation of law in connection with the burning or the occurrence or likely occurrence of either air pollution or contravention of air quality standards as a result of the burning.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1315. Air quality; combustion installations; fuel-burning equipment; smoke; limitations.

No person shall operate a combustion installation or fuel-burning equipment so as to produce, emit or permit the escape of smoke, regardless of how produced or discharged, having an opacity equal to or greater than 20 percent, for any time period, as determined by a trained certified observer using USEPA Method Nine, except:

1. That the production, emission or permitting the escape of smoke during startup or emergencies in excess of those permitted by this section shall not be considered as noncompliance with this section if the source owner can demonstrate to the satisfaction of the department that such excessive emissions were not preventable; or
2. As otherwise provided for by the provisions of the Public Health Law, the Environmental Conservation Law, or rules and regulations promulgated pursuant thereto, or any other applicable provision of the code.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1316. Air quality; combustion installations; fuel-burning equipment; smoke; emission abatement.

1. Any fuel-burning equipment with an input heat capacity equal to or greater than 1,000,000 Btu's per hour which has repeatedly on more than one occasion emitted smoke exceeding permissible smoke opacity limits, as determined by the department, shall be equipped with an acceptable opacity monitor which will automatically cause an audible alarm device and a visible flashing red light to be activated when smoke of an opacity equal to or greater than 20 percent is produced by the combustion installation or fuel-burning

equipment; provided, however, that the opacity monitor shall have the following characteristics:

- a. The alarm device shall be sufficiently loud so as to be heard by a person of normal hearing at a distance of 20 feet from the signal;
- b. The alarm device and the flashing red light shall continue to operate until manually reset;
- c. The alarm device and flashing red light shall be located at the principal work location of the person responsible for the operation of the equipment;
- d. If an opacity monitor fails to operate properly, the monitor shall automatically cause an alarm device sufficiently loud to be heard by a person of normal hearing 20 feet from the alarm and a readily visible flashing red light to be activated which shall continue until manually reset; and
- e. The opacity monitor and alarm device shall be maintained in good operating order, regularly inspected, cleaned and shall be promptly repaired, altered or replaced when necessary.
- f. A record shall be kept in which the date and time the alarm device activated, and the department shall be notified within 24 hours of such activation.

2. The department may require:

- a. The installation of control equipment, devices to control or devices to record emissions from any combustion installation or fuel-burning equipment with a rated input heat capacity equal to or greater than 1,000,000 Btu's per hour which causes or is maintained or operated so as to cause noncompliance with the code;
- b. A change in the manner of operation of any combustion installation or fuel-burning equipment or control equipment which is operated so as to result in noncompliance with the code;
- c. The cleaning, repair, replacement or alteration of any combustion installation, fuel-burning equipment or control equipment which causes or is maintained or is operated as to result in noncompliance with the code.

3. Sealing.

- a. The commissioner may order the discontinuance of use and may seal any combustion installation or fuel-burning equipment which does not comply with the provisions of the code.
- b. The seal may be removed from the equipment only upon written notice from the commissioner or his representative stating that the equipment has been corrected to the satisfaction of the commissioner and that it may be restored to use or operation.

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4. No person shall use or permit the use of any combustion installation or fuel-burning equipment with a rated heat input capacity equal to or greater than 1,000,000 Btu's per hour for a purpose or in a manner which causes it to function improperly or other than in accordance with its design.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1317. Air quality; emissions from diesel engines; and motor vehicle engines; limitations.

1. As used in this section, the following terms shall have the meanings indicated:
 - a. *Motor vehicle.* Any vehicle that is self-propelled by an engine, including but not limited to, automobiles, vans, motorcycles and construction vehicles;
 - b. *Hybrid-electric vehicle.* A motor vehicle which operates combining an internal combustion engine powered by gasoline or diesel with a battery powered electric motor; and
 - c. *Electric vehicle.* A vehicle powered by electricity, usually provided by batteries.
2. No person shall operate, allow or permit the operation of a diesel engine or vehicle propelled by a diesel engine in such a manner as to emit exhaust emissions equal to or greater than 20 percent opacity for a continuous period of more than five seconds as determined by a trained certified observer.
3. No person shall allow or permit the engine of a motor vehicle to idle for more than three consecutive minutes when the motor vehicle is not in motion, except that this provision shall not apply when:
 - a. A motor vehicle is forced to remain motionless because of traffic conditions over which the operator thereof has no control;
 - b. Regulations adopted by a federal, state or local agency having jurisdiction require the maintenance of a specific temperature for passenger comfort, in which case the idling time may be increased to the extent necessary to comply with such regulations;
 - c. An engine is being used to provide power for an essential auxiliary purpose, such as loading, discharging, mixing or processing cargo; controlling cargo temperature; construction; lumbering; oil or gas well servicing; farming operations; or when operation of the engine is required for the purpose of maintenance;
 - d. Trucks and heavy-duty construction equipment propelled by diesel engines, owned and operated by persons engaged in mining and quarrying, are used within the confines of such person's property;
 - e. A hybrid-electric vehicle is idling for the purpose of providing energy for the battery or other form of energy storage recharging;

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- f. The motor vehicle is an electric vehicle; and
 - g. The motor vehicle is not powered by a diesel engine and the ambient air temperature is 32 degrees Fahrenheit (0 degrees Celsius) or less.
- 4. This section shall apply to any person who owns, operates, leases, supervises or who otherwise has charge, supervision or control of such vehicle and to any person who owns leases or occupies land and has actual or apparent domain or control over such vehicle or engine which is present on such land.
 - 5. This section shall not apply to fire trucks, police, emergency medical services and other emergency vehicles and equipment while performing in the scope of theft duties.
 - 6. Penalties for violations of this section shall be as set forth in Sections 873.218, 873.219 and 873.220 of the code.
 - 7. The provisions of this section shall be enforced by the officers of the Department of Public Safety and may be enforced by all law enforcement officers with jurisdiction in Westchester County, including state and municipal law enforcement officers authorized to enforce the Vehicle and Traffic Law of the State of New York. The provisions of this section may also be enforced by municipal traffic and parking enforcement agents if authorized by the municipality to issue appearance tickets. The law enforcement officer or enforcement agent shall issue an appearance ticket returnable in the local court of the jurisdiction where the violation occurred.
 - 8. If any section, subsection, sentence, clause, phrase or other portion of this law is, for any reason, declared unconstitutional or invalid, in whole or in part, by any court of competent jurisdiction such portion shall be deemed severable, and such unconstitutionality or invalidity shall not affect the validity of the remaining portions of this act, which remaining portions shall continue in full force and effect.

(Added 5-28-1987, eff. 5-28-1987; amended by L.L. No. 1-2006; L.L. No. 15-2008, § 1)

Sec. 873.1318. Air quality; incinerators; prohibitions.

No person shall cause, allow or permit the installation or construction of an incinerator having a rated capacity of 2,000 pounds per hour or less, except:

- 1. When regulations adopted by a federal or state agency having jurisdiction require the installation or construction of an incinerator to dispose of contaminated or infectious materials from hospitals, nursing homes, biological laboratories or veterinary hospitals; or
- 2. When regulations adopted by a federal or state agency having jurisdiction require the installation or construction of an incinerator to dispose of secret documents or United States currency; or

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3. When such incinerator is installed or constructed for the express purpose of cremation of human or animal remains; or
 4. When the design and construction of the incinerator is shown by actual emission sampling and analysis conducted by and at the expense of the owner or manufacturer under actual on-site operating conditions and with routine maintenance, to produce emissions that do not exceed smoke and particulate emission limits as set forth elsewhere in the code or to produce emissions that do not exceed smoke and particulate emission limits as otherwise set forth in the laws, rules and regulations of the State Department of Environmental Conservation.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1319. Air quality; incinerators; emission limits; operation.

1. All incinerators having a rated capacity of 2,000 pounds per hour or less shall be operated so that particulate emissions do not exceed the permissible emission limits as provided for or shall be equipped with adequate control devices or redesigned and rebuilt so as to meet the permissible emission limits as set forth in the laws, rules and regulations of the State Department of Environmental Conservation.
2. No incinerator having a rated capacity of 2,000 pounds per hour or less shall be operated so as to emit smoke of an opacity greater than 20 percent as determined by a trained and certified observer using USEPA Method Nine.
3. No person shall use or permit the use of an incinerator with a rated capacity of 2,000 pounds per hour or less for a purpose or in a manner which causes it to function improperly or other than in accordance with its design.
4. No person shall cause or permit the operation of an incinerator with a rated capacity of 2,000 pounds per hour or less at any time other than between the hours of 7:00 a.m. and 5:00 p.m. of the same day, except by written permission of the department.
5. No person shall cause or permit the operation of an incinerator with a rated capacity of 2,000 pounds per hour or less so as to emit fly ash to the outer atmosphere.
6. Any person seeking approval to operate, cause or permit the operation of an incinerator with a rated capacity of 2,000 pounds per hour or less at any time other than as herein provided shall submit a written request to the department stating:
 - a. The full name and address of the applicant;
 - b. The location of the incinerator;
 - c. A brief description of the incinerator and its apparatus;
 - d. The reason for requesting such approval;
 - e. The hours during which the applicant seeks to operate the incinerator; and

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- f. The length of time for which the approval is requested.
7. If two or more incinerators are connected to a single stack, the total refuse charged to all incinerators connected to the same stack shall be the refuse charged for the purpose of determining the permissible particulate emission.
8. If a single incinerator is connected to two or more stacks, the refuse charged to a single incinerator shall be the refuse charged for the purpose of determining the permissible particulate emission.
9. In order to control the emission of odors:
- a. No person shall construct, install, use or cause to be used any continuously fed incinerator unless the gas temperature at the furnace outlet or at a designated zone exists that is designed to be automatically maintained and is automatically maintained at a temperature and residence time, in accordance with the Commissioner's Rules and Regulations.¹³
 - b. No person shall construct, install, use or cause to be used any batch-fed incinerator unless the gas temperature at the furnace outlet or designated zone is designed to be automatically maintained and is automatically maintained at a temperature and residence time in accordance with the Commissioner's Rules and Regulations.¹⁴
 - c. Incinerators with a capacity of 2,000 pounds per hour or less of refuse charged shall be equipped with a sensing device indicating the gas temperature at the furnace outlet or at the designated zone.
10. Incinerators with a capacity of greater than 2,000 pounds per hour of refuse charged shall comply with all applicable codes, rules, regulations and policies of the department,¹⁵ the New York State Department of Environmental Conservation and the United States Environmental Protection Agency.
11. All burners shall be located and operated in a manner so that the operation of such burners conforms to all codes and does not serve as a potential hazard.
12. All monitoring and recording equipment must be located in such a manner that information from such equipment can be easily ascertained.

(Added 5-28-1987, eff. 5-28-1987)

¹³**21. Editor's Note:** See Rules and Regulations of the Commissioner Policy No. AQ 2-87, effective 5-28-1987, which is on file in the office of the Commissioner of Health.

¹⁴**22. Editor's Note:** See Rules and Regulations of the Commissioner Policy No. AQ 2-87, effective 5-28-1987, which is on file in the office of the Commissioner of Health.

¹⁵**23. Editor's Note:** See Rules and Regulations of the Commissioner Policy No. AQ 3-87, effective 5-28-1987, which is on file in the office of the Commissioner of Health.

Sec. 873.1320. Air quality; incinerators; abatement.

1. Where the department has reasonable cause to believe that any incinerator with a rated capacity of 2,000 pounds per hour or less is emitting particulate matter in excess of the allowable emission rate as provided by the code, the department may require the owner or lessee of the incinerator to conduct such tests as are necessary to determine whether the equipment or its operation exceeds the allowable emission rate as provided by this code and to submit the test results to the department within 30 days after such tests are completed.
 - a. All such testing shall be performed in accordance with the Commissioner's Rules and Regulations.¹⁶
 - b. The owner or lessee shall notify the department of the time and place of any such testing at least 30 days before the commencement of the test and shall make reasonable facilities available for a representative of the department to be present and witness the tests.
2. If, in the opinion of the department, tests by the department are necessary, in addition to those conducted by the owner or lessee of the incinerator, the department may order the owner or lessee to provide sampling ports in the stack as the department may request, to provide a power source suitable to the points of testing and to provide allied facilities, exclusive of sampling devices.
 - a. The provisions for sampling ports, the power source and allied facilities shall be made at the owner's or lessee's expense.
 - b. The owner or lessee shall be furnished with a copy of the analytical results of the source samples collected.
3. If any of the test results indicate a contravention of particulate emission limits as provided by the code, the department may require the installation of appropriate control equipment to reduce such particulate emissions to a level meeting such emission limits or the department may seal the incinerator if such equipment is not installed within the time prescribed by the department.
4. The department may order the cleaning, repair, replacement or alteration of any equipment or control equipment which causes or is operated so as to result in noncompliance with the applicable provisions of the code.
5. The department may order a change in the manner of operation of any incinerator which is operated so as to result in noncompliance with the applicable provisions of the code.

¹⁶**24. Editor's Note:** See Rules and Regulations of the Commissioner Policy No. AQ 4-87, effective 5-28-1987, which is on file in the office of the Commissioner of Health.

6. Sealing of nonconforming incinerator.

- a. The commissioner may order the discontinuance of use and may seal any incinerator with a rated capacity of 2,000 pounds per hour or less which does not conform to the provisions of the code.
- b. The seal may be removed from the incinerator only by the department and only upon written authorization from the commissioner following written application to the department by the owner of the incinerator stating that the incinerator has been or will be repaired, modified, upgraded, removed, reconstructed or replaced in a manner and within a time acceptable to the commissioner.
- c. The authorization from the commissioner may set forth any terms and conditions the commissioner deems appropriate concerning the particular incinerator to be repaired, modified, upgraded, removed, reconstructed or replaced.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1321. Air Quality; fuel composition and use; prohibitions.

1. No person shall construct, install or modify or cause to be constructed, installed or modified any combustion installation that is designed for use of a solid fuel containing 0.20 pound of sulfur per million Btu's gross heat content, except as may otherwise be provided for in the Environmental Conservation Law or the rules and regulations promulgated pursuant thereto.
2. No solid fuel that contains more than 0.20 pound of sulfur per million Btu's gross heat content shall be sold, offered for sale or purchased for use in or used in any stationary combustion installation except as may otherwise be provided for in the Environmental Conservation Law or the rules and regulations promulgated pursuant thereto.
3. No person shall sell, offer for sale or purchase for use in or use in any stationary air contamination source fuel, other than distillate and residual oil, having a sulfur content greater than 0.37 percent by weight, except as may otherwise be provided for in the Environmental Conservation Law or the rules and regulations promulgated pursuant thereto.
4. No waste fuel shall be offered for sale or purchased for use in any stationary air contamination source except upon prior written approval of the commissioner.
5. On and after July 31, 2018, the use of fuel oil grade no. 6, as classified by ASTM Standard D396-15c, in any stationary combustion installation operated in the County of Westchester shall be prohibited.
6. On and after July 31, 2020, the use of fuel oil grade no. 4, as classified by ASTM Standard D396-15c, in any stationary combustion installation operated in the County of Westchester shall be prohibited.

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7. The Commissioner may, on written application and after review, grant a one-time variance from a specific provision of subsections 5 and/or 6 of this section, subject to any appropriate conditions and including a time schedule for compliance, when such variance is in harmony with the general purposes and intent of this article and when there are significant practical difficulties or unnecessary hardship in complying with such provision. Variances may only be granted under one or more of the following significant practical difficulties:
- a. Delays caused by the energy company.
 - b. Delays in obtaining financial assistance that are not due to actions or inaction of the building owner.
 - c. Delays caused by the permitting process of the local municipality.
 - d. If, in the course of complying with subsections 5. and/or 6. of this section, an oil leak has occurred which requires significant cleanup.

(Added 5-28-1987, eff. 5-28-1987; L.L. No. 5-2016, § 2)

Sec. 873.1322. Air quality; fuel composition and use; exceptions.

1. The commissioner may except, in whole or in part, the fuel sulfur content restrictions imposed under the code where an applicant establishes to his satisfaction that the fuel use thus permitted will not result in the emission of sulfur compounds, expressed as sulfur dioxide, to the outdoor atmosphere at a rate greater than would be obtained through the use of fuels otherwise mandated, the following cases:
 - a. Where a mixture of fuels is burned simultaneously in each furnace of a stationary combustion installation in operation or under construction before January 1, 1968, producing steam or electric power for sale; or
 - b. Where fuel is used as a process constituent; or
 - c. Where approved control equipment is installed; or
 - d. Where a substantial portion of the sulfur in the fuel burned is retained in the ash and not emitted to the outdoor atmosphere; or
 - e. Where such fuel is used to demonstrate the performance of an experimental air cleaning installation for removal of sulfur compounds from stack emissions.
2. For those installations where coal or coke has been the regular source of fuel, the commissioner shall permit the sale and continued use of such fuel; provided, however, that the continued sale and use of such fuel complies with provisions of this section relative to the sulfur content thereof.
3. The commissioner may exempt persons from the requirements of this article, upon evidence satisfactory to the commissioner that:

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- a. There is an insufficient supply of fuel meeting the requirements of section 873.1321 of the code; and
 - b. The insufficiency of the supply of fuel is certified by the Chairman of the Public Service Commission of the State of New York.
4. The commissioner may upon prior written application permit the sale, offer for sale, purchase and use of fuels with a sulfur content in excess of that as specified herein, provided that the purchaser maintains a continuous monitoring network for sulfur compounds, expressed as sulfur dioxide, acceptable to the commissioner and employs a system for the prompt switching to fuel with a sulfur content as specified in the code whenever continuous monitoring shows that an ambient air quality standard for sulfur dioxide will tend to be exceeded; provided, however, that the commissioner may require the installation of any available device, method or procedure so that any emission shall not exceed the standards provided for herein.
 5. Nothing herein shall be construed to allow the emission of air contaminants in quantities which alone, or in combination with other sources, would contravene the standards established by the United States Environmental Protection Agency and the Department of Environmental Conservation of the State of New York for the ambient air quality region in which the air contamination source is located or to cause air pollution as defined in the code.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1323. Air quality; fuel composition and use; compliance.

1. The department may require submission of fuel analysis or results of stack sampling, or both, to ensure compliance with the provisions of the code, and no person shall fail to submit such information when so required by the department.
2. Persons selling fuels in the county shall maintain records of sales of all fuel containing sulfur and of all fuel analysis required by the department and shall make such records available for inspection by the department during normal business hours.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1324. Air quality; particulates caused by combustion of solid fuel; control.

1. Permissible emission rates.
 - a. No person shall cause, suffer, permit or allow to be emitted into the atmosphere, from any stationary combustion installation burning solid fuels for heat or power generation, particulates in excess of the permissible emission rates, determined as maximum weight discharge, as specified in the following table:

Total Heat Input* (million Btu's/hr.)	Permissible Emission Rate** (lb./million Btu's)
1 to 10	0.600
20	0.550
30	0.500
40	0.450
50	0.440
60	0.420
70	0.400
80	0.390
90	0.380
100	0.370
200	0.320
300	0.290
400	0.275
500	0.262
600	0.252
700	0.242
800	0.236
900	0.230
1,000	0.225
2,000	0.193
3,000	0.177
4,000	0.166
5,000	0.158
6,000	0.152
7,000	0.147
8,000	0.142
9,000	0.139
10,000	0.136

* Installations having a total input less than 1,000,000 Btu's per hour are exempted.

** Total input between 1,000,000 and 10,000,000 Btu's per hour: Maximum weight discharge shall be six-tenths pound per million Btu's per hour input.

Total input between 10,000,000 and 10,000,000,000 Btu's per hour: Use $E = 1.02/p^{0.219}$ to determine the maximum weight discharge where E = maximum weight discharge in pounds per hour and p = total input in million Btu's per hour.

The heat content of coal shall be determined by a method acceptable to the department.

Individual combustion units with an input equal to or less than 300,000,000,000 Btu's per hour and in operation prior to June 1, 1972, may exceed the values in this table, provided that they meet the following criteria:

Spreader stokers: Allowable weight discharge shall not exceed sixty-hundredths pound per million Btu's input.

Individual combustion units other than spreader stokers shall not exceed the following:

Input (million Btu's/hr.)	Maximum Weight Discharge (lb./million Btu's***)
1 to 100	0.60
200	0.45
300	0.30

*** The total heat input under normal operating conditions shall be used in determining the permissible emission rate.

- b. If two or more stationary combustion units are connected to a common air cleaning device and/or stack, the total heat input rating of all units connected to the cleaning device and/or stack shall be the heat input rating for the purpose of computing the allowable weight discharge.
2. If two or more stationary combustion units having individual air cleaning devices are connected to a single stack, the total allowable weight discharge shall be the sum of the allowable discharges from each individual unit.
3. No person shall construct, install, modify or cause to be constructed, installed or modified, within the county, any hand-fired stationary combustion installation for heat or power generation designed to burn bituminous coal.
4. The department may modify the limits specified in this section if, in view of the properties of the emissions, isolated conditions, stack height and other factors, it can be clearly demonstrated that discharge of the contaminant or contaminants will not add to an existing or predictable atmospheric burden of such contaminant or contaminants so that adverse effects would reasonably be expected therefrom.
5. Notwithstanding any provision herein, no person shall cause, suffer, permit or allow the emission of air contaminants in quantities which alone, or in combination with other sources, would cause air pollution as defined in the code or contravene the air quality or emission standards established by the United States Environmental Protection Agency and the Department of Environmental Conservation of the State of New York.

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6. In order to determine compliance with this article, any person operating or maintaining emission sources described in this section shall provide pertinent data concerning emissions upon request of the department.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1325. Air quality; fuel-burning equipment and incinerators; operation; supervisions.

1. No person shall cause or permit the use of any fuel-burning equipment having an input capacity of 1,000,000 Btu's per hour or greater or of any incinerator having a rated capacity of 2,000 pounds per hour or less, except under the operation and supervision of a person who has successfully completed, within one year of the commencement of his employment, a course of instruction in air quality control given by or acceptable to the department.
2. Upon successful completion of the course of instruction required by this section, the operator or supervisor shall receive a certificate containing the name of the course of instruction, the name of the operator or supervisor and the date of successful completion of the course.
3. No person shall employ an operator or supervisor of fuel-burning equipment with an input capacity of 1,000,000 Btu's per hour or greater or of an incinerator with a rated capacity of 2,000 pounds per hour or less who does not have a certificate as required by this section.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1326. Air quality; standards.

In determining compliance with the provisions of the code, the department may be guided by the provisions of Chapter III of Title 6 of the Official Compilation of Codes, Rules and Regulations of the State of New York, or the specific air quality standards assigned to geographical areas of the county and any subsequent amendments thereto or revisions thereof, or the provisions of any other rules or codes which may be enacted by the Department of Environmental Conservation of the State of New York or by the local municipality in which the installation is located, provided that the provisions of such rules or codes do not permit lower or less stringent requirements than required by the code.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1327. Air quality; indoor air quality; dry cleaning facilities.

1. Every room and passageway in any habitable building, except for an office and/or industrial building, shall be maintained to ensure the public of an indoor atmosphere acceptable to the commissioner.

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2. All equipment providing an indoor atmosphere shall be maintained in repair and not be used for purposes other than in accordance with its design.
 3. All dry-cleaning facilities shall maintain the indoor atmosphere in their rooms and every room and passageway in the habitable building in which they are located in accordance with law.
 4. No person shall operate a dry-cleaning facility without first obtaining a valid permit issued by the department to operate such facility.

(Added 5-28-1987, eff. 5-28-1987; amended 3-18-1993, eff. 3-18-1993)

Sec. 873.1328. Air quality; ambient air quality.

The ambient air quality within the boundaries of the county shall be governed by the federal government and state ambient air quality standards for priority pollutants.

(Added 5-28-1987, eff. 5-28-1987)

Sec. 873.1329. Air Quality; Onroad and nonroad vehicles; Emission standards.

1. Definitions. Whenever used in this section, the following terms shall have the meaning indicated:
 - a. "Best Available Technology" (BAT) means a system for reducing the emission of pollutants which is based on technology verified by the United States Environmental Protection Agency or the California Air Resources Board or which has been identified pursuant to New York City's Department of Environmental Protection (under Local Law 77 § 24-163.3d.(1)) that
 - i. reduces diesel particulate matter emissions by at least 85 percent, as compared to a similar engine operating on traditional diesel fuel without emission control technology, or reduces engine emissions to 0.01 grams diesel particulate matter per brake horsepower per hour or less; and
 - ii. achieves the greatest reduction in emissions of nitrogen oxides at a reasonable cost and in no case produces a net increase in nitrogen oxides in excess of 10%.
 - b. "Contractor" means any person (as defined in Section 873-1301(27)), who enters into an agreement or contract with Westchester County valued at more than¹⁷ \$150,000 (such sum to increase \$5,000 on the first day of January each year following the enactment of this section until it reaches a maximum of \$250,000) to perform County work or any person who enters into an agreement or contract with such person to perform County work.

¹⁷**25. Editor's Note:** So in original; should be "than."

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- c. "County work" means to provide labor, services, material and/or equipment which traditionally has been provided by the government of the County of Westchester through county employees or contractors except it does not include labor, services, materials and/or equipment provided by (1) a common carrier, (2) a shipping company (including overnight delivery companies) or (3) a manufacturer or delivery company which does not deliver materials or equipment to Westchester County government on a regular and frequent basis.
 - d. "Nonroad diesel engine" means an internal combustion engine (including the fuel system) operating on diesel fuel not used in a motor vehicle or a vehicle used solely for competition or not subject to standards promulgated under United States Code Title 42 sections 7411 or 7521, except that this term shall apply to internal combustion engines used to power generators, compressors or similar equipment used in any construction program or project.
 - e. "Nonroad diesel vehicle" means a vehicle that is powered by a diesel engine fifty horsepower or greater, including but not limited to excavators, backhoes, cranes, compressors, bulldozers and similar equipment, but not including a vehicle used solely for competition.
 - f. "Onroad diesel vehicle" means any selfpropelled vehicle designed for transporting persons or property on a street or highway that operates on diesel fuel.
 - g. "Owned, leased and/or operated by or on behalf of Westchester County" includes all diesel-powered vehicles owned by Westchester County or a contractor, which are used by Westchester County or a contractor to do County work.
 - h. "Reasonable cost" means that the cost to purchase and install the system with technologies to reduce both Particulate Matter and Nitrogen Oxides does not exceed the cost of the system without Nitrogen Oxide control by more than thirty percent.
 - i. "Ultra low sulfur diesel fuel" means diesel fuel that has a sulfur content of no more than fifteen parts per million.
 - j. "Westchester County" means all departments, agencies, bureaus, boards, commissions, sewer and water and other districts, the Westchester Community College, the Westchester County Airport and all other entities whose expenses are shown in the Operating Budget of Westchester County and/or are paid in whole or in part from Westchester County funds.
2. Requirements: ultra low sulfur diesel fuel and best available technology.
- a. All onroad and nonroad diesel vehicles owned, leased and/or operated by or on behalf of Westchester County when used to perform County work as defined herein shall be powered by ultra low sulfur diesel fuel beginning as soon as practicable but in no event later than September 1, 2006.

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- b. All onroad and nonroad diesel vehicles owned, leased and/or operated by or on behalf of Westchester County equipped with an model year 2003 or older engine when used to perform county work as defined herein shall utilize the best available technology in accordance with the following schedule:
 - i. 35% of all such motor vehicles in each department or agency by September 1, 2007;
 - ii. 65% of all such motor vehicles in each department or agency by September 1, 2008;
 - iii. 100% of all such motor vehicles in each department or agency by September 1, 2009.
 - c. All onroad and nonroad diesel vehicles owned, leased and/or operated by or on behalf of Westchester County when used to perform county work as defined herein having a gross vehicle weight rating of more than 14,000 pounds shall utilize the best available technology or be equipped with an engine certified to the applicable 2007 United States environmental protection agency standard for particulate matter as set forth in section 86.007-11 of title 40 of the code of federal regulations or to any subsequent United States environmental protection agency standard for such pollutant that is at least as stringent, in accordance with the following schedule:
 - i. 35% of all such motor vehicles in each department or agency by September 1, 2007;
 - ii. 65% of all such motor vehicles in each department or agency by September 1, 2008;
 - iii. 100% of all such motor vehicles in each department or agency by September 1, 2009.
- 3. Agreements and contracts. Westchester County shall specify in all of its solicitations, bids and requests for proposals to perform County work issued after the effective date hereof and in all contracts pursuant thereto that all contractors in the performance of each such contract shall comply with the provisions of Paragraph 2 of this section.
 - 4. Determination of fuel non-availability. If sufficient quantities of ultra low sulfur diesel fuel are not available to meet the needs of Westchester County or a contractor to fulfill the requirements of this section, the Commissioner may issue a written determination permitting the use of diesel fuel with a sulfur content of no more than thirty parts per million to fulfill the requirements of this section provided that Westchester County or the contractor to the extent practicable shall use whatever quantity of ultra low sulfur diesel fuel is available. Such determination shall be made on a case by case basis upon written application of Westchester County or a contractor which determination shall expire sixty days thereafter and may be renewed in writing for additional periods of sixty days.
 - 5. Determination of best available technology.

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- a. On or before September 1, 2006, the Westchester County Commissioner of Health, or such other Commissioner as the County Executive may designate in writing to the Clerk of the Board of Legislators, shall, in consultation with the Commissioner of Public Works and Transportation, determine the best available technology as defined herein for reducing the emission of pollutants for each type of diesel-powered onroad and nonroad vehicle to which this section applies and the strategy to be used with respect to each type of vehicle to which this section applies.
 - b. The Commissioner shall publish a list, delivered in writing to the Clerk of the Board of Legislators, containing such determinations, which the Commissioner shall revise, as needed, on a regular basis, but in no event less often than once every twelve months.
 - c. Neither Westchester County nor any contractor shall be required to replace best available technology or other authorized technology utilized for each diesel-powered motor vehicle in accordance with this section for three years from having first utilized such technology for said vehicle.
 - d. For new engines to be delivered after the effective date of this act, BAT may be installed by the Original Equipment Manufacturer (OEM) and need not be shown on the EPA or CARB. verified retrofit list, provided that the technology otherwise complies with the definition of BAT as defined herein.
6. Applicability. This act shall not apply:
- a. where federal or state funding precludes the requirements of this act;
 - b. where such applicability would interfere¹⁸ with the purchase, lease or operation of emergency response vehicles operated by the Department of Emergency Management or the Department of Public Safety;
 - c. to purchases that are determined to be emergency procurements as by the Commissioner of Health or accelerated procurements compliant with the County Procurement Policy as adopted by the Board¹⁹ of Legislators as Act No. 23 of 1992;
 - d. to any agreement or contract entered into prior to the effective date hereof;
 - e. to a diesel-powered nonroad vehicle where.
 - i. the commissioner certifies that the best available technology for reducing the emission of pollutants as required herein is unavailable for such vehicle, in which case such agency or contractor shall use whatever technology available and appropriate for such vehicle that the commissioner approves for reducing the emission of pollutants; or

¹⁸**26. Editor's Note:** So in original; should be "interfere."

¹⁹**27. Editor's Note:** So in original; should be "Board."

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- ii. the vehicle is used for fewer than five calendar days per²⁰ contract; or
 - iii. the commissioner issues a written waiver based upon a finding that the use of the best available technology for reducing the emission of²¹ may present a hazard or threat to the safety of the operator, other workers or members of the public.

7. Reporting.

- a. On or before April 1, 2007, and every succeeding April 1, all Westchester County departments, agencies, bureaus, boards, commissions, districts and other entities to which this act applies shall report to the Clerk of the Board of Legislators on the use of ultra low sulfur diesel fuel in onroad and nonroad diesel vehicles and the use of the best available technology for reducing the emission of pollutants and such other authorized technology in accordance with this act for the immediately preceding fiscal year. This report shall include, but not be limited to
 - (i) the total number of onroad and nonroad diesel vehicles it owned, leased and/or operated;
 - (ii) the number of such onroad and nonroad diesel vehicles that were powered by ultra low sulfur diesel fuel;
 - (iii) the number of such onroad and nonroad diesel vehicles that utilized the best available technology or retrofit technology, including an itemization by vehicle model and the type of technology used for each vehicle;
 - (iv) the number of onroad and nonroad diesel vehicles that utilized other authorized technology in accordance with this act, including an itemization by vehicle model and the type of technology used for each vehicle;
 - (v) all findings, determinations and renewals of such findings and determinations which it issued or which were issued relative to said entity pursuant to this act, which shall include, but not be limited to the quantity of diesel fuel needed to power each onroad and nonroad diesel vehicles owned by, operated by or on behalf of or leased by the entity or used to fulfill the requirements of a public work contract for such entity;
 - (vi) specific information concerning the availability of ultra low sulfur diesel fuel or low sulfur diesel fuel where it is used;
 - (vii) detailed information concerning the entity's and its or contractor's efforts to obtain ultra low sulfur diesel fuel and low sulfur diesel fuel, and

²⁰**28. Editor's Note:** So in original; apparently should be "per."

²¹**29. Editor's Note:** So in original; apparently should be "emission of pollutants."

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- (viii) all findings, determinations and waivers, and renewals thereof issued including all specific information submitted by an entity or contractor upon which such are based authorizing alternative technology, if any, utilized instead of the best available technology for reducing the emission of pollutants.
- b. Notwithstanding the foregoing, whenever a determination pursuant to subdivision 4 above is in effect, information regarding alternative fuel shall be reported wherever information regarding ultra low sulfur diesel fuel is required to be reported.
8. Contractor violations. The Commissioner is authorized to enforce the provisions of this section.
- a. Any contractor who violates any provision of this section shall be liable for a civil penalty not to exceed ten thousand dollars plus twice the amount of money saved by such contractor for failure to comply with this section.
- b. Any contractor who makes a false claim may be liable for a civil penalty not to exceed twenty thousand dollars, in addition to twice the amount of money saved by such contractor as a result of having made such false claim.
9. Miscellaneous. Nothing in this section shall be construed to limit Westchester County's authority to cancel or terminate a contract, deny or withdraw approval to perform a subcontract or provide supplies, issue a non-responsibility finding, issue a non-responsiveness finding, deny a person or entity pre-qualification as a vendor, or otherwise deny a person or entity public entity business.

(Added by Act No. 19-2006)

Sec. 873.1330. Air Quality; severability.

If any provision of this article is held invalid, such invalidity shall not affect other provisions which shall be given effect without the invalid provision.

(Added 5-28-1987, effective 5-28-1987; amended by Act No. 19-2006)

Article XIV. Nuisances and Sanitation

Sec. 873.1400. Nuisances; inspections and investigations.

1. The commissioner or the commissioner's representative shall investigate all complaints of any nuisance which may in his opinion affect health, or which may be a cause of danger or injury to life and health.
2. The commissioner or the commissioner's representative may enter upon, about or within any place, facility, premises or vehicle where a nuisance or condition dangerous to life and health exists, or where in his opinion a place, facility or premises is maintained, operated

or being constructed in a manner as to constitute a nuisance, or else where its maintenance, operation or construction may be the cause of the existence of a nuisance or condition dangerous to life or health elsewhere.

3. The owner, agent and occupants of any place, facility, premises or vehicle being maintained, operated or constructed shall permit examinations, inspections, investigations and samples to be made and taken pursuant to the provisions of the Public Health Law, the Environmental Conservation Law, the State Sanitary Code, the code and administrative rules and regulations promulgated pursuant to such laws and codes.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.1401. Nuisances; notice to owners and others.

1. The commissioner or the commissioner's representative shall furnish the owner, agent or occupants of a place, facility, premises or vehicle upon which a nuisance or condition dangerous to life or health has been found to exist, or which is the cause of a nuisance or condition dangerous to life or health elsewhere, with a written statement of the nature of the nuisance or condition, the demand for correction and that an enforcement action may be brought.
2. The commissioner or the commissioner's representative shall initiate such procedures as in his opinion shall result in the immediate abatement or voluntary abatement of any nuisance or condition dangerous to life or health found to exist upon or within any place, facility, premises or vehicle which is the cause of the existence of a nuisance or condition dangerous to life or health elsewhere.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.1402. Nuisances; abatement.

1. The commissioner or the commissioner's representative duly authorized in writing shall order the abatement, suppression or removal of all nuisances and conditions which in his opinion are detrimental or prejudicial to life or health.
2. Failure by the owner, agent or occupants of any place, facility, premises or vehicle whereon any nuisance or condition deemed to be detrimental or prejudicial to the public health exists, or deemed to be the cause of the existence of such nuisance or condition elsewhere, to comply with any order or regulation for the abatement, suppression or removal of such nuisance or condition may be reason for the commissioner or the commissioner's representative to enter upon the place, facility, premises or vehicle to which such order or regulation relates, and to abate, suppress or remove such nuisance or condition.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.1403. Nuisances; abatement expenses; lien on premises.

1. The expense of abatement, suppression or removal of a nuisance or condition detrimental to life or health incurred by the department shall be paid by the owner or occupant of the place, facility, premises or vehicle or by the person who caused or maintained such nuisance or condition.
2. As provided by the Public Health Law, the department or county may maintain an action in a court of competent jurisdiction to recover the expense of such abatement, suppression or removal.
3. As provided by the Public Health Law, a judgment obtained for the expense of abatement, suppression or removal of a nuisance shall be a first lien upon such premises, having preference over all other liens and encumbrances whatever.
4. As provided by the Public Health Law, such premises may be sold for a term of time for the payment and satisfaction of such lien and the expenses of the sale.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.1404. Nuisances; noxious weeds and growths.

1. Declaration; prohibited acts.
 - a. The commissioner may declare at any season or period of the year that there exists a particular and imminent danger to the public health by reason of an approaching period of pollination of any ragweed or other species of weed, plant or growth which is noxious or detrimental to public health or that the seed, pollen or emanation therefrom, when carried through the air or otherwise dispersed, is noxious or detrimental to public health; provided, however, that such declaration shall be made in writing upon sufficient evidence and shall be filed in the department.
 - b. If the commissioner acts pursuant to this section, it shall be unlawful for any person who owns, maintains, occupies or is in charge or in control of any lot or premises to permit, cause, suffer or allow poison ivy, ragweed or other poisonous or allergenic weed to grow on such lot or premises.
2. The provisions of the code applicable to abatement and enforcement of nuisances and other violations generally shall be applicable to any condition or situation coming within the purview of this section.

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.1405. Nuisances; vacant grounds; rodents and vermin.

The owner or person in charge or in control of grounds which are vacant shall keep them free of all public nuisances affecting health as defined in the Commissioner's Rules and Regulations.²²

(Added 11-20-1986, eff. 11-20-1986)

Sec. 873.1406. Sanitation; public places; toilets.

1. Every person who shall provide or be in charge of or in control of a toilet for the use of employees, patrons or other persons, or which shall be otherwise available to the general public, whether owned, operated or maintained by a private organization or government agency, shall maintain such toilet in a clean, well-lighted, ventilated and sanitary condition at all times.
2. The floor of any such toilet shall be impervious to moisture and shall have proper drainage facilities.
3. An adequate supply of soap, sanitary individual towels or their equivalent and toilet paper shall be provided in such toilet, and there shall be running water available at all times.

(Added 11-20-1986, eff. 11-20-1986)

Article XV. Sexually Transmitted Disease Control

Sec. 873.1500. Sexually transmitted diseases; definition.

Whenever used in the Code, sexually transmitted diseases are conditions principally transmitted by sexual contact and may have impact on the health of newborns, and include the following:

Chancroid

Condyloma acuminata

Gardnerella vaginitis

Genital herpes

Gonorrhea

Granuloma inguinale

²²**30. Editor's Note:** The Commissioner's Rules and Regulations are on file in the office of the Department of Health.

Lymphogranuloma venereum
Non-gonococcal (mucopurulent) cervicitis
Non-specific urethritis
(Non-gonococcal urethritis)
Pediculosis pubis
PID Gonococcal/Non-gonococcal
Scabies
Syphilis
Trichomoniasis
Yeast vaginitis

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.1501. Sexually transmitted diseases; duty to report.

1. Every physician or person in charge of an institution or hospital shall within 24 hours report cases of sexually transmitted diseases on forms approved by the department.
2. Whenever any person suffering from any sexually transmitted disease shall discontinue treatment, while in the judgment of the attending physician such person is capable of transmitting the disease to others, such physician shall immediately report such facts to the department.
3. Every laboratory director or his representative shall promptly report positive reports of laboratory tests of specimen indicative of chancroid, gonorrhea, granuloma inguinale, lymphogranuloma venereum and syphilis to the department.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.1502. Sexually transmitted diseases; reports and records, confidential.

Reports and records of cases, carriers and suspected cases of sexually transmitted diseases shall be deemed confidential except insofar as is necessary to carry out the purpose of Article XV and shall not be subject to inspection by persons other than persons authorized by the commissioner or his representative.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.1503. Sexually transmitted diseases; duties of attending physician.

The physician attending a patient affected with a sexually transmitted disease shall inform such patient of the availability of appropriate treatment and the necessity of continuing treatment until such time as the possibility of transmission of the disease is either eliminated or reduced to the extent possible; and give such patient appropriate health information.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.1504. Sexually transmitted diseases; duties of Commissioner.

The commissioner or his representative shall investigate all reports of sexually transmitted disease received by the department; establish, maintain and require isolation, examination, treatment and care of any person affected with sexually transmitted disease whenever, in his opinion, such isolation, examination, treatment or care is necessary for the protection of the public health and/or to control morbidity and mortality; and investigate all persons who may have sexual exposure to persons with sexually transmitted diseases and take appropriate therapeutic and preventive measures as may be required.

(Added 4-23-1987, eff. 4-23-1987)

Article XVI. Tuberculosis Control

Sec. 873.1600. Tuberculosis; definition.

The term "tuberculosis" means any infection caused by *Mycobacterium tuberculosis*.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.1601. Tuberculosis; powers and duties of Commissioner.

1. Examination.

- a. Upon receiving a duly signed report of a person who appears to be affected with active tuberculosis under and pursuant to the Public Health Law, the commissioner or his representative shall cause an examination to be made of the person and shall take such further measures as may be indicated as a result of such examination.
- b. If such person has been reported to the department by a physician as one affected by pulmonary tuberculosis, the commissioner or his representative shall ascertain promptly whether such physician is maintaining proper medical and preventative care.

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- c. If such a person has been reported to the department and such person is not under the care and supervision of a physician, the department shall take such further measures as may be indicated, including the furnishing of such care and supervision.
 2. Inspection of premises; notices.
 - a. The commissioner or his representative may inspect any premises where a person affected with tuberculosis is located to insure compliance with the requirements of the Public Health Law, the State Sanitary Code and the code.
 - b. The commissioner shall cause to be posted such notices as may be required of the Public Health Law and the State Sanitary Code as may be required.
 3. The commissioner or his representative shall investigate all persons who may have been in contact with any person affected with or suspected of having active tuberculosis and take appropriate preventive and therapeutic measures as may be required.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.1602. Tuberculosis; duty to report.

Every physician and person in charge of a hospital or institution shall be required to report cases of tuberculosis to the department.

(Added 4-23-1987, eff. 4-23-1987)

Sec. 873.1603. Tuberculosis; duties of attending physician.

It shall be the duty of a physician in attendance of a person affected with active tuberculosis to instruct such patient or the head of a household on the proper precautions for the containment of the infection.

(Added 4-23-1987, eff. 4-23-1987)

Article XVII. Rabies Control

Sec. 873.1700. Rabies control; duty to report.

1. Every physician or person in charge of an institution or hospital, every police officer or animal control officer, shall immediately report to the department the full name, age, address and telephone number of any person who has been bitten by an animal and the date of biting or contact with the saliva of such animal.
2. It shall be the duty of every physician who has reason to believe that contact with a rabid or suspect rabid animal has occurred requiring rabies prophylaxis subsequent to the

exposure to report all such incidents and pertinent facts relating to any such bite, or exposure or treatment prior to the initiation of such prophylaxis to the department.

3. If the person bitten is not an adult, it shall be the duty of the parent or guardian to make such report to the department.

(Added 4-23-1987, eff. 4-23-1987; amended 6-20-2002)

Sec. 873.1701. Rabies control; rabid animals.

1. It shall be the duty of every person having knowledge of the existence of an animal afflicted or suspected of being afflicted with rabies to report immediately to the department the existence of such animal, the place where seen, the owner's name, if known, and the observed signs suggesting rabies including but not limited to biting and/or scratching.
2. Upon the request of the Department of Health, the veterinarian who administered the rabies vaccine to a specified animal, or has a copy of a vaccination certificate in the animal's medical records, shall provide either oral confirmation of administration of the rabies vaccine, including the date the rabies vaccine was administered, or a copy of the vaccination certificate.
3. Seizure and destruction.
 - a. The commissioner or his representative shall secure and confine or cause to be secured and confined under competent observation any animal within his jurisdiction suspected of having rabies.
 - b. If such animal cannot be secured and confined, the commissioner shall order such animal to be killed; provided, however, that biting bats shall be killed immediately.
 - c. It shall be the duty of the commissioner or his representative to submit the animal's head to a laboratory approved for this purpose by the State Commissioner of Health.
 - d. The expense of such veterinary euthanasia and decapitation shall be borne by the owner of the animal.
4. Confinement.
 - a. If the animal is to be confined, it shall be isolated for no less than ten (10) days or for such period of time as is necessary to determine the diagnosis of the disease as the commissioner or his representative may in his judgment determine.
 - b. Such confinement may take place either in a veterinary hospital or in a locked enclosure approved by the commissioner as being so constructed and maintained that the animal cannot escape or have contact with any other animal or human being except with the person responsible for the care of the confined animal.

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- c. The expense of the confinement of an animal suspected of being exposed to rabies shall be borne by the owner of the animal.
 - d. An animal under restriction shall not be removed from confinement and the county prior to the conclusion of the prescribed confinement except with the approval of the commissioner.
 - e. No animal shall be removed pursuant to this section except upon approval of the commissioner.
5. Any animal that is currently immunized against rabies and has been bitten by or exposed to a suspected rabid animal shall receive a booster inoculation for rabies within five (5) days of the contact. Animals not boosted within five (5) days must either be quarantined in such confinement as described for no less than six (6) months or euthanized immediately.

(Added 4-23-1987, eff. 4-23-1987; amended 6-20-2002)

ARTICLE XVIII. CHILDREN'S SUMMER CAMPS

Sec. 873.1800. Nonswimmer identification.

- 1) A camper evaluated as a nonswimmer shall be readily distinguishable from an intermediate or swimmer by wearing a conspicuously colored bathing cap, headband, wrist tag or other alternative acceptable to the Westchester County Health Department.
- 2) The commissioner may waive, in full or part, the requirement of this section, provided that the application submitted sets forth sufficient reasons which, in the opinion of the commissioner, justifies the issuance of a waiver.

(Added 3-19-1992, eff. 3-30-1992)

Sec. 873.1801. Annual camp workshop attendance.

- 1) The camp director, assistant camp director or camp operator shall attend the annual children's camp workshop by the Westchester County Department of Health.
- 2) Failure of the camp director, assistant camp director or camp operator to attend the annual workshop: a) will constitute a violation of the code and/or State Sanitary Code; and b) will result in a penalty in accordance with Article II of the code and c) will require the camp director, assistant camp director or camp operator to attend, at a time and location to be determined by the commissioner, a video presentation of the annual workshop.
- 3) In addition to the grounds set forth in section 873.300 et seq., a permit to operate a camp will be denied upon the failure of the camp director, assistant director or operator to

attend a video presentation of the annual workshop and failure to pay the imposed penalty.

- 4) The commissioner may waive, in writing, either in full or in part, the requirement(s) of this section, provided that the application submitted by the camp director, assistant camp director or camp operator sets forth sufficient reasons which, in the discretion of the commissioner, justifies the issuance of a waiver.

(Added 3-19-1992, eff. 3-30-1992; Amend. of 1-16-2003, eff. 1-17-2003)

Sec. 873.1802. Supervision at off-site swimming areas.

1. *Lifeguard identification.* Children's summer camp lifeguards, while at off-site swimming pools or bathing beaches, shall have their garments identified with the camp's name.
2. *Lifeguard ratio.* A children's summer day camp operator shall provide one (1) qualified lifeguard (as defined in Chapter I, Subpart 7-2 of the New York State Sanitary Code) for every twenty-five (25) bathers when using swimming pools and bathing beaches located on property owned or leased solely for the exclusive use of the children's camp, or at off-site swimming pools and bathing beaches owned and operated by others.
3. *Supervision.* The camp operator, when using off-site swimming facilities, shall establish and enforce a method of bather safety that requires counselors to be in the water while directly supervising nonswimmers at a ratio of 1:10 for children older than eight (8) years of age; 1:8 for children younger than eight (8) years of age; and 1:6 for children younger than six (6) years of age.
4. *Variance.* The commissioner may, on written application, grant a variance from this regulation in a specific case, subject to conditions where such variance is consistent with the general purpose and intent of the code, and where there are practical difficulties or unnecessary hardships in carrying out the strict letter of the provision.

(Added 3-19-1992, eff. 3-30-1992)

Sec. 873.1803. Reserved.

Editor's note(s)—An amendment adopted May 15, 2008, repealed § 873.1803, which pertained to parental notification and derived from 1-16-2003.

Sec. 873.1804. Background checks.

In addition to the requirements contained in section 873.300 et seq., the camp director, assistant camp director or camp operator shall obtain, review and evaluate at least two (2) written references of every prospective employee prior to that employee commencing employment with the camp. The two (2) references shall not include any relative of the

employee. A written record of these satisfactorily completed reference checks shall be maintained on file by the camp director for review by the department.

(Added 1-16-2003, eff. 1-17-2003)

ARTICLE XIX. ANIMAL FACILITIES

Sec. 873.1900. Animal facilities; general purpose.

The purpose of the provisions of this article is to prevent the spread of communicable disease by monitoring the sanitary conditions of those facilities engaged in the business of sheltering, boarding, grooming, training or selling animals.

(Added 7-28-1987, eff. 1-1-1988)

Sec. 873.1901. Animal facilities; definitions.

Whenever used in this code, unless otherwise expressly stated or unless the context or subject matter requires a different meaning, the following terms shall have the respective meanings hereinafter set forth or indicated:

1. *Animal*. The term "animal" means any bird, mammal, reptile, amphibian, fish, arthropod or other invertebrate kept as a pet, for exhibit, work, sale, companionship or protection by a person, possession of which is not prohibited by the commissioner or any federal, state or local laws, rules or regulations.
2. *Animal facility*. The term "animal facility" means any location, establishment, business, place of public exhibition or amusement, stable, salon, kennel, animal shelter or parlor, where live animals are sold, offered for sale, given away, exchanged, bartered, sheltered, boarded, stabled, exhibited, bred, trained or groomed other than a private home where animals are continuously maintained as household pets, zoological park, aquarium, laboratory, educational or scientific institution.
3. *Animal shelter*. The term "animal shelter" means any facility where homeless, stray, abandoned or unwanted animals are received, harbored, maintained or made available for adoption to the general public and which is owned, operated or maintained by a duly incorporated humane society, animal welfare society, society for the prevention of the cruelty to animals or other nonprofit or tax-exempt organization devoted to the welfare, protection or humane treatment of animals.
4. *Animal vendor*. The term "animal vendor" means any person who is in the business of selling, offering for sale, bartering, giving or exchanging live animals.
5. *Communicable disease*. The term "communicable disease" means an infectious, contagious disease transmissible by direct or indirect contact as designated in the State Sanitary Code.

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6. *Dangerous animal.* The term "dangerous animal" means any bird, mammal, reptile, amphibian, arachnid, fish, arthropod or other invertebrate, which has communicable disease or is venomous or hazardous to persons or animals.
 7. *Licensed veterinarian.* The term "licensed veterinarian" means a person who is licensed to practice veterinary medicine in the State of New York.

(Added 7-28-1987, eff. 1-1-88)

Sec. 873.1902. Animal facilities; general provisions.

1. No person who owns, leases or is in charge of an animal facility shall permit, cause or allow any condition to exist thereon which shall constitute a nuisance or be dangerous or prejudicial to public health or animal health or welfare, which shall include but not be limited to taking any necessary steps to control or eliminate rodents, insects and all other vermin.
2. Any person who owns, leases or is in charge of an animal facility shall meet the minimum housing requirements as established by the commissioner, provide ventilation, lighting and plumbing, keep clean the floors, walls, implements and cages and disinfect the cages as often as needed, but in any event not less than once each day.
3. Every animal facility shall have and use equipment, implements and materials such as brooms, hoses, hose connections, vacuum cleaners, covered metal receptacles, brushes, disinfectant and detergent to maintain sanitary conditions.

(Added 7-28-1987, eff. 1-1-1988)

Sec. 873.1903. Animal facilities; permit to operate.

No animal vendor or person who owns, leases or otherwise engages in the business of maintaining an animal facility shall do so without a permit issued by the commissioner.²³

(Added 7-28-1987, eff. 1-1-88)

Sec. 873.1904. Animal facilities; construction; submission of plans.

1. Any person who intends to make, install, construct or place in operation a new animal facility, or any part thereof, or who intends to make renovations to an existing animal facility, or any part thereof, shall submit to the department an application accompanied by plans and specifications for review and approval by the department.

²³**31. Editor's Note:** See Rules and Regulations of the Commissioner Policy No. AF 1-87, effective 1-1-1988, which is on file in the office of the Commissioner of Health.

2. Plans and specifications.

- a. All plans and specifications for the construction of a new animal facility shall be prepared and certified, signed and sealed by an engineer or architect licensed and registered in the State of New York.
- b. All plans and specifications for the renovation or modification of an existing animal facility, or any part thereof, shall be prepared and certified, signed and sealed by an engineer or architect licensed and registered in the State of New York; provided, however, that the provisions of this subsection may be waived when in the opinion of the commissioner renovations are minor in nature.

3. Application for such approval of plans and specifications shall be made on forms prescribed by or acceptable to the department.

4. Plans and specifications for construction of a new animal facility or the modification, reconstruction or renovation of an existing animal facility shall be in accordance with the requirements of all state, city and municipal laws, codes, rules and regulations.

(Added 7-28-1987, eff. 1-1-1988)

Sec. 873.1905. Animal facilities; dangerous animals; maintenance.

No person shall keep, house, stable, board, shelter, breed, train, groom or otherwise maintain any dangerous animal in any animal facility other than a zoological park or aquarium, laboratory or education or scientific institution without the written authorization of the commissioner, except farm animals and fowl on a lawful farm area exempt from provisions of this section.

(Added 7-28-1987, eff. 1-1-1988)

Sec. 873.1906. Animal facilities; prohibited sale; other restrictions.

1. No person shall sell, offer for sale, give, exchange or barter any dangerous animal or other animal that is found by the commissioner to be prejudicial to the public health.
2. No person shall sell, offer for sale, give, exchange or barter any chicks or ducklings less than two months of age in any quantity less than six dozen.
3. Records.
 - a. An animal vendor shall maintain and keep records for two years of purchases, sales, transfers, receipt and other disposition of all dogs or cats.
 - b. Whenever a dog or cat is purchased, sold, transferred, received or otherwise disposed of, the animal vendor shall make a dated entry in the record, which shall contain the name and address of the person to whom it was sold or transferred or from whom it was received and other pertinent information regarding any other disposition,

including but not limited to a complete description of the dog or cat, its age, sex and breed.

4. No animal vendor shall sell, offer for sale, give, exchange or barter an animal which is suspected as having psittacosis or ornithosis, canine distemper, feline distemper, ringworm, canine parvo virus, feline leukemia or strongyloidiasis or such other disease deemed serious by the commissioner; nor shall be shelter, board, stable or otherwise maintain such animal unless it is being medically treated for such condition and under the care or supervision of a veterinarian licensed to practice in the State of New York.
5. No animal vendor shall sell, offer for sale, give, exchange or barter any dog or cat unless such animal has been treated with the appropriate antehelminthic for the control of roundworms and hookworms.

(Added 7-28-1987, eff. 1-1-1988)

Sec. 873.1907. Animal facilities; control of pet birds.

1. Any animal vendor who deals in psittacine or other pet birds shall keep records of such transactions for a period of two years, which shall include the number and species of birds received, purchased, sold, exchanged or given away, the tag number for each bird if one is present, the date of each transaction, the name and address from whom received or purchased and to whom sold, bartered, exchanged or given away, such records to be available for inspection by a representative of the department at all times.
2. Any animal vendor having custody or care of any bird of the psittacine family shall notify the department either verbally or in writing immediately with regard to any unusual illness or death concerning such bird.
3. Any person having custody or care of any bird of the psittacine family shall report to the department either verbally or in writing, immediately upon confirmation of diagnosis, all cases of psittacosis in such birds.
4. When in the opinion of the commissioner a pet bird is suspected to be a source of human disease, is infected with a disease or exposed to a disease which is a potential source of human disease, or otherwise constitutes a danger or is prejudicial to the public health, the commissioner may order that the pet bird be quarantined at the owner's expense, and such quarantine shall remain in effect until the department is satisfied that the quarantined pet bird is no longer a hazard to the public health, at which time the commissioner shall in writing lift the quarantine.
5. For the purposes of determining whether a quarantine should be lifted, the commissioner may consider the following:
 - a. The results of laboratory tests specified by the department in writing in a laboratory acceptable to the department of a representative sample of birds submitted to the laboratory by the owner for testing at his own expense.

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- b. The condition of the quarantined bird after treatment with specified medication or medicated feed, or both, for a period of 45 consecutive days, a record of which shall be maintained by the owner and submitted to the department.
 - c. Destruction by the owner at his expense of the quarantined bird in a manner acceptable to the department and in the presence of a representative of the department, after which:
 - i. The owner shall make available upon request the bird for further examination; or
 - ii. The owner shall dispose of the bird in a manner acceptable to the department and in the presence of a representative of the department; and
 - iii. The owner shall at his own expense thoroughly disinfect the premises formerly occupied by the quarantined bird.

(Added 7-28-1987, eff. 1-1-1988)

Sec. 873.1908. Animal facilities; standards.

All animal facilities shall comply with all applicable codes, rules, regulations and policies of the department²⁴ and all federal and state agencies.

(Added 7-28-1987, eff. 1-1-1988)

Sec. 873.1909. Animal facilities; severability.

If any provision of this article is held invalid, such invalidity shall not affect other provisions which shall be given effect without the invalid provision.

(Added 7-28-1987, eff. 1-1-1988)

ARTICLE XX. SMOKING; CLEAN INDOOR AIR

Sec. 873.2001. Purpose.

The purpose of this article is to protect people from the deleterious effects of second-hand or environmental tobacco smoke by prohibiting or regulating smoking in certain indoor places.

(Added 4-1-1996, eff. 7-1-1996)

²⁴**32. Editor's Note:** See Rules and Regulations of the Commissioner Policy No. AF 2-87, effective 1-1-1988, which is on file in the office of the Commissioner of Health.

Sec. 873.2011. Definitions.

Whenever used in this article the following terms shall have the meaning hereinafter set forth or indicated:

1. *Auditorium* means the part of a public building where an audience sits but does not include any corridors, hallways or lobbies adjacent thereto.
2. *Bar* means any indoor area open to the public devoted to the sale and service of alcoholic beverages for on-premises consumption and where the service of food is only incidental to the consumption of such beverages. Service of food shall be considered incidental if the food service generates less than forty (40) percent of the total annual gross sales. Any bar that generates forty (40) percent or more of total annual gross sales from the sale of food for on-premises consumption shall be a food service establishment.
3. *Bar area of a food service establishment* means any indoor area including bar stools, tables and chairs of a food service establishment, devoted to the sale and service of alcoholic beverages for on-premises consumption and where the service of food is only incidental to the consumption of such beverages. Service of food shall be considered incidental if the food service in this area constitutes less than forty (40) percent of total gross sales of the area.
4. *Buffer zone* shall mean six (6) feet of continuous space or a continuous barrier (with necessary openings for ingress and egress) of at least fifty-six (56) inches in height separating the bar area where smoking is allowed from the rest of the nonsmoking food service establishment. No smoking is allowed in the buffer zone.
5. *Employer* shall mean any person, partnership, associate, corporation or nonprofit entity which employs one (1) or more persons.
6. *Factory* means any mill or other manufacturing establishment where one (1) or more persons are employed in manufacturing, including making, altering, repairing, finishing, bottling, canning, cleaning or laundering any article or thing.
7. *Food service establishment* means any indoor area open to the public or portion thereof in which the business is the sale of food for on-premises consumption and which has an indoor seating capacity of one or more persons including, but not limited to restaurants, cafeterias, coffee shops, diners, sandwich shops or short order cafes. A food service establishment shall not include the bar area of such establishment.
8. *Indoor area open to the public* means any indoor area or portion thereof generally accessible to the public.

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9. *Place of employment* means any indoor area or portion thereof under the control of an employer in which employees of the employer perform services but which is not generally accessible to the public.
 10. *Public building* means any building owned or operated by any county, city, town, village or any other political subdivision, public improvement or special district, public authority, commission, agency or public benefit corporation; or any other separate corporate instrumentality or unit of local government.
 11. *Smoke-free work area* means an enclosed indoor area in a place of employment where no smoking occurs. Such area shall be clearly designated, and separate from any smoking area.
 12. *Smoking* means burning of a lighted cigar, cigarette, pipe or any other matter of substance which contains tobacco.
 13. *Smoking area* means an enclosed indoor area in which smoking is permitted. Such smoking area shall be clearly designated and separate from any area in which smoking is not permitted. In a place of employment, the smoking area shall be separated from a smoke-free work area by walls or some other means, equally effective in reducing the effects of smoke on the smoke-free work area, other than ventilation systems or air cleaning devices.
 14. *Tobacco business* means a sole proprietorship, corporation, partnership or other enterprise in which the primary activity is the sale, manufacture or promotion of tobacco, tobacco products and accessories either at wholesale or retail, and in which the sale, manufacture or promotion of other products is merely incidental.
 15. *Waiting area* means any indoor area where people are in line or otherwise waiting for a dining seat in a food service establishment. It shall include the bar area of a food service establishment if people are directed to wait there.
 16. *Warehouse* means any building or structure used for the purpose of storing merchandise or commodities.
 17. *Work area* means an area in a place of employment where one (1) or more employees are routinely assigned and perform services for their employer.

(Added 4-1-1996, eff. 7-1-1996)

Sec. 873.2021. Smoking restrictions.

1. Smoking shall not be permitted and no person shall smoke in the following indoor areas open to the public:
 - (A) Auditoriums;
 - (B) Elevators;

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- (C) Gymnasiums;
 - (D) Enclosed indoor areas open to the public containing a swimming pool;
 - (E) Indoor areas open to the public in food stores provided, however, that any separate or distinct portion or part of such establishment which is dedicated to the sale of food for on-premises consumption shall be governed by the provisions of subdivision 5. of this section;
 - (F) Classrooms, provided however, that a classroom being used or occupied, temporarily or permanently, for purposes other than instruction or training shall be governed by the provisions of subdivision 2. of this section;
 - (G) Public means of mass transportation, and when occupied by passengers, buses, vans, taxicabs and limousines; and
 - (H) Ticketing and boarding areas in public transportation terminals.
2. Except as provided in subdivisions 3., 4. and 5. of this section, smoking shall not be permitted and no person shall smoke in any indoor area open to the public, including but not limited to any indoor area open to the public in:
- (A) All public and private schools, including elementary and secondary schools, colleges, universities and other educational and vocational institutions;
 - (B) General hospitals and residential health care facilities as defined in the New York State Public Health Law, and other health care facilities licensed by the state in which persons reside, provided, however, that cafeterias and lunchrooms in such facilities shall be governed by the provisions of paragraph (C) of subdivision 6. of this section;
 - (C) Public buildings, provided, however, that an employee whose work area is in an indoor area open to the public shall be governed by the provisions of subdivision 6. of this section;
 - (D) Theaters;
 - (E) Museums;
 - (F) Libraries;
 - (G) Retail stores in which goods, wares or merchandise are offered for sale;
 - (H) Commercial establishments used for the purpose of carrying on or exercising any trade, profession, vocation or charitable activity;
 - (I) Indoor arenas;
 - (J) Waiting rooms and waiting areas;
 - (K) Banks and other financial institutions;
 - (L) Restrooms;

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- (M) Waiting areas in public transportation terminals; and
- (N) Service areas in cafeterias and businesses selling food for on-premises and off-premises consumption.
3. The owner, operator or manager of an indoor area open to the public subject to subdivision 2. of this section may designate a smoking area or areas. Such smoking area shall not include any of the indoor areas open to the public set forth in subdivision 1. of this section.
4. (A) The owner, operator or manager of a bowling establishment may permit smoking in the concourse area, which is the area directly behind and immediately contiguous to the bowler settee area, but shall provide a nonsmoking area constituting at least 25 percent of the square footage of the concourse area.
- (B) The organizer or sponsor of bingo shall provide a contiguous nonsmoking area sufficient to meet patron demand. If at least 50 percent of seating capacity is designated for nonsmokers, demand shall be deemed to have been met. The organizer or sponsor may not determine that no such demand exists. Notice shall be prominently posted at each entrance stating that a nonsmoking section is available.
5. The following smoking restrictions and prohibitions shall apply at food service establishments:
- (A) Smoking shall not be permitted and no person shall smoke in the indoor dining, waiting and other public areas of food service establishments. This prohibition shall not pertain to the bar area of the food service establishment or a bar as defined in this article. A buffer zone where smoking is prohibited shall be maintained between the bar area where smoking is allowed and the rest of the food service establishment where smoking is prohibited.
6. Each employer shall adopt and implement a written smoking policy. The policy shall apply only to a place of employment as defined in section 873.2011 9. of this article and shall require at least the following:
- (A) That employers shall provide nonsmoking employees with a smokefree work area;
- (B) That employers may set aside a work area for smoking if all employees assigned to the work area agree to the designation;
- (C) That employers shall provide for contiguous nonsmoking areas in employee cafeterias, lunchrooms and lounges. The contiguous nonsmoking areas in employee cafeterias and lunchrooms shall be sufficient to meet employee demand. An employer may not determine that no such demand exists. If 70 percent of the indoor seating capacity is designated as a nonsmoking area, employee demand shall be deemed to have been met. The designation of less than 70 percent of the indoor seating capacity for dining of a food service establishment as a nonsmoking area shall not create the presumption of noncompliance with the provisions of this subdivision;

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- (D) That smoking shall be prohibited in auditoriums, gymnasiums, restrooms, elevators, classrooms, hallways, employee medical facilities and rooms or areas which contain photocopying equipment or other office equipment used in common, and in company vehicles occupied by more than one person unless the occupants of such vehicle agree that smoking may be permitted.
 - (E) That smoking shall be prohibited in conference rooms and meeting rooms, unless everyone in that room agrees that smoking may be permitted;
 - (F) That an employer may designate a separate enclosed room or rooms not open to the public for use as a smoking area;
 - (G) That employers shall prominently post the smoking policy in the workplace, and supply a written copy upon request to any existing or prospective employee;
 - (H) An employer shall not be required to make any expenditures or structural changes to create a smoke-free work area. In the event an employer cannot, after using its best efforts, comply with an employee's request for a smoke-free work area, the employer shall designate that employee's work area as a smoke-free work area; and
 - (I) Any provisions in a smoking policy that are more restrictive than the minimum requirements set forth in this subdivision shall, if a collective bargaining unit exists, be subject to applicable law governing collective bargaining.

(Added 4-1-1996, eff. 7-1-1996)

Sec. 873.2031. Posting of signs.

1. "Smoking" or "no smoking" signs, or the international "no smoking" symbol, which consists of a pictorial representation of a burning cigarette enclosed in a circle with a bar across it, shall be prominently posted and properly maintained where smoking is regulated by this article, by the owner, operator, manager or other person having control of such indoor area.
2. The owner, operator or manager of a hotel or motel that chooses to develop and implement a smoking policy for rooms rented to guests shall post a notice at the reception area of the establishment as to the availability, upon request, of rooms in which no smoking is allowed.

(Added 4-1-1996, eff. 7-1-1996)

Sec. 873.2041. Smoking restrictions inapplicable.

This article shall not apply to:

1. Private homes, private residences and private automobiles;

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2. Any indoor area where private social functions are being held when seating arrangements are under the control of the sponsor of the function and not the owner, operator, manager or person in charge of such indoor area;
 3. Any indoor area open to the public exclusively reserved for conventions and trade shows if the sponsor or organizer gives notice in any promotional material or advertisements that smoking will not be restricted, and prominently posts notice at the entrance to the convention or trade show advising the public that smoking will not be restricted;
 4. A hotel or motel room rented to one or more guests;
 5. Tobacco businesses;
 6. Limousines under private hire by an individual or corporation; and
 7. Wholly or partially enclosed private boxes in indoor arenas.

(Added 4-1-1996, eff. 7-1-1996)

Sec. 873.2051. General provisions.

1. Nothing in this article shall be construed to deny the owner, operator or manager of a place covered by this article the right to designate the entire place, or any part thereof, as a nonsmoking area.

(Added 4-1-1996, eff. 7-1-1996)

Sec. 873.2061. Violations.

1. It shall be unlawful for any person, firm, corporation or other entity that owns, manages, operates or otherwise controls the use of an indoor area open to the public in which smoking is prohibited or restricted pursuant to section 873.2021 of this article to fail to comply with the provisions of this article. For violations of this subdivision, it shall be an affirmative defense that during the relevant time period actual control of the indoor area open to the public was not exercised by the respondent, but rather by a lessee, the sublessee or any other person. To establish an affirmative defense, the respondent shall submit an affidavit and may submit any other relevant proof indicating that the respondent did not exercise and other proof indicating that the respondent did not exercise actual control of said area during the relevant time period. Such affidavit and other proof shall be mailed by certified mail to the appropriate enforcement officer within 30 days of receipt of such notice of violation.
2. It shall be unlawful for any person, firm, corporation or other entity that owns, manages or operates a food service establishment or bar in which smoking is restricted or prohibited to fail to designate areas pursuant to subdivision 5. of section 873.2021 of this article, or to fail to make good faith efforts to ensure that employees responsible for seating

arrangements substantially comply with the requirements of this article. In actions brought for violations of subdivision 5. of section 873.2021 of this article, it shall be an affirmative defense that notice of a violation was provided to a customer.

3. It shall be unlawful for an employer whose place of employment is subject to subdivision 6. of section 873.2021 of this article to fail to comply with the provisions of such subdivision. For violations of subdivision 6. of section 873.2021 of this article, it shall be an affirmative defense that the employer has made good faith efforts to ensure that employees comply with the provisions of any policy adopted pursuant to subdivision 6. of section 873.2021 of this article.
4. It shall be unlawful for any person to smoke in any area where smoking is prohibited or restricted under section 873.2021 of this article.

(Added 4-1-1996, eff. 7-1-1996)

Sec. 873.2071. Enforcement.

1. For the purpose of this article the term "Enforcement Officer" shall mean the Commissioner of Health of Westchester County or his designated representatives.
2. Any person who desires to register a complaint under this article may do so with the appropriate Enforcement Officer.
3. The owner, manager, operator or other person having control of any indoor area open to the public, food service establishment or place of employment under this article, shall inform, or shall designate an agent who shall be responsible for informing individuals smoking in a area in which smoking is not permitted that they are in violation of this article.

(Added 4-1-1996, eff. 7-1-1996)

Sec. 873.2081. Waiver.

1. The Enforcement Officer may grant a waiver from the application of a specific provision of this article, provided that prior to the granting of any such waiver the applicant for a waiver shall establish that:
 - (A) Compliance with a specific provision of this article would cause undue financial hardship; or
 - (B) Other factors, including but not limited to the physical layout, exist which would render strict compliance unreasonable.
2. Notwithstanding subdivision 1. of this section, the Enforcement Officer shall grant a waiver from the application of subdivision 6. of section 873.2021 of this article to any applicant who as the owner, operator or manager of a factory or warehouse demonstrates that the

effects of smoking on employees in work areas have been reduced to a minimal degree by factors, including but not limited to, the physical layout or size of such factory or warehouse.

3. Subdivision 2. of this section shall not apply to work areas in separate enclosed offices, employee cafeterias, lunchrooms or lounges in a factory or warehouse.
4. Every waiver granted shall be subject to such conditions or restrictions as may be necessary to minimize the adverse effects of the waiver upon persons subject to an involuntary exposure to second-hand smoke and to ensure that the waiver is consistent with the general purpose of this article.

(Added 4-1-1996, eff. 7-1-1996)

Sec. 873.2091. Penalties.

The Board of Health may impose civil penalties for violations of this article in accordance with the provisions set forth in Article II of Chapter 873 of this sanitary code.

(Added 4-1-1996, eff. 7-1-1996)

Sec. 873.2092. Limitation of causes of action.

An employer, administrator, manager, owner or operator of any indoor area, food service establishment, or place of employment regulated by this article who complies or fails to comply with the provisions of this article shall not be subject to any legal liability or action solely as a result of such compliance or noncompliance except as provided in section 873.2091 of this article. Nothing in any other section of this article shall be construed to create, impair, alter, limit, modify, enlarge, abrogate or restrict any theory of liability upon which any person may be held liable to any other person for exposure to smoke.

(Added 4-1-1996, eff. 7-1-1996)

Sec. 873.2093. Rules and regulations.

The commissioner shall not promulgate any rules or regulations to effectuate the provisions of section 873.2011, subdivision 6. of section 873.2021 or subdivision 1. of section 873.2031 of this article, the commissioner shall not promulgate any rules or regulations that create, limit or enlarge any smoking restrictions.

(Added 4-1-1996, eff. 7-1-1996)

ARTICLE XXI. ADDITIONAL FEES

Sec. 873.2100. Migrant labor camp application fee.

Every application for a permit or for a renewal of a permit to operate a Migrant Labor Camp pursuant to article XI, section 873.1171, subsection 1, of the Westchester County Sanitary Code shall be accompanied by a nonrefundable application fee \$130.00.

(Added 11-20-1980, eff. 1-1-1981; amended 1-28-1988, eff. 7-1-1988; 12-20-1990, eff. 1-1-1991; 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019

Sec. 873.2101. Temporary residences; application fees.

Every application for a permit or for a renewal of a permit to operate a temporary residence pursuant to article XI, section 873.1181 of the Westchester County Sanitary Code shall be accompanied by a nonrefundable application fee based on the temporary residence's rental capacities and facilities as specified in the following tables:

Temporary Residence (Number of Rental Units or Lots)	Application Fee
1 to 20	\$210.00
21 to 50	\$320.00
51 to 100	\$410.00
101 to 200	\$550.00
201 or more	\$780.00

Temporary residences with food service establishments are required to pay the following cumulative charges in addition to the basic rental capacity charge:

Food Service Establishment (Based on seating capacity)	Fee
0 to 100	\$760.00
101 to 200	\$1,080.00
201 or more	\$1,140.00
Frozen dessert	\$25.00

Temporary residences with swimming pools or bathing beaches are required to pay the following cumulative charges in addition to the basic rental capacity charges and the food service establishment charges:

Type	Fee per Year
Swimming pool 50 persons or greater	\$670.00
Swimming pool less than 50 persons	\$330.00
Spa/whirlpool	\$330.00

Wading pool	\$330.00
Bathing beaches	\$330.00

(Added 11-20-1980, eff. 1-1-1981; amended 1-28-1988, eff. 7-1-1988; 12-20-1990, eff. 1-1-1991; 10-17-1991, eff. 11-1-1991; 3-19-1992, eff. 3-30-1992; 11-19-1992, eff. 1-1-1993; 5-15-2003, eff. 5-16-2003; 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019

Sec. 873.2102. X-ray installations/inspections.

Every X-ray installation that requires inspection pursuant to Part 16.10 of Chapter I of the New York State Sanitary Code must submit a nonrefundable inspection fee as specified in the following table:

Inspection Frequency	Fee
Every 2 years	\$670.00 per first unit, plus \$210.00 per additional unit
Every 3 years	\$500.00 per first unit, plus \$170.00 per additional unit
Every 5 years	\$230.00 per first unit, plus \$105.00 per additional unit

(Added 11-20-1980, eff. 1-1-1981; amended 4-18-1991, eff. 5-1-1991; 6-16-1994, eff. 7-1-1994; 5-15-2003, eff. 5-16-2003; 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012 Amended 6-20-2019 eff 8-1-2019)

Sec. 873.2103. Food service establishment; application fees.

Every application for a permit or for renewal of a permit for a food service establishment that will be operated for a period of 15 days or more in a calendar year pursuant to article V, section 873.441 of the Westchester County Sanitary Code, shall be accompanied by a nonrefundable application fee as specified in the following table:

Food Service Establishment	Application Fee
Eating place A	
Seats 0—100	\$750.00
Seats 101—200	\$1,080.00
Seats 201+	\$1,420.00
Eating place B	
Seats 0—100	\$500.00

Seats 101—200	\$740.00
Seats 201+	\$940.00
Eating place C	
Seats 0—100	\$420.00
Seats 101—200	\$550.00
Seats 201+	\$730.00
Delicatessen A	\$540.00
Delicatessen B	\$480.00
Delicatessen C	\$420.00
Ice manufacturer	\$160.00
Commissary	\$420.00
Caterer	\$520.00
Frozen dessert manufacturer	\$25.00
Mobile food unit	\$320.00
Bakery	\$420.00
Vending machine	\$50.00
Eating place school A	
Seats 0—100	\$540.00
Seats 101—200	\$620.00
Seats 201+	\$760.00
Eating place school B	
Seats 0—100	\$420.00
Seats 101—200	\$540.00
Seats 201+	\$670.00
Eating place school C	
Seats 0—100	\$330.00
Seats 101—200	\$460.00
Seats 201+	\$590.00

Every application for a permit for a food service establishment that will be operated for a period of less than 15 days in a calendar year pursuant to article V, section 873.441 of the Westchester County Sanitary Code, shall be accompanied by a nonrefundable application fee of \$70.00.

Food service establishment plans submitted pursuant to article V, section 873.421, subsection 1 of the Westchester County Sanitary Code shall be accompanied by a nonrefundable fee as specified in the following table:

Food Service Establishment Seating Capacity	Fee
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0 to 100	\$250.00
101 to 200	\$330.00
201 or more	\$420.00

In addition, a \$70.00 fee shall accompany each subsequent review of plans for the same establishment until such plans are approved.

(Added 11-20-1986, eff. 11-20-1986; amended 1-28-1988, eff. 7-1-1988; 12-20-1990, eff. 1-1-1991; 10-17-1991, eff. 11-1-1991; 11-19-1992, eff. 1-1-1993; 5-15-2003, eff. 5-16-2003; 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-19 eff 8-1-2019)

Sec. 873.2104. Realty subdivision application fees.

Every realty subdivision application requiring approval pursuant to chapter 873, article X, of the Sanitary Code shall be accompanied with a nonrefundable application fee as specified in the following table:

Type of Lot or Building	Application Fee
Lots or buildings serviced by public sewers	\$160.00 per lot, per building
Lots or buildings with separate sewage systems	\$250.00 per lot, per building
Condominiums or cooperatives serviced by public sewers	\$160.00 per building
Condominiums or cooperatives with separate sewage systems	\$250.00 per building

(Added 2-26-1987, eff. 4-1-1987; amended 5-15-2003, eff. 5-16-2003; 1-21-2010 eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019

Sec. 873.2105. Bathing facilities; fees.

Every application for a bathing beach or swimming pool requiring construction approval from the commissioner pursuant to 6-2.8 and 6-1.8 of Part 6, Chapter I of the New York State Sanitary Code shall be accompanied by a nonrefundable application fee as specified in the following table:

Facility	Fee
Swimming pool	\$830.00 per pool
Wading pool	\$670.00 per pool

Every application for a swimming pool and bathing beach pursuant to Chapter 873, article XII, sections 873.1200 and 873.1201, respectively, of the Sanitary Code shall be accompanied with a nonrefundable application fee as specified in the following table:

Facility	Annual Fee
Swimming pool 50 persons or greater	\$670.00
Swimming pool less than 50 persons	\$330.00
Spa/whirlpool	\$330.00
Wading pool	\$330.00
Bathing beach	\$330.00

(Added 11-12-1987, eff. 11-12-1987; amended 3-19-1992, eff. 3-30-1992; 5-15-2003, eff. 5-16-2003; 1-21-2010 eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019

Sec. 873.2106. Mobile home park application fees.

Every application for a permit or for a renewal of a permit to operate a mobile home park pursuant to article XI, section 873.1191, of the Westchester County Sanitary Code shall be accompanied by a nonrefundable application fee as specified in the following table:

Number of Sites	Fee
Less than 75	\$130.00
75 or more	\$230.00

(Added 1-28-1988, eff. 7-1-1988; amended 12-20-1990, eff. 1-1-1991; 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019

Sec. 873.2107. Public function application fees.

Every application for a permit to operate a public function pursuant to article XI, section 873.1120, of the Westchester County Sanitary Code shall be accompanied by a nonrefundable application fee as specified in the following tables:

- a. One to nine public functions per year:

Number of Health Care Units	Fee
Less than 3	\$120.00
3 or more	\$240.00

- b. Ten or more public functions per year:

Number of Health Care Units	Fee
Less than 3	\$360.00

3 or more	\$720.00
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(Added 2-25-1988, eff. 4-1-1988; amended 12-20-1990 eff. 1-1-1991; 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019)

Sec. 873.2108. Animal facility; fees.

Every application for a permit to operate an animal facility pursuant to article XIX of the Westchester County Sanitary Code shall be accompanied by a nonrefundable application fee as specified in the following table:

Facility	Fee
Animal wholesaler	\$330.00
Pet shop	\$240.00
Stable	\$120.00
Kennel	\$120.00
Grooming parlor or salon	\$120.00
Animal breeder	\$120.00
Animal trainer	\$120.00
Animal shelter	No fee
Mobile Animal	\$200.00

Every application for a permit to operate an animal facility for a period of less than 15 days in a calendar year shall be accompanied by a nonrefundable application fee of \$160.00.

Animal facility plans submitted to the commissioner for approval shall be accompanied by a nonrefundable fee of \$85.00.

In addition, a fee of \$40.00 shall accompany each subsequent review of plans for the same establishment until such plans are approved.

(Added 4-28-1988, eff. 5-1-1988; amended 12-20-1990, eff. 1-1-1991; 5-15-2003, eff. 5-16-2003; 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019)

Sec. 873.2109. Air quality; fees.

Every submittal for a written approval to undertake the construction or modification of an air contamination source pursuant to article XIII, section 873.1303 of the Westchester County Sanitary Code shall be accompanied by a nonrefundable fee as specified in the following table:

Source	Fee Per Unit
Combustion installation	\$500.00
Incinerator	\$670.00

Process	\$830.00
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Every application for a certificate to operate an air contamination source pursuant to article XIII, section 873.1306 of the Westchester County Sanitary Code shall be accompanied by a nonrefundable fee as specified in the following table:

Source Fee Per Unit	Annual
Combustion installation	\$0.00
Incinerator	\$0.00
Process	\$330.00

Every application for a permit to operate a dry-cleaning facility pursuant to article XIII, section 873.1327 of the Westchester County Sanitary Code shall be accompanied by a nonrefundable fee of \$210.00.

(Added 1-17-1991, eff. 2-1-1991; amended 3-18-1993, eff. 3-18-1993; 5-15-2003, eff. 5-16-2003; 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019)

Sec. 873.2110. Transportation of refuse; fee.

Every application for a permit for the removal, collection or transportation of refuse pursuant to the provisions of article VIII, section 873.801, of the Westchester County Sanitary Code shall be accompanied by a nonrefundable fee of \$200.00 per vehicle.

(Added 12-20-1990, eff. 1-1-1991; amended 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019

Sec. 873.2111. Separate disposal system; fee.

Every submittal for written approval to undertake the construction of a separate disposal system for a single-family residence pursuant to the provisions of article VIII, section 873.726 of the Westchester County Sanitary Code shall be accompanied by a nonrefundable fee of \$500.00 per system.

Submittal for written approval to undertake the construction of a separate disposal system other than a single-family residence pursuant to the provision of article VIII, section 873.726 of the Westchester Sanitary Code shall be accompanied by a nonrefundable fee of \$40.00 per 100 gallons of design flow. The minimum fee shall be \$670.00, and the maximum fee shall \$4,160.00 for any separate disposal system approval under this section.

The fee for each onsite waste water evaluation inspection by this department \$200.00.
Licensing of septage removal vehicle, septic system contractors and septage collectors.

a)Every application for a permit to license a septage removal vehicle pursuant to Article VII, Section 873.723 of the Westchester County Sanitary Code shall be accompanied by:

- An original nonrefundable application fee of \$240 per motor vehicle
- Biennial licensed/renewal fee of \$240 per motor vehicle

b)Every application for a permitting to license a septic system contractor or a septage collector pursuant to the provisions of Article VII, Section 73.722 of the Westchester County Sanitary Code shall be accompanied by

- An original nonrefundable fee of \$240 per septic contractor applicant; \$120 per septage collector supplicant
- \$120 per applicant for initial septic system contractor exam; \$25 for reissuance of exam or renewal exam.
- Biennial license/renewal fee of \$240 per licensed septic contractor; \$120 per licensed septage hauler.

(Added 12-20-1990, eff. 1-1-1991; amended 11-19-1992, eff. 1-1-1993; 5-15-2003, eff. 5-16-2003; 5-18-2006; 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019)

Amended 6-20-2019 eff 8-1-2019)

Sec. 873.2112. Individual water supply system; fee.

Every submittal for written approval to undertake the construction of an individual water supply system pursuant to the provisions of article VII, section 873.708, of the Westchester Sanitary Code shall be accomplished by a nonrefundable fee of \$250.00 per system.

(Added 12-20-1990, eff. 1-1-1991; amended 5-15-2003, eff. 5-16-2003; 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019)

Sec. 873.2113. Public and private water system; fees.

Every submittal for written approval to undertake the construction or modification of a public or private water system pursuant to the provisions of article VII, section 873.707, of the Westchester County Sanitary Code shall be accompanied by a nonrefundable fee based on the following:

Realty subdivision: \$250.00 per lot to be served or \$35.00 per 100 gallons of the design flow of a water treatment facility, whichever is greater, with a maximum fee of \$34,650.00.

Other than realty subdivision: \$840.00 except:

\$420.00 for water main construction or modification up to 500 feet in total length. \$40.00 per 100 gallons of the design flow for a water treatment facility, with a minimum fee of \$420.00

and with a maximum fee of \$41,580.00. \$840.00 for minor modifications at existing water treatment facility.

(Amended 5-15-2003, eff. 5-16-2003; 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019

Sec. 873.2114. Pollution discharge; fees.

Every submittal for written approval to undertake the construction or modification of a pollution discharge pursuant to the provisions of article XXII, section 873.2202, of the Westchester County Sanitary Code shall be accompanied by a nonrefundable fee based on the following:

Realty subdivision: \$170.00 per lot to be served or \$40.00 per 100 gallons of design flow of a wastewater treatment facility, whichever is greater, with a maximum fee \$41,580.00.

Other than realty subdivision: \$840.00 except: \$420.00 for sewer main construction or modification up to 500 feet in total length. \$40.00 per 100 gallons of the design flow for a wastewater treatment facility, with a minimum fee of \$420.00 and with a maximum fee of \$41,580.00. \$840.00 for minor modifications at existing wastewater treatment facility.

(Added 12-20-1990, eff. 1-1-1991; amended 5-15-2003, eff. 5-16-2003; 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019

Sec. 873.2115. Water pollution discharge certificate; application fee.

Every application for a certificate to operate a water pollution discharge pursuant to article XXII, section 873.2204 of the Westchester County Sanitary Code shall be accompanied by a nonrefundable application fee based on gallons per day (GPD) of design flow as specified in the following table:

Gallons Per Day (GPD)	Fee
Less than 30,000	\$ 250.00
30,000—100,000	\$ 420.00
100,001—500,000	\$ 750.00
500,001—2,000,000	\$ 1,160.00
Greater than 2,000,000	\$ 1,500.00

(Added 11-19-1992, eff. 1-1-1993; amended 5-15-2003, eff. 5-16-2003; 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019

Sec. 873.2116. Public or private water systems; application fee.

Every application for a permit to operate a public or private water system pursuant to article VII, section 873.710 of the Westchester County Sanitary Code shall be accompanied by a nonrefundable application fee based on the population served as specified in the following table:

Population Served	Fee
0—100	\$ 130.00
101—10,000	\$ 330.00
10,001—30,000	\$ 590.00
30,001—100,000	\$ 1000.00
Greater than 100,000	\$ 1,660.00

(Added 11-19-1992, eff. 1-1-1993; amended 5-15-2003, eff. 5-16-2003; 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019)

Sec. 873.2117. Cross-connection control; fee.

Every application for approval of a cross-connection control device to a public or private water system pursuant to article VII, section 873.707 of the Westchester County Sanitary Code shall be accompanied by a nonrefundable fee of \$180.00.

(Added 11-19-1992, eff. 1-1-1993; amended 5-15-2003, eff.; 5-16-2003; 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019)

Sec. 873.2118. Missed field appointments; fee.

At the discretion of the commissioner, an administrative fee of \$70.00 may be charged to permit or plan approval applicants who fail to attend scheduled field appointments and have not cancelled the appointment at least 24 hours in advance.

(Added 5-18-2006; amended 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019)

Sec. 873.2119. Child day care facility inspection; fees.

The fee for an inspection of a child day care facility pursuant to a license or registration by the New York State Office of Children and Family Services shall be \$240.00.

(Added 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019)

Sec. 873.2120. Requested inspection; fees.

The fee for an optional inspection not otherwise required by code or policy shall be \$120.00.

(Added 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019)

Sec. 873.2121. Permits, certificates or registrations; late fees.

The late fee for renewing an operating permit or certificate or registration after its expiration date shall be \$100.00. This late fee is in addition to the regular permit, certificate or registration renewal fee and in addition to any civil penalty assessed by the board of health for operating without a valid permit, certificate or registration.

(Added 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019)

Sec. 873.2122. Waiver.

The commissioner may waive, in full or part, the requirements of any section of this article, provided that the application submitted sets forth sufficient reasons which, in the opinion of the commissioner, justifies the issuance of a waiver.

(Added 1-21-2010, eff. 5-25-2010; Amd. of 5-17-2012) Amended 6-20-2019 eff 8-1-2019)

ARTICLE XXII. WATER POLLUTION CONTROL

Sec. 873.2200. Water pollution control; definitions.

Whenever used in this article, unless otherwise expressly stated or unless the context of subject matter requires a different meaning, the following terms shall have the respective meanings hereinafter set forth or indicated:

1. *Industrial wastes.* The term "industrial wastes" means any liquid, gaseous, solid or waste substance or combination thereof resulting from any direct or indirect process of industry, manufacturing, trade, business or from the development or recovery of any natural resources.
2. *Offensive material.* The term "offensive material" means any sewage, fecal matter, manure, offal, animal vegetable waste, sludge or garbage, dead animal, meat wastes, blood, tankage, brine or any putrescible organic matter, including but not limited to the contents of privies, cesspools, septic tanks or chemical toilets, either in liquid or solid state, or any other substance or liquid that is or may be dangerous or prejudicial to public health or to the environment.
3. *Other wastes.* The term "other wastes" means decayed wood, sawdust, shavings, bark, sand, lime, cinders, ashes, oil, petroleum products, tar, dyestuffs, acids,

chemicals and all other discarded matter not sewage, industrial waste or offensive material.

4. *Person*. The term "person" means any individual, firm, profit or not-for-profit corporation, cooperative, association, partnership, institution, political subdivision, government agency, public body, joint-stock association, trust, estate or other group of individuals or combination of the foregoing or any other legal entity whatsoever, except the State of New York and its agencies.
5. *Pollution discharge*. The term "pollution discharge" means the voluntary or involuntary release of industrial waste, offensive material or other waste, except stormwater drainage, into the waters within the county.
6. *Pollution hazard*. The term "pollution hazard" means a condition resulting from the entry of industrial waste, offensive material or other wastes into any of the waters within the county, whereby the quality of such waters may be adversely affected in their use for drinking, transportation, bathing, fishing or fish culture, culinary or other water supply uses, including wildlife conservation; or whereby the lands contiguous with or adjacent to such waters may be adversely affected in their use for residential, industrial, recreational or wildlife conservational purposes; or whereby the quality of such waters may be adversely affected in regard to their intended purpose as established by the provisions of the Code or the Environmental Conservation Law of the State of New York and applicable rules and regulations promulgated pursuant thereto.
7. *Sewage*. The term "sewage" means watercarried human, animal or vegetative wastes and laundry wastes from residences, buildings, industrial establishments or other places, together with such groundwater infiltration and surface water as may be present or may include any admixture with industrial wastes or other wastes.
8. *Waters within the county*. The term "waters within the county" means any lake, bay, sound, pond, impounding reservoir, spring, well, river, stream, creek, estuary, marsh, inlet and canal and groundwater, either wholly or in part within the County of Westchester or which is contiguous with any part of the land within the County of Westchester.

(Added 6-22-1989, eff. 1-1-1990)

Sec. 873.2201. Water pollution control; general prohibition.

1. No person shall directly or indirectly throw, drain, dump, run or otherwise discharge or allow to be discharged into the waters within the county any offensive material, industrial wastes, sewage or other waste that shall cause or contribute to a condition which causes or may reasonably be expected to cause a pollution hazard.

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2. No person shall directly or indirectly throw, drain, dump or run from any vessel, vehicle or structure on land or water any industrial waste, offensive material or other waste in the waters within the county.

(Added 6-22-1989, eff. 1-1-1990)

Sec. 873.2202. Water pollution control; new pollution discharges.

1. No person shall undertake to construct a new pollution discharge or make modifications to an existing pollution discharge, except discharges to groundwater, without:
 - a. First submitting to the commissioner an application, plans and specifications and any other information as may be required by the department; and
 - b. Obtaining prior written approval therefor.
2. Reports, plans and specifications for construction of a pollution discharge or modification to an existing pollution discharge shall be submitted for approval in accordance with the standards, guides, rules and regulations duly promulgated by the commissioner.

(Added 6-22-1989, eff. 1-1-1990)

Sec. 873.2203. Water pollution control; new pollution discharges; modifications; approval to construct; nontransferable.

Approval to construct a new pollution discharge or to make modifications to an existing pollution discharge, except discharges to groundwater, shall not be transferable from one location to another or from one person to another.

(Added 6-22-1989, eff. 1-1-1990)

Sec. 873.2204. Water pollution control; new and existing pollution discharges; certificate to operate; nontransferable; filing.

1. No person shall operate a pollution discharge, except discharge to groundwater, without a valid certificate issued by the commissioner to operate such source.
2. Application for certificate.
 - a. Application for a certificate to operate a pollution discharge or modification to an existing pollution discharge, except discharge to groundwater, shall be made on forms provided by the department and shall be accompanied by a written statement from a professional engineer, licensed and registered to practice in the State of New York, certifying that the pollution discharge or modification to an existing pollution discharge has been constructed in accordance with the permit to construct and the approved plans and specifications.

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- b. Such application shall be made thirty (30) days prior to the date of completion of the pollution discharge on forms provided by the department.
 3. Term of certificate.
 - a. A certificate to operate a pollution discharge shall be issued for a period of time in accordance with the commissioner's rules and regulations.²⁵
 - b. Application for a renewal certificate to operate a pollution discharge shall be filed with the department no less than sixty (60) days prior to the expiration of the existing certificate and shall be made on forms provided by the department.
 4. A certificate to operate a pollution discharge shall not be transferable from one location to another or from one person to another.
 5. A certificate to operate a pollution discharge or copy thereof shall be permanently retained on the site of the pollution discharge.

(Added 6-22-1989, eff. 1-1-1990; amended 3-20-2003, eff. 3-21-2003)

Sec. 873.2205. Water pollution control; standards.

In determining compliance with the provisions of this article, the department shall be guided by the Environmental Conservation Law, provisions of Title 6 of the Official Compilation of Codes, Rules and Regulations of the State of New York and the policy rules and regulations adopted by the commissioner.

(Added 6-22-1989, eff. 1-1-1990)

Sec. 873.2206. Water pollution control; spills.

1. The voluntary or involuntary discharge or spillage of any industrial waste, offensive material or other waste to the surface of the ground, roadway or waters within the county must be immediately reported to the commissioner.
2. No person shall allow the voluntary or involuntary discharge or spillage of any liquid that may affect or may reasonably be expected to affect the waters within the county.²⁶
3. All necessary preventative action must be taken by the responsible person to minimize the damage to the public and the environment as a result of a voluntary or involuntary

²⁵**34. Editor's Note:** See Rules and Regulations of the Commissioner Policy No. WPC 1-89, effective 7-5-1989, which is on file in the office of the Commissioner of Health.

²⁶**35. Editor's Note:** For standards for evaluating effects of liquid spills, see Rules and Regulations of the Commissioner Policy No. WPC 2-89, effective 7-5-1989, which is on file in the office of the Commissioner of Health.

discharge or spillage of any liquid to the surface of the ground, roadway or waters within the county.

(Added 6-22-1989, eff. 1-1-1990)

Sec. 873.2207. Water pollution control; operation and performance.

1. No person shall use or permit the use of any treatment facility for offensive material, industrial waste or other waste in a manner as causes it to function improperly or other than in accordance with its design or state or county permit conditions.
2. Daily records regarding the operation of any wastewater treatment facility shall be kept by the operator and shall be:
 - a. Complete, accurate and include all parameters that require monitoring as prescribed by state or county regulatory agencies.
 - b. Maintained for a period three (3) years at the facility; and
 - c. Submitted within twenty-eight (28) calendar days after the close of the previous month's operation.

(Added 6-22-1989, eff. 1-1-1990; amended 3-20-2003, eff. 3-21-2003)

Sec. 873.2208. Water pollution control; waters within the county.

The quality of the waters within the county shall be monitored to ensure compliance with applicable standards adopted by the United States Environmental Protection Agency, New York State Department of Health, New York State Department of Environmental Conservation and this department.

(Added 6-22-1989, eff. 1-1-1990)

Sec. 873.2209. Water pollution control; separability.

If any provision of this article is held invalid, such invalidity shall not affect other provisions which shall be given effect without the invalid provision.

(Added 6-22-1989, eff. 1-1-1990)

Sec. 873.2210. Sewage pump stations; annual reporting.

1. For purposes of this section, the term "Owner" shall mean every person, as defined in Section 873.101(1) of this chapter and every municipality, as defined in section 873.101(n) of this chapter that owns a sewage pump station for the conveyance of domestic sewage, excepting those pump stations which serve individual residences and those pump stations which are physically located on the grounds of a waste water treatment plant.

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2. a. Every Owner shall submit a written, annual report to the commissioner, or his duly authorized designee, for each pump station owned. Annual reports shall be submitted on a calendar year basis, and all reports for the year ending December 31st shall be submitted to the commissioner no later than March 1st of the year following the reporting period, whether or not such pump station is operable during the reporting period. Notwithstanding the above, reports for calendar year 2002 shall be submitted to the commissioner on or before April 1, 2003.
- b. Nothing herein shall be construed to prohibit or preclude the submission of annual reports by the operator of a pump station facility on behalf of its Owner, provided however, that the Owner shall be deemed to be in violation of this article in the event of any failure to submit the reports required hereunder.
3. Every Owner shall submit the required reports to the commissioner, or his duly authorized designee, in the form to be established by the commissioner, which form shall be made available at the offices of the Department and on-line. All reports shall include, but not be limited to, the following information:
- a. The legal name of the Owner;
 - b. The address and telephone number of the Owner;
 - c. The legal name of the operator, if different from the Owner;
 - d. The address and telephone number of the operator, if different from the Owner;
 - e. The name of the official contact person for pump station (operations and emergencies);
 - f. An emergency telephone number for the Owner and/or operator of the pump station where contact can be made with such Owner and/or operator twenty-four (24) hours a day in the event of an emergency which, in the sole discretion of the Commissioner, or his duly authorized designee, presents a risk to the public health and which requires immediate contact with such Owner and/or operator. The failure to provide such contact information; the failure to maintain the operation of the contact number; and/or the failure to respond to such an emergency call, shall be deemed to be a violation of this article. Nothing herein shall be construed to prohibit the Owner and/or operator from providing an emergency pager number; a voice mail number; or the number of an answering service in satisfaction of this subsection (3)(f), provided however, that such pager, voice messaging system, or answering service is accessible on a twenty-four (24) hour a day basis, and provided that the Owner and/or operator responds to any call made by the Commissioner or his duly authorized designee within one (1) hour;
 - g. The name of the pump station;
 - h. The location of the pump station, including:

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- (i.) Block & Lot Number;
 - (ii.) Nearest street/intersections;
 - (iii.) Sewer district (local and county);
 - (iv.) Service area; and
 - (v.) Watershed area in which pump station is located, if applicable, and name of tributary waste water treatment plant where such pump station discharges;
- i. Date of construction;
 - j. Dates of any reconstruction and/or major capital improvements and summary of work performed;
 - k. Design capacity; number of pumps or ejectors; and average daily flow of pump station;
 - l. Over-flow or by-pass pipes and discharge locations;
 - m. Information regarding generators/stand-by power, if applicable; and
 - n. Alarm/overflow history, including type of overflow and where reported, if applicable.
4. In addition to the annual reports required pursuant to subsection (2), above, Owners shall also be required to inform the commissioner, or his duly authorized designee, in the event that there is a change in the emergency contact person, operator, or contact number, as referenced in subsections (3)(d), (3)(e), and (3)(f), above, for a particular pump station; in the event of an overflow/alarm at the facility which results in the discharge of sewage; and/or in the event that the pump station is taken off-line for any reason during the course of any reporting cycle. Such notices shall be issued to the Commissioner within 14 days of any such occurrence. In addition, all Owners shall be required to provide any other information which the Commissioner shall, from time to time, reasonably request regarding said pump station and/or its operations.
5. Any person who is deemed to have violated this section shall be subject to enforcement proceedings in accordance with the provisions of article II of this chapter.

(Added 3-20-2003, eff. 3-23-2003)

ARTICLE XXIII. LEAD CONTROL

Sec. 873.2300. Statement of basis and purpose.

Because lead poisoning continues to present a serious public health concern, an amendment to the Westchester County Sanitary Code Chapter 873 is proposed. The new Article XXIII, Lead Control, describes and codifies acceptable reporting requirements for lead testing done on Westchester County children up to the age of seventy-two (72) months.

(Added 5-26-1994, eff. 6-1-1994)

Sec. 873.2301. Lead laboratory reporting for public health follow-up.

- (a) For purposes of this subpart, "laboratory" shall mean any laboratory that holds a permit issued in accordance with Public Health Law Article 5, Title V and is authorized to conduct blood lead analyses by the State of New York.
- (b) Laboratories shall report the results of all blood lead analyses performed on children residing in Westchester County up to the age of 72 months, to the Westchester County Commissioner of Health as follows:

0—44 ug/dL within 5 business days

Greater than or equal to 45 ug/dL within 24 hours

- (c) Laboratories shall report on such forms, as prescribed by the Commissioner of Health, which must include:

Last name of child

First name of child

Child's date of birth

County of child's residence

Child's race

Telephone number of parent/guardian

Child's gender

Parent/guardian name

Blood lead level

Sample type (venous/capillary)

Collection date

Physician ordering test (name/address)

Child's insurance

Analysis date (carrier name/policy)

Child's address

- (d) In addition to any other reporting required by this subpart, all laboratories shall notify the provider ordering the blood test of the results of any analysis in a child up to seventy-two (72) months of age as follows:

0-44 ug/dL within 5 business days

Greater than or equal to 45 ug/dL within 24 hours

(e) Nothing in this subpart shall be construed to relieve any laboratory from reporting results of any blood lead analysis to any other entity as required by state or federal statutes or regulations.

(Added 5-26-1994, eff. 6-1-1994)

ARTICLE XXIV. HOUSING HYGIENE AND OCCUPANCY

Sec. 873.2400. Introduction.

There exist and may in the future exist, within Westchester County premises, dwellings, dwelling units, rooming units, or parts thereof, which by reason of their structure, equipment, sanitation, maintenance, use, or occupancy affect or are likely to affect adversely the public health (including the physical, mental and social well-being of persons and families), safety, and general welfare. To correct and prevent the existence of such adverse conditions, and to achieve and maintain such levels of residential environmental quality as will protect and promote public health, safety, and general welfare, the establishment and enforcement of minimum housing standards are required.

(Added 2-20-1997)

Sec. 873.2401. Purposes.

It is hereby declared that the purpose of this article is to protect, preserve, and promote the physical and mental health and social well-being of the people, to minimize the incidence of communicable diseases, to regulate privately and publicly owned dwellings for the purpose of maintaining adequate sanitation and public health and to protect the safety of the people and to promote the general welfare by regulations which shall be applicable to all dwellings now in existence or hereafter constructed. It is hereby further declared that the purpose of this article is to insure that the quality of housing is adequate for protection of public health, safety and general welfare. The achievement of this purpose includes the establishment of minimum standards for basic equipment and facilities for healthful living, such as adequate water, waste disposal bathroom facilities, light, ventilation, heating and cooling, for safety from fire and accidents, for the use and location and amount of space for human occupancy, and for an adequate level of maintenance; setting forth the responsibilities of owners, operators and occupants of dwellings; and establishing the necessary provisions for administration and enforcement.

(Added 2-20-1997)

Sec. 873.2402. Application and scope.

1. The requirements of this article shall:

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- a. Apply to all dwellings, dwelling units, habitable rooms within the jurisdiction of Westchester County Health Department, except those regulated under Articles 7 and 15 of the State Sanitary Code.
 - b. Be consistent with the provisions of applicable state and local laws, codes, rules and regulations; provided, however, that where the provisions of this article are more restrictive, they shall govern, and where the provisions of such applicable state or local laws, codes, rules and regulations are more restrictive, they shall govern.
 2. The commissioner may, on written application and after review, grant a variance from a specific provision of this article in a specific case subject to appropriate conditions where such variance is in harmony with the general purpose and intent of this article and where there are practical difficulties or unnecessary hardship in carrying out the strict letter of its provision.
 3. If any provisions of this article are held invalid, such invalidity shall not affect other provisions which shall be given effect without the invalid provisions.

(Added 2-20-1997)

Sec. 873.2403. Dwelling unfit for human habitation.

Whenever the commissioner finds that any dwelling constitutes a serious hazard to the health or safety of the occupant or to the public because it is dilapidated, unsanitary, vermin-infected or lacking in the facilities required by this article, he may designate such dwelling unfit for human habitation, order the dwelling vacated, and may cause to be posted on the main entrance of any dwelling so closed, a placard with the following words: "Use of this building for human habitation is prohibited and unlawful". If the owner fails to comply with an order issued by the commissioner to bring the dwelling into compliance with the requirements of this article within a reasonable time, the commissioner may order such dwelling to be removed or demolished as provided for by applicable state law, the Laws of Westchester County, and laws and regulations of the town, village or city having jurisdiction. The provisions of this section are applicable also to unoccupied dwelling units and the owners thereof shall be chargeable with compliance.

(Added 2-20-1997)

Sec. 873.2404. Inspection and enforcement.

1. The Commissioner of Health and any person authorized by him to do so, may without fee or hindrance, make inspections to determine the condition of dwellings, dwelling units, and the premises on which they are located, in order to fulfill the purposes of this article.
2. For the purpose of making such inspections, the inspector is hereby authorized to enter, examine and survey all dwellings, dwelling units, and the premises on which they are located. Except for emergencies, or where authorized by other law, or for the convenience

of the occupant or owner, such inspections shall be made between the hours of 8:00 a.m. and 5:00 p.m.

3. The owner, the operator and the occupant shall give the inspector free access to the dwelling, dwelling unit, and the premises on which they are located, for the purpose of such an inspection.
4. Evidence of a violation discovered during such inspection shall not be used against the violator in either a criminal or civil proceeding except under the following conditions:
 - a. Written notice of said violation shall be left with or mailed to the person responsible for correction of such violation or in the alternative such notice shall be posted in a conspicuous place upon the dwelling, dwelling unit or the premises where the violation is discovered;
 - b. Said written notice states a specific and reasonable time within which such violation shall be eliminated; and
 - c. At the end of such time the violation has not been eliminated.
5. Criminal penalties for violations of this article shall be those provided for in section 229 of the Public Health Law.
6. Civil penalties for violations of this article shall be those provided for in Sections 12 and 309 of the Public Health Law. Determinations with respect to violations and/or assessing of penalties shall be subject to review as provided in Article 78 of the Civil Practice Law and Rules.

(Added 2-20-1997)

Sec. 873.2405. Definitions.

1. *Accessory structure* shall mean a detached structure or an attached structure located on or partially on any premises, which is not used or not intended to be used for living or sleeping by human occupants.
2. *Approved* shall mean approved by the Commissioner of the Westchester County Department of Health.
3. *Central heating system* shall mean a single system supplying heat to one (1) or more dwelling unit(s).
4. *Commissioner* shall mean the Commissioner of the Westchester County Department of Health.
5. *Conditions conducive to lead poisoning* shall mean the presence of a paint or other similar surface-coating material in a condition accessible for ingestion or where peeling or chipping of the paint or other similar surface-coating material occurs or is likely to occur and which paint or other similar surface-coating material contains more than one-half (½)

of one (1) percent of metallic lead based on the total weight of the contained solids or dried paint film on interior walls, ceilings, doors, baseboards or window sills and frames or porches of any dwelling.

6. *Dwelling* shall mean any building or structure which is wholly or partly used or intended to be used for living or sleeping by human occupants.
7. *Dwelling unit* shall mean any room or group of rooms located within a dwelling and forming a single habitable unit with facilities which are used or intended to be used for living, sleeping, cooking, and eating.
8. *Egress* shall mean a place or means of going safely to the outside of a dwelling or building.
9. *Extermination* shall mean the control and elimination of insects, rodents, or other pests by eliminating their harborage places; by removing or making inaccessible materials that may serve as their food; by poisoning, spraying, fumigating, trapping, or by any other recognized and legal pest elimination methods.
10. *Family* shall mean one (1) adult person plus one (1) or more persons who are legally related to said person and residing in the same dwelling unit with said person.
11. *Garbage* shall mean the animal and vegetable waste resulting from the handling, preparation, cooking, serving, and nonconsumption of food.
12. *Guest* shall mean any person who shares a dwelling unit in a nonpermanent status for not more than thirty (30) days.
13. *Habitable room* shall mean a room or enclosed floor space used or intended to be used for living, sleeping, cooking, or eating purposes, excluding bathrooms, water closet compartments, laundries, furnace rooms, pantries, kitchenettes and utility rooms of less than fifty (50) square feet, foyers or communicating corridors, stairways, closets and storage spaces; and workshops, hobby and recreation areas in unsealed or uninsulated parts of structure below ground level or in attics.
14. *Heated water* shall mean water heated to a temperature of not less than one hundred twenty (120) degrees Fahrenheit.
15. *Household* shall mean a family and/or one (1) or more unrelated persons, who share the same dwelling and use some or all of its cooking and eating facilities. It shall include servants and not more than two (2) boarders.
16. *Infestation* shall mean the presence within or around a dwelling of any insects, rodents or other pests.
17. *Kitchen* shall mean any room used primarily for cooking or preparation of food and containing any or all of the following equipment: sink and/or other device for dishwashing, stove or other device for cooking, refrigerator or other device for cool storage of food. Where a room is used for cooking and preparation of food, but not primarily so used,

kitchen shall mean that portion of such room which contains the above equipment and an area within three (3) feet of such equipment.

18. *Multiple dwelling* shall mean any dwelling containing more than two (2) dwelling units.
19. *Occupant* shall mean any person, over one (1) year of age, living, sleeping, cooking, or eating in, or actually having possession of, a dwelling unit or a rooming unit; except that in dwelling units a guest will not be considered an occupant.
20. *Operator* shall mean any person who has charge, care or control of a building, or part thereof, in which there are dwelling units or rooming units.
21. *Owner* shall mean any person who, alone or jointly or severally with another:
 - a. Shall have legal title to any dwelling or dwelling unit, with or without accompanying actual possession thereof, or
 - b. Shall have charge, care, or control of any dwelling or dwelling unit, as owner, lessee, mortgagee or vendee in possession, assignee of rents, or as a receiver; or an executor, administrator, trustee, or guardian of the estate of the owner. Any agent for any of the above shall be bound to comply with the provisions of this article to the same extent as if he were the owner.
22. *Permissible occupancy* shall mean the maximum number of persons permitted as family or household to reside in a dwelling unit based on the square feet per person in habitable rooms.
23. *Person* shall mean and include any individual, firm, public or private corporation, municipality, political subdivision, association, trust, estate, agency, board, department or bureau of a municipality, partnership, or any other legal entity whatsoever which is recognized by law as the subject of rights and duties.
24. *Plumbing* shall mean and include all of the following supplied facilities and equipment: gas pipes, gas burning equipment, water pipes, garbage disposal units, waste pipes, water closets, sinks, installed dishwashers, lavatories, bathtubs, shower baths, installed clothes washing machines, catch basins, drains, vents, and other similar supplied fixtures, together with all connections to water, sewer, or gas lines.
25. *Privacy* shall mean the ability of a person or persons to carry out an activity without interruption or interference, either by sight or sound, by persons outside of the household.
26. *Premises* shall mean a platted lot or part thereof or unplatted lot or parcel of land or plot of land, whether or not it has erected thereon a dwelling or nondwelling structure and it includes any building, accessory structure or other structure thereon.
27. *Rat harborage* shall mean any place where rats can live, nest or seek shelter.
28. *Rat proofing* shall mean a form of construction which will prevent the ingress or egress of rats to or from a given space or building, or gaining access to food, water, or harborage. It consists of the closing and keeping closed of every opening in foundations, basements,

cellars, exterior and interior walls, ground or first floors, roofs, sidewalk gratings, sidewalk openings and other places that may be reached and entered by rat climbing, burrowing or other methods, by the use of materials impervious to rat gnawing or by other methods approved by the full-time health officer.

29. *Refuse* shall mean all putrescible and nonputrescible solids (except body wastes) including garbage, rubbish, ashes and dead animals.
30. *Refuse container* shall mean a watertight container that is constructed of metal, or other durable material impervious to rodents, that is capable of being serviced without creating unsanitary conditions, or such other containers approved by the commissioner. Openings into the container such as covers and doors shall be tightfitting.
31. *Rubbish* shall mean nonputrescible solid wastes (excluding ashes) consisting of either or both:
- a. Combustible wastes such as paper, cardboard, rags, furniture, plastic containers, yard clippings, tree branches, leaves and wood, and;
 - b. Noncombustible wastes such as tin cans, glass, crockery and discarded appliances.
32. *Safety* shall mean the condition of being reasonably free from danger and hazards which may cause accidents or disease.
33. *Supplied* shall mean paid for, furnished, provided by, or under the control of the owner or operator.
34. Whenever the words "dwelling", "dwelling unit", "premises", "structure" are used in this article, they shall be construed as though they were followed by the words "or any part thereof". Words used in the singular include the plural, and the plural the singular, the masculine gender includes the feminine and the feminine the masculine.

(Added 2-20-1997)

Sec. 873.2406. Occupancy and letting.

No owner or other person shall occupy or let to another person any vacant dwelling or dwelling unit unless it and the premises are clean, sanitary, fit for human occupancy, and comply with the requirements of this article and all applicable laws.

(Added 2-20-1997)

Sec. 873.2407. Owner to maintain in a clean and sanitary condition.

Every owner of a dwelling containing two or more dwelling units shall maintain in a clean and sanitary condition the shared or public areas of the dwelling and premises thereof.

(Added 2-20-1997)

Sec. 873.2408. Occupant to maintain in a clean and sanitary condition.

Every occupant of a dwelling or dwelling unit shall maintain in a clean and sanitary condition that part or those parts of the dwelling, dwelling unit and premises thereof that he occupies and controls.

(Added 2-20-1997)

Sec. 873.2409. Occupant to dispose of rubbish.

Every occupant of a dwelling or dwelling unit shall store or dispose of all his rubbish in a clean, sanitary and safe manner.

(Added 2-20-1997)

Sec. 873.2410. Occupant to dispose of garbage.

Every occupant of a dwelling or dwelling unit shall dispose of or store all his garbage or any other organic waste which might provide food for insects or rodents, in a clean, sanitary and safe manner. Rodent-proof, insect-proof, watertight refuse containers shall be used for storage pending collection.

(Added 2-20-1997)

Sec. 873.2411. Containers to be provided for rubbish and garbage.

Every owner of a dwelling containing three or more dwelling units shall supply facilities or refuse containers for the sanitary and safe storage and/or disposal of rubbish and garbage. In single or two family dwellings it shall be the responsibility of the occupant to furnish such facilities or refuse containers.

(Added 2-20-1997)

Sec. 873.2412. Screens, double doors, storm doors and windows.

The owner of a dwelling unit shall be responsible for providing and hanging all screens and double or storm doors and windows whenever the same are required under the provisions of this article, except where a written agreement between the owner and occupant provides otherwise. In the absence of a written agreement between the owner and occupant providing otherwise, maintenance or replacement of screens, storm doors and windows, once installed in any one season become the responsibility of the occupant.

(Added 2-20-1997)

Sec. 873.2413. Responsibility for extermination.

Every occupant of a dwelling containing a single dwelling unit shall be responsible for the extermination of any insects, rodents, or other pests therein or on the premises; and every occupant of a dwelling unit in a dwelling containing more than one dwelling unit shall be responsible for such extermination whenever his dwelling unit is the only one infested. Notwithstanding the foregoing provisions of this section, whenever infestation is caused by failure of the owner to maintain a dwelling in a rat-proof or reasonable insect-proof condition, extermination shall be the responsibility of the owner. Whenever infestation exists in two or more of the dwelling units in any dwelling, or in the shared or public parts of any dwelling containing two or more dwelling units, extermination thereof shall be the responsibility of the owner.

(Added 2-20-1997)

Sec. 873.2414. Rodent control.

1. Every occupant of a dwelling or dwelling unit shall store and dispose of accumulated rubbish, boxes, lumber, scrap metal, or any other materials in such a manner as to prevent rodent harborage in or about any dwelling or dwelling unit. Materials shall be stacked neatly in piles elevated at a level high enough to permit effective cleaning.
2. Every owner of a dwelling containing two or more dwelling units shall supply facilities or make provisions for the storage and disposal of accumulated rubbish, boxes, lumber, scrap metal or any other materials in such a manner as to prevent rodent harborage in or about the shared or public areas of a dwelling or its premises. Materials shall be stacked neatly in piles elevated at a level high enough to permit effective cleaning.
3. Every owner or occupant of a dwelling or dwelling unit shall not store, place, or allow to accumulate any materials that may serve as food or harborage for rodents in a site accessible to rodents.
4. No person shall feed in the open any domestic or wild fowl, birds or animals other than in a suitable container and in such a manner so as to prevent scattering of food upon the ground or ground level which can or will provide food for rodents, insects, vermin or other pests.

(Added 2-20-1997)

Sec. 873.2415. Occupants responsibility as to supplied fixtures and facilities.

1. Every occupant of a dwelling unit shall keep all supplied fixtures and facilities therein in a clean, sanitary and operable condition and shall be responsible for the exercise of reasonable care in the proper use and operation thereof.

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2. Every occupant shall keep his domestic animals and pets in a clean and sanitary manner and under control.

(Added 2-20-1997)

Sec. 873.2416. Basic equipment and facilities required for dwelling or dwelling unit occupied or let for living, sleeping, cooking or eating.

No person shall occupy as owner, occupant or let to another for occupancy any dwelling or dwelling unit, for the purposes of living, sleeping, cooking or eating therein, which does not comply with the following requirements:

1. Every dwelling unit shall have a room or portion of a room in which food may be prepared and/or cooked and which room shall have adequate floor area available for occupant use and be equipped with the following:
 - a. A kitchen sink in good working condition and properly connected to a water supply system which is approved by the commissioner and which provides at all times an adequate amount of heated and unheated running water under pressure, and which is connected to a sewer system approved by the commissioner.
 - b. Cabinets and/or shelves for the storage of eating, drinking, and cooking equipment and utensils and of food that does not under ordinary maximum summer conditions require refrigeration for safe keeping; a counter or table for food preparation; provided, further, that said cabinets and/or shelves and counter or table shall be sufficient for the permissible occupancy of the dwelling unit and shall be of sound construction furnished with surfaces that are easily cleanable and that will not impart any toxic or deleterious effect to food.
 - c. A stove, or similar device, for cooking food and a refrigerator for the safe storage of food at temperatures less than 45 degrees Fahrenheit, but more than 32 degrees Fahrenheit, which are properly installed with all necessary connections for safe, sanitary and efficient operation; provided that such stove and refrigerator need not be installed when a dwelling unit is not occupied, when the occupant is expected to provide same on occupancy, and sufficient space for the safe and efficient installation and operation of said stove and refrigerator is provided.
2. Within every dwelling unit there shall be a non-habitable room which affords privacy to a person within said room and which is equipped with a flush water closet in good working condition. Said flush water closet shall be connected to a water system that at all times provides an adequate amount of running water under pressure to cause the water closet to be operated properly and shall be connected to a sewer system which is approved by the commissioner.

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3. Within every dwelling unit there shall be a room which affords privacy to a person within said room which is equipped with a lavatory sink. Said lavatory sink may be in the same room as the flush water closet or in another room; provided that, if located in a room other than the one containing the flush water closet, the water closet shall be located in close proximity to the door leading directly into the room in which said lavatory sink is located. The lavatory sink shall be in good working condition and properly connected to a water supply system which is approved by the commissioner and which provides at all times an adequate amount of heated and unheated, running water under pressure, and which is connected to a sewer system approved by the commissioner.
 4. Within every dwelling unit there shall be a room which affords privacy to a person within said room and which is equipped with a bathtub or shower in good working condition. Said bathtub or shower may be in the same room as the flush water closet or in another room and shall be properly connected to a water supply system which is approved by the commissioner and which provides at all times an adequate amount of heated and unheated running water under pressure, and which is connected to a sewer system approved by the commissioner.
 5. Every dwelling unit in a one- or two-family dwelling shall have at least one approved means of egress and a second approved means of egress for each floor above the second where there is living above the second floor. Every multiple dwelling shall have remotely located from each other two or more approved means of egress from each floor leading to safe and open space at ground level, as required by law. A sprinkler system satisfactory to the commissioner, may be substituted in lieu of one means of egress provided that no existing state or local statute is contravened.

(Added 2-20-1997)

Sec. 873.2417. Light and ventilation required for dwelling or dwelling unit occupied or let for living purposes.

No person shall occupy as owner, occupant or let to another for occupancy any dwelling or dwelling unit, for the purpose of living therein, which does not comply with the following requirements:

1. Every habitable room shall have at least one window or skylight facing directly outdoors. The minimum total window or skylight area, measured between stops, for every habitable room shall be at least 10 percent of the floor area of such room. Whenever outside walls or other portions of structures face a window of any such room and such light-obstruction structures are located less than three feet from the window and extend to a level above that of the ceiling of the room, such window shall not be deemed to face directly to the outdoors and shall not be included as contributing to the required minimum total window area.

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2. Every habitable room shall have at least one window or skylight which can easily be opened, or such other device as will adequately ventilate the room. The total of openable window area in every habitable room shall be equal to at least 45 percent of the minimum window area size or minimum skylight type window size as required in subdivision 1. above, except where there is supplied some other device affording adequate ventilation and approved by the commissioner.
 3. Every bathroom and water closet compartment shall comply with the light and ventilation requirement for habitable rooms contained in subdivisions 1. and 2. above, except that no window or skylight shall be required in adequately ventilated bathrooms and water closet compartments equipped with a ventilation system which is approved by the commissioner.
 4. Where there is electric service available from power lines which are not more than 300 feet away from a dwelling, every dwelling unit and all public and common areas shall be supplied with electric service, outlets and fixtures. Such outlets and fixtures shall be properly installed, shall be maintained in good and safe working condition, and shall be connected to the source of electric power in a manner prescribed by law. The capacity of such service and the number of outlets and fixtures shall be as follows:
 - a. Every habitable room shall have an electric service and outlets and/or fixtures capable of providing at least three watts per square foot of floor area.
 - b. Every habitable room shall have at least one floor or wall type electric convenience outlet for 60 square feet or fraction thereof of floor area, and in no case less than two such outlets.
 - c. Every water closet compartment, bathroom, laundry room, furnace room, and public hall shall contain at least one supplied ceiling or wall type electric light fixture.
 - d. Convenient switches for turning on one light in each room or passageway shall be located so as to permit the area ahead to be lighted.
 5. Every public hall and stairway in every multiple dwelling shall be adequately lighted by natural or electric light at all times so as to provide at least ten footcandles of light at the tread or floor level. Every public hall and stairway in structures containing not more than two dwelling units shall be supplied with conveniently located light switches controlling an adequate lighting system which may be turned on when needed, instead of full-time lighting.

(Added 2-20-1997)

Sec. 873.2418. Thermal requirements for occupying or letting, for living purposes.

No person shall occupy as owner, occupant, or let to another for occupancy any dwelling or dwelling unit, for the purpose of living therein, which does not comply with the following requirements:

1. Every dwelling shall have heating facilities which are properly installed, and are maintained in safe and good working condition, and are capable of safely and adequately heating all habitable rooms, bathrooms and water closet compartments in every dwelling unit as noted in subdivision 2. below.
2. The owner is responsible for furnishing the heat unless the rental agreement provides otherwise. Where the owner furnishes the heat, the temperature shall be maintained at not less than 68 degrees Fahrenheit at a distance of 18 inches above floor level and three feet from an outside wall.
3. Unvented flame space heaters and space heaters without backdraft diverter and automatic controls are prohibited; portable electric heaters, approved under the appropriate local or state electrical and/or fire prevention code are acceptable (where they meet the provisions of subdivision 1. of this section). Where there is no such local or state code, portable electric heaters meeting the standards of the National Electrical Code, as approved by the Underwriter Laboratories, Inc. and the commissioner are acceptable. Gas-fueled space or water heaters and accessories or controls shall be properly installed and be of a type approved by the American Gas Association and the commissioner.

(Added 2-20-1997)

Sec. 873.2419. Maintenance and installation requirements for dwelling or dwelling unit occupied or let for living purposes.

No person shall occupy as owner, occupant or let to another for occupancy any dwelling or dwelling unit, for the purpose of living therein, which does not comply with the following requirements:

1. Every foundation, roof and exterior wall, door, skylight and window shall be reasonably weather-tight, watertight, and damp-free and shall be kept in sound condition and good repair. Floor, interior walls, doors and ceilings shall be sound and in good repair. All exterior wood surfaces other than decay resistant woods, shall be protected from the elements and decay by paint or other protective covering or treatment. Lead based and other toxic paints and materials shall not be used on any interior surface or any surface readily accessible to children. Walls shall be capable of affording privacy for the occupants. Every premises shall be well-graded, drained and maintained in a clean, sanitary and safe condition.

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2. Every window, exterior door and basement hatchway or similar devices, shall be kept rodent-proof and reasonably watertight and weather-tight, and shall be kept in sound working condition and good repair.
 3. During that portion of the year when there is a need for protection against mosquitoes, flies and other flying insects, every door opening directly from a dwelling unit to outside space shall have supplied properly fitting screens having at least 16 mesh and a self-closing device; and every window or other device with openings to outdoor space, used or intended to be used for ventilation, shall likewise be supplied with screens; provided that such screens shall not be required during such period in rooms deemed by the commissioner to be located high enough in the upper stories of buildings as to be free from such insects, and in rooms located in areas which are deemed by the commissioner to have so few insects as to render screens unnecessary.
 4. Every window located at or near ground level used or intended to be used for ventilation, and every other opening located at or near ground level which might provide an entry for rodents, shall be supplied with adequate gauge screen or such other devices as will effectively prevent their entrance.
 5. Every foundation, roof, floor, exterior and interior wall, ceiling, inside and outside stair, porch, and every appurtenance to any of these shall be safe to use and capable of supporting the loads that normal use may cause to be placed thereon; and shall be kept in sound condition and good repair. Every inside and outside stair or step shall have uniform risers and treads and be provided with non-skid materials. Stairways shall have handrails structurally sound, of reasonable height, and where needed, balusters adequately spaced.
 6. Every plumbing fixture and water and waste pipe shall be properly installed and maintained in good sanitary working condition.
 7. Every water closet compartment, bathroom and kitchen floor surface and baseboard shall be constructed and maintained so as to be reasonably impervious to water so as to permit such floor to be easily kept in a clean and sanitary condition.
 8. Every plumbing fixture pipe, chimney, flue and smoke pipe, and every other facility, piece of equipment, or utility which is present in a dwelling or dwelling unit, or which is required under this article, shall be constructed and installed in conformance with the applicable local, state or national codes and shall be maintained in satisfactory working condition.
 9. All construction and materials and ways and means of egress, and installation and use of equipment shall conform to applicable laws dealing with fire protection.
 10. Existing paint conditions conducive to lead poisoning shall be eliminated in accordance with procedures contained in Article 13, Title X of the Public Health Law.

(Added 2-20-1997)

Sec. 873.2420. Discontinuance of services, facilities, equipment or utilities.

No owner, operator, or occupant shall cause or be responsible for causing any service, facility, equipment or utility which is required under this article to be removed from or shut off from or discontinued for any occupied dwelling or dwelling unit let or occupied by him; except for such temporary interruption as may be necessary while actual repairs or alterations are in process, or during temporary emergencies when discontinuance of service is either not reasonably avoidable or is approved by the commissioner. Except in a case of emergency, notice of a temporary interruption shall be given to occupants of the dwelling units in which there will be a temporary interruption in services, facilities, equipment, or utilities.

(Added 2-20-1997)

Sec. 873.2421. Maximum density, minimum space, use and location requirements.

1. No person shall occupy or let to be occupied any dwelling or dwelling unit, for the purpose of living therein, unless there is compliance with the following requirements:
 - a. Every dwelling unit shall contain at least 150 square feet of floor space for the first occupant thereof and least 100 additional square feet of floor space for every additional occupant thereof, the floor space to be calculated on the basis of total habitable room area.
 - b. A dwelling unit shall not be occupied by more than one family, plus two occupants unrelated to the family, except for guests or domestic employees.
 - c. The ceiling height of any habitable room shall be at least 7 1/2 feet; except that in any habitable room under a sloping ceiling at least one half of the floor area shall have a ceiling height of at least 7 1/2 feet, and the floor area of that part of such a room where the ceiling height is less than five feet shall not be considered as part of the floor area in computing the total floor area of the room for the purpose of determining the maximum permissible occupancy.
 - d. No space located partially or totally below grade shall be used as a habitable room of a dwelling unit unless:
 - i. The floor and those portions of the walls below grade are of waterproof and damp-proof construction.
 - ii. The minimum window area is equal to at least that required in section 873.2417 1. of this article and is located entirely above the grade of the ground adjoining such window area, or, if windows are located wholly or partly below grade, there be constructed a properly drained window well the ground area of which is equal to or greater than the area of the masonry opening for the window, the bottom

of which is below the top of the impervious masonry construction under this window, with the minimum horizontal distance at a right angle from any point of the window wall being equal to or greater than the vertical depth of the window well, as measured from the bottom of the masonry opening for the window.

- iii. The total openable window area in each room is equal to at least the minimum as required under section 873.2417 2. of this article, except where there are supplied some other devices affording adequate ventilation and humidity control which are approved by the commissioner.
- iv. There are no pipes, ducts or other obstructions less than six feet, eight inches from the floor level which interfere with the normal use of the room or area.
- e. In every dwelling unit of two or more rooms, every room occupied for sleeping purposes shall contain at least 70 square feet of floor space for the first occupant, and at least 50 square feet of floor space for each additional occupant thereof.
- f. No dwelling or dwelling unit containing two or more sleeping rooms shall have such room arrangements that access to a bathroom or water closet compartment intended for use by occupants of more than one sleeping room can be had only by going through another sleeping room; nor shall room arrangements be such that access to a sleeping room can be had only by going through another sleeping room or a bathroom or water closet compartment.
- g. Every dwelling unit shall have at least four square feet of closet space for the personal effects of each permissible occupant: if it is lacking, in whole or in part, an amount of space equal in square footage to the deficiency shall be subtracted from the area of habitable room space used in determining permissible occupancy.
- h. Each dwelling shall have a suitable facility for the safe storage of drugs, household poisons and other hazardous materials.

(Added 2-20-1997)

ARTICLE XXV PETROLEUM BULK STORAGE²⁷

Sec. 873.2501. General provisions.

²⁷Editor's note(s)—A resolution adopted May 18, 2017, amended article XXV in its entirety to read as herein set out. Former article XXV, §§ 873.2501—873.2536, pertained to similar subject matter, and derived from 6-17-1999; 3-18-2010.

Sec. 873.2501.1. Purpose.

The purpose of this article is to regulate the bulk storage of petroleum in order to protect public health and the environment.

(Res. of 5-18-2017)

Sec. 873.2501.2. Applicability.

- (a) Every facility is subject to the provisions of this article.
- (b) Every carrier is subject to the provisions of section 873.2502.2(a)(7), 873.2503.2(a)(7), and 873.2504.2(a)(7) of this article.
- (c) Any provision of this article that imposes a requirement on a facility imposes that requirement on every operator and every tank system owner at the facility, unless expressly stated otherwise.

(Res. of 5-18-2017)

Sec. 873.2501.3. Definitions.

- (a) *Aboveground storage tank system or AST system* means any tank system that is not an underground storage tank system.
- (b) *Accessible underground area* means an underground area - such as a basement, cellar, shaft, or vault - that allows for the physical inspection of the exterior of the tank.
- (c) *Ancillary equipment* means fittings, flanges, valves, pumps, and other devices that are used to distribute, meter, or control the flow of petroleum to and from a tank.
- (d) *Carrier* means a person who transports petroleum and delivers it into a tank system.
- (e) *Category 1 tank system* means any tank system whose tank was installed before December 27, 1986.
- (f) *Category 2 tank system* means any tank system whose tank was installed from December 27, 1986 through October 11, 2015.
- (g) *Category 3 tank system* means any tank system whose tank was installed after October 11, 2015.
- (h) *Cathodic protection* means the prevention of electrolytic corrosion of a metallic structure (tank or piping) by causing it to act as the cathode rather than as the anode of an electrochemical cell.
- (i) *Cathodic protection tester* means a person who can demonstrate an understanding of the principles and measurements of all common types of cathodic protection systems as applied to metal portions of tank systems in contact with the ground. At a minimum, such

persons must have education and experience in soil resistivity, stray current, structure-to-soil potential, and component electrical isolation measurements of metal portions of tank systems in contact with the ground.

- (j) *Class A operator* means the individual who has primary responsibility to operate and maintain the UST system(s) at a facility in accordance with applicable requirements of this article. The class A operator typically manages resources and personnel to achieve and maintain compliance with the requirements of this article.
- (k) *Class B operator* means the individual who has day-to-day responsibility for implementing applicable requirements of this article. The class B operator typically implements field aspects of operation, maintenance, and associated recordkeeping for a UST system.
- (l) *Class C operator* means the individual who has primary responsibility for initially addressing emergencies presented by a spill or release from a UST system. The class C operator typically controls or monitors the dispensing or sale of petroleum.
- (m) *Commissioner* means the Westchester County Commissioner of Health.
- (n) *Compatible* means, in the case of two or more substances, able to maintain their respective physical and chemical properties upon contact with one another for the design life of the tank system under conditions likely to be encountered in the tank system.
- (o) *Container* means any portable or mobile device that actually stores petroleum.
- (p) *Containment* means equipment that limits or prevents the spread of a petroleum release.
- (q) *Corrosion expert* means a person who, by reason of thorough knowledge of the physical sciences and the principles of engineering and mathematics acquired by a professional education and related practical experience, is qualified to engage in the practice of corrosion control of metal portions of tank systems in contact with the ground. Such a person must be:
 - (1) A registered professional engineer who has certification or licensing that includes education and experience in corrosion control of metal portions of tank systems in contact with the ground; or
 - (2) Accredited or certified by NACE International as a corrosion specialist or cathodic protection specialist.
- (r) *Department* means the Westchester County Department of Health.
- (s) *Design capacity* means the amount of petroleum that a tank is designed to hold. If a certain portion of a tank is unable to store petroleum because of its integral design (for example, electrical equipment or other interior components taking up space), the design capacity of the tank is thereby reduced. Actions taken to physically alter the design capacity of a tank (such as drilling a hole in the side of the tank so that it cannot hold petroleum above that point) will not change the design capacity of the tank.

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- (t) *Dielectric material* means a material that does not conduct direct electrical current. Dielectric coatings are used to electrically isolate tank systems from the surrounding soils. Dielectric bushings are used to electrically isolate portions of the tank system (for example, tank from piping).
- (u) *Dispenser system* means equipment located aboveground that meters the amount of petroleum transferred to a point of use outside the tank system, such as a motor vehicle. This system includes the equipment necessary to connect the dispenser to the tank system.
- (v) *Environment* means any water, water vapor, land including land surface or subsurface, air, fish, wildlife, biota, and all other natural resources.
- (w) *Excavation zone* means the volume containing the UST system and backfill material bounded by the ground surface, walls, and floor of the pit and trenches into which the UST system is placed at the time of installation.
- (x) *Facility* means a single property, or contiguous or adjacent properties used for a common purpose which are owned or operated by the same person or persons, on or in which are located:
- (1) One or more tank systems having a combined storage capacity of more than 1,100 gallons (including a major facility); or any size used oil tank system subject to 6 NYCRR Subpart 374-2; or
 - (2) An underground tank system having a storage capacity that is greater than 110 gallons.
 - (3) This term does not include:
 - (i) Any operational tank system;
 - (ii) Any temporary tank system;
 - (iii) Any tank system that is part of a facility that has been constructed, acquired, or operated in accordance with a Certificate of Public Convenience and Necessity issued by the Federal Energy Regulatory Commission pursuant to the terms of 15 U.S.C. section 717f;
 - (iv) Any heating oil tank system used for on-premises consumption that is not interconnected to any other heating oil tank system and which has a storage capacity of less than 1,100 gallons, unless such tank system is located on a property that has another tank system or set of tank systems that otherwise independently meets the definition of facility under paragraph (1) or (2) of this subsection;
 - (v) Any tank system that has a storage capacity of 1,100 gallons or less and is used to store motor fuel for non-commercial purposes (not for resale) at a farm or residence, unless such tank system or systems are located on a property that has

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- another tank system or set of systems that otherwise independently meets the definition of facility under paragraph (1) or (2) of this subsection;
- (vi) Any tank system that is used to store or contain asphalt cement (however, a tank system used to store or contain asphaltic emulsions is included);
 - (vii) Any tank system that has been permanently closed in accordance with section 873.2502.6(b), 873.2503.5(b), or 873.2504.5(b) of this article;
 - (viii) Pipelines that enter or leave the property;
 - (ix) Any wastewater treatment tank system;
 - (x) Any tank system at a major facility or vessel that is considered a major facility;
 - (xi) Any tank system owned or operated by a state agency; or
 - (xii) Any tank system owned or operated by a public authority created under the Public Authorities Law.
- (y) *Facility owner* means any person who has legal or equitable title to the real property of a facility.
- (z) *Farm* means a tract of land devoted to the production of crops or raising animals, including fish, and associated residences and improvements. Farm includes fish hatcheries, rangeland, and nurseries with growing operations.
- (aa) *Flow-through process tank system* means a tank system that forms an integral part of a production process through which there is a steady, variable, recurring, or intermittent flow of materials during the operation of the process. Flow-through process tank systems do not include tanks used for the storage of materials prior to their introduction into the production process or for the storage of finished products or by-products from the production process.
- (ab) *Free product* means petroleum that is present as a nonaqueous phase liquid (for example, liquid that is not dissolved in water).
- (ac) (1) *Hazardous substance* means:
- (i) A substance included on the list provided under 6 NYCRR Part 597.3; or
 - (ii) A hazardous substance mixture.
- (2) Hazardous substance does not include petroleum as defined in subsection (av) of this section, except as may be part of a blend described in section 873.2501.3(ad)(2) of this article.
- (ad) *Hazardous substance mixture* means:
- (1) A mixture of any substances covered under section 873.2501.3(ac)(1)(i) of this article; or
 - (2) A blend that consists of:

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- (i) Less than 70 percent by volume of the substances covered under section 873.2501.3(av)(1)(i) through (iii) of this article (singly or in combination);
 - (ii) One percent or more by volume of one or more substances covered under section 873.2501.3(ac)(1)(i) of this article; and
 - (iii) No hazardous waste as identified or listed in 6 NYCRR Part 371; or
- (3) A blend that consists of:
- (i) One percent or more by volume of the substances covered under section 873.2501.3(ac)(1)(i) of this article (singly or in combination);
 - (ii) Any substance not covered under section 873.2501.3(av)(1)(i) through (iii) of this article; and
 - (iii) No hazardous waste as identified or listed in 6 NYCRR Part 371.
- (ae) *Heating oil* means petroleum that is No. 1, No. 2, No. 4-light, No. 4-heavy, No. 5-light, No. 5-heavy, or No. 6 technical grade of fuel oil; other residual fuel oils (including Navy Special Fuel Oil, Bunker C, and clarified oil); and other forms of petroleum when used as substitutes for one of these fuel oils. Heating oil is typically used in the operation of heating equipment, boilers, or furnaces.
- (af) *Hydraulic lift tank system* means a tank system holding hydraulic fluid for a closed-loop mechanical system that uses compressed air or hydraulic fluid to operate lifts, elevators, and other similar devices.
- (ag) *Install or installation* means the emplacement of a tank system, or any part thereof, in, on, or above the ground. The movement of a tank from one location for use in a different location constitutes the installation of the tank system.
- (ah) *Leak, spill, or spillage* means any escape of petroleum from the ordinary container employed in the normal course of storage, transfer, processing, or use. Any escape of petroleum that enters containment (for example, a catch basin) is a spill.
- (ai) *Leak detection* means determining whether a release of petroleum has occurred from a tank system or a spill has occurred into the interstitial space between the tank system and its secondary barrier or secondary containment around the tank system.
- (aj) *Lining* means a coating of a material that is bonded firmly to the interior surface of a tank and which is compatible with the petroleum stored.
- (ak) *Liquid trap* means sumps, well cellars, and other traps used in association with oil and gas production, gathering, and extraction operations (including gas production plants), for the purpose of collecting oil, water, and other liquids. These liquid traps may temporarily collect liquids for subsequent disposition or reinjection into a production or pipeline stream, or may collect and separate liquids from a gas stream.

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- (al) *Major facility* includes any refinery, storage or transfer terminal, pipeline, deep water port, drilling platform, or any appurtenance related to any of the preceding that is used or is capable of being used to refine, produce, store, handle, transfer, process, or transport petroleum. A vessel will be considered a major facility only when petroleum is transferred between vessels in the waters of the State of New York. Fueling operations between vessels will not be considered petroleum transfers between vessels for the purposes of this definition. A facility with a combined design capacity of less than 400,000 gallons is not a major facility for the purposes of this article.
- (am) *Motor fuel* means petroleum that is typically used in the operation of a motor engine, such as motor gasoline, aviation gasoline, jet fuel, or No. 1 or No. 2 diesel fuel.
- (an) *NYSDEC* means the New York State Department of Environmental Conservation.
- (ao) *On-premises consumption* means consumed at the site where the tank system containing the heating oil is located.
- (ap) *On-shore major facility* means a major facility that is not a vessel or a drilling platform, is located on or under any land and, if partially or totally located on submerged land, is physically connected to the shore by permanent structures located above the mean high-water level.
- (aq) *Operational tank system* means a tank system that is integral to, or connected to, equipment or machinery for which the petroleum in the system is used solely for operational purposes. Petroleum in an operational tank system is not consumed in any context (such as being combusted as fuel or used as a raw material in a manufacturing process). Examples of operational tank systems include hydraulic lift tank systems, lubricating oil system reservoirs, electrical cable oil reservoirs, and electrical transformers.
- (ar) *Operator* means any person who leases, operates, controls, or supervises a facility.
- (as) *Out-of-service* with respect to a tank system means no longer receiving or dispensing petroleum.
- (at) *Overfill* means a spill that occurs when a tank is filled beyond its design capacity.
- (au) *Person* means any individual, public or private corporation, political subdivision, government agency, municipality, co-partnership, association, firm, consortium, joint venture, interstate body, trust, estate, or any other legal entity whatsoever.
- (av) (1) *Petroleum* means:
- (i) Crude oil and any fraction thereof;
 - (ii) Synthetic forms of lubricating oils, dielectric oils, insulating oils, hydraulic oils, and cutting oils;
 - (iii) Any complex blend of hydrocarbons that is not derived from crude oil; or
 - (iv) Any petroleum mixture.

(2) Petroleum does not include:

- (i) Any hazardous substance covered under subsection (ac) of this section, except as may be part of a blend described in section 873.2501.3(av)(2) of this article;
- (ii) Animal or vegetable oils; or
- (iii) Substances that are gases at standard temperature and pressure.

(aw) *Petroleum mixture* means:

- (1) A mixture of any substances covered under section 873.2501.3(av)(1)(i) through (iii) of this article; or
- (2) A blend that consists of:
 - (i) At least 70 percent by volume of the substances covered under section 873.2501(av)(1)(i) through (iii) of this article (singly or in combination); and
 - (ii) One or more other substances, except any hazardous waste as identified or listed in 6 NYCRR Part 371; or
- (3) A blend that consists of:
 - (i) One percent or more by volume of the substances covered under section 873.2501.3(av)(1)(i) through (iii) of this article (singly or in combination), and
 - (ii) One or more other substances, other than hazardous substances covered under section 873.250 1.3(ac)(1)(i) of this article and hazardous waste as identified or listed in 6 NYCRR Part 371.

(ax) *Pipe* or *piping* means a hollow cylinder made of non-earthen materials that is used for the conveyance of petroleum.

(ay) *Release* means any intentional or unintentional action or omission resulting in the releasing, discharging, spilling, leaking, pumping, pouring, emitting, emptying or dumping of petroleum into the waters of the state or onto lands from which it might flow or drain into said waters, or into waters outside the jurisdiction of the state when damage may result to lands, waters, or natural resources within the jurisdiction of the state. A leak or spill of petroleum into secondary containment, including soil that is used as part of secondary containment, does not constitute a release.

(az) *Repair* means to restore to working order a tank, a pipe, spill prevention equipment, overfill prevention equipment, corrosion protection equipment, leak detection equipment, or other tank system component that has caused a leak or a suspected leak of petroleum from the tank system or has failed to function properly.

(ba) *Replaced* means:

- (1) For tanks - The removal of a tank and installation of another tank in the same location.

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- (2) For piping - The removal of 50 percent or more of piping that is connected to a single tank and installation of other piping, excluding connectors, to that same tank. For tanks with multiple piping runs, this definition applies independently to each piping run.
- (bb) *Residence* means a building that is primarily used for dwelling purposes, including any home, apartment building, or nursing home. This term does not include a hospital or hotel.
- (bc) *Retail motor fuel facility* means a facility engaged in the business of selling motor fuel to customers for on-road use.
- (bd) *Rural and remote area* means an area where one retail motor fuel facility is more than 20 miles from the nearest other retail motor fuel facility.
- (be) *Secondary containment* means containment that prevents any spilled or leaked petroleum from reaching the land or water outside the containment before cleanup occurs.
- (bf) *Septic tank* means a watertight covered receptacle designed to receive or process, through liquid separation or biological digestion, the sewage discharged from a building sewer. The effluent from such receptacle is distributed for disposal through the soil, and settled solids and scum from the tank are pumped out periodically and hauled to a treatment facility.
- (bg) *Stationary device* means a device that is not mobile. Examples of stationary devices include tank systems that are fixed or permanently in place on foundations, racks, cradles, or stilts.
- (bh) *Storage capacity* means the total volume capacity of a tank system.
- (bi) *Stormwater collection system* or *wastewater collection system* means piping, pumps, conduits, and any other equipment necessary to collect and transport the flow of surface water run-off resulting from precipitation, or domestic, commercial, or industrial wastewater to and from retention areas or any areas where treatment is designated to occur. The collection of stormwater and wastewater does not include treatment except where incidental to conveyance.
- (bj) *Subtitle I* means Subtitle I of the Resource Conservation and Recovery Act, 42 U.S.C. sections 6991—6991m, entitled "Regulation of Underground Storage Tanks."
- (bk) *Surface impoundment* means a natural topographic depression, man-made excavation, or diked area formed primarily of earthen materials (although it may be lined with man-made materials) that is not an injection well.
- (bl) *Tag* means a sign that is affixed by the department or its authorized representative to the fill pipe(s) of a tank system giving notice that delivery is prohibited.
- (bm) *Tank* means the portion of a tank system that contains the majority of the petroleum in the tank system. Each section of a compartmented tank will be treated as an individual tank.
- (bn) *Tank system* means a stationary device designed to store petroleum that is constructed of non-earthen materials that provide structural support. This term includes all associated

piping and ancillary equipment. This term does not include a dispenser system; septic tank; surface impoundment, pit, pond or lagoon; any tank used for emergency spill or overflow containment that is expeditiously emptied after use; stormwater or wastewater collection system; flow-through process tank system; or liquid trap or associated gathering lines directly related to oil or gas production and gathering operations.

- (bo) *Tank system owner* means any person who has legal or equitable title to a tank system.
- (bp) *Temporary tank system* means an aboveground tank system that is installed and intended for use on a property for no more than 180 consecutive days during any 12-month period.
- (bq) *Tightness test* means a test that is capable of detecting a leak from a tank system of 0.1 gallon per hour with a probability of detection of at least 95 percent and a probability of false alarm of no more than five percent (with a threshold for declaring a leak of 0.05 gallon per hour). A tightness test is valid only if it is performed by a person who has been trained and certified or credentialed by the manufacturer/vendor of the test method.
- (br) *Title 10* means Title 10 of Article 17 of the Environmental Conservation Law entitled "Control of the Bulk Storage of Petroleum."
- (bs) *Under-dispenser containment or UDC* means containment underneath a dispenser system designed to prevent leaks from the dispenser system from reaching soil or groundwater.
- (bt) *Underground piping* means piping that is beneath the surface of the ground or covered by materials. This term does not include piping the exterior of which can be physically inspected, or secondarily contained piping that is located aboveground.
- (bu) *Underground storage tank system or UST system* means a tank system that has ten percent or more of its volume beneath the surface of the ground or is covered by materials. This term does not include a tank system situated in an "accessible underground area." A tank system that is covered by materials does not include a tank system where the tank is completely above the surface of the ground and:
 - (1) The tank is fully enclosed within pre-fabricated secondary containment; or
 - (2) The tank is insulated in order to store heated petroleum.
- (bv) *Used for a common purpose* means that the primary activity at the properties is the same. A common purpose among properties may be shown if the primary activity at each property falls under the same six-digit classification code of the North American Industry Classification System (a standard used by federal statistical agencies in classifying business establishments for the purpose of collecting, analyzing, and publishing statistical data related to the United States business economy).
- (bw) *Wastewater treatment tank system* means a tank system that is designed to receive and treat influent wastewater through physical, chemical, or biological methods.
- (bx) *Waters or waters of the State* means lakes, bays, sounds, ponds, impounding reservoirs, springs, wells, rivers, streams, creeks, estuaries, marshes, inlets, canals, the Atlantic Ocean

within the territorial limits of the State of New York, and all other bodies of surface or underground waters, natural or artificial, inland or coastal, fresh or salt, public or private, which are wholly or partially within or bordering the county or within its jurisdiction.

- (by) *Working capacity* means the portion of the design capacity of a tank that may be filled before engaging the overfill prevention device, reduced by an allowance for freeboard and petroleum expansion.

(Res. of 5-18-2017)

Sec. 873.2501.4. Access to records and facilities.

- (a) Upon reasonable notice of the department, the operator, facility owner, or tank system owner of a facility must allow any designated employee or agent of the department to review and copy any books, papers, documents and records relating to compliance with this article.
- (b) Any designated employee or agent of the department may, at reasonable times and upon reasonable notice, enter and inspect a facility for purposes of assuring compliance with provisions of this article, provided that the employee or agent is accompanied by the tank system owner, operator, or their designee.

(Res. of 5-18-2017)

Sec. 873.2501.5. Recordkeeping.

- (a) Every facility must maintain all records (in hard copy or electronic format) and make them available to the department within three business days following the department's request, except for the results of the last 30 days of leak detection monitoring which must be immediately available at the time of request.
- (b) In the case of permanent closure or change-in-service records required under section 873.2502.6(e) of this article, or permanent closure records required under sections 873.2503.5(c) and 873.2504.5(c) of this article, the facility must transmit a copy of the records to the department within 30 days after permanent closure or change in service.

(Res. of 5-18-2017)

Sec. 873.2501.6. Enforcement and commissioner powers.

- (a) Any person who violates any of the provisions of this article or any order issued by the commissioner shall be liable for the civil, administrative and criminal penalties as set forth in the Westchester County Sanitary Code and Sections 309 and 348 of the New York State Public Health Law. The department reserves the right to forward major violations of this article to NYSDEC for enforcement under Article 71 of the New York State Environmental Conservation Law.

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- (b) Whenever the commissioner has reason to believe that any person is in violation of any provision of the Westchester County Sanitary Code or the administrative regulations adopted thereunder, he or she shall commence an appropriate enforcement action. In addition, the commissioner shall take appropriate enforcement action whenever there are violations of orders issued pursuant to any of the foregoing provisions regardless of whether such orders have been issued by the county or a court of competent jurisdiction.
 - (c) The commissioner may make, or cause to be made, any investigation or study which, in the opinion of the commissioner, is necessary for enforcing this article or controlling or reducing the contamination, pollution, potential contamination or potential pollution within the county.
 - (d) The commissioner may order any person in possession of any land, structure or equipment to take whatever action is necessary, in the opinion of the commissioner, to bring the land, structure or equipment into compliance with the provisions of this Code. This includes, but is not limited to, the ordering of tank testing and/or the emptying of a tank system when leakage is suspected or when continued operation of the facility would present a hazard or potential hazard to the general public, firefighting personnel, property, plant life, ground water or surface water quality or which interferes with the healthful enjoyment of life and property throughout such areas of the Westchester County Health District as may be affected thereby.
 - (e) Notwithstanding paragraph (c) above, nothing in this order restricts or diminishes the authority of the NYSDEC Commissioner to initiate or cause to be initiated actions for violations of Title 10 or violations of the Navigation Law.

(Res. of 5-18-2017)

Sec. 873.2501.7. Fees.

The commissioner shall establish a schedule of fees for permits, certifications, reviews and training to recover any direct cost associated with implementing, administering or enforcing the provisions of this article.

(Res. of 5-18-2017)

Sec. 873.2501.8. Variances.

- (a) The department may, upon written request from any person subject to this article, grant a variance from one or more provisions of this article. An application for a variance must:
 - (1) Identify the specific provisions of this article from which a variance is sought;
 - (2) Demonstrate that the proposed activity will have no adverse impact on public health and the environment;

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- (3) Demonstrate that the proposed activity will be consistent with the provisions of the Environmental Conservation Law;
 - (4) Demonstrate that the proposed activity will provide environmental protection equal to or greater than the requirements of this article; and
 - (5) Provide the department with appropriate evidence that the new or alternative designs, practices, or methods meet the criteria of this subsection.
- (b) In granting any variance, the department may impose conditions necessary to assure that the activity will have no adverse impact on public health or the environment.
 - (c) No variance request will be approved that would have the effect of continuing an activity or circumstance that constitutes non-compliance with any provision of this article, unless the department authorizes the submission of the variance request as part of an enforcement settlement.
 - (d) No variance request will be approved unless the NYSDEC has been consulted and has approved of the proposed department action to grant the variance request.
- (Res. of 5-18-2017)

Sec. 873.2501.9. Registration.

- (a) *General.* The facility owner must obtain an initial or revised registration certificate from the department prior to the first receipt of petroleum into a new or replaced tank system. The facility owner must ensure that the registration information identified in subsection (e) of this section remains current and accurate. In addition, every temporary tank system that is not removed within 180 days after installation must either be included on a new facility registration or be added to an existing facility's registration. The facility owner may rely on an authorized representative to satisfy any obligation imposed on the owner by the provisions of this section.
- (b) *Transition from earlier regulation.* Unless the registration certificate must be revised or newly issued pursuant to the terms of subsection (a) or (d) of this section, a registration certificate held by a facility on October 11, 2015 that was issued pursuant to terms of the former article XXV remains valid until the expiration date recorded on the certificate.
- (c) *Renewal.* Registration must be renewed every three years from the date of the last valid registration certificate until the department receives written notice and documentation from the facility owner that the facility has been permanently closed in accordance with section 873.2502.6(b), 873.2503.5(b), or 873.2504.5(b) of this article, or that ownership of the facility has been transferred in accordance with subsection (d) of this section.
- (d) *Application procedure for initial registration or transfer of ownership.*

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- (1) If ownership of the real property on which a facility is located is transferred, the new facility owner must submit an application to initially register the facility with the department within 30 days after the transfer.
 - (2) The facility owner must submit a registration application using forms or electronic means as provided by the department. Forms are available online at www.westchestercountyny.gov and at department offices.
 - (3) Each application for an initial registration or transfer of facility ownership must be accompanied by a copy of the current deed for the property at which the facility is located. If the facility is located on multiple properties, deeds for each property must be submitted with the application. If a deed does not exist for a particular property, the application must be accompanied by other evidence of ownership of the property.
 - (4) The application must be signed by the facility owner.
 - (5) Every registration application must be accompanied by payment of the applicable registration fee.
- (e) *Application procedure for information corrections.*
- (1) The facility owner must submit information corrections for registered facilities using forms or electronic means as provided by the department. Forms are available online at www.westchestercountyny.gov and at department offices.
 - (2) The registration application must be signed by the facility.
 - (3) Changes in the following registration items are considered information corrections:
 - (i) Contact information;
 - (ii) Class A or class B operator;
 - (iii) Tank system status;
 - (iv) Tank system equipment; or
 - (v) Type of petroleum stored.
 - (4) No registration fee is required for submitting information corrections.
- (f) *Application procedure for permanent closure or change in service of tank systems.* The facility owner must notify the department of permanent closure or change in service of tank systems using forms or electronic means as provided by the department. Forms are available online at www.westchestercountyny.gov and at department offices.
- (g) *Registration certificate.* Upon submittal of a complete registration application and payment of the applicable registration fee, the department will issue a registration certificate. The current registration certificate must be displayed at all times in a conspicuous location at the facility.

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- (h) *Advance notification of installation of a tank.* Except in the case of a temporary tank system, when a facility intends to install a tank, the facility owner must notify the department of this action at least 30 days prior to installing the tank. For any tank added to a previously registered facility, any increased fee applicable to the facility will not be assessed until the registration is due for renewal.

(Res. of 5-18-2017)

Sec. 873.2501.10. References.

The following technical standards are incorporated by reference. With the exception of the technical standards listed in subsections (a) and (f) of this section, these references are available for inspection and copying at the office of NYSDEC's Division of Environmental Remediation, located at 625 Broadway, Albany, NY 12233 and the office of the Department of State, Division of Administrative Rules, located at One Commerce Plaza, 99 Washington Avenue, Suite 650, Albany, NY 12231. The technical standards listed in subsections (a) and (f) of this section are available for inspection at the office of the NYSDEC's Division of Environmental Remediation, located at 625 Broadway, Albany, NY 12233 and the office of the Department of State, Division of Administrative Rules, located at One Commerce Plaza, 99 Washington Avenue, Suite 650, Albany, NY 12231. All of the technical standards are also available for inspection or purchase from the source listed for the given reference.

- (a) American Petroleum Institute (API)
1220 L Street, NW, Washington, DC 20005-4070
- (1) RP 651, "Cathodic Protection of Aboveground Petroleum Storage Tanks," 3rd edition, January 2007.
- (2) RP 1007, "Loading and Unloading of MC 306/DOT 406 Cargo Tank Motor Vehicles," March 2001.
- (3) RP 1604, "Closure of Underground Petroleum Storage Tanks," 3rd edition, March 1996.
- (4) RP 1615, "Installation of Underground Hazardous Substances or Petroleum Storage Systems," 6th edition, April 2011.
- (5) RP 1631, "Interior Lining and Periodic Inspection of Underground Storage Tanks," 5th edition, June 2001.
- (6) RP 1632, "Cathodic Protection of Underground Petroleum Storage Tanks and Piping Systems," 1st edition, January 1983.
- (7) RP 1632, "Cathodic Protection of Underground Petroleum Storage Tanks and Piping Systems," 3rd edition, January 1996 (revised 2002).
- (8) RP 1637, "Using the API Color-Symbol System to Mark Equipment and Vehicles for Product Identification at Gasoline Dispensing Facilities and Distribution Terminals," 3rd edition, July 2006.

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- (9) RP 2016, "Guidelines and Procedures for Entering and Cleaning Petroleum Storage Tanks," 1st edition, August 2001.
 - (10) RP 2200, "Repairing Crude Oil, Liquefied Petroleum Gas, and Product Pipelines," 4th edition, September 2010.
 - (11) Standard 620, "Recommended Rules for Design and Construction of Large, Welded, Low-Pressure Storage Tanks," 7th edition, September 1982 (revised April 1985).
 - (12) Standard 620, "Design and Construction of Large, Welded, Low-Pressure Storage Tanks," 11th edition, February 2008.
 - (13) Standard 650, "Welded Steel Tanks for Oil Storage," 7th edition, February 1984.
 - (14) Standard 650, "Welded Steel Tanks for Oil Storage," 12th edition, March 2013.
 - (15) Standard 653, "Tank Inspection, Repair, Alteration, and Reconstruction," 4th edition, April 2009.
 - (b) Fiberglass Tank and Pipe Institute (FTPI)
11150 South Wilcrest Drive, Suite 101, Houston, TX 77099-4343
 - (1) RP T-95-02, "Remanufacturing of Fiberglass Reinforced Plastic (FRP) Underground Storage Tanks," 2nd edition, January 1995.
 - (c) Ken Wilcox Associates, Inc. (KWA)
1125 Valley Ridge Drive, Grain Valley, MO 64029
 - (1) "Recommended Practice for Inspecting Buried Lined Steel Tanks Using a Video Camera," September 1999.
 - (d) NACE International (NACE)
1440 South Creek Drive, Houston, TX 77084-4906
 - (1) RP0193-2001, "External Cathodic Protection of On-Grade Carbon Steel Storage Tank Bottoms," 2001 edition.
 - (2) SP0169-2013, "Control of External Corrosion on Underground or Submerged Metallic Piping Systems," 2013 edition.
 - (3) SP0285-2011 (formerly RP0285), "Corrosion Control of Underground Storage Tanks by Cathodic Protection," 2011 edition.
 - (4) TM0101-2012, "Measurement Techniques Related to Criteria for Cathodic Protection of Underground Storage Tank Systems," 2012 edition.
 - (5) TM0497-2012, "Measurement Techniques Related to Criteria for Cathodic Protection on Underground or Submerged Metallic Piping Systems," 2012 edition.
 - (e) National Fire Protection Association (NFPA)
1 Batterymarch Park, Quincy, MA 02169-7471
 - (1) NFPA 30, "Flammable and Combustible Liquids Code," 1984 edition.

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- (2) NFPA 30, "Flammable and Combustible Liquids Code," 2012 edition.
 - (3) NFPA 30A, "Automotive and Marine Service Station Code," 1984 edition.
 - (4) NFPA 30A, "Code for Motor Fuel Dispensing Facilities and Repair Garages," 2012 edition.
 - (5) NFPA 326, "Standard for the Safeguarding of Tanks and Containers for Entry, Cleaning, or Repair," 2010 edition.
 - (6) NFPA 385, "Standard for Tank Vehicles for Flammable and Combustible Liquids," 2012 edition.
- (f) Petroleum Equipment Institute (PEI)
P. O. Box 2380, Tulsa, OK 74101-2380
- (1) RP100, "Recommended Practices for Installation of Underground Liquid Storage Systems," 2011 edition.
 - (2) RP200, "Installation of Aboveground Storage Systems," 2013 edition.
- (g) Steel Tank Institute/Steel Plate Fabricators Association (STI/SPFA)
944 Donata Court, Lake Zurich, IL 60047
- (1) F841, "Standard for Dual Wall Underground Steel Storage Tanks," revised January 2006.
 - (2) F894, "ACT-100® : Specification for External Corrosion Protection of FRP Composite Steel USTs," revised September 2013.
 - (3) F922, "Permatank® : Specification for Permatank® ," revised January 2013.
 - (4) F961, "ACT-100U® : Specification for External Corrosion Protection of Composite Steel Underground Storage Tanks." revised September 2013.
 - (5) R051, "Cathodic Protection Testing Procedures for sti-P₃® USTs," revised January 2006.
 - (6) R892, "Recommended Practice for Corrosion Protection of Underground Piping Networks Associated with Liquid Storage and Dispensing Systems," revised January 2006.
 - (7) R972, "Recommended Practice for the Addition of Supplemental Anodes to sti-P₃® USTs," revised December 2010.
 - (8) SP001, "Standard for the Inspection of Aboveground Storage Tanks," 5th Edition, revised September 2011.
 - (9) sti-P₃®, "Specifications for sti-P₃® System for External Corrosion Protection of Underground Steel Storage Tanks," July 1983.
 - (10) sti-P₃®, "Specification and Manual for External Corrosion Protection of Underground Steel Storage Tanks," revised September 2013.

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- (h) Underwriters Laboratories (UL)
333 Pfingsten Road, Northbrook, IL 60062-2096
- (1) UL 58, "Standard for Steel Underground Tanks for Flammable and Combustible Liquids," April 1981 edition.
 - (2) UL 58, "Standard for Steel Underground Tanks for Flammable and Combustible Liquids," December 1996 edition.
 - (3) UL 80, "Standard for Steel Tanks for Oil-Burner Fuels and Other Combustible Liquids," September 2007 edition.
 - (4) UL 142, "Standard for Steel Aboveground Tanks for Flammable and Combustible Liquids," January 1985 edition.
 - (5) UL 142, "Standard for Steel Aboveground Tanks for Flammable and Combustible Liquids," December 2006 edition.
 - (6) UL 971, "Standard for Nonmetallic Underground Piping for Flammable Liquids," February 2006 edition.
 - (7) UL 971 A, "Metallic Underground Fuel Pipe," October 2006 edition.
 - (8) UL 1316, "Standard for Glass-Fiber-Reinforced Plastic Underground Tanks for Petroleum Products," July 1983 edition.
 - (9) UL 1316, "Glass-Fiber-Reinforced Plastic Underground Storage Tanks for Petroleum Products, Alcohols, and Alcohol-Gasoline Mixtures," January 1994 edition.
 - (10) UL 1746, "Standard for External Corrosion Protection Systems for Steel Underground Storage Tanks," January 2007 edition.
 - (11) UL 2258, "Nonmetallic Tanks for Oil-Burner Fuels and Other Combustible Liquids," August 2010 edition.
- (i) Underwriters Laboratories of Canada (ULC)
7 Underwriters Road, Toronto, ON, Canada M1R 3A9
- (1) CAN4-S601-M84, "Standard for Shop Fabricated Steel Aboveground Horizontal Tanks for Flammable and Combustible Liquids," 1984.
 - (2) ULC-S601-07, "Standard for Shop Fabricated Steel Aboveground Tanks for Flammable and Combustible Liquids," 2007.
 - (3) ULC-S603-M1981, "Standard for Steel Underground Tanks for Flammable and Combustible Liquids," 1981.
 - (4) ULC-S603-00, "Standard for Steel Underground Tanks for Flammable and Combustible Liquids," 2000.
 - (5) ULC-S603.1-M1982, "Standard for Galvanic Corrosion Protection Systems for Steel Underground Tanks for Flammable and Combustible Liquids," 1982.

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- (6) ULC-S603.1-11, "Standard for External Corrosion Protection Systems," 2011.
 - (7) CAN4-S615-M83, "Standard for Reinforced Plastic Underground Tanks for Flammable and Combustible Liquids," 1983.
 - (8) ULC-S615-98, "Standard for Reinforced Plastic Underground Tanks for Flammable and Combustible Liquids," 1998.
 - (9) CAN4-S630-M84, "Standard for Shop Fabricated Steel Aboveground Vertical Tanks for Flammable and Combustible Liquids," 1984.
 - (10) ULC-S660-08, "Standard for Nonmetallic Underground Piping for Flammable and Combustible Liquids," 2008.

(Res. of 5-18-2017)

Sec. 873.2501.11. Severability.

If any provision of this article or its application to any person or circumstance is held to be invalid, the remainder of this article and the application of that provision to other persons or circumstances will not be affected.

(Res. of 5-18-2017)

Sec. 873.2501.12. Indemnification/disclaimer of liability.

- (a) The degree of protection required by this article is considered reasonable for regulatory purposes. The standards set forth herein are minimal standards and this article does not imply that compliance will ensure that there will be no unlawful discharge of petroleum products. This article shall not create liability on the part of the department, any officer or employee thereof, for any damages that result from reliance on this article or any administrative decision lawfully made thereunder. All persons handling, storing, using, processing, and disposing of petroleum products within the county shall be and are advised to determine to their own satisfaction the level of protection, in addition to that required by this article, necessary or desirable to ensure that there is no unlawful discharge of petroleum products.

(Res. of 5-18-2017)

Sec. 873.2502. UST systems subject to both Subtitle I and Title 10.

Sec. 873.2502.1. UST systems: Design, construction, and installation.

- (a) *Applicability.* The provisions of this section apply to every UST system that is part of a facility except for a UST system that is subject to section 873.2503 of this article. Every UST system covered by this Section is subject to regulation pursuant to Subtitle I and Title 10.

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- (b) *Equipment standards for Category 2 and 3 UST systems.* In order to prevent releases due to structural failure, corrosion, or spills and overfills, any facility containing a Category 2 or 3 UST system must meet the following requirements:
- (1) Tanks. Every UST must be properly designed and constructed, and any portion underground that routinely contains petroleum must be protected from corrosion, as specified in subparagraphs (i) through (iii) of this paragraph. In addition, all USTs must be secondarily contained in accordance with subparagraph (iv) of this paragraph:
 - (i) Every UST made of fiberglass-reinforced plastic (FRP) must be designed and constructed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (a) For Category 2 USTs:
 - (1) UL 1316, July 1983; or
 - (2) CAN4-S615-M83, 1983;
 - (b) For Category 3 USTs:
 - (1) UL 1316, January 1994; or
 - (2) ULC-S615-98, 1998.
 - (ii) Every UST made of steel that is cathodically protected must meet the following conditions:
 - (a) The UST must be designed and constructed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (1) For Category 2 USTs:
 - (i) UL 58, April 1981; or
 - (ii) ULC-S603-M1981, 1981;
 - (2) For Category 3 USTs:
 - (i) UL 58, December 1996; or
 - (ii) ULC-S603-00, 2000;
 - (b) The UST must be cathodically protected in the following manner:
 - (1) The UST must be coated with a suitable dielectric material;
 - (2) The cathodic protection system must be designed, fabricated, and installed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (i) For Category 2 USTs:

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- (A) API RP 1632, January 1983;
 - (B) ULC-S603.1-M1982, 1982; or
 - (C) sti-P₃®, July 1983.
 - (ii) For Category 3 USTs:
 - (A) sti-P₃®, September 2013;
 - (B) UL 1746, January 2007;
 - (C) ULC-S603.1-11, 2011; or
 - (D) NACE SP0285-2011, 2011;
 - (3) Every field-installed cathodic protection system must be designed by a corrosion expert; and
 - (4) Every impressed current system must be designed to allow determination of current operating status as required in section 873.2502.2(b)(3) of this article.
- (iii) Every UST made of steel that is clad or jacketed with a non-corrodible material must meet the following conditions:
- (a) The UST must be designed and constructed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (1) For Category 2 USTs:
 - (i) UL 58, April 1981; or
 - (ii) ULC-S603-M1981, 1981;
 - (2) For Category 3 USTs:
 - (i) UL 58, December 1996; or
 - (ii) ULC-S603-00, 2000;
 - (b) The tank in a Category 2 UST system must be clad with a non-corrodible material according to the following:
 - (1) The UST must be electrically insulated from the piping with dielectric fittings, bushings, washers, sleeves, or gaskets which are compatible with petroleum, petroleum additives, and corrosive soils;
 - (2) The UST must have an exterior fiberglass reinforced plastic shell bonded firmly to the steel. This must consist of a base coat of resin 5 to 8 mils (0.005 to 0.008 inch) in thickness overlain by two layers of resin with fiberglass reinforcement with a thickness of at

least 85 mils (0.085 inch) after rolling. A final coat of resin must be applied to a thickness of 10 to 15 mils (0.01 to 0.015 inch). The thickness of the completed coating must be a minimum of 100 mils (0.1 inch) after curing. The coating's coefficient of thermal expansion must be compatible with steel so that stress due to temperature changes will not be detrimental to the soundness of the coating and a permanent bond between coating and steel is maintained. The coating must be of sufficient density and strength to form a hard impermeable shell which will not crack, wick, wear, soften, or separate and which must be capable of containing the product under normal service conditions in the event the steel wall is perforated. The coating must be non-corrodible under adverse underground electrolytic conditions and must be compatible with petroleum products and petroleum additives;

- (3) The coating must be factory-inspected for air pockets, cracks, blisters, pinholes, and electrically tested at 10,000 volts for coating short circuits or coating faults. Any defects must be repaired. The coating must be factory checked with a Barcol Hardness Tester or equivalent to assure compliance with the manufacturer's minimum specified hardness standard for cured resin;
- (c) The tank in a Category 3 UST system must be clad or jacketed with a non-corrodible material which is designed, fabricated, and installed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (1) UL 1746, January 2007;
 - (2) STI F894, September 2013;
 - (3) STI F961, September 2013; or
 - (4) STI F922, January 2013.
- (iv) Every UST must be secondarily contained according to the following:
 - (a) The secondarily contained UST must:
 - (1) Be able to contain petroleum leaked from the primary containment until it is detected and removed; and
 - (2) Be able to prevent the release of petroleum;
 - (b) The tank in a Category 2 UST system must have a secondary containment system which must consist of one of the following:

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- (1) Double-walled USTs. A double-walled UST which is designed and manufactured in accordance with all of the following standards:
 - (i) The interstitial space of the double-walled UST can be monitored for tightness;
 - (ii) Outer jackets made of steel must have a minimum thickness of 10-gauge and be coated as prescribed in section 873.2502.1(b)(1)(ii)(b)(1) or (iii)(b)(2) of this article;
 - (iii) There are no penetrations of any kind through the jacket to the UST except top entry manholes and fittings required for filling the tank, venting the tank, or monitoring the interstitial space;
 - (iv) The outer jacket must cover at least the bottom 80 percent of the UST; and
 - (v) The jacket must be designed to contain an inert gas or liquid at a pressure greater than the maximum internal pressure or be able to contain a vacuum for a period of one month;
 - (2) Reserved.
 - (3) Vaults. If a vault is used for secondary containment, the vault must be water tight, impervious to leakage of petroleum, and able to withstand chemical deterioration and structural stresses from internal and external causes. The vault must be a continuous structure with a chemical-resistant water stop used at any joint. There must be no drain connections or other entries through the vault except there may be top entry manholes and other top openings for filling and emptying the UST, venting and monitoring, and pumping of petroleum which may leak into the vault;
 - (4) Cut-off walls. If a cut-off wall is used:
 - (i) The cut-off wall may be used only where groundwater levels are above the bottom of the UST excavation;
 - (ii) A cut-off wall must consist of an impermeable barrier which has a permeability rate to water equal to or less than 1×10^{-6} cm/sec. It must not deteriorate in an underground environment and in the presence of petroleum;
 - (iii) A cut-off wall must extend around the perimeter of the excavation and to an elevation below the lowest groundwater level;

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- (iv) If a synthetic membrane is used for a cut-off wall, any seams, punctures, or tears in the membrane must be repaired and made leak-tight prior to backfilling. No penetrations of the cut-off wall are allowed;
 - (v) Impervious native soil may serve as a cut-off wall when the impervious soil is continuous and is of sufficient depth, thickness, and extent to contain a leak. The soil must have a permeability rate to water equal to or less than 1×10^{-6} cm/sec;
 - (5) Impervious underlayment;
 - (i) An impervious underlayment may be used only under a UST at sites where groundwater levels are below the bottom of the excavation and where soils are well drained. This underlayment must have a permeability rate to water equal to or less than 1×10^{-6} cm/sec and must not deteriorate in an underground environment and in the presence of petroleum. The underlayment may consist of impervious native soils, an impervious concrete pad, a synthetic membrane, or any equivalent material. If a synthetic membrane is used, any seams, punctures, or tears must be repaired prior to backfilling;
 - (ii) The underlayment must extend at least one foot beyond the sides and ends of the UST and must have a slope of at least one-quarter inch per foot to a sump. An observation well must be positioned in the sump and extend to the surface of the excavation for the purpose of sampling for leakage and pumping out water or product which may accumulate;
 - (iii) Surface waters must be drained from the site using practices which may include capping the site with asphalt, concrete, or other impervious cover which is sloped to drainways leading away from the UST;
 - (c) The tank in a Category 3 UST system must be double-walled and must be designed and constructed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (1) UL 58, December 1996;
 - (2) UL 1316, January 1994;
 - (3) UL 1746, January 2007;

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- (4) STI F841, January 2006; or
 - (5) STI F922, January 2013.

(2) Piping.

- (i) Piping installed on or before October 11, 2015 that routinely contains petroleum and is in contact with the ground must be properly designed, constructed, and protected from corrosion in accordance with clauses (a) and (b) of this subparagraph.
 - (a) Piping made of a non-corrodible material must meet the following conditions:
 - (1) The materials, joints, and joint adhesives must be compatible with petroleum, petroleum additives, and corrosive soils.
 - (2) All underground piping must be designed, constructed, and installed with access ports to permit tightness testing without the need for extensive excavation.
 - (3) All joints must be liquid and air tight.
 - (4) All underground piping must be tested for tightness before being covered, enclosed or placed in use.
 - (b) Piping made of steel that is cathodically protected must meet the following conditions:
 - (1) The cathodic protection system must provide a minimum of 30 years of protection in corrosive soils.
 - (2) Cathodic protection must be provided by the use of sacrificial anodes or impressed current.
 - (3) Where sacrificial anodes or impressed current systems are used, monitors to check on the adequacy of the system must be installed and kept in proper working condition. If at any time the monitor shows that the electrical current necessary to prevent corrosion is not being maintained, the system must be repaired or the piping will be considered unprotected and must be tested for tightness in accordance with section 873.2502.3(d)(2) of this article.
 - (4) Except where cathodic protection is provided by impressed current, underground piping must have dielectric bushings, washers, sleeves, or gaskets installed at the end to electrically isolate the piping from the UST and the dispenser. These dielectric connectors must be compatible with petroleum, petroleum additives, and corrosive soils.

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- (5) All underground piping must be designed, constructed, and installed with access ports to permit tightness testing without the need for extensive excavation.
 - (6) All joints must be liquid and air tight.
 - (7) All underground piping must be tested for tightness in accordance with section 873.2502.3(d)(2) of this article before being covered, enclosed, or placed in use.
 - (ii) Piping installed after October 11, 2015 that routinely contains petroleum and is in contact with the ground must be properly designed, constructed, and protected from corrosion in accordance with a code of practice specified in clause (a) or (b) of this subparagraph. In addition, except for suction piping that meets the requirements of section 873.2502.3(b)(2)(i)(b) of this article, all piping installed after October 11, 2015 must be secondarily contained in accordance with clause (c) of this subparagraph. The entire piping run must be replaced when 50 percent or more of a piping run is replaced, unless the piping run has been constructed in accordance with the requirements of this subparagraph.
 - (a) All piping made of a non-corrodible material must be designed and constructed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (1) UL 971, February 2006; or
 - (2) ULC-S660-08, 2008.
 - (b) All piping made of steel that is cathodically protected must meet the following conditions:
 - (1) The piping is designed and constructed according to UL 971A, October 2006 (refer to section 873.2501.10 of this article for complete citation of references);
 - (2) The piping is coated with a suitable dielectric material;
 - (3) The cathodic protection system is designed, fabricated, and installed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (i) API RP 1632, January 1996 (revised 2002);
 - (ii) STI R892, January 2006;
 - (iii) NACE SP0169-2013, 2013; or
 - (iv) NACE SP0285-2011, 2011;

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- (4) Any field-installed cathodic protection system is designed by a corrosion expert; and
 - (5) Any impressed current system is designed to allow determination of current operating status as required in section 873.2502.2(b)(3) of this article.
 - (c) All piping that is secondarily contained installed after October 11, 2015 must meet the following conditions:
 - (1) Be able to contain petroleum leaked from the primary containment until it is detected and removed; and
 - (2) Be able to prevent the release of petroleum.
 - (3) Spill and overfill prevention equipment.
 - (i) Except as provided in subparagraph (ii) of this paragraph, to prevent spilling and overfilling associated with petroleum transfer to the UST system, the facility must use the following spill and overfill prevention equipment:
 - (a) Spill prevention equipment that will prevent release of petroleum when the transfer hose is detached from the fill pipe (for example, a spill catch basin); and
 - (b) Overfill prevention equipment that will:
 - (1) Automatically shut off flow into the UST when the UST is no more than 95 percent full;
 - (2) Alert the operator or carrier when the UST is no more than 90 percent full by restricting the flow into the UST or triggering a high-level alarm; or
 - (3) Restrict flow 30 minutes prior to overfilling, alert the operator or carrier with a high-level alarm one minute before overfilling, or automatically shut off flow into the UST so that none of the fittings located on top of the UST are exposed to product due to overfilling.
 - (ii) A facility is not required to use the spill and overfill prevention equipment specified in subparagraph (i) of this paragraph if the UST system is filled by transfers of no more than 25 gallons at one time.
 - (4) Installation.
 - (i) Every Category 2 UST system must have been installed in accordance with the manufacturer's instructions. This includes repair of any damage to the UST coatings prior to backfilling.

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- (ii) Every Category 3 UST system must be properly installed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (a) API RP 1615, April 2011;
 - (b) PEI RP100, 2011 edition; or
 - (c) NFPA 30 and 30A, 2012 editions.
 - (iii) As-built information records and installer certification. The facility must maintain the following information for the life of every Category 2 or 3 UST system:
 - (a) An accurate diagram:
 - (1) Showing the location of:
 - (i) Each UST and its associated piping, including registration identification number;
 - (ii) Fill ports;
 - (iii) Dispensing equipment;
 - (iv) Check valves;
 - (v) Transition sumps (if any); and
 - (vi) Monitoring or recovery wells (if any).
 - (2) Listing the following attributes for Category 3 UST systems:
 - (i) Physical dimensions of each UST; and
 - (ii) Installation date for each portion of piping installed after October 11, 2015;
 - (3) Indicating at least one visible reference point (for example, facility structure), a frame of reference (for example, north arrow), and scale of the drawing.
 - (b) For each UST system component installed after October 11, 2015, a signed statement by the installer certifying that the UST system component was installed in compliance with subparagraph (ii) of this paragraph; and
 - (c) For each UST system component installed after October 11, 2015, the completed manufacturer's installation checklist showing that the UST system component was installed in accordance with the manufacturer's instructions or that the UST system component installation has been inspected and certified by a registered professional engineer with education and experience in UST system installation.

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- (5) Dispenser systems. Each UST system must be equipped with under-dispenser containment for any new dispenser system that is installed.
- (i) A dispenser system is considered new when both the dispenser and the equipment needed to connect the dispenser to the UST system are installed at a facility. The equipment necessary to connect the dispenser to the UST system includes check valves, shear valves, unburied risers or flexible connectors, or other transitional components that are beneath the dispenser and connect the dispenser to the underground piping.
 - (ii) Under-dispenser containment must be liquid-tight on its sides, on the bottom, and at any penetrations. Under-dispenser containment must allow for visual inspection and access to the components in the containment system or be continuously electronically monitored for leaks from the dispenser system.
- (6) Valves.
- (i) Every dispenser of motor fuel under pressure from a remote pumping system must be equipped with a shear valve (impact valve) that is located in the supply line at the inlet of the dispenser. The valve must be designed to close automatically in the event that the dispenser is accidentally dislodged from the inlet pipe. For a valve installed on or before October 11, 2015, a valve meeting the standards set forth in NFPA 30A (1984 edition), section 4-3.6 meets the requirements of this subparagraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30A (2012 edition), section 6.3.9 meets the requirements of this subparagraph.
 - (ii) Every dispenser of motor fuel that causes a gravity head must be equipped with a device such as a solenoid valve that is positioned adjacent to and downstream from the operating valve. The valve must be installed and adjusted so that liquid cannot flow by gravity from the UST system in case of piping or dispenser hose failure. For a valve installed on or before October 11, 2015, a valve meeting the standards set forth in NFPA 30A (1984 edition), section 2-1.7 meets the requirements of this subparagraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30A (2012 edition), section 4.2.4 meets the requirements of this subparagraph.
 - (iii) Every fill pipe leading to a pump-filled UST must be equipped with a properly functioning check valve or equivalent device which provides automatic protection against backflow. A check valve is required only when the piping arrangement of the fill pipe is such that backflow from the receiving tank is possible.
 - (iv) Each connection on a gravity-drained UST through which petroleum can normally flow must be equipped with an operating valve to control the flow. For a valve installed on or before October 11, 2015, a valve which meets the standards set

forth in NFPA 30 (1984 edition), section 2-2.7.1 meets the requirements of this subparagraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30 (2012 edition), section 22.13.1 meets the requirements of this subparagraph.

(c) *Equipment standards for Category 1 UST systems.*

(1) Alternatives allowed. Every Category 1 UST system must comply with one of the following requirements:

- (i) Category 2 and 3 UST system equipment standards under subsection (b) of this section, with the exception of section 873.2502.1(b)(4)(iii) of this article, at the time of installation; or
- (ii) The requirements in paragraphs (2) through (5) of this subsection.

(2) Tank requirements. Every steel UST must meet one of the following requirements:

- (i) Internal lining. Within ten years after lining, and every five years thereafter, a lined UST must be internally inspected and found to be structurally sound with the lining still performing in accordance with original design specifications. A report detailing the inspection results must be maintained for five years. If the internal lining is no longer performing in accordance with original design specifications and cannot be repaired according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references), then the lined UST must be permanently closed in accordance with section 873.2502.6(b) of this article.

(a) API RP 1631, June 2001; or

(b) KWA "Recommended Practice for Inspecting Buried Lined Steel Tanks Using a Video Camera, September 1999;

- (ii) Cathodic protection. USTs having cathodic protection must meet the requirements of section 873.2502.1(b)(1)(ii)(b)(3) and (4) of this article;

- (iii) Internal lining combined with cathodic protection. USTs with both internal lining and cathodic protection must have the following:

(a) An internal lining that was installed in accordance with the requirements of section 873.2502.2(d) of this article; and

(b) A cathodic protection system that meets the requirements of section 873.2502.1(b)(1)(ii)(b)(3) and (4) of this article.

(3) Piping requirements.

- (i) Metal piping installed on or before October 11, 2015 that routinely contains petroleum and is in contact with the ground must meet the requirements of section 873.2502.1(b)(2)(i) of this article.

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- (ii) Piping installed after October 11, 2015 that routinely contains petroleum and is in contact with the ground must be properly designed, constructed, and protected from corrosion in accordance with section 873.2502.1(b)(2)(ii) of this article.
 - (4) Spill and overfill prevention equipment. To prevent spilling and overfilling associated with petroleum transfer to the UST system, every Category 1 UST system must comply with Category 2 and 3 UST system spill and overfill prevention equipment requirements specified in section 873.2502.1(b)(3) of this article.
 - (5) Valves.
 - (i) Every dispenser of motor fuel under pressure from a remote pumping system must be equipped with a shear valve (impact valve) that is located in the supply line at the inlet of the dispenser. The valve must be designed to close automatically in the event that the dispenser is accidentally dislodged from the inlet pipe. For a valve installed on or before October 11, 2015, a valve meeting the standards set forth in NFPA 30A (1984 edition), section 4-3.6 meets the requirements of this subparagraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30A (2012 edition), section 6.3.9 meets the requirements of this subparagraph.
 - (ii) Every dispenser of motor fuel that causes a gravity head must be equipped with a device such as a solenoid valve that is positioned adjacent to and downstream from the operating valve. The valve must be installed and adjusted so that liquid cannot flow by gravity from the UST system in case of piping or dispenser hose failure. For a valve installed on or before October 11, 2015, a valve meeting the standards set forth in NFPA 30A (1984 edition), section 2-1.7 meets the requirements of this subparagraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30A (2012 edition), section 4.2.4 meets the requirements of this subparagraph.
 - (iii) Every fill pipe leading to a pump-filled UST must be equipped with a properly functioning check valve or equivalent device which provides automatic protection against backflow. A check valve is required only when the piping arrangement of the fill pipe is such that backflow from the receiving tank is possible.
 - (iv) Each connection on a gravity-drained UST through which petroleum can normally flow must be equipped with an operating valve to control the flow. For a valve installed on or before October 11, 2015, a valve which meets the standards set forth in NFPA 30 (1984 edition), section 2-2.7.1 meets the requirements of this subparagraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30 (2012 edition), section 22.13.1 meets the requirements of this subparagraph.

(Res. of 5-18-2017)

Sec. 873.2502.2. General operating requirements.

(a) *Spill and overfill prevention.*

- (1) Every facility must ensure that releases due to spilling or overfilling do not occur. One of the transfer procedures described in NFPA 385 (2012 edition) or API RP 1007 (March 2001 edition) must be used in order to comply with the requirement of this paragraph, unless those procedures are technically infeasible. In circumstances of technical infeasibility, the facility must develop and employ practices to ensure that releases due to spilling or overfilling do not occur.
- (2) The facility must report, investigate, and clean up any spills and overfills in accordance with the Environmental Conservation Law, the Navigation Law, and 6 NYCRR § 613-2.4(d) as implemented by NYSDEC.
- (3) Every Category 2 or 3 UST system must have a label at the fill port specifying tank registration identification number, tank design and working capacities, and type of petroleum that is able to be stored in the UST system.
- (4) Every UST system fill port must be color coded in accordance with API RP 1637. If a UST system contains petroleum that does not have a corresponding API color code, the facility must otherwise mark the fill port (for example, with stenciled letters) to identify the petroleum currently in the UST system. For any fill port connected to multiple UST systems storing different types of petroleum, the facility may place the marking near the fill port (for example, with a label or placard) to identify the types of petroleum in the UST systems.
- (5) Where there are monitoring wells located at the facility, every monitoring well must be clearly identified as a monitoring well to prevent accidental delivery of petroleum to the well and must be sealed or capped so as to prevent liquid from entering the well from the surface.
- (6) The facility must keep all gauges, valves, and other equipment for spill prevention in good working order.
- (7) Delivery of petroleum to a UST system.
 - (i) Immediately prior to a delivery, the carrier must determine that the UST has available working capacity to receive the volume of petroleum to be delivered. Every aspect of the delivery must be monitored and immediate action must be taken to stop the flow of petroleum when the working capacity of the UST has been reached or should an equipment failure or emergency occur.

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- (ii) Immediately prior to a delivery, the carrier must inspect fill port catch basins to ensure that they are empty. If a catch basin contains water, petroleum, or debris, the carrier must ensure that it is emptied before a delivery is made.
 - (b) *Operation and maintenance of corrosion protection.* Every facility having a metal UST system with corrosion protection must comply with the following requirements to ensure that releases due to corrosion are prevented until the UST system is permanently closed or undergoes a change in service pursuant to section 873.2502.6(b) of this article:
 - (1) All corrosion protection systems must be operated and maintained to continuously provide corrosion protection to the metal components of that portion of the UST and piping that routinely contains petroleum and is in contact with the ground.
 - (2) All UST systems equipped with cathodic protection systems must be inspected for proper operation by a qualified cathodic protection tester in accordance with the following requirements:
 - (i) Frequency. All cathodic protection systems must be tested within six months of installation and at yearly intervals thereafter; and
 - (ii) Inspection criteria. One of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references) must be used to determine that cathodic protection is adequate:
 - (a) NACE TM0101-2012, 2012 edition;
 - (b) NACE TM0497-2012, 2012 edition;
 - (c) STI R051, January 2006;
 - (d) NACE SP0285-2011, 2011 edition; or
 - (e) NACE SP0169-2013, 2013 edition.
 - (3) UST systems with impressed current cathodic protection systems must be inspected every 60 days to ensure the equipment is operating properly.
 - (4) For UST systems using cathodic protection, records of the operation of the cathodic protection must be maintained to demonstrate compliance with the requirements of this section. The records generated to meet the provisions of paragraphs (2) and (3) of this subsection must be kept for three years.
 - (c) *Compatibility.* Every facility must use a UST system made of or lined with materials that are compatible with the petroleum stored in the UST system.
 - (d) *Repairs allowed.* Every facility must ensure that repairs will prevent releases due to structural failure or corrosion. The repairs must meet the following requirements:
 - (1) Any repair to a UST system must be properly conducted according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):

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- (i) NFPA 30, 2012 edition;
 - (ii) API RP 2200, September 2010;
 - (iii) API RP 1631, June 2001;
 - (iv) NFPA 326, 2010 edition;
 - (v) STI R972, December 2010;
 - (vi) NACE SP0285-2011, 2011 edition; or
 - (vii) FTPI RP T-95-02, January 1995.
- (2) Every metal pipe section or fitting from which petroleum has been released as a result of corrosion or other damage must be replaced. Non-corrodible pipes and fittings must be repaired in accordance with the manufacturer's specifications.
 - (3) Repaired USTs and piping must be tightness tested in accordance with section 873.2502.3(c)(3) and (d)(2) of this article, respectively, within 30 days following the date of the completion of the repair, unless one of the following conditions is met:
 - (i) The repaired UST is internally inspected in accordance with API RP 1631; or
 - (ii) The repaired portion of the UST system is monitored for releases in accordance with a method specified in section 873.2502.3(c)(4) through (8) of this article.
 - (4) Within six months following the repair of any UST system that is cathodically protected, the cathodic protection system must be inspected in accordance with section 873.2502.2(b)(2) and (3) of this article to ensure that it is operating properly.
 - (5) Every facility must maintain records of each repair until the UST system is permanently closed or undergoes a change in service pursuant to section 873.2502.6(b) of this article.
- (e) *Tank systems in locations subject to flooding.* For Category 1 and 2 UST systems located in an area where the UST may become buoyant because of a rise in the water table, flooding, or accumulation of water, the facility must maintain safeguards in accordance with NFPA 30 (1984 edition), section 2-5.6. If such safeguards include ballasting of a UST with water during flood warning periods, tank system valves and other openings must be closed and secured in a locked position in advance of the flood. Ballast water removed from the UST after the flood must not be discharged to the waters of the State unless the discharge is in conformance with the standards of 6 NYCRR Parts 701, 702, 703, and 750, as applicable.

(Res. of 5-18-2017)

Sec. 873.2502.3. Leak detection.

- (a) *Leak detection requirements for all UST systems.*

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- (1) Every facility must provide a method, or combination of methods, of leak detection that:
 - (i) Can detect a leak from any portion of the UST and the piping that routinely contains petroleum;
 - (ii) Is installed and calibrated in accordance with the manufacturer's instructions; and
 - (iii) Meets the requirements of subsections (c) and (d) of this section, as applicable. In addition, the methods listed in section 873.2502.3(c)(2), (4), (8), (9), (d)(1), and (2) of this article must be capable of detecting the leak rate or quantity specified for that method in the corresponding section of the rule with a probability of detection of 95 percent and a probability of false alarm of five percent.
 - (2) When a leak detection method operated in accordance with the requirements of subsections (c) and (d) of this section indicates that a leak may have occurred, the facility must report the suspected leak in accordance with the Environmental Conservation Law, the Navigation Law, and 6 NYCRR § 613-2.4(a) as implemented by NYSDEC.
 - (3) Additional testing and inspection. When a leak is suspected, or where inventory monitoring records are not kept and reconciled as required under section 873.2502.3(c)(1) of this article, the department may order the facility to inspect and to test the UST system or equipment for tightness. If the facility fails to conduct such inspections and tests within ten days after receipt of the department's order, the department may conduct inspections or tests for tightness. The expenses of conducting such tests as ordered by the department must be paid by the tank system owner.
 - (4) A facility that cannot implement a method of leak detection that complies with the requirements of this section must take the UST system out of service pursuant to section 873.2502.6(a) of this article.
- (b) *Specific requirements for Category 1, 2, and 3 UST systems.*
- (1) Tanks. USTs must be monitored for leaks as follows:
 - (i) Every tank that is part of a Category 1 UST system must be monitored for leaks at weekly intervals using one of the methods listed in section 873.2502.3(c)(2) and (c)(4) through (c)(9) of this article. Continuous electronic monitoring satisfies the weekly monitoring requirement. Additionally, any UST system which stores any amount of motor fuel or kerosene that will be sold as part of a commercial transaction must meet the ten-day inventory monitoring requirements in section 873.2502.3(c)(1) of this article.
 - (ii) Every tank that is part of a Category 2 or 3 UST system must be monitored for leaks at weekly intervals in accordance with section 873.2502.3(c)(7) of this

article. Continuous electronic monitoring satisfies the weekly monitoring requirement. Additionally, any UST system which stores any amount of motor fuel or kerosene that will be sold as part of a commercial transaction must meet the ten-day inventory monitoring requirements in section 873.2502.3(c)(1) of this article.

- (iii) All electronic tank monitoring systems must be inspected for operability at monthly intervals.
- (2) Piping. Piping that routinely contains petroleum must be monitored for leaks as follows:
 - (i) Piping installed on or before October 11, 2015 must meet one of the following requirements:
 - (a) Pressurized piping. Piping that conveys petroleum under pressure must:
 - (1) Be equipped with an automatic line leak detector that is operated in accordance with section 873.2502.3(d)(1) of this article; and
 - (2) Have an annual line tightness test conducted in accordance with section 873.2502.3(d)(2) of this article or have monitoring conducted at weekly intervals in accordance with section 873.2502.3(d)(3) of this article. Continuous electronic monitoring satisfies the weekly monitoring requirement.
 - (b) Suction piping. Piping that conveys petroleum under suction must either have a line tightness test conducted at least every three years and in accordance with section 873.2502.3(d)(2) of this article, or use a monitoring method conducted at weekly intervals in accordance with section 873.2502.3(d)(3) of this article. Continuous electronic monitoring satisfies the weekly monitoring requirement. No leak detection is required for suction piping that is shown by the facility to be designed and constructed to meet the following standards:
 - (1) The underground piping operates at less than atmospheric pressure;
 - (2) The underground piping is sloped so that the contents of the pipe will drain back into the UST if the suction is released;
 - (3) Only one check valve is included in each suction line; and
 - (4) The check valve is located directly below and as close as practicable to the suction pump.
 - (ii) Piping installed after October 11, 2015 must meet one of the following requirements:

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- (a) Pressurized piping. Piping that conveys petroleum under pressure must be monitored for leaks at weekly intervals in accordance with section 873.2502.3(c)(7) of this article and be equipped with an automatic line leak detector in accordance with section 873.2502.3(d)(1) of this article. Continuous electronic monitoring satisfies the weekly monitoring requirement.
 - (b) Suction piping. Piping that conveys petroleum under suction must be monitored for leaks at weekly intervals in accordance with section 873.2502.3(c)(7) of this article. Continuous electronic monitoring satisfies the weekly monitoring requirement. No leak detection is required for suction piping that meets section 873.2502.3(b)(2)(i)(b)(1) through (4) of this article.
 - (iii) All electronic piping monitoring systems must be inspected for operability at monthly intervals.
 - (c) *Methods of leak detection for tanks.* Each method of leak detection for USTs used to meet the requirements of section 873.2502.3(b)(1) of this article must be conducted in accordance with the following:
 - (1) Inventory monitoring. Inventory monitoring must be conducted in the following manner:
 - (i) Volume measurements for petroleum delivered, dispensed, and the amount still remaining in the UST (or each interconnected set of USTs), must be recorded each operating day;
 - (ii) The equipment used must be capable of measuring the level of petroleum over the full range of the tank's height to the nearest one-eighth of an inch;
 - (iii) The petroleum delivered must be reconciled with delivery receipts by measurement of the volume before and after delivery;
 - (iv) Deliveries must be made through a drop tube that extends to within one foot of the tank bottom;
 - (v) Petroleum dispensing must be metered and recorded within an accuracy of six cubic inches for every five gallons of petroleum withdrawn;
 - (vi) The measurement of any water level in the bottom of the UST must be made to the nearest one-eighth of an inch and recorded each operating day; and
 - (vii) On a daily basis, the facility must calculate the difference between the expected and actual amount of petroleum in the UST. At 10-day intervals, the facility must calculate the sum of the daily differences and compare it to the thresholds in clauses (a) and (b) of this subparagraph to determine if a leak is suspected. A leak is suspected when:

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- (a) The UST has a recurring accumulation of water within the ten-day period; or
 - (b) The sum of the daily differences over the 10-day interval exceeds the largest of three-quarters of one percent (0.0075) of:
 - (1) Tank design capacity;
 - (2) Total amount of petroleum delivered to the UST system; or
 - (3) Total amount of petroleum dispensed from the UST system.
 - (2) Manual tank gauging. Manual tank gauging must meet the following requirements:
 - (i) Tank petroleum level measurements are taken at the beginning and ending of a period, as set forth in subparagraph (iv) of this paragraph, during which no petroleum is added to or removed from the UST;
 - (ii) Level measurements are based on an average of two consecutive stick readings at both the beginning and ending of the period;
 - (iii) The equipment used is capable of measuring the level of petroleum over the full range of the tank's height to the nearest one-eighth of an inch;
 - (iv) A leak is suspected and subject to the requirements of section 873.2502.4 of this article if the variation between beginning and ending measurements exceeds the weekly or monthly standards in Table 1 of this section.

Table 1: Manual Tank Gauging			
Design Capacity of UST	Minimum Duration of Test	Weekly Standard (One Test)	Monthly Standard (Four-Test Average)
550 gallons or less	36 hours	10 gallons	5 gallons
551-1,000 gallons (when tank diameter is 64")	44 hours	9 gallons	4 gallons
551-1,000 gallons (when tank diameter is 48")	58 hours	12 gallons	6 gallons

- (v) USTs of 550 gallons or less design capacity and USTs with a design capacity of 551 to 1,000 gallons that meet the tank diameter criteria in Table 1 may use this as the sole method of release detection. USTs of greater than 1,000 gallons design capacity may not use this method to meet the requirements of this subsection.
- (3) Tank tightness testing. Tank tightness testing (or another test of equivalent performance) must be capable of detecting a leak at the rate of 0.1 gallon per hour from any portion of the UST that routinely contains petroleum while accounting for

the effects of thermal expansion or contraction of the product, vapor pockets, tank deformation, evaporation or condensation, and the location of the water table.

- (4) Automatic tank gauging. Equipment for automatic tank gauging which tests for the loss of petroleum must meet the following requirements:
- (i) The automatic petroleum level monitor test can detect a leak at the rate of 0.2 gallon per hour from any portion of the UST that routinely contains petroleum; and
 - (ii) The test must be performed with the system operating in one of the following modes:
 - (a) In-tank static testing conducted on a weekly basis; or
 - (b) Continuous in-tank leak detection operating on an uninterrupted basis or operating within a process that allows the system to gather incremental measurements to determine the leak status of the UST at weekly intervals.
- (5) Vapor monitoring. Testing or monitoring for vapors within the soil gas of the excavation zone must meet the following requirements:
- (i) The materials used as backfill are sufficiently porous (for example, gravel, sand, crushed rock) to readily allow diffusion of vapors from leaks into the excavation area;
 - (ii) The stored petroleum, or a tracer compound placed in the UST system, is sufficiently volatile (for example, gasoline) to result in a vapor level that is detectable by the monitoring devices located in the excavation zone in the event of a leak from the UST;
 - (iii) The measurement of vapors by the monitoring device is not rendered inoperative by the groundwater, rainfall, or soil moisture or other known interferences so that a leak could go undetected for more than seven days;
 - (iv) The level of background contamination in the excavation zone will not interfere with the method used to detect leaks from the UST;
 - (v) The vapor monitors are designed and operated to detect any significant increase in concentration above background of the petroleum stored in the UST system, a component or components of that substance, or a tracer compound placed in the UST system;
 - (vi) In the UST excavation zone, the site is assessed to ensure compliance with the requirements in subparagraphs (i) through (iv) of this paragraph and to establish the number and positioning of monitoring wells that will detect leaks within the excavation zone from any portion of the UST that routinely contains petroleum; and

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- (vii) Monitoring wells are clearly marked and secured to avoid unauthorized access and tampering.
- (6) Groundwater monitoring. Testing or monitoring for liquids on the groundwater must meet the following requirements:
- (i) The petroleum stored is immiscible in water and has a specific gravity of less than one;
 - (ii) Groundwater is never more than 20 feet from the ground surface and the hydraulic conductivity of the soil(s) between the UST system and the monitoring wells or devices is not less than 0.01 cm/sec (for example, the soil should consist of gravels, coarse to medium sands, coarse silts, or other permeable materials);
 - (iii) The slotted portion of the monitoring well casing must be designed to prevent migration of natural soils or filter pack into the well and to allow entry of petroleum on the water table into the well under both high and low groundwater conditions;
 - (iv) Monitoring wells must be sealed from the ground surface to the top of the filter pack;
 - (v) Monitoring wells or devices intercept the excavation zone or are as close to it as is technically feasible;
 - (vi) The continuous electronic monitoring devices or manual methods used can detect the presence of at least one-eighth of an inch of free product on top of the groundwater in the monitoring wells;
 - (vii) Within and immediately below the UST system excavation zone, the site is assessed to ensure compliance with the requirements in subparagraphs (i) through (v) of this paragraph and to establish the number and positioning of monitoring wells or devices that will detect leaks from any portion of the UST that routinely contains petroleum; and
 - (viii) Monitoring wells are clearly marked and secured to avoid unauthorized access and tampering.
- (7) Interstitial monitoring. Interstitial monitoring between the UST system and a secondary barrier immediately around or beneath it may be used if the system is designed, constructed and installed to detect a leak from any portion of the UST that routinely contains petroleum; and if the system meets one of the requirements set forth in subparagraphs (i) through (iii) of this paragraph.
- (i) For a double-walled UST system, the sampling or testing method can detect a leak through the inner wall in any portion of the UST that routinely contains petroleum;

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- (ii) For a UST system with a secondary barrier within the excavation zone, the sampling or testing method used can detect a leak between the UST system and the secondary barrier, and the following conditions are met:
 - (a) The secondary barrier around or beneath the UST system consists of artificially constructed material that is sufficiently thick and impermeable (at least 1×10^{-6} cm/sec for the petroleum stored) to direct a leak to the monitoring point and permit its detection;
 - (b) The barrier is compatible with the petroleum stored so that a leak from the UST system will not cause a deterioration of the barrier allowing a leak to pass through undetected;
 - (c) For a cathodically protected tank, the secondary barrier must be installed so that it does not interfere with the proper operation of the cathodic protection system;
 - (d) The groundwater, soil moisture, or rainfall will not render the testing or sampling method used inoperative so that a leak could go undetected for more than seven days;
 - (e) The site is assessed to ensure that the secondary barrier is always above the groundwater and not in a 25-year flood plain, unless the barrier and monitoring designs are for use under such conditions; and,
 - (f) Monitoring wells are clearly marked and secured to avoid unauthorized access and tampering.
 - (iii) For a UST system using continuous vacuum, pressure, or liquid-filled methods of interstitial monitoring, the method must be capable of detecting a breach in both the inner and outer walls of the tank and/or piping.
- (8) Statistical inventory reconciliation. Statistically based testing or monitoring methods must meet the following requirements:
- (i) Report a quantitative result with a calculated leak rate;
 - (ii) Be capable of detecting a leak rate of 0.2 gallon per hour; and
 - (iii) Use a threshold that does not exceed one-half the minimum detectible leak rate.
- (9) Other methods.
- (i) Any other type of leak detection method, or combination of methods, can be used if it can detect a leak at the rate of 0.2 gallon per hour or a leak of 150 gallons within a month with a probability of detection of 95 percent and a probability of false alarm of five percent.

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- (ii) The department may approve another method if the owner and operator can demonstrate that the method can detect a leak as effectively as any of the methods allowed in paragraphs (4) through (8) of this subsection.
 - (d) *Methods of leak detection for piping.* Each method of leak detection for piping used to meet the requirements of section 873.2502.3(b)(2) of this article must be conducted in accordance with the following:
 - (1) Automatic line leak detectors. Methods which alert the operator to the presence of a leak by restricting or shutting off the flow of petroleum through piping or triggering an audible or visual alarm may be used only if they detect leaks of three gallons per hour at ten pounds per square inch line pressure within one hour. The facility must conduct a test of the operation of the leak detector at yearly intervals.
 - (2) Line tightness testing. A periodic test of piping may be conducted only if it can detect a leak at the rate of 0.1 gallon per hour at one and one-half times the operating pressure.
 - (3) Alternative leak detection methods. Any of the methods in section 873.2502.3(c)(5) through (8) of this article may be used if they are designed to detect a leak from any portion of the piping that routinely contains petroleum.
 - (e) *Leak detection recordkeeping.* All facilities must maintain records demonstrating compliance with all applicable requirements of this section. These records must meet the following requirements:
 - (1) The results or records of any sampling, testing, or monitoring must be maintained for at least three years;
 - (2) The results of tank and line tightness testing must be retained until the next test is conducted;
 - (3) A copy of the results of tank and line tightness testing must be submitted to the department within 30 days after performance of the test(s); and
 - (4) Written documentation of all calibration, maintenance, and repair of leak detection equipment permanently located on-site must be maintained for at least three years after the servicing work is completed. Any schedules of required calibration and maintenance provided by the leak detection equipment manufacturer must be retained for three years from the date of installation.

(Res. of 5-18-2017)

Sec. 873.2502.4. Reporting, investigation, and confirmation.

A facility must act in accordance with the provisions of the Environmental Conservation Law, the Navigation Law, and 6 NYCRR § 613-2.4 as implemented by NYSDEC with respect to any suspected or known spill. The citations to 6 NYCRR §§ 613-2.3(c)(1) and (8), and 613-2.3(a)

and (b), found in 6 NYCRR § 613-2.4(a)(1)(iii), must be read as citations to sections 873.2502.3(c)(1) and (8), and 873.2502.3(a) and (b) of this article, respectively.

(Res. of 5-18-2017)

Sec. 873.2502.5. Operator training.

Every facility that is subject to section 873.2502 of this article must comply with the operator training requirements of 6 NYCRR § 613-2.5 as implemented by NYSDEC.

(Res. of 5-18-2017)

Sec. 873.2502.6. Out-of-service UST systems and closure.

(a) Out-of-service UST systems.

- (1) (i) When a UST system is out-of-service, the facility must continue operation and maintenance of corrosion protection in accordance with section 873.2502.2(b) of this article, and any leak detection in accordance with section 873.2502.3(a) and (b) of this article. The facility must comply with the requirements of 6 NYCRR Subpart 613-6 as implemented by NYSDEC if a release is confirmed.
- (ii) Leak detection required under section 873.2502.3(a) and (b) of this article is not required as long as the UST system is empty. (The UST system is considered empty when all materials have been removed using commonly employed practices so that no more than 2.5 centimeters [one inch] of residue remain in the system.) However, leak detection required under section 873.2502.3(a) and (b) of this article must resume upon resumption of delivery of petroleum into the UST system.
- (2) When a UST system is out-of-service for a period of three to 12 months, the facility must also comply with the following requirements:
 - (i) Leave vent lines open and functioning; and
 - (ii) Cap and secure all other piping, ancillary equipment, and manways.
- (3) When a UST system is out-of-service for more than 12 months, the facility must permanently close the UST system in accordance with subsections (b) through (e) of this section.

(b) Permanent closure and changes in service.

- (1) At least 30 days before beginning permanent closure or a change in service, a facility must notify the department of its intent to permanently close or make the change in service, unless such action is in response to corrective action. The required assessment of the excavation zone under subsection (c) of this section must be performed after notifying the department but before completion of the permanent

closure or a change in service. The resultant report must be submitted to the department within 90 days after permanent closure. Within 30 days after permanent closure or a change in service, a facility must submit a registration application to the department, in accordance with section 873.2501.9(f) of this article, indicating that the UST system has been permanently closed or that a change in service has occurred.

(2) To permanently close a UST system:

- (i) The facility must empty and clean it by removing all liquids and accumulated sludge. Every tank that is part of a UST system that is permanently closed must also be either removed from the ground or filled with an inert solid material (such as sand or concrete slurry). If an inert solid material is used, all voids within the UST must be filled. All connecting and fill lines must be disconnected and removed or securely capped or plugged. Manways must be securely fastened in place.
- (ii) The facility must ensure that all scheduled deliveries to the UST system are terminated.

(3) Use of a UST system to store a substance other than petroleum is considered a change in service. Before a change in service, the facility must empty and clean the UST by removing all liquid and accumulated sludge and conduct a site assessment in accordance with subsection (c) of this section.

(4) One of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references) must be adhered to in order to comply with this subsection:

- (i) API RP 1604, March 1996;
- (ii) API RP 2016, August 2001;
- (iii) API RP 1631, June 2001; or
- (iv) NFPA 326, 2010 edition.

(c) *Assessing the site at closure or change in service.*

- (1) Before permanent closure or a change in service is completed, the facility must measure for the presence of a release where contamination is most likely to be present at the UST system location. In selecting sample types, sample locations, and measurement methods, the facility must consider the method of closure, the petroleum stored, the type of backfill, the depth to groundwater, and other factors appropriate for identifying the presence of a release. The requirements of this subsection are satisfied if one of the external release detection methods allowed in section 873.2502.3(c)(5) and (6) of this article is operating in accordance with the requirements in section 873.2502.3 of this article at the time of closure, and indicates no release has occurred.

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- (2) If contaminated soils, contaminated groundwater, or petroleum as a liquid or vapor is discovered, the facility must begin corrective action in accordance with the Environmental Conservation Law, the Navigation Law, and 6 NYCRR Subpart 613-6 as implemented by NYSDEC.
 - (d) For any UST system that has been out-of-service since December 27, 1986 and was not properly permanently closed pursuant to department regulations governing UST system closure, the facility owner must assess the excavation zone and permanently close the UST system in accordance with this section if the department determines there is a potential for a release of petroleum from the UST system.
 - (e) *Records for permanent closure or change in service.* The facility must maintain for three years records that are capable of demonstrating compliance with closure requirements under this article. In addition, the facility must transmit a copy of the records to the Department within 30 days after permanent closure or change in service.

(Res. of 5-18-2017)

Sec. 873.2503. UST systems subject only to Title 10.

Sec. 873.2503.1. UST systems: Design, construction, and installation.

- (a) *Applicability.* The provisions of this section apply to every UST system that is part of a facility, where the UST system:
 - (1) Contains heating oil used for on-premises consumption;
 - (2) Has a storage capacity of 1,100 gallons or less and is used to store motor fuel for non-commercial purposes (not for resale) at a farm or residence;
 - (3) Is part of an emergency generator system at nuclear power generation facilities regulated by the Nuclear Regulatory Commission under 10 CFR Part 50; or
 - (4) Consists of a field-constructed tank.
- (b) *Equipment standards for Category 2 and 3 UST systems.* In order to prevent releases due to structural failure, corrosion, or spills and overfills, any facility containing a Category 2 or 3 UST system must meet the following requirements:
 - (1) Tanks. Each UST must be properly designed and constructed, and any portion underground that routinely contains petroleum must be protected from corrosion, as specified in subparagraphs (i) through (iii) of this paragraph. In addition, all USTs must be secondarily contained in accordance with subparagraph (iv) of this paragraph:
 - (i) Every UST made of fiberglass-reinforced plastic (FRP) must be designed and constructed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):

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- (a) For Category 2 USTs:
 - (1) UL 1316, July 1983; or
 - (2) CAN4-S615-M83, 1983;
 - (b) For Category 3 USTs:
 - (1) UL 1316, January 1994; or
 - (2) ULC-S615-98, 1998.
- (ii) Every UST made of steel that is cathodically protected must meet the following conditions:
- (a) The UST must be designed and constructed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (1) For Category 2 USTs:
 - (i) UL 58, April 1981; or
 - (ii) ULC-S603-M1981, 1981;
 - (2) For Category 3 USTs:
 - (i) UL 58, December 1996; or
 - (ii) ULC-S603-00, 2000;
 - (b) The UST must be cathodically protected in the following manner:
 - (1) The UST must be coated with a suitable dielectric material;
 - (2) The cathodic protection system must be designed, fabricated, and installed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (i) For Category 2 USTs:
 - (A) API RP 1632, January 1983;
 - (B) ULC-S603.1-M1982, 1982; or
 - (C) sti-P₃®, July 1983;
 - (ii) For Category 3 USTs:
 - (A) sti-P₃®, September 2013;
 - (B) UL 1746, January 2007;
 - (C) ULC-S603.1-11, 2011;
 - (D) NACE SP0285-2011, 2011;

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- (3) Every field-installed cathodic protection system must be designed by a corrosion expert; and
 - (4) Every impressed current system must be designed to allow determination of current operating status as required in section 873.2503.2(b)(3) of this article.
 - (iii) Every UST made of steel that is clad or jacketed with a non-corrodible material must meet the following conditions:
 - (a) The UST must be designed and constructed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (1) For Category 2 USTs:
 - (i) UL 58, April 1981; or
 - (ii) ULC-S603-M1981, 1981;
 - (2) For Category 3 USTs:
 - (i) UL 58, December 1996; or
 - (ii) ULC-S603-00, 2000;
 - (b) The tank in a Category 2 UST system must be clad with a non-corrodible material in accordance with the following requirements:
 - (1) The UST must be electrically insulated from the piping with dielectric fittings, bushings, washers, sleeves or gaskets which are compatible with petroleum, petroleum additives, and corrosive soils;
 - (2) The UST must have an exterior fiberglass reinforced plastic shell bonded firmly to the steel. This must consist of a base coat of resin 5 to 8 mils (0.005 to 0.008 inch) in thickness overlain by two layers of resin with fiberglass reinforcement with a thickness of at least 85 mils (0.085 inch) after rolling. A final coat of resin must be applied to a thickness of 10 to 15 mils (0.01 to 0.015 inch). The thickness of the completed coating must be a minimum of 100 mils (0.1 inch) after curing. The coating's coefficient of thermal expansion must be compatible with steel so that stress due to temperature changes will not be detrimental to the soundness of the coating and a permanent bond between coating and steel is maintained. The coating must be of sufficient density and strength to form a hard impermeable shell which will not crack, wick, wear, soften, or separate and which must be capable of containing the product under normal service conditions in the event the steel

wall is perforated. The coating must be non-corrodible under adverse underground electrolytic conditions and must be compatible with petroleum products and petroleum additives;

- (3) The coating must be factory-inspected for air pockets, cracks, blisters, pinholes, and electrically tested at 10,000 volts for coating short circuits or coating faults. Any defects must be repaired. The coating must be factory checked with a Barcol Hardness Tester or equivalent to assure compliance with the manufacturer's minimum specified hardness standard for cured resin;
- (c) The tank in a Category 3 UST system must be clad or jacketed with a non-corrodible material which is designed, fabricated, and installed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (1) UL 1746, January 2007;
 - (2) STI F894, September 2013;
 - (3) STI F961, September 2013; or
 - (4) STI F922, January 2013.
- (iv) Every UST must be secondarily contained according to the following:
 - (a) The secondarily contained UST must:
 - (1) Be able to contain petroleum leaked from the primary containment until it is detected and removed; and
 - (2) Be able to prevent the release of petroleum;
 - (b) The tank in a Category 2 UST system must have a secondary containment system which must consist of one of the following:
 - (1) Double-walled USTs. A double-walled UST which is designed and manufactured in accordance with all of the following standards:
 - (i) The interstitial space of the double-walled UST can be monitored for tightness;
 - (ii) Outer jackets made of steel must have a minimum thickness of 10-gauge and must be coated as prescribed in section 873.2503.1 (b)(1)(ii)(b)(1) or (iii)(b)(2) of this article;
 - (iii) There are no penetrations of any kind through the jacket to the UST except top entry manholes and fittings

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- required for filling the tank, venting the tank, or monitoring the interstitial space;
- (iv) The outer jacket must cover at least the bottom 80 percent of the UST; and
 - (v) The jacket must be designed to contain an inert gas or liquid at a pressure greater than the maximum internal pressure or be able to contain a vacuum for a period of one month.
- (2) Vaults. If a vault is used for secondary containment, the vault must be water tight, impervious to leakage of petroleum and able to withstand chemical deterioration and structural stresses from internal and external causes. The vault must be a continuous structure with a chemical-resistant water stop used at any joint. There must be no drain connections or other entries through the vault except there may be top entry manholes and other top openings for filling and emptying the UST, for venting, and for monitoring and pumping of petroleum which may leak into the vault;
- (3) Cut-off walls. If a cut-off wall is used:
- (i) The cut-off wall may be used only where groundwater levels are above the bottom of the UST excavation;
 - (ii) A cut-off wall must consist of an impermeable barrier which has a permeability rate to water equal to or less than 1×10^{-6} cm/sec. It must not deteriorate in an underground environment and in the presence of petroleum;
 - (iii) A cut-off wall must extend around the perimeter of the excavation and to an elevation below the lowest groundwater level;
 - (iv) If a synthetic membrane is used for a cut-off wall, any seams, punctures or tears in the membrane must be repaired and made leak tight prior to backfilling. No penetrations of the cut-off wall are allowed;
 - (v) Impervious native soil may serve as a cut-off wall when the impervious soil is continuous and is of sufficient depth, thickness, and extent to contain a leak. The soil must have a permeability rate to water equal to or less than 1×10^{-6} cm/sec;

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- (4) Impervious underlayment:
- (i) An impervious underlayment may be used only under a UST at sites where groundwater levels are below the bottom of the excavation and where soils are well drained. This underlayment must have a permeability rate to water equal to or less than 1×10^{-6} cm/sec and must not deteriorate in an underground environment and in the presence of petroleum. The underlayment may consist of impervious native soils, an impervious concrete pad, a synthetic membrane or any equivalent material. If a synthetic membrane is used, any seams, punctures or tears must be repaired prior to backfilling;
 - (ii) The underlayment must extend at least one foot beyond the sides and ends of the UST and must have a slope of at least one-quarter inch per foot to a sump. An observation well must be positioned in the sump and extend to the surface of the excavation for the purpose of sampling for leakage and pumping out water or product which may accumulate;
 - (iii) Surface waters must be drained from the site using practices which may include capping the site with asphalt, concrete or other impervious cover which is sloped to drainways leading away from the UST;
- (c) The tank in a Category 3 UST system must be double-walled and must be designed and constructed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
- (1) UL 58, December 1996;
 - (2) UL 1316, January 1994;
 - (3) UL 1746, January 2007;
 - (4) STI F841, January 2006; or
 - (5) STI F922, January 2013.
- (2) Piping. Piping that routinely contains petroleum and is in contact with the ground must be properly designed, constructed, and protected from corrosion in accordance with subparagraphs (i) or (ii) of this paragraph.
- (i) Piping made of a non-corrodible material must meet the following conditions.

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- (a) The materials, joints, and joint adhesives must be compatible with petroleum, petroleum additives, and corrosive soils.
 - (b) All underground piping must be designed, constructed, and installed with access ports to permit tightness testing without the need for extensive excavation.
 - (c) All joints must be liquid and air tight.
 - (d) All underground piping must be tested for tightness before being covered, enclosed or placed in use.
 - (e) All piping that is installed after October 11, 2015 must be designed and constructed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (1) UL 971, February 2006; or
 - (2) ULC-S660-08, 2008.
- (ii) Piping made of steel that is cathodically protected must meet the following conditions:
- (a) The cathodic protection system must provide a minimum of 30 years of protection in corrosive soils.
 - (b) Cathodic protection must be provided by the use of sacrificial anodes or impressed current.
 - (c) Where sacrificial anodes or impressed current systems are used, monitors to check on the adequacy of the system must be installed and kept in proper working condition. If at any time the monitor shows that the electrical current necessary to prevent corrosion is not being maintained, the system must be repaired or the piping will be considered unprotected and must be tested for tightness in accordance with section 873.2503.3(d)(2) of this article.
 - (d) Except where cathodic protection is provided by impressed current, underground piping must have dielectric bushings, washers, sleeves, or gaskets installed at the end to electrically isolate the piping from the UST and the dispenser. These dielectric connectors must be compatible with petroleum, petroleum additives, and corrosive soils.
 - (e) All underground piping must be designed, constructed, and installed with access ports to permit tightness testing without the need for extensive excavation.
 - (f) All joints must be liquid and air tight.

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- (g) All underground piping must be tested for tightness in accordance with section 873.2503.3(d)(2) of this article before being covered, enclosed, or placed in use.
 - (h) All piping that is installed after October 11, 2015 must meet the following conditions:
 - (1) The piping is designed and constructed according to UL 971A, October 2006 (refer to section 873.2501.10 of this article for complete citation of references);
 - (2) The piping is coated with a suitable dielectric material;
 - (3) The cathodic protection system is designed, fabricated, and installed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (i) API RP 1632, January 1996 (revised 2002);
 - (ii) STI R892, January 2006;
 - (iii) NACE SP0169-2013, 2013; or
 - (iv) NACE SP0285-2011, 2011;
 - (4) Any field-installed cathodic protection system is designed by a corrosion expert; and
 - (5) Any impressed current system is designed to allow determination of current operating status as required in section 873.2503.2(b)(2) of this article.
 - (3) Overfill prevention equipment.
 - (i) Overfill prevention equipment must be used that will:
 - (a) Automatically shut off flow into the UST when the UST is no more than 95 percent full;
 - (b) Alert the operator or carrier when the UST is no more than 90 percent full by restricting the flow into the UST or triggering a high-level alarm; or
 - (c) Restrict flow 30 minutes prior to overfilling, alert the operator or carrier with a high-level alarm one minute before overfilling, or automatically shut off flow into the UST so that none of the fittings located on top of the UST are exposed to product due to overfilling.
 - (ii) A facility is not required to use the overfill prevention equipment specified in subparagraph (i) of this paragraph if the UST system is filled by transfers of no more than 25 gallons at one time.

(4) Installation.

- (i) Every Category 3 UST system must be installed in accordance with the manufacturer's instructions. This includes repair of any damage to the tank coatings prior to backfilling.
- (ii) As-built information records. The facility must maintain an accurate diagram for the life of every Category 2 or 3 UST system:
 - (a) Showing the location of:
 - (1) Each UST and its associated piping, including registration identification number;
 - (2) Fill ports;
 - (3) Dispensing equipment;
 - (4) Check valves;
 - (5) Transition sumps (if any); and
 - (6) Monitoring or recovery wells (if any).
 - (b) Listing the following tank system attributes for Category 3 UST systems:
 - (1) Physical dimensions of each UST; and
 - (2) Installation date for each portion of piping installed after October 11, 2015;
 - (c) Indicating at least one visible reference point (for example, facility structure), a frame of reference (for example, north arrow), and scale of the drawing.

(5) Valves.

- (i) Every dispenser of motor fuel under pressure from a remote pumping system must be equipped with a shear valve (impact valve) that is located in the supply line at the inlet of the dispenser. The valve must be designed to close automatically in the event that the dispenser is accidentally dislodged from the inlet pipe. For a valve installed on or before October 11, 2015, a valve meeting the standards set forth in NFPA 30A (1984 edition), section 4-3.6 meets the requirements of this subparagraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30A (2012 edition), section 6.3.9 meets the requirements of this subparagraph.
- (ii) Every dispenser of motor fuel that causes a gravity head must be equipped with a device such as a solenoid valve that is positioned adjacent to and downstream from the operating valve. The valve must be installed and adjusted so that liquid cannot flow by gravity from the UST system in case

of piping or dispenser hose failure. For a valve installed on or before October 11, 2015, a valve meeting the standards set forth in NFPA 30A (1984 edition), section 2-1.7 meets the requirements of this subparagraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30A (2012 edition), section 4.2.4 meets the requirements of this subparagraph.

- (iii) Every fill pipe leading to a pump-filled UST must be equipped with a properly functioning check valve or equivalent device which provides automatic protection against backflow. A check valve is required only when the piping arrangement of the fill pipe is such that backflow from the receiving tank is possible.
- (iv) Each connection on a gravity-drained UST through which petroleum can normally flow must be equipped with an operating valve to control the flow. For a valve installed on or before October 11, 2015, a valve which meets the standards set forth in NFPA 30 (1984 edition), section 2-2.7.1 meets the requirements of this subparagraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30 (2012 edition), section 22.13.1 meets the requirements of this subparagraph.

(c) *Equipment standards for Category 1 UST systems.* In order to prevent releases due to structural failure, corrosion, or spills and overfills, any facility containing a Category I UST system must meet the following requirements:

- (1) Piping requirements. Piping installed on or after December 27, 1986 that routinely contains petroleum and is in contact with the ground must meet the requirements of paragraph (b) (2) of this section.
- (2) Valves.
 - (i) Every dispenser of motor fuel under pressure from a remote pumping system must be equipped with a shear valve (impact valve) that is located in the supply line at the inlet of the dispenser. The valve must be designed to close automatically in the event that the dispenser is accidentally dislodged from the inlet pipe. For a valve installed on or before October 11, 2015, a valve meeting the standards set forth in NFPA 30A (1984 edition), section 4-3.6 meets the requirements of this paragraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30A (2012 edition), section 6.3.9 meets the requirements of this paragraph.
 - (ii) Every dispenser of motor fuel that causes a gravity head must be equipped with a device such as a solenoid valve that is positioned adjacent to and downstream from the operating valve. The valve must be installed and adjusted so that liquid cannot flow by gravity from the UST system in case of piping or dispenser hose failure. For a valve installed on or before October 11, 2015, a valve meeting the

standards set forth in NFPA 30A (1984 edition), section 2-1.7 meets this requirements of this paragraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30A (2012 edition), section 4.2.4 meets the requirements of this paragraph.

- (iii) Every fill pipe leading to a pump-filled UST must be equipped with a properly functioning check valve or equivalent device which provides automatic protection against backflow. A check valve is required only when the piping arrangement of the fill pipe is such that backflow from the receiving tank is possible.
- (iv) Each connection on a gravity-drained UST through which petroleum can normally flow must be equipped with an operating valve to control the flow. For a valve installed on or before October 11, 2015, a valve which meets the standards set forth in NFPA 30 (1984 edition), section 2-2.7.1 meets the requirements of this paragraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30 (2012 edition), section 22.13.1 meets the requirements of this paragraph.

(Res. of 5-18-2017)

Sec. 873.2503.2. General operating requirements.

(a) *Spill and overfill prevention.*

- (1) Every facility must ensure that releases due to spilling or overfilling do not occur. One of the transfer procedures described in NFPA 385 (2012 edition) or API RP 1007 (March 2001 edition) must be used in order to comply with the requirement of this paragraph, unless those procedures are technically infeasible. In circumstances of technical infeasibility, the facility must develop and employ practices to ensure that releases due to spilling or overfilling do not occur.
- (2) The facility must report, investigate, and clean up any spills and overfills in accordance with the Environmental Conservation Law, the Navigation Law, and 6 NYCRR § 613-3.4(d) as implemented by NYSDEC.
- (3) Every Category 2 or 3 UST system must have a label at the fill port specifying tank registration identification number, tank design and working capacities, and type of petroleum that is able to be stored in the UST system.
- (4) Every UST system fill port must be color coded in accordance with API RP 1637. If a UST system contains petroleum that does not have a corresponding API color code, the facility must otherwise mark the fill port (for example, with stenciled letters) to identify the petroleum currently in the UST system. For any fill port connected to multiple UST systems storing different types of petroleum, the facility may place the

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- marking near the fill port (for example, with a label or placard) to identify the types of petroleum in the UST systems.
- (5) Where there are monitoring wells located at a facility, every monitoring well must be clearly identified as a monitoring well to prevent accidental delivery of petroleum to the monitoring well and must be sealed or capped so as to prevent liquid from entering the well from the surface.
 - (6) The facility must keep all gauges, valves, and other equipment for spill prevention in good working order.
 - (7) Immediately prior to a delivery, the carrier must determine that the UST has available working capacity to receive the volume of petroleum to be delivered. Every aspect of the delivery must be monitored and immediate action must be taken to stop the flow of petroleum when the working capacity of the UST has been reached or should an equipment failure or emergency occur.
- (b) *Operation and maintenance of corrosion protection.* Every facility having a metal UST system with corrosion protection must comply with the following requirements to ensure that releases due to corrosion are prevented until the UST system is permanently closed pursuant to section 873.2503.5(b) of this article:
- (1) All corrosion protection systems must be operated and maintained to continuously provide corrosion protection to the metal components of that portion of the UST and piping that routinely contains petroleum and is in contact with the ground.
 - (2) All UST systems equipped with cathodic protection systems must be inspected for proper operation by a qualified cathodic protection tester in accordance with the following requirements:
 - (i) Frequency. All cathodic protection systems must be tested at yearly intervals; and
 - (ii) Inspection criteria. All cathodic protection systems must provide adequate electrical current to prevent corrosion.
 - (3) For UST systems using cathodic protection, records of the operation of the cathodic protection must be maintained to demonstrate compliance with the requirements of this section. The records generated to meet the provisions of paragraph (2) of this subsection must be kept for three years.
- (c) *Compatibility.* Every facility must use a UST system made of or lined with materials that are compatible with the petroleum stored in the UST system.
- (d) *Lining repairs for steel USTs.*
- (1) Manufacturer's guarantee. A steel UST may be lined under the direction of the lining manufacturer or a certified representative. The manufacturer or representative must guarantee to the owner in writing that the lining will not fail, crack, separate, or

deteriorate and the tank will not leak the product specified in storage for a period of ten years. A copy of the guarantee must be kept by the owner for the life of the tank.

(2) Structural requirements.

- (i) A steel UST may be lined only if it meets the following structural conditions:
 - (a) The tank has a design shell thickness of seven gauge or more;
 - (b) The tank has a minimum metal thickness of one-eighth inch at holes after reaming;
 - (c) The tank has no open seam or split;
 - (d) The tank has fewer than ten holes with none larger than one-half inch in diameter; and
 - (e) The tank meets all standards for structural soundness of the lining manufacturer.
- (ii) A steel UST which fails to meet all of the requirements of subparagraph (i) of this paragraph must be permanently closed in accordance with section 873.2503.5(b) of this article.
- (iii) To determine adherence to the requirements of subparagraph (i) of this paragraph, the entire interior surface of the steel UST must be tapped with a ballpeen hammer for soundness or inspected using other equivalent or superior nondestructive methods. Weak areas, holes and seams must be ballpeen hammered (before and after sandblasting) to obtain structurally sound edges. Holes and seams must be reamed until the edges of the opening are a minimum of one-eighth inch thick.

(3) Preparation of tank interior.

- (i) Cleaning of UST prior to lining. Prior to lining, a UST must be cleaned. Wash water must not be discharged to the lands or waters of the State unless the discharge is in conformance with the standards of 6 NYCRR Parts 701, 702, 703, and 750, as applicable.
- (ii) Sludge removal. Sludge accumulation on the bottom of the UST must be removed, transported, and disposed of in a manner consistent with all State and federal requirements for solid waste disposal.
- (iii) Sandblasting of internal surfaces. The entire internal surface of the UST must be sandblasted completely free of scale, rust, and foreign matter. Following sandblasting, the entire surface must be brushed and vacuumed such that the surface when viewed without magnification is free of all moisture and foreign matter.

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- (iv) Plugging of perforations. All perforations must be tightly plugged with boiler plugs or screws made of noncorrodible plastic. Boiler plugs or screws must be covered with a laminate of resin and fiberglass cloth which overlaps all sides of the plug with a minimum of six inches and which has a minimum area of 144 square inches.
 - (4) Installation of striker plates. Prior to applying the coating material, a 10-gauge steel plate which covers a minimum of 144 square inches must be installed and centered under the fill tube and gauging tube. The plate must be bonded to the interior surface of the UST.
 - (5) Lining specifications.
 - (i) Any noncorrodible epoxy-based resins or equivalent coating may be used for lining a steel UST if the lining is of sufficient thickness, density, and strength to form a hard impermeable shell which will not leak, crack, wear, soften, or separate from the interior surface of the UST.
 - (ii) The lining's coefficient of thermal expansion must be compatible with steel so that stress due to temperature changes will not be detrimental to the soundness of the coating.
 - (iii) The lining must be compatible with petroleum products and petroleum additives.
 - (6) Application of lining.
 - (i) The lining must be applied and cured in strict accordance with manufacturer's specifications.
 - (ii) The lining must be applied as soon as possible but not later than eight hours after sandblasting and cleaning of the internal surface. Visible rust, moisture, or foreign material must not be present.
 - (7) Inspection of lining. The lining must be checked for air pockets and blisters, and electrically tested for pinholes. The lining thickness must be checked with an Elcometer Thickness Gauge or equivalent and the hardness checked with a Barcol Hardness Tester or equivalent to assure compliance with manufacturer's specifications. Any defects must be repaired.
 - (8) Tank closings.
 - (i) If the UST has a manway, the manway cover gasket must be replaced with a new one before resealing.
 - (ii) If the UST does not have a manway and an opening has been cut, the UST must have a manway properly welded in place prior to beginning work or the UST must be sealed as follows:
 - (a) A one-fourth-inch thick steel cover plate, rolled to the contour of the tank exterior must be made to overlap the hole at least two inches on each side

(for example, the cover plate should measure at least 26"×26" if the opening was cut 22"×22");

- (b) The cover must be used as a template to locate three-fourth-inch diameter holes on five-inch centers, one inch from the edge of the cover;
 - (c) The cover plate must be sandblasted and both sides and the entire inside surface of the plate must be covered with coating material to act as a gasket;
 - (d) Before the coating on the cover cures, the cover must be fastened to the UST using one-half-inch minimum diameter bolts. The bolt shafts are to be placed through the holes from the inside of the tank and held in place by spring clips, then fastened with lock washers and nuts which have been dipped in a seam sealer;
 - (e) After being bolted to the UST, the cover plate and surrounding tank surface must be properly sandblasted, coated with coating material, and allowed to cure before backfilling the hole.
- (9) Tank tightness testing. Following closure of the UST and before backfilling, the relined UST must be given a tightness test in accordance with section 873.2503.3(c)(1) of this article.
- (e) *Tank systems in locations subject to flooding.* For Category 1 and 2 UST systems located in an area where the UST may become buoyant because of a rise in the water table, flooding, or accumulation of water, the facility must maintain safeguards in accordance with NFPA 30 (1984 edition), section 2-5.6. If such safeguards include ballasting of a UST with water during flood warning periods, tank system valves and other openings must be closed and secured in a locked position in advance of the flood. Ballast water removed from the UST after the flood must not be discharged to the waters of the State unless the discharge is in conformance with the standards of 6 NYCRR Parts 701, 702, 703, and 750, as applicable.

(Res. of 5-18-2017)

Sec. 873.2503.3. Leak detection.

- (a) *Leak detection requirements for all UST systems.*
- (1) Every facility must provide a method, or combination of methods, of leak detection that:
 - (i) Can detect a leak from any portion of the UST and the piping that routinely contains petroleum;
 - (ii) Is installed and calibrated in accordance with the manufacturer's instructions;
- and

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- (iii) Meets the requirements in subsections (c) and (d) of this section, as applicable.
 - (2) When a leak detection method operated in accordance with the requirements of subsections (c) and (d) of this section indicates that a leak may have occurred, the facility must report the suspected leak in accordance with the Environmental Conservation Law, the Navigation Law, and 6 NYCRR § 613-3.4(a) as implemented by NYSDEC.
 - (3) Additional testing and inspection. When a leak is suspected, or where inspections or tests required by this article have not been performed, the department may order the facility to inspect and to test the UST system or equipment for tightness and structural soundness. If the facility fails to conduct such inspections and tests within ten days after receipt of the department's order, the department may conduct inspections or tests for tightness. The expenses of conducting such tests as ordered by the department must be paid by the tank system owner.
 - (4) A facility that cannot implement a method of leak detection that complies with the requirements of this section must take the UST system out of service pursuant to section 873.2503.5(a) of this article.
- (b) *Specific requirements for Category 1, 2, and 3 UST systems.*
- (1) Tanks. USTs must be monitored for leaks as follows:
 - (i) Every tank that is part of a Category 1 UST system must be tested for tightness in accordance with section 873.2503.3(c)(1) of this article at yearly intervals, with the exception of the following:
 - (a) Any UST system storing No. 5 or No. 6 fuel oil;
 - (b) Any UST system that is monitored for leaks at weekly intervals using one of the methods listed in section 873.2503.3(c)(2) through (5) of this article; or
 - (c) Any UST system having a tank that is encased in concrete that complies with section 873.2503.3(c)(6) of this article and is monitored at weekly intervals.
 - (ii) Every tank that is part of a Category 2 UST system must be monitored for leaks using one of the methods listed in section 873.2503.3(c)(2) through (5) of this article at weekly intervals. Continuous electronic monitoring satisfies the weekly monitoring requirement.
 - (iii) Every tank that is part of a Category 3 UST system must be monitored for leaks in accordance with section 873.2503.3(c)(5) of this article at weekly intervals. Continuous electronic monitoring satisfies the weekly monitoring requirement.
 - (iv) All electronic tank monitoring systems must be inspected for operability at monthly intervals.
 - (2) Piping. Piping that routinely contains petroleum and is in contact with the ground must be monitored for leaks as follows:

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- (i) Pressurized piping.
 - (a) Piping installed before December 27, 1986 that conveys petroleum under pressure must be tested for tightness in accordance with section 873.2503.3(d)(2) of this article at yearly intervals, with the exception of the following:
 - (1) Piping associated with any UST system storing No. 5 or No. 6 fuel oil;
 - (2) Any pressurized piping that is equipped with an automatic line leak detector that is operated in accordance with section 873.2503.3(d)(1) of this article.
 - (b) Piping installed on or after December 27, 1986 that conveys petroleum under pressure and is part of a UST system storing motor fuel must be equipped with an automatic line leak detector that is operated in accordance with section 873.2503.3(d)(1) of this article.
 - (ii) Suction piping. Piping installed before December 27, 1986 that conveys petroleum under suction must be tested for tightness in accordance with section 873.2503.3(d)(2) of this article at yearly intervals, with the exception of piping associated with any UST system storing No. 5 or No. 6 fuel oil.
 - (iii) All electronic piping monitoring systems must be inspected for operability at monthly intervals.
- (c) *Methods of leak detection for tanks.* Each method of leak detection for USTs used to meet the requirements of section 873.2503.3(b)(1) of this article must be conducted in accordance with the following:
- (1) Periodic tightness testing.
 - (i) Qualifications of test technicians. All tightness tests must be performed by a technician who has an understanding of variables which affect the test and is trained in the performance of the test and is registered with the department.
 - (ii) Test reports.
 - (a) A copy of the test report must be provided by the facility to the department within 30 days after performance of the test.
 - (b) All test reports must be in a form satisfactory to the department and must include the following information:
 - (1) Facility registration number;
 - (2) Tank identification number used on the application form required in section 873.2501.9 of this article for the UST and piping tested;
 - (3) Date of test;

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- (4) Results of test;
 - (5) Test method;
 - (6) Certification by the technician that test complies with criteria for a tightness test in subparagraph (iii) of this paragraph;
 - (7) Statement of technician's qualifications;
 - (8) Address of technician; and
 - (9) Signature of technician.
 - (iii) Tank tightness testing must be capable of detecting a leak at the rate of 0.1 gallon per hour from any portion of the UST that routinely contains petroleum while accounting for the effects of thermal expansion or contraction of the product, vapor pockets, tank deformation, evaporation or condensation, and the location of the water table.
- (2) Automatic tank gauging. Equipment for automatic tank gauging which tests for the loss of petroleum must meet the following requirements:
- (i) The automatic petroleum level monitor test can detect a leak at the rate of 0.2 gallon per hour from any portion of the UST that routinely contains petroleum; and
 - (ii) The test must be performed with the system operating in one of the following modes:
 - (a) In-tank static testing conducted on a weekly basis; or
 - (b) Continuous in-tank leak detection operating on an uninterrupted basis or operating within a process that allows the system to gather incremental measurements to determine the leak status of the UST at weekly intervals.
- (3) Vapor monitoring. Testing or monitoring for vapors within the soil gas of the excavation zone must meet the following requirements:
- (i) The materials used as backfill are sufficiently porous (for example, gravel, sand, crushed rock) to readily allow diffusion of vapors from leaks into the excavation area;
 - (ii) The stored petroleum, or a tracer compound placed in the UST system, is sufficiently volatile (for example, gasoline) to result in a vapor level that is detectable by the monitoring devices located in the excavation zone in the event of a leak from the UST;
 - (iii) The measurement of vapors by the monitoring device is not rendered inoperative by the groundwater, rainfall, or soil moisture or other known interferences so that a leak could go undetected for more than seven days;

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- (iv) The level of background contamination in the excavation zone will not interfere with the method used to detect leaks from the UST;
 - (v) The vapor monitors are designed and operated to detect any significant increase in concentration above background of the petroleum stored in the UST system, a component or components of that substance, or a tracer compound placed in the UST system;
 - (vi) In the UST excavation zone, the site is assessed to ensure compliance with the requirements in subparagraphs (i) through (iv) of this paragraph and to establish the number and positioning of monitoring wells that will detect leaks within the excavation zone from any portion of the UST that routinely contains petroleum; and
 - (vii) Monitoring wells are clearly marked and secured to avoid unauthorized access and tampering.
- (4) Groundwater monitoring. Testing or monitoring for liquids on the groundwater must meet the following requirements:
- (i) The petroleum stored is immiscible in water and has a specific gravity of less than one;
 - (ii) Groundwater is never more than 20 feet from the ground surface and the hydraulic conductivity of the soil(s) between the UST system and the monitoring wells or devices is not less than 0.01 cm/sec (for example, the soil should consist of gravels, coarse to medium sands, coarse silts, or other permeable materials);
 - (iii) The slotted portion of the monitoring well casing must be designed to prevent migration of natural soils or filter pack into the well and to allow entry of petroleum on the water table into the well under both high and low groundwater conditions;
 - (iv) Monitoring wells must be sealed from the ground surface to the top of the filter pack;
 - (v) Monitoring wells or devices intercept the excavation zone or are as close to it as is technically feasible;
 - (vi) The continuous electronic monitoring devices or manual methods used can detect the presence of at least one-eighth of an inch of free product on top of the groundwater in the monitoring wells;
 - (vii) Within and immediately below the UST system excavation zone, the site is assessed to ensure compliance with the requirements in subparagraphs (i) through (v) of this paragraph and to establish the number and positioning of monitoring wells or devices that will detect leaks from any portion of the UST that routinely contains petroleum; and

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- (viii) Monitoring wells are clearly marked and secured to avoid unauthorized access and tampering.
- (5) Interstitial monitoring. Interstitial monitoring between the UST system and a secondary barrier immediately around or beneath it may be used if the system is designed, constructed, and installed to detect a leak from any portion of the UST that routinely contains petroleum; and if the system meets one of the requirements set forth in subparagraphs (i) through (iii) of this paragraph:
- (i) For a double-walled UST system, the sampling or testing method can detect a leak through the inner wall in any portion of the UST that routinely contains petroleum;
 - (ii) For a UST system with a secondary barrier within the excavation zone, the sampling or testing method used can detect a leak between the UST system and the secondary barrier, and the following conditions are met:
 - (a) The secondary barrier around or beneath the UST system consists of artificially constructed material that is sufficiently thick and impermeable (at least 1×10^{-6} cm/sec with respect to water) to direct a leak to the monitoring point and permit its detection;
 - (b) The barrier is compatible with the petroleum stored so that a leak from the UST system will not cause a deterioration of the barrier allowing a leak to pass through undetected;
 - (c) For a cathodically protected tank, the secondary barrier must be installed so that it does not interfere with the proper operation of the cathodic protection system;
 - (d) The groundwater, soil moisture, or rainfall will not render the testing or sampling method used inoperative so that a leak could go undetected for more than seven days;
 - (e) The site is assessed to ensure that the secondary barrier is always above the groundwater and not in a 25-year flood plain, unless the barrier and monitoring designs are for use under such conditions; and
 - (f) Monitoring wells are clearly marked and secured to avoid unauthorized access and tampering.
 - (iii) For a UST system using continuous vacuum, pressure, or liquid-filled methods of interstitial monitoring, the method must be capable of detecting a breach in both the inner and outer walls of the tank and/or piping.
- (6) Weep holes. Holes in the base of a concrete form encasing a tank may be used to detect a leak from any portion of the tank. Holes in the concrete form must be directly visible to an observer.

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- (d) *Methods of leak detection for piping.* Each method of leak detection for piping used to meet the requirements of section 873.2503.3(b)(2) of this article must be conducted in accordance with the following:
- (1) Automatic line leak detectors. Methods which alert the operator to the presence of a leak by restricting or shutting off the flow of petroleum through piping or triggering an audible or visual alarm may be used only if they detect leaks of three gallons per hour at ten pounds per square inch line pressure within one hour.
 - (2) Line tightness testing. A periodic test of piping may be conducted only if it can detect a leak at the rate of 0.1 gallon per hour at one and one-half times the operating pressure.
- (e) *Leak detection recordkeeping.* Every facility must maintain records demonstrating compliance with all applicable requirements of this section. These records must meet the following requirements:
- (1) The results or records of any sampling, testing, or monitoring must be maintained for at least three years;
 - (2) The results of tank and line tightness testing must be retained until the next test is conducted;
 - (3) A copy of the results of tank and line tightness testing must be submitted to the department within 30 days after performance of the test(s); and
 - (4) Written documentation of all calibration, maintenance, and repair of leak detection equipment permanently located on-site must be maintained for at least three years after the servicing work is completed. Any schedules of required calibration and maintenance provided by the leak detection equipment manufacturer must be retained for three years from the date of installation.

(Res. of 5-18-2017)

Sec. 873.2503.4. Reporting, investigation, and confirmation.

A facility must act in accordance with the provisions of the Environmental Conservation Law, the Navigation Law, and 6 NYCRR § 613-3.4 as implemented by NYSDEC with respect to any suspected or known spill. The citation to 6 NYCRR § 613-3.3(a) and (b), found in 6 NYCRR § 613-3.4(a)(3), must be read as a citation to section 873.2503.3(a) and (b) of this article.

(Res. of 5-18-2017)

Sec. 873.2503.5. Out-of-service UST systems and closure.

- (a) *Out-of-service UST systems.*

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- (1) (i) When a UST system is out-of-service, the facility must continue operation and maintenance of corrosion protection in accordance with section 873.2503.2(b) of this article, and any leak detection in accordance with section 873.2503.3(a) and (b) of this article. The facility must comply with the requirements of the Environmental Conservation Law, the Navigation Law, and 6 NYCRR Subpart 613-6 as implemented by NYSDEC if a release is confirmed.
- (ii) Leak detection required under section 873.2503.3(a) and (b) of this article is not required as long as the UST system is empty. (The UST system is considered empty when all materials have been removed using commonly employed practices so that no more than 2.5 centimeters (one inch) of residue remain in the system.) However, leak detection required under section 873.2503.3(a) and (b) of this article must resume consistent with the original schedule or upon resumption of delivery of petroleum into the UST system, whichever is later.
- (2) When a UST system is out-of-service for a period of three to 12 months, the facility must also comply with the following requirements:
- (i) Leave vent lines open and functioning; and
- (ii) Cap and secure all other piping, ancillary equipment, and manways.
- (3) When a UST system is out-of-service for more than 12 months, the facility must permanently close the UST system in accordance with subsections (b) and (c) of this section.
- (b) *Permanent closure.*
- (1) At least 30 days before beginning permanent closure, a facility must notify the department of its intent to permanently close, unless such action is in response to corrective action. Within 30 days after permanent closure, a facility must submit a registration application to the department, in accordance with section 873.2501.9(f) of this article, indicating that the UST system has been permanently closed.
- (2) To permanently close a UST system:
- (i) The facility must empty and clean it by removing all liquids and accumulated sludge. Every tank that is part of a UST system that is permanently closed must also be either removed from the ground or filled with an inert solid material (such as sand or concrete slurry). If an inert solid material is used, all voids within the UST must be filled. All connecting and fill lines must be disconnected and removed or securely capped or plugged. Manways must be securely fastened in place. One of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references) must be adhered to in order to comply with this subparagraph:
- (a) API RP 1604, March 1996;

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- (b) API RP 2016, August 2001;
 - (c) API RP 1631, June 2001; or
 - (d) NFPA 326, 2010 edition.
 - (ii) The facility must ensure that all scheduled deliveries to the UST system are terminated.
 - (c) *Records for permanent closure.* The facility must maintain for three years records that are capable of demonstrating compliance with closure requirements under this article. In addition, the facility must transmit a copy of the records to the department within 30 days after permanent closure.

(Res. of 5-18-2017)

Sec. 873.2504. AST systems.

Sec. 873.2504.1. AST systems: Design, construction, and installation.

- (a) *Applicability.* The provisions of this section apply to every AST system that is part of a facility.
- (b) *Equipment standards for Category 2 and 3 AST systems.* In order to prevent releases due to structural failure, corrosion, or spills and overfills, any facility containing a Category 2 or 3 AST system must meet the following requirements:
 - (1) Tanks.
 - (i) Every AST with a design capacity of 60 gallons or greater must be constructed of steel and must be designed and utilized according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references), as applicable:
 - (a) For Category 2 ASTs:
 - (1) UL 142, January 1985;
 - (2) API Standard 620, September 1982 (revised April 1985);
 - (3) API Standard 650, February 1984;
 - (4) CAN4-S601-M84, 1984; or
 - (5) CAN4-S630-M84, 1984.
 - (b) For Category 3 ASTs:
 - (1) UL 142, December 2006;
 - (2) UL 80, September 2007;

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- (3) UL 2258, August 2010;
 - (4) API Standard 620, February 2008;
 - (5) API Standard 650, March 2013; or
 - (6) ULC-S601-07, 2007.
- (ii) Every AST must have a surface coating designed to prevent corrosion and deterioration.
 - (iii) Every AST, if in contact with the ground, must be protected from corrosion. Any Category 3 AST in contact with the ground must be protected from corrosion in accordance with API Standard 651, January 2007.
 - (iv) ASTs storing Class IIIB petroleum are not required to be constructed of steel if installed in areas that would not be exposed to a spill or leak of Class I or Class II petroleum. The classes of petroleum are described in NFPA 30, 2012 edition (refer to section 873.2501.10 of this article for complete citation of references).

Note: The department recognizes that some petroleum mixtures cannot be safely stored in steel ASTs. A facility owner seeking to store such petroleum mixtures should, pursuant to the provisions of section 873.2501.8 of this article, request a variance from the requirements of subparagraph (i) of this paragraph.

- (v) Secondary containment.
 - (a) Any AST that has a design capacity of 10,000 gallons or more must have secondary containment that meets the following requirements:
 - (1) Be able to contain petroleum leaked from any portion of the AST until it is detected and removed; and
 - (2) Be able to prevent the release of petroleum.
 - (b) Any AST that has a design capacity of less than 10,000 gallons and is in close proximity to sensitive receptors is required to either have secondary containment as described in clause (a) of this subparagraph or utilize a design/technology such that a release is not reasonably expected to occur. ASTs within 500 horizontal feet of the following resources are considered to be in close proximity to sensitive receptors:
 - (1) A perennial or intermittent stream;
 - (2) A public or private well;
 - (3) A primary or principal aquifer as defined in USGS Water Resource Investigation Reports 87-4274, 87-4275, 87-4276, 87-4122, 88-4076, and Appendix C;
 - (4) A wetland as defined in 6 NYCRR Part 664;

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- (5) A lake/pond, estuary, or other similar surface water body; or
 - (6) A storm drain.
- (c) An impermeable barrier under an AST that is in contact with the ground must have a permeability rate to water equal to or less than 1×10^{-6} cm/sec and must not deteriorate in an underground environment or in the presence of petroleum. All ASTs must be capable of being monitored between the tank bottom and the impermeable barrier.
 - (d) The secondary containment may consist of a combination of dikes, under-tank liners, pads, ponds, impoundments, curbs, ditches, sumps, tanks used for emergency or overflow containment, or other equipment capable of containing the petroleum stored. Construction of diking and the capacity of the diked area must be in accordance with the following: Category 2 AST systems: NFPA 30 (1984 edition), section 2-2.3.3; or Category 3 AST systems: NFPA 30 (2012 edition), section 22.11.2.
 - (e) If soil is used as part of the secondary containment, the soil must be of such character that any spill into the secondary containment will be readily recoverable.
- (2) Piping. Piping that routinely contains petroleum and is in contact with the ground must be properly designed, constructed, and protected from corrosion in accordance with subparagraphs (i) or (ii) of this paragraph.
 - (i) Piping made of a non-corrodible material must meet the following conditions:
 - (a) The materials, joints, and joint adhesives must be compatible with petroleum, petroleum additives, and corrosive soils.
 - (b) All underground piping must be designed, constructed, and installed with access ports to permit tightness testing without the need for extensive excavation.
 - (c) All joints must be liquid and air tight.
 - (d) All underground piping must be tested for tightness before being covered, enclosed or placed in use.
 - (e) All piping installed after October 11, 2015 must be designed and constructed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (1) UL 971, February 2006; or
 - (2) ULC-S660-08, 2008.
 - (ii) Piping made of steel that is cathodically protected must meet the following conditions:

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- (a) The cathodic protection system must provide a minimum of 30 years of protection in corrosive soils.
 - (b) Cathodic protection must be provided by the use of sacrificial anodes or impressed current.
 - (c) Where sacrificial anodes or impressed current systems are used, monitors to check on the adequacy of the system must be installed and kept in proper working condition. If at any time the monitor shows that the electrical current necessary to prevent corrosion is not being maintained, the system must be repaired or the piping will be considered unprotected and must be tested for tightness in accordance with section 873.2504.3(d)(2) of this article.
 - (d) Except where cathodic protection is provided by impressed current, underground piping must have dielectric bushings, washers, sleeves, or gaskets installed at the end to electrically isolate the piping from the AST and the dispenser. These dielectric connectors must be compatible with petroleum, petroleum additives, and corrosive soils.
 - (e) All underground piping must be designed, constructed, and installed with access ports to permit tightness testing without the need for extensive excavation.
 - (f) All joints must be liquid and air tight.
 - (g) All underground piping must be tested for tightness in accordance with section 873.2504.3(d)(2) of this article before being covered, enclosed, or placed in use.
 - (h) All piping installed after October 11, 2015 must meet the following conditions:
 - (1) The piping must be designed and constructed according to UL 971A, October 2006 (refer to section 873.2501.10 of this article for complete citation of references);
 - (2) The piping must be coated with a suitable dielectric material;
 - (3) The cathodic protection system must be designed, fabricated, and installed according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (i) API RP 1632, January 1996 (revised 2002);
 - (ii) STI R892, January 2006;
 - (iii) NACE SP0169-2013, 2013; or

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- (iv) NACE SP0285-2011, 2011.
 - (4) Every field-installed cathodic protection system must be designed by a corrosion expert;
 - (5) Every impressed current system must be designed to allow determination of current operating status as required in section 873.2504.2(b)(2) of this article; and
 - (6) Every cathodic protection system must be operated and maintained in accordance with section 873.2504.2(b) of this article.
- (3) Overfill prevention equipment. Every AST must be equipped with a gauge which accurately shows the level of petroleum in the AST. The gauge must be accessible to the carrier and be installed so it can be conveniently read. A high-level warning alarm, a high-level liquid pump cut-off controller, or equivalent device may be used in lieu of a gauge.
- (4) Installation.
- (i) Every AST system must be supported on a well-drained stable foundation which prevents movement, rolling, or settling of the AST and is designed to minimize corrosion of the tank bottom.
 - (ii) Prior to first receipt of petroleum, every AST must be tested for tightness. The tank in a Category 3 AST system must be tested for tightness and inspected according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (a) API Standard 650, March 2013;
 - (b) API Standard 653, April 2009;
 - (c) PEI RP200, 2013 edition;
 - (d) STI SP001, September 2011; or
 - (e) UL 142, December 2006.
- (5) Valves.
- (i) Every dispenser of motor fuel under pressure from a remote pumping system must be equipped with a shear valve (impact valve) that is located in the supply line at the inlet of the dispenser. The valve must be designed to close automatically in the event that the dispenser is accidentally dislodged from the inlet pipe. For a valve installed on or before October 11, 2015, a valve meeting the standards set forth in NFPA 30A (1984 edition), section 4-3.6 meets the requirements of this subparagraph. For a valve installed after October 11, 2015,

a valve meeting the standards set forth in NFPA 30A (2012 edition), section 6.3.9 meets the requirements of this subparagraph.

- (ii) Every dispenser of motor fuel that causes a gravity head must be equipped with a device such as a solenoid valve that is positioned adjacent to and downstream from the operating valve. The valve must be installed and adjusted so that liquid cannot flow by gravity from the AST system in case of piping or dispenser hose failure. For a valve installed on or before October 11, 2015, a valve meeting the standards set forth in NFPA 30A (1984 edition), section 2-1.7 meets the requirements of this subparagraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30A (2012 edition), section 4.2.4 meets the requirements of this subparagraph.
 - (iii) Every fill pipe leading to a pump-filled AST must be equipped with a properly functioning check valve or equivalent device which provides automatic protection against backflow. A check valve is required only when the piping arrangement of the fill pipe is such that backflow from the receiving tank is possible.
 - (iv) Each connection on a gravity-drained AST through which petroleum can normally flow must be equipped with an operating valve to control the flow. For a valve installed on or before October 11, 2015, a valve which meets the standards set forth in NFPA 30 (1984 edition), section 2-2.7.1 meets the requirements of this subparagraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30 (2012 edition), section 22.13.1 meets the requirements of this subparagraph.
- (c) *Equipment standards for Category 1 AST systems.* In order to prevent releases due to structural failure, corrosion, or spills and overfills, any facility containing a Category 1 AST system must meet the following requirements.
- (1) Secondary containment.
 - (i) Any AST that has a design capacity of 10,000 gallons or more must have secondary containment that meets the following requirements:
 - (a) Be able to contain petroleum leaked from any portion of the AST until it is detected and removed; and
 - (b) Be able to prevent the release of petroleum.
 - (ii) Any AST that has a design capacity of less than 10,000 gallons and is in close proximity to sensitive receptors is required to either have secondary containment as described in subparagraph (i) of this paragraph or utilize a design/technology such that a release is not reasonably expected to occur. ASTs within 500 horizontal feet of the following resources are considered to be in close proximity to sensitive receptors:

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- (a) A perennial or intermittent stream;
 - (b) A public or private well;
 - (c) A primary or principal aquifer as defined in USGS Water Resource Investigation Reports 87-4274, 87-4275, 87-4276, 87-4122, 88-4076, and Appendix C;
 - (d) A wetland as defined in 6 NYCRR Part 664;
 - (e) A lake/pond, estuary, or other similar surface water body; or
 - (f) A storm drain.
- (iii) The secondary containment may consist of a combination of dikes, under-tank liners, pads, ponds, impoundments, curbs, ditches, sumps, tanks used for emergency or overflow containment, or other equipment capable of containing the petroleum stored. Construction of diking and the capacity of the diked area must be in accordance with NFPA 30 (1984 edition), section 2-2.3.3.
 - (iv) If soil is used as part of the secondary containment, the soil must be of such character that any spill into the secondary containment will be readily recoverable.
- (2) Overfill prevention equipment. Every AST must be equipped with a gauge which accurately shows the level of product in the AST. The gauge must be accessible to the carrier and be installed so it can be conveniently read. A high-level warning alarm, a high-level liquid pump cut-off controller, or equivalent device may be used in lieu of a gauge.
 - (3) Piping requirements. Piping installed on or after December 27, 1986 that routinely contains petroleum and is in contact with the ground must meet the requirements of paragraph (b)(2) of this section.
 - (4) Valves.
 - (i) Every dispenser of motor fuel under pressure from a remote pumping system must be equipped with a shear valve (impact valve) that is located in the supply line at the inlet of the dispenser. The valve must be designed to close automatically in the event that the dispenser is accidentally dislodged from the inlet pipe. For a valve installed on or before October 11, 2015, a valve meeting the standards set forth in NFPA 30A (1984 edition), section 4-3.6 meets the requirements of this subparagraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30A (2012 edition), section 6.3.9 meets the requirements of this subparagraph.
 - (ii) Every dispenser of motor fuel that causes a gravity head must be equipped with a device such as a solenoid valve that is positioned adjacent to and downstream from the operating valve. The valve must be installed and adjusted so that liquid

cannot flow by gravity from the AST system in case of piping or dispenser hose failure. For a valve installed on or before October 11, 2015, a valve meeting the standards set forth in NFPA 30A (1984 edition), section 2-1.7 meets the requirements of this subparagraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30A (2012 edition), section 4.2.4 meets the requirements of this subparagraph.

- (iii) Every fill pipe leading to a pump-filled AST must be equipped with a properly functioning check valve or equivalent device which provides automatic protection against backflow. A check valve is required only when the piping arrangement of the fill pipe is such that backflow from the receiving tank is possible.
- (iv) Each connection on a gravity-drained AST through which petroleum can normally flow must be equipped with an operating valve to control the flow. For a valve installed on or before October 11, 2015, a valve which meets the standards set forth in NFPA 30 (1984 edition), section 2-2.7.1 meets the requirements of this subparagraph. For a valve installed after October 11, 2015, a valve meeting the standards set forth in NFPA 30 (2012 edition), section 22.13.1 meets the requirements of this subparagraph.

(Res. of 5-18-2017)

Sec. 873.2504.2. General operating requirements.

(a) *Spill and overfill prevention.*

- (1) Every facility must ensure that releases due to spilling or overfilling do not occur. One of the transfer procedures described in NFPA 385 (2012 edition) or API RP 1007 (March 2001 edition) must be used in order to comply with the requirement of this paragraph, unless those procedures are technically infeasible. In circumstances of technical infeasibility, the facility must develop and employ practices to ensure that releases due to spilling or overfilling do not occur.
- (2) The facility must report, investigate, and clean up any spills and overfills in accordance with the Environmental Conservation Law, the Navigation Law, and 6 NYCRR § 613-4.4(d) as implemented by NYSDEC.
- (3) Every AST must be marked (for example, with stenciled letters) with the tank registration identification number, as well as the tank design and working capacities.
- (4) Every AST system must be color coded in accordance with API RP 1637 at or near the fill port. If an AST system contains petroleum that does not have a corresponding API color code, the facility must otherwise mark the AST (for example, with stenciled letters) to identify the petroleum currently in the AST system. If the fill port is remote from the AST such that the AST cannot be properly identified by sight from the fill

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- port, the facility must also place the marking near the fill port to identify the petroleum currently in the AST system. For any fill port connected to multiple AST systems storing different types of petroleum, the facility may place the marking near the fill port (for example, with a label or placard) to identify the types of petroleum in the AST systems.
- (5) Where there are monitoring wells located at a facility, every monitoring well must be clearly identified as a monitoring well to prevent accidental delivery of petroleum to the monitoring well and must be sealed or capped so as to prevent liquid from entering the well from the surface.
 - (6) The facility must keep all gauges, valves, and other equipment for spill prevention in good working order.
 - (7) Immediately prior to a delivery, the carrier must determine that the AST has available working capacity to receive the volume of petroleum to be delivered. Every aspect of the delivery must be monitored and immediate action must be taken to stop the flow of petroleum when the working capacity of the AST has been reached or should an equipment failure or emergency occur.
- (b) *Operation and maintenance of corrosion protection.* Every facility having a Category 2 or 3 metal AST system with corrosion protection must comply with the following requirements to ensure that a release due to corrosion is prevented until the AST system is permanently closed pursuant to section 873.2504.5(b) of this article:
- (1) All corrosion protection systems must be operated and maintained to continuously provide corrosion protection to the metal components of that portion of the AST and piping that routinely contains petroleum and is in contact with the ground.
 - (2) All AST systems equipped with cathodic protection systems must be inspected for proper operation by a qualified cathodic protection tester in accordance with the following requirements:
 - (i) Frequency. Every cathodic protection system must be tested at yearly intervals; and
 - (ii) Inspection criteria. The criteria that are used to determine that cathodic protection is adequate as required by this section must be according to one of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references):
 - (a) API RP 651, January, 2007; or
 - (b) NACE RP0193-2001, 2001 edition.
 - (3) Every AST system with impressed current cathodic protection systems must also be inspected every 60 days to ensure the equipment is running properly.

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- (4) For AST systems using cathodic protection, records of the operation of the cathodic protection must be maintained to demonstrate compliance with the requirements of this section. The records generated to meet the provisions of paragraphs (2) and (3) of this subsection must be kept for three years.
- (c) *Compatibility.* Every facility must use an AST system made of or lined with materials that are compatible with the petroleum stored in the AST system.
- (d) *Repairs.*
- (1) Permanent repairs.
- (i) All repairs must be equal to or better than the standards of original construction. Such repairs must consist of:
- (a) Steel welds or steel patches which are welded in place; or
- (b) Practices set forth in paragraph (3) of this subsection.
- (ii) All welds associated with the repair of an AST must be inspected and tested for tightness before the AST is returned to service.
- (2) Cleaning of tank prior to repair.
- (i) Prior to repair, an AST must be cleaned. Wash water must not be discharged to the lands or waters of the State unless the discharge is in conformance with the standards of 6 NYCRR Parts 701, 702, 703, and 750, as applicable.
- (ii) Sludge which has accumulated on the bottom of the AST must be removed, transported, and disposed of in a manner consistent with all applicable State and federal requirements for solid waste disposal.
- (3) Lining specifications.
- (i) Any non-corrodible epoxy-based resins or equivalent lining which is bonded firmly to the interior surfaces may be used as a lining to protect an AST from future corrosion.
- (ii) The lining must be of sufficient thickness, density, and strength to form a hard impermeable shell which will not crack, soften, or separate from the interior surface of the AST.
- (iii) The lining's coefficient of thermal expansion must be compatible with steel so that stress due to temperature changes will not be detrimental to the soundness of the lining.
- (iv) The lining must be compatible with petroleum products and petroleum additives.
- (v) The lining material must be applied and cured in strict accord with manufacturer's specifications.

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- (vi) Linings used to protect the bottom of an AST must extend up the side of the tank a minimum of 18 inches.
 - (4) Inspection of lining. The lining must be checked for air pockets and blisters, and electrically tested for pinholes. The lining thickness must be checked with an Elcometer Thickness Gauge or equivalent and the hardness checked with a Barcol Hardness Tester or equivalent to assure compliance with manufacturer's specifications. Any defects must be repaired.
 - (5) Manufacturer's guarantee. A lining must be installed under the direction of the lining manufacturer or a certified representative. The manufacturer or representative must guarantee to the owner in writing that the lining will not leak the product specified in storage and the lining will not deteriorate in any way for a period of ten years. A copy of the guarantee must be kept by the owner for the life of the AST.
 - (e) *Tank systems in locations subject to flooding.* For Category 1 and 2 AST system located in an area where the AST may become buoyant because of a rise in the water table, flooding, or accumulation of water, the facility must maintain safeguards in accordance with NFPA 30 (1984 edition) section 2-5.6. If such safeguards include ballasting of an AST with water during flood warning periods, tank system valves and other openings must be closed and secured in a locked position in advance of the flood. Ballast water removed from the AST after the flood must not be discharged to the waters of the State unless the discharge is in conformance with the standards of 6 NYCRR Parts 701, 702, 703, and 750, as applicable.
 - (f) *Stormwater management.* Stormwater which collects within the secondary containment system must be controlled by a manually operated pump or siphon, or a gravity drain pipe which has a manually controlled dike valve on the outside of the dike. All pumps, siphons and valves must be properly maintained and kept in good condition. If gravity drain pipes are used, all dike valves must be locked in a closed position except when the operator is in the process of draining clean water from the diked area. Stormwater or any other discharge at a facility must be uncontaminated and free of sheen prior to discharge. Stormwater which is contaminated must not be discharged to the waters of the State unless the discharge is in conformance with the standards of 6 NYCRR Parts 701, 702, 703, and 750, as applicable.

(Res. of 5-18-2017)

Sec. 873.2504.3. Inspections and leak detection.

- (a) *Specific requirements for Category 1, 2, and 3 AST systems.*
 - (1) Tank systems.
 - (i) Every facility having an AST system must inspect the AST system at monthly intervals in accordance with section 873.2504.3(b)(1) of this article.

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- (ii) Except as provided in subparagraph (iii) of this paragraph, every Category 1 AST system that has a tank as described in clause (a) or (b) of this subparagraph must be inspected at ten-year intervals in accordance with section 873.2504.3(b)(2) of this article.
 - (a) An AST that has a design capacity of 10,000 gallons or more.
 - (b) An AST that has a design capacity of less than 10,000 gallons and is in close proximity to sensitive receptors. ASTs within 500 horizontal feet of the following resources are considered to be in close proximity to sensitive receptors:
 - (1) A perennial or intermittent stream;
 - (2) A public or private well;
 - (3) A primary or principal aquifer as defined in USGS Water Resource Investigation Reports 87-4274, 87-4275, 87-4276, 87-4122, 88-4076, and Appendix C;
 - (4) A wetland as defined in 6 NYCRR Part 664;
 - (5) A lake/pond, estuary, or other similar surface water body; or
 - (6) A storm drain.
 - (iii) Any Category 1 AST system that has a tank as described in clause (a) or (b) of this subparagraph is exempt from the requirement established in subparagraph (ii) of this subsection.
 - (a) An AST that is entirely aboveground, such as a tank on a rack, cradle or stilts.
 - (b) An AST that stores only No. 5 or No. 6 fuel oil.
- (2) Underground piping that routinely contains petroleum must be monitored for leaks as follows:
- (i) Underground pressurized piping.
 - (a) Underground piping installed before December 27, 1986 that conveys petroleum under pressure must be tested for tightness in accordance with section 873.2504.3(d)(2) of this article at ten-year intervals.
 - (b) Underground piping installed on or after December 27, 1986 that conveys petroleum under pressure and is part of an AST system storing motor fuel must be equipped with an automatic line leak detector that is operated in accordance with section 873.2504.3(d)(1) of this article.
 - (ii) Underground suction piping and gravity-fed piping. Underground piping installed before December 27, 1986 that conveys petroleum under suction or hydrostatic

pressure from the AST must be tested for tightness in accordance with section 873.2504.3(d)(2) of this article at ten-year intervals.

(b) *Inspections of AST systems.* Inspections of AST systems must be conducted in accordance with the following:

- (1) Monthly inspections. The inspection must include, as applicable, identification of leaks, cracks, areas of wear, corrosion and thinning, poor maintenance and operating practices, excessive settlement of structures, separation or swelling of tank insulation, malfunctioning equipment, and structural and foundation weaknesses.
 - (i) For an AST system that includes a tank that is fully enclosed within pre-fabricated secondary containment, the inspection must cover the exterior surfaces of:
 - (a) The secondary containment of the AST; and
 - (b) The accessible portions of piping and ancillary equipment.
 - (ii) For an AST system that includes a tank that is insulated in order to store heated petroleum and is within secondary containment, the inspection must cover the exterior surfaces of:
 - (a) The insulation of the AST; and
 - (b) The accessible portions of piping and ancillary equipment.
 - (iii) For an AST system not covered under subparagraph (i) or (ii) of this paragraph, the inspection must cover the exterior surfaces of the tank, piping, and ancillary equipment.
 - (iv) For every AST system, the inspection must cover any leak detection system, cathodic protection monitoring equipment, or other monitoring or warning system which may be in place.
- (2) Ten-year inspections. The inspection must include:
 - (i) An inspection that is conducted in accordance with API Standard 653 (April 2009) or STI SP001 (September 2011), and a tightness test of any underground piping; or
 - (ii) A tightness test of the AST system that is performed in accordance with subsection (c) of this section.

(c) *Tightness testing of ASTs.*

- (1) Qualifications of test technicians. All tightness tests must be performed by a technician who has an understanding of variables which affect the test and is trained in the performance of the test and is registered with the department.
- (2) Test reports.

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- (i) A copy of the test report must be provided by the facility to the Department within 30 days after performance of the test.
 - (ii) All test reports must be in a form satisfactory to the department and must include the following information:
 - (a) Facility registration number;
 - (b) Tank identification number used on the application form required in section 873.2501.9 of this article for the AST tested;
 - (c) Date of test;
 - (d) Results of test;
 - (e) Test method;
 - (f) Certification by the technician that test complies with criteria for a tightness test in subparagraph (iii) of this paragraph;
 - (g) Statement of technician's qualifications;
 - (h) Address of technician; and
 - (i) Signature of technician.
 - (iii) Tank tightness testing must be capable of detecting a leak at the rate of 0.1 gallon per hour from any portion of the AST that routinely contains petroleum while accounting for the effects of thermal expansion or contraction of the product, vapor pockets, tank deformation, evaporation or condensation, and the location of the water table.
- (d) *Methods of leak detection for underground piping.* Each method of leak detection for piping used to meet the requirements of section 873.2504.3(a)(2) of this article must be conducted in accordance with the following:
- (1) Automatic line leak detectors. Methods which alert the operator to the presence of a leak by restricting or shutting off the flow of petroleum through piping or triggering an audible or visual alarm may be used only if it will detect a leak of three gallons per hour at ten pounds per square inch line pressure within one hour.
 - (2) Line tightness testing. A periodic test of piping may be conducted only if it can detect a leak at the rate of 0.1 gallon per hour at one and one-half times the operating pressure.
- (e) *Inspection and leak detection recordkeeping.* Every facility must maintain records demonstrating compliance with all applicable requirements of this section. These records must include the results of monthly and ten-year inspections. Monthly inspection records must be maintained for at least three years. Ten-year inspection records must be maintained for at least ten years. A copy of the results of tank tightness testing must be submitted to the department within 30 days after performance of the test. At a minimum,

the records must list each component tested and describe any action taken to correct an issue.

- (f) *Additional testing and inspection.* When a leak is suspected, or where inspections or tests required by this article have not been performed, the department may order the facility to inspect and to test the AST system or equipment for tightness. If the facility fails to conduct such inspections and tests within ten days after receipt of the department's order, the department may conduct inspections or tests for tightness. The expenses of conducting such tests as ordered by the department must be paid by the tank system owner.

(Res. of 5-18-2017)

Sec. 873.2504.4. Reporting, investigation, and confirmation.

A facility must act in accordance with the provisions of the Environmental Conservation Law, the Navigation Law, and 6 NYCRR § 613-4.4 as implemented by NYSDEC with respect to any suspected or known spill. The citation to 6 NYCRR § 613-4.3(a), found in 6 NYCRR § 613-4.4(a)(3), must be read as a citation to section 873.2504.3(a) of this article.

(Res. of 5-18-2017)

Sec. 873.2504.5. Out-of-service AST systems and closure.

(a) *Out-of-service AST systems.*

- (1) (i) When an AST system is out-of-service, the facility must continue operation and maintenance of corrosion protection in accordance with section 873.2504.2(b) of this article, and inspections and leak detection in accordance with section 873.2504.3(a) of this article. The facility must comply with the requirements of the Environmental Conservation Law, the Navigation Law, and 6 NYCRR Subpart 613-6 as implemented by NYSDEC if a release is confirmed.
- (ii) Inspections and leak detection required under section 873.2504.3(a) of this article are not required as long as the AST system is empty. (The AST system is considered empty when all materials have been removed using commonly employed practices so that no more than 2.5 centimeters [one inch] of residue remain in the system.) However, inspections and leak detection required under section 873.2504.3(a) of this article must resume consistent with the original schedule or upon resumption of delivery of petroleum into the AST system, whichever is later.
- (2) When an AST system is out-of-service for more than three months, the facility must also comply with the following requirements:
- (i) Leave vent lines open and functioning; and

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- (ii) Cap and secure all other piping, ancillary equipment, and manways.
 - (3) When an AST system is out-of-service for more than 12 months, the facility must permanently close the AST system in accordance with subsection (b) of this section, unless the AST system is located at a facility where one or more other tank systems are not out-of-service.
- (b) *Permanent closure.*
- (1) At least 30 days before beginning permanent closure, a facility must notify the department of its intent to permanently close, unless such action is in response to corrective action. Within 30 days after permanent closure, a facility must submit a registration application to the department, in accordance with section 873.2501.9(f) of this article, indicating that the AST system has been permanently closed.
 - (2) To permanently close an AST system, the facility must empty and clean it by removing all liquids, vapors, and accumulated sludge. One of the following codes of practice (refer to section 873.2501.10 of this article for complete citation of references) must be adhered to in order to comply with this paragraph:
 - (i) API RP 2016, August 2001; or
 - (ii) NFPA 326, 2010 edition.
 - (3) Every tank that is part of an AST system that is permanently closed must, if not removed, be stenciled with the date of permanent closure.
 - (4) ASTs that are permanently closed that remain at the facility must be protected from flotation.
 - (5) AST systems that have been permanently closed may not be returned to service unless the entire AST system meets the requirements for Category 3 AST systems.
- (c) *Records for permanent closure.* The facility must maintain for three years records that are capable of demonstrating compliance with closure requirements under this article. In addition, the facility must transmit a copy of the records to the department within 30 days after permanent closure.

(Res. of 5-18-2017)

Sec. 873.2505. Delivery prohibition.

Sec. 873.2505.1. Circumstances and process for imposing a delivery prohibition.

- (a) *Tier I conditions.*
 - (1) When the department finds that a Tier 1 condition exists at a facility, the department will affix a tag on the fill pipe of the relevant tank system.

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- (2) At the time that it affixes a tag, the department will provide to the facility operator, if one is present, a written notification of the imposition of the delivery prohibition that will include the finding of the relevant condition(s) at the facility. The department will then send the written notification to the facility via certified mail to the correspondence address listed in the current facility registration or license within five business days following the time that the tag is affixed to the tank system.
- (3) The following are Tier 1 conditions:
- (i) A tank system is known to be releasing petroleum. If the source of the release cannot be determined upon inspection, then all tank systems at the facility that are probable sources of the release will be tagged.
 - (ii) A UST system covered under section 873.2502.1(a), 873.2503.1(a)(2), or (4) of this article does not have one or more of the following:
 - (a) Secondary containment equipment required under section 873.2502.1(b)(1)(iv), 873.2502.1(b)(2)(ii)(c), and 873.2503.1(b)(1)(iv) of this article;
 - (b) Spill and overfill prevention equipment required under section 873.2502.1(b)(3) of this article or overfill prevention equipment required under section 873.2503.1(b)(3) of this article;
 - (c) Corrosion protection equipment required under section 873.2502.1(b)(1)(ii), (2)(ii), (c)(2)(ii), (iii), (3), 873.2503.1(b)(1)(ii), or (2)(ii) of this article; or
 - (d) Leak detection equipment required under section 873.2502.3(a) and (b), or 873.2503.3(a) and (b) of this article.

(b) *Tier 2 conditions.*

- (1) When the department finds that a Tier 2 condition exists at a facility, the department may affix a tag on the fill pipe of the relevant tank system.
- (2) Prior to affixing a tag, the department will send a written statement to the facility informing the facility of the relevant condition(s). The department will send the statement via certified mail to the correspondence address listed in the current facility registration or license.
- (3) At the time that it affixes a tag, the department will provide to the facility operator, if one is present, a written notification of the imposition of the delivery prohibition that will include the finding of the relevant condition(s) at the facility. The department will then send the written notification to the facility via certified mail to the correspondence address listed in the current facility registration or license within five business days following the time that the tag is affixed to the tank system.
- (4) The following are Tier 2 conditions:

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- (i) The results of leak detection required by section 873.2502.3(a) and (b) of this article, section 873.2503.3(a) and (b) of this article, or inspections and leak detection required by section 873.2504.3(a) and (b) of this article indicate that the tank system may be leaking petroleum or would not contain a leak if one were to occur, unless the facility submits, within ten days after receipt of the department's statement issued pursuant to paragraph (2) of this subsection, acceptable documentation to the department that demonstrates that the relevant tank system is not leaking or has been appropriately repaired.
 - (ii) With respect to the operation of a UST system covered under section 873.2502.1(a), 873.2503.1(a)(2), or 873.2503.1(a)(4) of this article, the facility has not demonstrated within 30 days following receipt of the department's statement issued pursuant to paragraph (2) of this subsection compliance with the following standards:
 - (a) Spill and overfill prevention operating standards under section 873.2502.2(a) of this article;
 - (b) Corrosion protection operating standards under section 873.2502.2(b) of this article; or
 - (c) Applicable leak detection methods under section 873.2502.3(c) and (d) of this article.
 - (iii) With respect to the operation of a UST system covered under section 873.2503.1(a)(1) or (3) of this article, one or more of the following is missing and the facility has not documented to the department that the missing component has been put in place within 30 days after receipt of the department's statement issued pursuant to paragraph (2) of this subsection:
 - (a) Secondary containment equipment required under section 873.2503.1(b)(iv) of this article;
 - (b) Overfill prevention equipment required under section 873.2503.1(b)(3) of this article;
 - (c) Corrosion protection equipment required under section 873.2503.1(b)(1)(ii) and (2)(ii) of this article; or
 - (d) Leak detection equipment required under section 873.2503.3(a) and (b) of this article.
 - (iv) With respect to the operation of an AST system covered under section 873.2504.1(a) of this article, one or more of the following is missing and the facility has not documented to the department that the missing component has been put in place within 30 days after receipt of the department's statement issued pursuant to paragraph (2) of this subsection:

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- (a) Secondary containment equipment required under section 873.2504.1(b)(1)(v) and (c)(1) of this article;
 - (b) Overfill prevention equipment required under section 873.2504.1(b)(3) and (c)(2) of this article;
 - (c) Corrosion protection equipment required under section 873.2504.1(b)(1)(ii) and (iii), and (2)(ii) of this article; or
 - (d) Leak detection equipment required under section 873.2504.3(a) of this article.
- (c) The department may issue the written finding, consistent with paragraphs (a)(2) or (b)(3) of this section, that a Tier 1 or Tier 2 condition exists, but withhold the imposition of the delivery prohibition for a period that may not exceed 180 days, where:
- (1) There is no evidence that the tank system is leaking; and
 - (2) Imposing the delivery prohibition would jeopardize public health or safety or the availability of, or access to, fuel in a rural and remote area.

(Res. of 5-18-2017)

Sec. 873.2505.2. Prohibitions.

- (a) *Delivery prohibition.* No person may deliver or cause the delivery of petroleum to any tank system to which a tag is affixed. No person may accept petroleum to any tank system to which a tag is affixed.
- (b) *Tag tampering and removal prohibition.* Unless authorized by the department, no person may tamper with or remove a tag affixed to a tank system or cause such tampering or removal.

(Res. of 5-18-2017)

Sec. 873.2505.3. Notifications.

- (a) *Notice of delivery prohibition to facility and carrier.* The presence of a tag affixed to the fill pipe of a tank system constitutes notice of the delivery prohibition.
- (b) *Notification to carrier by facility.* After the department affixes a tag to the fill pipe of a tank system, the facility must, prior to the next scheduled delivery of petroleum, inform all carriers that normally deliver to the tank system that delivery is prohibited. The facility must retain a record of any correspondence regarding the delivery prohibition.

(Res. of 5-18-2017)

Sec. 873.2505.4. Termination of delivery prohibition.

- (a) A delivery prohibition may be terminated by the department on its own initiative, or following the conclusion of review of compliance submissions or an expedited hearing.
 - (1) Department initiative. If the department terminates a delivery prohibition on its own initiative, the department will send a written notification to the facility confirming that the prohibition has been terminated. The department will send the notification via certified mail to the correspondence address listed in the current facility registration or license.
 - (2) Review of compliance submissions.
 - (i) A facility may, at any time, submit information to the department demonstrating that the facility is in compliance or has corrected the condition(s) that prompted the department to impose the prohibition.
 - (ii) Upon submission of information to the department, the department will designate an individual to review submissions and provide a written decision as set forth below.
 - (iii) The designated individual will provide a written decision to the facility within five business days after the department receives the facility's submission. If the designated individual decides to deny termination of the delivery prohibition, the decision will set forth the reasons for the denial including a description of any deficiency in the information supplied by the facility.
 - (iv) The decision of the designated individual will constitute a final agency determination subject to challenge under Article 78 of the Civil Practice Law and Rules.
 - (v) The department will retain the record generated during the staff review process for one year.
 - (3) Expedited hearing.
 - (i) Not later than 15 days after a tag has been affixed to a tank fill port, the department will provide the facility with an opportunity to present proof on the limited issue of whether the department incorrectly determined that any Tier 1 or Tier 2 conditions existed at the facility. Notice of such hearing will be sent together with the written notification of any delivery prohibition issued pursuant to section 873.2505.1(a)(2) or (b)(3) of this article.
 - (ii) The department will bear the burden of proof at the expedited hearing.
 - (iii) The failure of the facility to appear at the time and place scheduled for the expedited hearing will constitute a waiver of the opportunity for an expedited hearing.

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- (iv) The expedited hearing will be held before a department hearing officer. The hearing officer will make a report to the commissioner setting forth the appearances, the arguments presented at the hearing, findings of fact and conclusions of law, and a recommended determination for consideration by the commissioner.
 - (v) The hearing officer may, to the extent practicable and without prejudice to the facility's right to have a timely expedited hearing, consolidate the expedited hearing regarding the existence of Tier 1 or 2 conditions with any hearing regarding the facility's violation of other provisions of this article.
 - (vi) The expedited hearing will be recorded. The hearing officer will cause a typed transcript of the record to be prepared for the department's files, but will not wait for the preparation of this transcript before making a report to the commissioner, if so requested by the facility or the commissioner.
 - (vii) The hearing officer will issue his or her report within 30 days after the close of the hearing, unless the parties agree to an extension of this time.
- (b) *Removal of a tag.* Within two business days after a decision by the department that all Tier 1 and Tier 2 conditions at a facility have been resolved, the department will remove, or authorize the removal of, the tag.

(Res. of 5-18-2017)

Sec. 873.2506. Containers.

(a) *Storage.*

- (1) All containers used for the storage of petroleum products, whether indoors or outdoors, shall be stored in a way that will prevent the release of any of the contents of the container to the surface waters, groundwaters, surface of the ground or below ground of Westchester County
- (2) Containers of petroleum products shall at all times be stored on an impervious, chemical-resistant surface that is compatible with the material being stored.
- (3) Containers shall be stored in a secure manner and protected from vandalism, unauthorized access and damage by traffic, machinery or falling objects.
- (4) Containers stored outdoors shall be protected against freezing, rusting and other weather-related damage.
- (5) Containers shall be stored in a roofed facility with an impervious floor, diked, impervious storage pad provided with adequate means of collecting and removing any accumulated storm water. Provisions must be made for contaminated water to be disposed of in an approved manner.

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- (6) Indoor storage shall be in an area with an impervious floor and no floor drains, unless it can be demonstrated that no direct discharge will occur.
 - (7) Containers above 25 gallons in size shall contain a placard or marking that identifies the contents. The identifying lettering shall be in accordance with regulations and standards adopted by or acceptable to the commissioner.

(b) *Handling.*

- (1) Containers shall be filled, emptied, transported and otherwise handled in a manner which will prevent the release to the surface waters, groundwaters, surface of the ground or below ground of Westchester County of any toxic or hazardous materials.
- (2) Drums shall not be stacked more than three high and only on their ends unless approved storage racks are provided.
- (3) Any area with stored containers must be inspected on a daily basis by the owner or operator or his representative. Any indication of leakage or damage must be reported immediately to the department at 914-813-5000 and within two hours to the NYSDEC Spill Hotline at 800-457-7362 within New York State and 518-457-7362 outside New York State and action taken to correct the problem.
- (4) Inventory records of stored materials shall be kept at all times and shall be available for inspection by the commissioner. Records shall clearly indicate deliveries, consumption, sale or final disposal and amount of all products. These records shall be kept for a period of three years.

(c) *New Installations.*

- (1) Container areas shall be installed in a manner that will prevent the release into the surface waters, groundwaters, surface of the ground or below ground of Westchester County of any petroleum products.
- (2) Installation shall be in accordance with plans filed with the department.

(Res. of 5-18-2017)

Sec. 873.2507. Tank testing.

- (a) All tank testing companies performing tank tightness test shall register with the department.
- (b) All tank tightness testers performing tests shall register with the department.
- (c) All tightness tests must be performed by a technician who has an understanding of variables which affect the test, is trained in the performance of the test, meets the qualifications and adheres to procedures as set forth by the department and who is approved by this department to test in Westchester County.

(Res. of 5-18-2017)

Article XXVI. GASOLINE DISPENSING SITES AND TRANSPORT VEHICLES²⁸

Sec. 873.2601. Definitions.

- (1) Annual throughput. The amount of gasoline transferred into or dispensed from a gasoline dispensing site during 12 consecutive months.
- (2) Commissioner. The Term Commissioner shall mean the Commissioner of Health for the County of Westchester.
- (3) County. The term shall mean the County of Westchester.
- (4) Department. The term shall mean the Westchester County Department of Health.
- (5) Equivalent control. The use of alternate operational and/or equipment controls for the reduction of gasoline vapor emissions, that have been approved by the commissioner, such that the aggregate emissions of gasoline vapor from the facility do not exceed those from the application of defined reasonably available control technology.
- (6) Gasoline. A volatile liquid mixture containing hydrocarbons or a blend of this mixture with one or more oxygen containing ashless organic compounds, such as alcohols or ethers, which is suitable for use in motor vehicles with spark-ignition, internal combustion engines and which is commonly or commercially known or sold as gasoline.
- (7) Gasoline dispensing site. Any site where gasoline is dispensed into vehicle fuel tanks or into portable containers used to fuel any motor from any stationary storage container(s) larger than 250 gallons.
- (8) Gasoline transport vehicle. Any tank truck, trailer or railroad tank car, with a capacity of 300 gallons or more, used for the transportation of gasoline.
- (9) Stage I vapor collection system. A system where gasoline vapors are forced from a gasoline storage tank into a vapor-tight gasoline transport vehicle or vapor control system through direct displacement by the gasoline being loaded.
- (10) Stage II vapor collection system. A system where at least 90 percent, by weight, of the gasoline vapors that are displaced or drawn from a vehicle fuel tank during refueling are captured and either retained in the storage tanks or destroyed in an emission control device.

²⁸State law reference(s)—Delegation of Authority from New York State Department of Environmental Conservation Title 6 NYCRR Part 201 and Environmental Conservation Law, § 3-0301, § 19-0301)

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- (11) State. The term shall mean the New York State Department of Environmental Conservation.
- (12) Submerged filling. The use of a fill pipe or drop tube whose discharge opening is entirely submerged when the liquid is six inches above the bottom of the container. For containers loaded from the side, submerged filling is defined as the use of a fill pipe whose discharge is entirely submerged when the liquid level is 18 inches, or twice the diameter of the fill pipe, whichever is greater, above the bottom of the container.
- (13) Substantially modified. A modification of an existing gasoline dispensing site which involves the addition of one or more new stationary gasoline storage tanks or the repair, replacement or reconditioning of an existing tank.
- (14) Vapor control system. A system that prevents emissions to the outdoor atmosphere from exceeding 4.7 grains per gallon (80 grams per 1,000 liters) of petroleum liquid loaded.
- (Added 11-20-2008)

Sec. 873.2602. Gasoline dispensing sites — prohibitions and requirements.

- (1) No person may transfer or allow the transfer of gasoline into storage tanks at gasoline dispensing sites whose annual throughput exceeds 120,000 gallons, unless the site has been properly registered with the Department and the gasoline storage tank is equipped with;
- (a) a stage I vapor collection system consisting of a vapor-tight return line from the storage tank, or its vent, to the gasoline transport vehicle;
 - (b) a properly installed onsite vapor control system connected to a vapor collection system; or
 - (c) an equivalent control system.
- (2) Stationary gasoline storage tanks with a capacity of 250 gallons or more, installed or modified after January 1, 1979, at any gasoline dispensing site located in the County, except for gasoline tanks with a capacity less than 550 gallons used exclusively for farm tractors which are used for agricultural purposes or for snowplowing, must have a stage I vapor collection or vapor control system regardless of the annual throughput of gasoline.
- (3) No owner and/or operator of a gasoline dispensing site after the effective date of this article may transfer or allow the transfer of gasoline into a motor vehicle fuel tank at gasoline dispensing sites located in the County whose annual throughput exceeds 120,000 gallons, unless the gasoline dispensing site is equipped with a stage II vapor collection system which has been approved by the State. A list of stage II systems which have been approved by the State is available on request. Approval of a stage II vapor collection system will be based on a determination that a properly installed and operated system will control at least 90 percent by weight of the gasoline vapors that are displaced or drawn

from a vehicle fuel tank during refueling. The list of approved stage II systems is revised periodically to include new systems and components.

- (4) Stage I and stage II vapor collection system are required at any gasoline dispensing site located in the County, except for gasoline tanks with a capacity less than 550 gallons used exclusively for farm tractors which are used for agricultural purposes or for snowplowing, which is constructed, replaced, or substantially modified after June 27, 1987.
- (5) Stationary gasoline storage tanks installed before January 2, 1979 at gasoline dispensing sites located in the County whose annual throughput does not exceed 120,000 gallons, must be equipped for submerged filling.
- (6) Stationary gasoline storage tanks with a capacity less than 550 gallons used exclusively for farm tractors which are used for agricultural purposes or snowplowing which were constructed after January 1, 1979 at gasoline dispensing sites located in the County must be equipped for submerged filling.
- (7) Owners and/or operators of gasoline storage tanks, gasoline transport vehicles and gasoline dispensing sites subject to stage I and/or stage II vapor collection or vapor control system requirements must:
 - (a) install all necessary stage I and/or stage II vapor collection and control systems, and make any modifications necessary to comply with the requirements;
 - (b) provide adequate training and written instructions to the operator of the affected gasoline dispensing site and the gasoline transport vehicle;
 - (c) replace, repair or modify any worn or ineffective component or design element to ensure the vapor-tight integrity and efficiency of the stage I vapor collection and vapor control systems;
 - (d) connect and ensure proper operation of the stage I and/or stage II vapor collection and control systems whenever gasoline is being loaded, unloaded or dispensed;
 - (e) with respect to stage I vapor collection systems, connect the stage I vapor collection hose before connecting the gasoline delivery hose to the gasoline transport vehicle, and disconnect the gasoline delivery hose before disconnecting the stage I vapor collection hose from the gasoline transport vehicle and;
 - i. ensure that the product fill cap or vapor cap is properly installed; and
 - ii. ensure that the poppet/dry break maintains the proper vapor seal.
 - (f) with respect to stage II vapor collection systems, conspicuously post operating instructions for the system on each dispenser which include:
 - (i) a clear description of how to correctly dispense gasoline with the vapor recovery nozzles utilized at the site;

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- (ii) a warning that continued attempts at dispensing gasoline after the system indicates that the vehicle tank is full may result in spillage or recirculation of gasoline; and
 - (iii) the telephone number established by the department for use by the public to report problems experienced with the stage II vapor recovery systems in the County.
 - (8) The modification, removal, replacement or addition of any element which would render the stage II vapor collection system inoperative or impair its integrity and efficiency is prohibited.
 - (9) Any owner or operator of a gasoline-dispensing site which is not regulated by this Article must comply with all other applicable Parts of this Article. Certification of a stage II vapor collection system by the department does not relieve the owner and/or operator of the responsibility to comply with other applicable codes and regulations pertaining to fire prevention, weights and measures and safety matters.
 - (10) The Stage II vapor collection system must have no defective, malfunctioning or missing components.
 - (11) For the purposes of this section, a defect in a Stage II vapor collection system shall include:
 - (a) Absence or disconnection of any part required to be used in such Stage II Vapor collection system;
 - (b) A vapor hose which is crimped, crushed or flattened such that the vapor passage is impeded or blocked;
 - (c) presence of holes of 1/4 inch or more in diameter;
 - (d) slits and tears totaling more than 1 inch;
 - (e) material weathering so as to allow vapor loss;
 - (f) improper length so as to allow contact with the pavement;
 - (g) A nozzle boot which has a hole of 1/4 inch or more in diameter, a tear or a slit 1 inch or more in length;
 - (h) A faceplate, or flexible cone on a boot which is damaged so that the ability to achieve a seal with a fill pipe interface is affected for at least 1/4 of the total circumference or more of the faceplate or flexible cone;
 - (i) A hose retractor which does not automatically return the hose to the top of the retractor assembly, or which allows the hose to sag and contact the pavement;
 - (j) A hose, nozzle boot, faceplate, retractor assembly or any component of a vapor recovery system which has been repaired with tape, glue or other unapproved methods etc.

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- (12) Daily visual inspections of components of stage II vapor collection systems must be performed to ensure the integrity and efficiency of the system.
- (a) A written log is to be maintained detailing who made the daily inspection, the inspection dates, any problems found and corrective actions taken.
- (13) Dispensers with defective stage II components must be removed from service, locked and sealed to prevent vapor loss from operational dispensers until approved replacement parts are installed.
- (14) Stage II systems must be constructed and maintained to prevent accumulations of liquids which block vapor return lines. Underground vapor lines must be sloped from the dispensers to the underground storage tanks or equipped with a condensate trap to allow liquid to accumulate without blocking the vapor return line. All vapor return line condensate traps must be accessible and must be emptied periodically to prevent blockage.
- (15) Testing requirements.
- (a)
- (i) Owners and/or operators of stage II systems installed or modified after July 20, 1994 must perform dynamic back pressure, liquid blockage, and leak tests before commencing operation.
- (ii) Owners and/or operators of stage II systems must perform dynamic back pressure, liquid blockage, and leak tests at five year intervals after commencing operation.
- (b)
- (i) Back pressure during dynamic back pressure tests must not exceed 0.45 inches of water column gauge at a flow rate of 60 cubic feet per hour or 0.95 inches of water column gauge at a flow rate of 100 cubic feet per hour.
- (ii) Back pressure during liquid blockage tests must not exceed 0.03 inches of water column gauge above the dynamic back pressure test results for the system for flow rates of 60 and 100 cubic feet per hour.
- (iii) Pressure in gasoline storage tanks must not fall below the values in Table 1 after five minutes from an initial pressure of 10.0 inches of water column during the leak test.

Leak Test Criteria for Gasoline Dispensing Sites with Stage II Vapor Recovery

Ullage Space (Gallons)	Minimum Pressure After 5 Minutes (Inches of Water)
500	3.7
600	4.5

700	5.2
800	5.8
900	6.2
1,000	6.5
1,500	7.6
2,000	8.2
2,500	8.5
3,000	8.7
3,500	8.9
4,000	9.1
4,500	9.2
5,000	9.3
7,500	9.5
10,000	9.6
15,000	9.7
30,000	9.8

Use linear interpolation for intermediate values.

(Added 11-20-2008)

Sec. 873.2603. Gasoline transport vehicles—Applicability.

This Part applies to owners and operators of all gasoline transport vehicles which:

- (1) deliver gasoline to any gasoline dispensing site required to be equipped with a stage I vapor collection system or equivalent, including such gasoline dispensing sites located in jurisdictions adjacent to the County; or
- (2) convey gasoline either to or from any gasoline loading terminal or gasoline bulk plant which is required by Title 6 NYCRR Part 229 of the State to be equipped with a vapor control system or equivalent control.

(Added 11-20-2008)

Sec. 873.2604. Gasoline transport vehicles — prohibitions and requirements.

- (1) No owner or operator of a gasoline transport vehicle subject to this Article will allow said vehicle to be filled or emptied unless the gasoline transport vehicle:
 - (a) sustains a pressure change of not more than three inches of water (six millimeters of mercury) in five minutes when pressurized to a gauge pressure of 18 inches of water

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- (34 millimeters of mercury) and evacuated to a gauge pressure of six inches of water (11 millimeters of mercury);
- (b) is repaired by the owner or operator within 15 days after failing to meet the pressure change standard in this section; and
 - (c) displays a marking, near the U.S. Department of Transportation certificate plate, in letters and numerals at least two inches high, which reads: NYS DEC and the date on which the gasoline transport vehicle was last tested.
- (2) All gasoline transport vehicles subject to this Article must be tested annually by the owner or his agent, using test methods acceptable to the commissioner. Reference method 27 in Appendix A of 40 CFR part 60 is considered to be an acceptable method. (See table 1, of 6 NYCRR Part 200.9 of the State.) If the pressure-vacuum test does not show compliance with the pressure change standard, the gasoline transport vehicle must be repaired to make the tank vapor-tight, and retested.
- (3) (a) Gasoline transport vehicles, which are loaded at gasoline terminals or gasoline bulk plants with an average daily throughput of 20,000 gallons or more located in the County, must pass a pressure-vacuum test.
- (b) Gasoline transport vehicles, which deliver gasoline to gasoline dispensing sites located in the County which are required to install stage I vapor collection systems pursuant to section 873.2602 of this Article, must pass an initial pressure-vacuum test.
- (c) Gasoline transport vehicles, which are loaded at gasoline terminals located inside of the County and/or deliver gasoline to gasoline dispensing sites required to install stage I vapor collection systems located either inside or outside of the County, must pass an initial pressure-vacuum test.
- (4) At the discretion of the commissioner, the requirements for testing and marking gasoline transport vehicles subject to this Article may be satisfied if the vehicle undergoes equivalent certification in another state.
- (5) During the loading or unloading of a gasoline transport vehicle subject to this Article, leakage of vapors from any component of the gasoline transport vehicle, or the vapor collection or control system, must not equal or exceed 100 percent of the lower explosive limit (LEL measured as propane), when measured at a distance of one inch with a combustible gas detector. No avoidable visible liquid leak from such components is allowed. Components of the transport vehicle or vapor collection or control system include all piping, seals, hoses, connections, pressure-vacuum seals, and other possible leak sources. The combustible gas detector used for determining compliance with this standard will have a minimum range of 0-100 percent of the LEL as propane, a probe with an external diameter of one quarter inch (0.625 cm), and a response time less than 30 seconds with sampling line and probe attached, and be properly calibrated.

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- (6) No owner or operator of a gasoline transport vehicle subject to this Article will allow a compartment on said vehicle to be loaded under a pressure exceeding 18 inches of water (34 millimeters of mercury) gauge, or to be unloaded under a vacuum exceeding six inches of water (11 millimeters of mercury) gauge, or to be unloaded under pressure.
 - (7) Dome covers on gasoline transport vehicles subject to this Article must be closed while the transport vehicle is being loaded, being unloaded or in motion, except when gasoline transport vehicles are hatch-loaded in conformance with 6 NYCRR Part 229.3(c)(3)(ii) or 229.3(d)(2)(i) of the State.

(Added 11-20-2008)

Sec. 873.2605. Gasoline dispensing sites—Recordkeeping and reporting.

- (1) The owner and/or operator of any gasoline dispensing site in the County must maintain records showing the quantity of all gasoline delivered to the site. These records must be retained at the gasoline dispensing site for at least two years, and must be made available to the commissioner or the commissioner's representative upon request at any reasonable time.
- (2) The sum of all gasoline deliveries to a gasoline-dispensing site during the previous 12 consecutive months will be used to determine whether the requirements of section 873.2602 of this Article apply. Once a gasoline-dispensing site becomes subject to the requirements of section 873.2602 because its annual gasoline throughput exceeds an applicability level, subsequent decreases in gasoline deliveries or throughput do not excuse a source owner from having to maintain the effectiveness of the stage I and/or stage II equipment.
- (3) The owner or operator of a gasoline dispensing site must conspicuously post a copy of the registration form required by Section 873.2602 of this Article at the gasoline dispensing site in a location accessible for inspection during all operational hours.
- (4) Owners and/or operators of gasoline dispensing sites required to perform tests of stage II systems pursuant to section 873.2602(14) of this Article must submit a notarized report of test results to the department within 30 days of the test.
 - (a) These test results must also be retained at the gasoline dispensing site for five years following the test, and must be made available for inspection by the commissioner's representative during normal business hours.

(Added 11-20-2008)

Sec. 873.2606. Gasoline transport vehicles—Recordkeeping and reporting.

- (1) The owner of any gasoline transport vehicle subject to this Article must maintain records of pressure-vacuum testing and repairs. The records must include the identity of the

gasoline transport vehicle, the results of the testing, the date that the testing and repairs, as needed, were done, the nature of needed repairs and the date of retests where appropriate.

- (a) All gasoline transport vehicles must be pressure-vacuum tested annually.
- (2) A copy of the most recent pressure-vacuum test results, in a form acceptable to the commissioner, must be kept with the gasoline transport vehicle.
- (3) Records acceptable to the commissioner must be retained for two years after the testing occurred, and must be made available to the commissioner or his representative on request at any reasonable time.

(Added 11-20-2008)

Sec. 873.2607. Variances.

Where it can be shown to the satisfaction of the commissioner that a gasoline dispensing site or gasoline transport vehicle cannot comply with the requirements of this Article for reasons of technological or economic feasibility, the commissioner may, upon submission of satisfactory evidence, grant to the source owner or operator a variance from the requirements of this Article and accept a lesser degree of control or an alternate compliance schedule.

(Added 11-20-2008)

Sec. 873.2608. Fees.

The commissioner may establish a registration fee to recover any direct cost associated with the implementation, administration or enforcing of this article.

(Added 11-20-2008)

Sec. 873.2609. Training.

The Commissioner may establish and conduct or designate training programs and require that owners and or operators of gasoline dispensing sites and or gasoline transport vehicles attend them.

(Added 11-20-2008)

Sec. 873.2610. Registration.

- (1) The Owner or operator of gasoline dispensing sites located in the County covered in this article shall register the facility within 30 days of the enactment of this article.
- (2) Registration shall be good for 5 years

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- (3) Registration shall not be transferable
 - (4) New owners shall have 15 days after the transfer of ownership to re-register the facility.
 - (5) The owner must register any new facility with the Department before it is placed in service.

(Added 11-20-2008)